

BOOKS AND THEIR MAKERS DURING THE MIDDLE AGES

A STUDY OF THE CONDITIONS OF THE PRODUCTION AND
DISTRIBUTION OF LITERATURE FROM THE FALL OF
THE ROMAN EMPIRE TO THE CLOSE OF
THE SEVENTEENTH CENTURY

BY

GEO. HAVEN PUTNAM, A.M.

AUTHOR OF "AUTHORS AND THEIR PUBLIC IN ANCIENT TIMES"
"THE QUESTION OF COPYRIGHT," ETC.

VOLUME II.
1500-1709

G. P. PUTNAM'S SONS
NEW YORK AND LONDON
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Variable spelling and hyphenation have been retained. Minor punctuation inconsistencies have been silently repaired. A list of the changes made can be found [at the end of the book](#).

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PREFACE.

IN the general Preface to this work, printed in the [first volume](#), I pointed out that an account of the production and distribution of books for the two centuries immediately succeeding the invention of printing, must, of necessity, be chiefly devoted to the operations of the printer-publishers of the period. During these centuries were produced a number of the great books of the world's literature, but it was not possible, under the existing conditions, for the authors of these books to influence materially the relations of literature to the State or to the Church. Freedom of speech and even freedom of thought depended very largely upon an untrammelled printing-press, but the authors were able to give but little aid in the arduous task of securing from the political and ecclesiastical authorities the right to multiply books. It is true that the writers of the Reformation period were in a position to render very important coöperation in the work of developing a reading public and in the further work of creating machinery by means of which such public could be reached. But notwithstanding the noteworthy exception presented by the writings from Wittenberg and Geneva, it remains the fact that for the centuries in question, the works of contemporary authors constituted but an inconsiderable proportion of the books published.

The lists of these earlier publishers were devoted to editions of the complete Bible, and of the different groups of the Biblical books, editions of the Greek and Roman classics and of the works of the Church Fathers, and issues of certain philosophical treatises which also were largely the work of writers of an earlier generation. To these were added certain treatises on jurisprudence which came to be accepted as authorities in the universities, together with the various series of text-books adopted for college and for school work. With the above were occasionally associated

books by contemporary writers, many of which became of continued importance. These formed, however, as said, but a very small group as compared with the long series of reissues of accepted classics, and it was by the latter that what might be called the literary conditions of the time were in the main determined. With the Reformation came an enormous increase in the production of works by living writers. The controversies of the period kept the printing-offices busy with the preparation of books and pamphlets devoted to present issues, and the great output of current controversial literature affected in several ways the conditions and the methods of publishing. Up to this time the books that had been published were nearly exclusively in the form of folios, quartos, or large octavos. With an occasional exception, such as that of the Aldine classics, the publishers and their scholarly customers appear to have taken the ground that if a work was entitled to the honour of being put into print, it was worthy of the most dignified form that the presses were capable of producing; and, as was shown, later, in the criticisms of correspondents of the Elzevirs and in other expressions, there was a strong feeling among scholarly readers that the printing of a work of literature in a sixteenmo or twelvemo volume, showed a lack of respect for the author, for his public, and for literature itself.

This prejudice in favour of portly volumes was very largely modified, although by no means entirely overcome, by the publications of the Reformation. The intense interest in the theological issues and the revival of religious fervour, brought into existence a new reading public. The buying of books was no longer confined to princes and scholars;—the masses of the people wanted to have in their hands the writings of the Reformers or the replies of the defenders of the Roman Church, and to an extent which is still cause for wonderment, a very large proportion of the common people were able to read and were eager to read the long series of argumentative essays many of which were devoted to themes and discussions that could be described as scholastic, and that the average citizen of to-day would certainly consider hard reading. To meet the requirements of this new reading public, requirements which called for material of small cost and in a form convenient for distribution, the pamphlet came into existence, and this was followed by the *Flugschriften*, or fly-leaf literature, comprising papers or tracts of such brief compass that they could be printed in four or even in two pages. These *Flugschriften* were carried in the packs of pedlars into the market-places of towns and villages and from farmhouse to farmhouse, and

they secured a wide distribution even in territories in which their circulation was strictly prohibited under the severest of penalties. Some description of this feature of the literary work of the Reformation is given in the chapter on Luther.

While one result of the literary activity of the Reformation was to popularise the work of the printing-press, another was an immediate development of the censorship of the Press, both heretical and ecclesiastical. The contention that the productions of the printers must be subjected to the approval of the authorities of the State was made promptly after the printing-press began its work. It was, however, only when the Press came to be utilised as the most effective ally of the heretical reformers, that the Church found it necessary to put into force its ecclesiastical censorship, and that the never-ending task began of advertising through the various *Indices Expurgatorii* the titles of the long series of wicked or dangerous books which the faithful believers were warned not to read, and which brought very serious perils indeed upon the faithless heretics who persisted in writing, printing, selling, or possessing them.

The responsibility for the selection of the books to be printed, with the exception of the controversial writings of the Reformation period, rested with the publishers of the time, and the direction of the literary interests of the book-reading public (still, of course, a very small fraction of the community) must have been not a little influenced by the decisions arrived at by these publishers. I conclude, therefore, that the publishers of this period must have exerted a larger measure of influence over the direction of scholarly investigation and in the shaping of the literary opinions of their age, than has been possible for publishers in the subsequent centuries after the production of books had been enormously increased, and when all classes of the community had become readers.

In these later times the direction of the literary interests of the diverse circles of the reading public came naturally into the hands of the contemporary writers. While the reissue of the accepted classics of previous generations remained (and must always remain) an important division of the business of publishing, an ever increasing proportion of the work of the publishers came to be given to the comparatively routine work of distributing among readers the literature of the day, in the production of

which literature the authors have, in part, led and directed, and, in part, simply followed and supplied the tastes and the demands of their readers.

The fact that the position and the personal influence of the earlier publishers were so exceptional in their character and importance is my excuse for presenting with some detail the record of the work of a few individuals and families selected as fairly representative of the class. It seemed to me necessary in so doing, even at the risk of adding to the dryness of the narrative, to include in the record lists of titles (selected from the catalogues) of the more important of the books issued by such representative publishers. These titles give in convenient form for reference, material from which can be secured not only an interesting indication of the personal interests and capacities of the publishers themselves but an impression of the literary tastes, requirements, and possibilities of the times and of the several communities in which the work of these publishers was done.

I judge that a work of this special character will be utilised rather for reference than for consecutive reading, and with this understanding, it has seemed to me desirable to make as complete as possible the record, presented in each section, of the subject matter considered in such section, even although such a method has rendered necessary an occasional repetition of statements of fact or of conclusions.

G. H. P.

NEW YORK, *September, 1896.*





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PART II.
THE EARLIER PRINTED BOOKS.



PART II.

THE EARLIER PRINTED BOOKS.

CHAPTER IV.

THE EARLY PRINTER-PUBLISHERS OF FRANCE.

1458-1559.

THE first reference in the annals of France to the new art of printing occurs in a record bearing date October 3, 1458, the original document of which is still preserved in the Library of the Arsenal.^[1] In this document it is stated that the King, having learned that Messiro Gutenberg, Chevalier, residing in Mayence, in Germany, a man dexterous in the engraving of stamps and of letters, had brought to light, by means of such characters, the invention of *printing*, and, curious concerning such valuable knowledge (*bel trésor*), the King had ordered the masters of the mint to select persons skilled in the engraver's art and to dispatch them to Mayence that they may inform themselves of the said invention. Under this mandate, Nicholas Jenson, an expert engraver, was sent to Mayence, where he did acquire the art as he had been instructed to do. But before his return to Paris, the King had died, and Jenson, understanding that the new monarch was not likely to be interested in the undertaking, carried his knowledge to Venice, and was the means (as we have seen in a previous chapter) of securing for this city an early prestige for artistic typography and for scholarly publishing.

The King who had planned to bring the printing-press to Paris was Charles VII., whose reign had begun with a full measure of disaster and misfortune, but who had succeeded, in his later years, in the task of consolidating his kingdom and in securing for his subjects, long harassed by wars and invasions, some years of peace and prosperity. During his stormy reign, Charles could not have enjoyed much leisure for the cultivation of literature, but he is described by his biographers as an appreciative patron of learning and as possessing an intelligent interest in scholarship. It is probable, therefore, that if it had not been for his unexpected death in 1461, the beginning of printing in Paris would have been advanced by a decade, and that, with the aid of royal favour and influence, Paris would have taken a much more important place than it did among the earlier publishing centres of Europe.

Louis XI., the son of Charles, during his reign of twenty-two years, busied as he was with the work of securing a firm foundation for the authority of the Crown, was not able to devote much thought to the interests of literature. He found time, however, to reorganise the Library of the Louvre, which had been founded in 1369, by Charles V. (the Wise), and the continuation of which is represented to-day by the *Bibliothèque Nationale*. Louis, while characterised as miserly, was also known as a collector of choice books, and was an important patron of certain scribes and illuminators, among others, of Jean Fouquet of Tours.

It was in 1462 that the first examples of printed books were seen in Paris. In that year, Fust brought from Mayence a supply of his folio Bible, copies of which he was able to sell for fifty crowns. The usual price for manuscripts of this compass had been from four to five hundred crowns. It seems probable that there was little or no foundation for the stories that were, later, told of Fust's being harshly treated as a magician, on the ground that the volumes he was offering for sale could not have been produced by human hands, or without the aid of the powers of evil. There was a manifest improbability in the idea that Satan would interest himself in securing a wider circulation for the holy Scriptures, unless possibly he had taken occasion to inject into falsified texts some heretical or pernicious doctrine. It is probable also that, by the time of Fust's arrival, more or less information must already have reached Paris about the new art, and that, while it was still regarded as mysterious and wonderful, it was recognised as a human invention that had in other cities already been applied to practical uses.

The first publishing office in Paris was founded, in 1469, at the request of two *savants* of the Sorbonne, Fichet and Heynlin, by Gering, Krantz, and Friburger from Constance. The work was carried on in one of the Halls of the Sorbonne. Forty years later, there were in Paris over fifty printing concerns. The policy of cordial encouragement still prevailed, and no restrictions had as yet been placed upon the business. After the introduction of printing, the printers took a position in society much above that occupied by their predecessors, the copyists. The difference could have been due only in part to the possession of greater scholarly attainments, for the better class of copyists must themselves have had some knowledge of the subject-matter of their manuscripts. The business of the printers required, however,

the control of a certain amount of capital, while the selection of works for reproduction and the preparation for the compositors of trustworthy texts called for a wide range of literary information and scholarly training. The printers were, in the first place, left as free as had been the copyists to reproduce such works as they might select. No claim had thus far been made for exclusive ownership in, or control of, literary productions, and no censorship supervision had been established on the part of the Government. This state of things continued during the reign of Louis XII., and, in an edict issued April 9, 1513,^[2] the King confirmed and extended the privileges previously acquired by booksellers as officials of the University.

In this edict, Louis speaks with great appreciation and admiration of the printing art, "the discovery of which appears to be rather divine than human." He congratulates his kingdom that in the development of this art "France takes precedence of all other realms." A year later, the King put on record his opinion that dramatic productions and representations should be left free from any restrictions. In 1512, the King writes to the University requesting the Faculty to examine a book which the Council of Pisa had condemned as heretical. In place, however, of demanding or suggesting that measures of severity should be taken against the writer of the book, the King proposed that the professors should have the book gone over chapter by chapter and should put into form a refutation of any of its conclusions which seemed to them to be contrary to the truth.

It was hardly possible that so wide a spirit of toleration should long continue. Francis I. prided himself on his taste for literature and was disposed to favour men of letters, but his fancies for toleration were easily overcome by the persecuting earnestness which actuated the clergy and the Parliament, and when his anger or his suspicions had once been aroused, he showed himself to be fiercer in the infliction of penalties than those whom he had at first restrained. The spirit of the time was stronger than any one king, and it would be absurd to suppose that in the sixteenth century the Church and the State could be depended upon to permit the free development and the unrestricted expression of thought.

The first book printed in Paris by Gering and his associates was a collection of the *Letters* of Gasparino of Bergamo. The volume was in Latin, and the Roman form of type was used, notwithstanding the German control of the office. Humphreys is of opinion that specimens of the

beautiful volumes which had been printed in Venice by Jenson had been forwarded to Paris, and that these served as models for the earlier issues of the Paris Press. The *Gasparino* was followed by an edition of Sallust's *Catiline Conspiracy* and by an epitome of *Livy* compiled by Florus. A little later, appeared a work on Rhetoric by Fichet himself, one of the earliest printed volumes which was the production of a contemporary writer.

The second Press established in Paris was that of Cæsar and Stoll, who began work for themselves in 1473. They were both students of the University but they found it desirable to carry on their business outside of the University limits. The demand in Paris, both within and without the University, for printed books, increased very rapidly, and before the close of the century the trade in books far exceeded that of any city in Europe. For a number of years, however, a very large proportion of this demand was supplied from the presses of Mayence, Strasburg, Venice, Milan, Cologne, and Bruges.

Schoiffher, or Schöffner, of Mayence, was the first of the foreign publishers who maintained a permanent agency in Paris. This agency naturally excited the jealousy of the licensed Paris book-dealers, and, in 1474, the stock was seized on an application from the Guild on the ground that it was the property of an alien who was not a licensed dealer. Louis XI. gave evidence, however, that his interest in the new art was superior to any local or national prejudice, and, on a petition from Schoiffher, he caused to be paid over to him the sum of four hundred crowns as an indemnification for the loss of his books. In 1474, the King also granted to Gering and his associates letters of naturalisation which secured a protection for their business.

The first volume printed in Paris in French was *Les Grandes Chroniques de France*, which was issued in 1477, by Pâquier Bonhomme, bookseller to the University. This was, however, not the first printed book that had appeared in French, as it had been preceded, by some years, by the *Recueil des Histoires de Troyes* published in Bruges by Caxton. In 1495, Anthony Vérard, who had previously been an illuminator and probably also an engraver of block-books, established a printing-office and devoted himself particularly to the production of illustrated works. In 1503, he printed in English, for sale in the English market, the *Art of Good Living and Dying*, the illustrations in which occupy about as much space as the text.

After Paris, Lyons was the city of France in which the art of printing secured the earliest introduction and the most rapid development. The printer-publishers of Lyons showed themselves “enterprising” in more ways than one. They were free from the immediate supervision and control of the authorities of the University of Paris, and, as the history of the Paris Press shows, the difficulties placed in the way of publishing undertakings by the bigoted and ignorant censorship of the theologians, must have more than offset the advantages usually to be secured in the production of scholarly publications, through the facilities of the University collections and the editorial service rendered by the University members.

In the matter of political censorship, Lyons was, of course, in form at least, subject to the same regulations that controlled the presses of Paris. It was, however, evidently much more difficult to exercise any strict and continuous supervision over the printers of the provinces than over those of the capital, and in politics, therefore, as well as in theology, the publishers of Lyons enjoyed a greater freedom of action. “The freedom of action,” of which their Paris competitors made the sharpest criticism and the most reiterated complaints, was shown in the practice of the Lyons competitors, of promptly appropriating for their own profit and reproducing, with more or less closeness of imitation, such of the Paris publications as they found available for the markets within their reach. The “privileges” issued by the Crown and the special authorisations given by the University appear to have availed but little to repress this appropriating enterprise on the part of the publishers of Lyons.

It was no consolation to the organised publishers, *les libraires jurés*, to know that their Lyons competitors utilised, with precisely the same freedom, the available publications of Venice, Milan, Mayence, and Basel, and, later, of Geneva. For this class of reprinting there was, as a rule, not even the nominal obstacle of the State privilege. As a result of their favourable commercial position, the publishers of Lyons were not infrequently able to secure for their unauthorised reprints of the classic editions of the Paris Press a much larger proportion of the foreign sales than was obtained by the original publishers.

The enterprise of these early Lyons publishers was manifested also in another and more legitimate direction. They gave attention to the production of books in light literature, such as popular romances, legends,

folk-songs, etc., printed, of course, in the vernacular, at a time when the printers of Paris and, for that matter, the printers of nearly all the other book-manufacturing cities of Europe were devoting their presses exclusively to theology and to the classics. Other cities the printers of which interested themselves in light literature were Bruges and London, the records of which are referred to in another chapter.

In connection with these romances and with some few other classes of literature, the book-makers of Lyons gave particular attention to the production of high-class illustrations. They used for the purpose the work not only of French, but of foreign designers and engravers. The printer Le Roys, for instance, employed Holbein to design a new *Dance of Death*, and also to prepare a series of illustrations for the New Testament. In 1488, Jacques Locher published an edition of the famous *Ship of Fools*, accompanied by graphic illustrations from an unknown artist. Locher's edition was issued in Latin. The first French translation, under the title *La Nef des Fouls*, appeared in 1497. This was followed a little later by a companion work published under the title of *La Nef des Folles*, which illustrated in like manner the absurdities of women in various walks of life.

The first Paris printer who was able to present in his text any Greek characters was Jodocus Badius, who issued, in 1505, the *Annotationes in Novum Testamentum* of Laurentius Valla, in which several passages of Greek were of necessity included. In 1519, the same publisher issued an impression of the *Institutiones Imperiales*, in which were included a few Greek passages. The characters for the type used in these were designed by a certain Hermonymus, a Lacedæmonian, who was at the time sojourning in Paris.

In 1507, a Greek Press was established in Paris by Giles Gourmont. The Press was under the general supervision of the University, but the immediate responsibility for the undertaking rested with Francis Tissard. Tissard was a French scholar, who, having studied in Padua and Bologna, had become imbued with an earnest zeal for the development of classical scholarship in France. He had secured instruction in Greek from a certain Demetrius Spartiata, and it was his special object to establish in the University of Paris the study of Greek language and literature, and to bring the cost of Greek books within the means of the poorer instructors and students. The few scholars in France who had heretofore been interested in

Greek books had been obliged to incur the expense of securing these from Milan or from Venice.

Tissard succeeded in interesting in his undertaking the Duke de Valois, who afterwards, as Francis I., rendered most important service to the cause of literature for France and for Europe. As the first Greek book issued from the Press of Aldus, twelve years earlier, had very properly been a *Grammar* for the instruction in Greek of students already proficient in Latin, in like manner the volume selected by Tissard as the first issue from Gourmont's Press was an elementary work containing the Greek alphabet, the rules of pronunciation, and exercises for the beginner.

The second Greek publication was the *Batrachomyomachia*, and the third, an edition of the *Works and Days* of Hesiod (probably the first printed issue of this author). The fourth Greek volume was the *Grammar* of Emanuel Chrysoloras, a Greek scholar, whose influence had been of so great service in furthering the study of Greek literature in Florence.

After the publication of this *Grammar*, Gourmont assumed the title which he had fairly earned, *Primus Græcarum Litterarum Parisiis Impressor*. In the following year, he established his claim to the like honourable distinction for the Hebrew, by his impression of two works from the zealous pen of his scholarly patron Tissard, the *Grammatica Hebraica et Græca*, in quarto, and the *Alphabetum Hebraicum et Græcum*, also in quarto.

Shortly after the issue of these two volumes, Tissard died. His work as the supervising scholar of the Greek Press in Paris was carried on by Hieronymus Aleander, an Italian scholar who had been invited by Louis XII. to take up his residence in Paris. Aleander gave lectures in the forenoon in the University on the language and literature of Greece, while the evenings were devoted to readings in Cicero. In the year 1512, he was elected Rector of the University, and in this position and by means of a liberal use of the pension given him by the King, he was able to do much in furthering the development of the printing, in Paris, of Greek texts. In the year 1512, Aleander gave to the public a *Lexicon Græco-Latinum*, which bore the imprint of Gourmontius and Bolsecus, the latter being the second Greek typographer of Paris.

Aleander had been a member of the Academy of Aldus, who inscribed to him his edition of *Homeri Ilias Græce*, and who speaks in high terms of his

literary qualifications. Aleander had also been a friend and literary associate of Erasmus, and had given to the learned Hollander valuable assistance in the compilation of his *Adagia*. This friendship failed to stand the test of religious differences, and Aleander, when later employed by Leo X. to combat the doctrines of the Lutheran heretics, exercised his tongue and pen with great acrimony against the Sage of Rotterdam.^[3]

The next printer in Paris whose work, in connection with the production of classic literature, was important, was Jodocus Badius Ascensius. According to the record of the historian Panzer, there were produced from the Press of Badius not less than four hundred separate works, nearly all of which were printed in folio or quarto. The business career of Badius extended over a period of about twenty-five years, beginning with 1498. It is difficult to understand how it was practicable to secure at this early age a remunerative sale for costly editions of the Latin authors selected by Badius for his Press. He was a Fleming by birth, and, as was the case with not a few of the early printer-publishers, he united with his other business responsibilities work as an instructor. He gave lectures on the Latin poets, first in Paris and later in Lyons. It was in the latter city that he first interested himself in printing, having been engaged by Preschel as a corrector of the press. One of the more noteworthy of his publications, outside of the list of Latin classics, was an edition of the *Philobiblon* of Richard de Bury. He was also the publisher of the first Paris edition of the *Navis Stultifera* (the “Ship of Fools”) of Sebastian Brandt. Of this book he also printed a translation in French, (the second French version) under the title of *La Nef des Folz du Monde*, which was edited by himself and with which he included certain variations of his own. It may be considered as an evidence of the accepted orthodoxy of Badius that he was employed by the University to publish certain censorial works which had been prepared *ex cathedra* by members of the Theological Faculty. Examples of these, printed respectively in 1521 and 1523, were treatises on the doctrine of Luther and on “certain contentions of Dr. Luther.” Among the more important works of later and contemporary authors that came from the Press of Badius were editions of the *Opera Omnia* of Politian and of the *Opera Omnia* of Valla, and a long series of works by Budæus, who ranked as one of the most comprehensive and voluminous scholars of his time. In 1500, Badius printed an edition of the *Regula S. Benedicti*, the famous Rule which, as described in an earlier

chapter, had exercised so important and so abiding an influence on the literature and the intellectual development of Europe.

Badius was a *libraire juré* of the University, and the thoroughness of his scholarship was attested by so good an authority as Erasmus, for whom he published editions of the *Adagia* and the *Praise of Folly*. The printing mark of Badius is a representation of the printing-press of the time. Beneath this he occasionally used the motto *Aere meret Badius laudem auctorum arte legentum*. Greswell says that by filling up the ellipsis, this is to be interpreted that Badius by his liberality elicits the praise of authors, and by his typographic skill and accuracy that of readers.

Budæus, whose friendship and scholarship were of marked service to Badius during his career, was one of the most noteworthy scholars of his generation and is to be ranked in the group with Erasmus, among the great scholars of Europe. He had studied Greek with Laskaris, whose lectures and whose Greek grammar had done so much to further the study in Italy of the language and literature of Greece. Three of the kings of France, Charles VIII., Louis XII., and Francis I., appreciating the distinction given to France by the scholarship and literary productions of a man like Budæus, had honoured him with their friendship and had bestowed upon him various marks of distinction. It was a time when learning was held to be an essential qualification for diplomacy and statesmanship, and Budæus was more than once called away from his study and from his lecture-room to take charge of important embassies. In 1520, he was in attendance upon Francis I. at the celebrated meeting between Francis and Henry VIII. on the Field of the Cloth of Gold.

The subsequent interest taken by Francis in the work of the University and in the foundation of the Royal Library at Fontainebleau was doubtless due to the influence of Budæus, and it was in his power so to educate the King as to enable the latter to realise the value and importance to the kingdom of the work that was being done by the printer-publisher, and to be ready to further this work with the royal protection, with privileges, and at times with direct financial aid.

The Estiennes.—The history of the production of books during the first century after the invention of printing is, of necessity, in the main a record of the lives and of the work of certain typical printer-publishers upon

whom fell the responsibility of initiating and of shaping the literary undertakings of their time. The business carried on by these early publishers differed very materially from that of their successors. All the machinery of book-making had to be originated or created, while it was necessary also to establish channels of distribution, and through these to discover and to educate a reading public which should absorb the productions of the new presses. The task of selecting the works which were best adapted for the requirements of the first buyers of printed books, of securing trustworthy texts of these works, of editing these texts, and of supervising their type-setting, called for a large measure of literary judgment and scholarly knowledge, combined with a capacity for organising and directing an editorial staff. There was also necessity for the gift of imagination, through which could be pictured literary conditions and creations for which there were as yet no precedents. And finally, steps had to be taken for securing a legal status for the new class of property that was being brought into existence, in order that some portion at least of the rights and advantages assured by the State to owners of other classes of property might be enjoyed by the producers of literature. In the absence of any accepted principles or precedents, it became necessary to convince princes, ministers, councils, and parliaments that it was for the interests of the community to encourage the production of literature, and that this could be done only by establishing and defending property rights for the producers.

At this stage in the history of book-production, the “producers,” the men who brought into existence the current literature of the time, and who, having planned and initiated the undertakings, taken the risks, met the outlay, and provided the labour (in many cases with their own heads and hands), claimed the ownership of the works produced, were the publishers. The literature with which the publishing of printed books was entered upon was comprised, with a few rare exceptions, of editions of old-time classics, prepared to meet the requirements of the scholars of the day. It was for this class of publications that were secured the first “protections” and “privileges,” and the labour of extracting such privileges from the rulers first of one State and then of another, until a sufficient territory to provide a market for the work had, at least in form, been protected, fell of course upon the publishers.

These “privileges” were for but brief and varying terms, and often (as in the small States of Italy and Germany) the territory covered by any one privilege was very inconsiderable; while it was further the case that the penalties for infringement were absurdly inadequate, and could but rarely be enforced. The protection afforded to property rights was, therefore, for the most part unsatisfactory enough, but it was the best that in the existing state of public opinion could be secured. The system of privileges marked an epoch in the history of human relations and in the development of the recognition of human rights, and it constituted, of course, the beginning of the later system of copyright law.

The special labours of the earlier publishers were not even completed when they had secured for their productions the protection, at least *pro forma*, of the State. They still had upon their hands the work of conciliating the Church, and, as has been noted in the account of Aldus, and as will appear in the later chapters, the task of creating and of carrying on the business of publishing of books for scholarly and critical readers was enormously increased by the burdens and the exactions of a zealous and ignorant ecclesiastical censorship.

The printer-publishers of the first century of printing who, in the face of this complex series of difficulties, responsibilities, and requirements, succeeded in creating a business and in producing for their own generation and for posterity long lists of costly and scholarly editions of the great books of their world, may fairly be called men of achievement.

With the requirement came, as always, the men. The press that Gutenberg had given to the world was not allowed to rust for want of plucky and public-spirited printers to develop its full scope and usefulness. In Italy, Germany, France, the Netherlands, and England, scholarly and capable pioneers devoted themselves to the new art until it had become “understood of the people,” had made a place for itself in the community, and could be pursued as an industry and without the necessity of exceptional individuals for its direction. Not a few of these pioneer publishers founded families or dynasties which for successive generations continued to discharge the responsibility of providing high-class literature for the community, and at the same time of fighting ecclesiastical and political censorships, of widening precedents, and of maintaining and extending the claims of literature and the rights of literary producers.

I have already noted for Italy the achievements of Aldus Manutius and his successors, and I propose in later chapters (selecting a few of the more typical of the great printer-publishers) to give some description of the work of the Kobergers in Nuremberg, of Froben in Basel, of the House of Plantin in Antwerp, of Caxton in Bruges and in London, and of the Elzevirs in Leyden and Amsterdam.

For France, after the foregoing brief references to the undertakings of the earliest printers, some special mention is fairly due to the famous family of the Estiennes or Stephani, the members of which took rank not only with the great publishers but with the distinguished scholars of their time, while they are also to be commemorated as having, in troublous times, shown themselves to be strong-hearted men, possessing the courage of their convictions. No other family, excepting possibly that of the Elzevirs, was for so many generations engaged in the business of printing and publishing, while the work of the Stephani was carried on under exceptional difficulties, commercial, literary, theological, and political. The editorial responsibility in preparing for the press the scholarly publications of later publishers was for the most part confided to professors or other scholarly associates, but it was the case that the books issued by the Stephani were, with a few exceptions, edited and supervised by the publishers themselves, nearly all the members of the family being men of scholarly training, while one or two took rank with the most learned men of their generation. No publisher, except Aldus of Venice, has ever contributed to the issues of his press as much original scholarly work as is to be found in the books bearing the imprint of Robert Stephanus.

The founder of the family, or at least the man whose name first becomes known in connection with the production of books, was Henry, known as Henry the elder, in order to be distinguished from his grandson. His name first appears as a printer in the year 1496, in conjunction with that of a German named Wolfgang Hopyll. The book bearing this double imprint was an introduction to the *Ethics* of Aristotle, written by a certain Jacobus Faber. The first book issued by Estienne bearing his sole imprint, and which may therefore be considered as the earliest publication of a House whose business was to continue for nearly a century and a half, was an edition of the *Ethics* of Aristotle, Latinised by Aretinus, which bears date 1504. According to Panzer, Henry Estienne the first published in all about one

hundred separate works, which, with hardly an exception, were issued in Latin. He associated with the editorial work of his printing-office three learned doctors, Charles Boville, Jacques Le Fèvre d'Estaples, and Josse Clichtou. Le Fèvre is known as the instructor of the reformers Calvin and Farrel. His so-called heretical opinions rendered him obnoxious to the Doctors of the Sorbonne, and if it had not been for the special interference of Francis I., by whom his learning and his merits were held in high esteem, his life would more than once have been in jeopardy. His theological opponents succeeded, however, in procuring his expulsion from the University, and, driven from Paris, he was compelled to seek the protection of the Queen of Navarre.

The case above cited is one of a long series of instances in which the liberal views and the scholarly interests of King Francis brought him into conflict with the Doctors of the Sorbonne. In the end, however, the Theological Faculty, backed by the majority of the ecclesiastics of France and by the continued influence of the papacy, proved too strong for the liberal tendencies of the Crown. With the final triumph of Catholic orthodoxy in France, the leading publishers and their editorial associates found so many difficulties placed in the way of their literary undertakings, that these could no longer be carried on to advantage in Paris. While it was the case that a large number of these publishers and of their authors were in sympathy with the views of the Reformers, this formed only the smaller part of the difficulty. The chief trouble was due to the ignorance and the suspiciousness of the Doctors of the Sorbonne. These doctors possessed at this period little or no knowledge of Greek, and were inclined to imagine that any Greek sentence must contain, or might contain, some dangerous heresy. Any critical analysis of Latin texts which, in some earlier and usually imperfect or defective form, had received the approval of the Church, also seemed to them likely to prove dangerous, and in any case constituted a reflection upon the orthodox scholarship of the previously accepted versions. Their apprehensions became most keen and their indignation most active when the "new criticism" (as they probably called it) was applied to the text of the Scriptures, whether for the purpose of correcting the early, clumsy, Latinised versions of the New Testament, or of securing more accurate rendering of the texts of the Hebrew books. The production of editions of the Scriptures constituted, however, during the first half century of printing, the most important division of publishing

undertakings. It is not surprising, therefore, that the printers, who were giving their time and their capital to the preparation of these editions, and who found themselves hampered and harassed by ignorant and bigoted censorship, came to the conclusion that the advantages of Paris as a literary and commercial centre were not sufficient to offset the continued difficulties and annoyances of such antagonism. If the publishing business of Geneva received, after the beginning of the Reformation, an exceptional impetus and development through the migration of Paris publishers and the transfer of the literary undertakings of French scholars, the responsibility for the loss to France must rest first with the Doctors of the Sorbonne, and secondly with the weakness and vacillation of the successors of Francis I.

Henry Estienne associated with his imprint the arms of the University, but he had no exclusive control of such use, as these same arms appear on the title-pages of the publications of one or two of his contemporaries. He appears to have been one of the first of Paris printers to assume a personal responsibility for the typographical accuracy of his texts, and in securing the services of competent scholars as correctors for his Press, he made a practice of adding their names to the title-pages or to the colophons of their editions. This served at once to secure for them the credit of good work and to fix the responsibility for work that did not stand the test of later criticism. Greswell mentions that the celebrated scholar Beatus Rhenanus was at one time discharged by Henry from the post of press corrector, because he had permitted certain errors or oversights to remain in the printed text as passed by him. Henry took the ground that the publishing imprint should stand as a voucher or guarantee for trustworthy work and that every typographical error constituted a stain upon his character as a publisher.

Henry died about 1520. The work of his Press was at the outset continued by Colines, who married his widow. Colines gave special attention to the production of impressions of the best Latin classics, and was the first of Paris printers to adopt for these the italic type and the more convenient cabinet or sixteenmo form which had been first utilised by Aldus. Robert Estienne, the most famous printer of his name, owed to his step-father his typographical education, and it must have been largely due also to the influence of Colines that the taste of the young Robert was from the beginning directed to the dissemination of classical literature.

The editions of Colines included a very full list of the leading Latin authors, special attention being given (as was the case with nearly all the printers of the first and second generations) to the writings of Cicero. In preparing the works of Cicero for the press, Colines had the advantage of the carefully revised and ably annotated text of Paul Manutius, the son of Aldus. The most important of the works of contemporary writers which bore the imprint of Colines was an edition of the *Colloquies* of Erasmus, which was issued with the authorisation of the author, by whom it had been carefully revised. The sale and perusal of this book were interdicted by the censor of the Sorbonne, but before it was withdrawn from the market there were printed, according to the account given by Erasmus, no less than twenty-four thousand copies.

The chief prestige that attaches to the undertakings of Colines was secured through his beautiful editions of works in the Greek character. The list of these comprised in all fourteen separate issues, including his three impressions of *Euclid*. As a *libraire juré* of the University, Colines was employed to print the Acts of the Council of Sens, in which council, in the year 1528, the Lutheran heresies were condemned. He also printed, probably in his official capacity, a number of the tracts or treatises which were issued under the direction of the Theological Faculty to combat the Protestant heresies. To his long list of publications must be added a complete edition of the works of *Galen*, which was followed by several other medical treatises.

As has been previously pointed out, up to the year 1507, the University of Paris was practically destitute of texts for the study of Greek, although for nearly twenty years, in the universities of Italy, Greek lecturers had found a large support for their work, and although, since 1495, the presses of Aldus in Venice had been busied in the production of carefully edited and well printed editions of the Greek classics. While it is probable that there was no serious difficulty in securing in Paris at this time copies of the issues of the Venetian Press, it would appear that the knowledge of Greek in the University and the interest in acquiring such knowledge prior to 1510 had been very inconsiderable.

The Greek exiles from Constantinople who had done so much to further in Italy an enthusiasm for Greek literature, not only in the university towns but in great commercial centres like Florence and Venice, had apparently been

less attracted towards France, and it was not until later in the sixteenth century that we find the names of Greek instructors associated with the Faculties of Paris and Orleans. Greek had been taught in Paris as early as 1472, by a certain Tiphernas, an Italian, who had been a pupil of Chrysoloras. He was succeeded after a considerable interval by Hermonymus and Laskaris. The latter was the author of the famous *Grammar*, which was the first Greek publication of Aldus. According to Greswell, Laskaris never secured any official appointment in the University, although he had the favour of Charles VIII. and of Louis XII.

Gourmont, whose name has already been mentioned, was the first of the Paris typographers who was willing to incur the very considerable risk and expense required for the production of a series of Greek texts. His list included an edition of the *Institutiones Grammaticæ* of Aldus Manutius, issued in 1513, and the *Grammatica Græca* of Theodore Gaza, in 1521. In 1522, Pierre Vidouvé, of Verneuil, printed the *Dragmata Græcæ Litteraturæ* of John Æcolampadius, and a Greek and Latin Lexicon edited by Magnus and Chæradamus. The former was preceptor to the children of Budæus.

These ventures were followed by similar undertakings on the part of Colines and Badius. The former issued editions of *Sophocles*, *Aristophanes*, *Demosthenes*, and *Lucian*, while from the press of the latter came the great *Commentary* of Budæus on the Greek language, and the *Areopagiticus* of Isocrates.

Another Greek printer of enterprise was Christianus Wechel, who was a friend of Erasmus. He issued, in 1529, a further edition of the frequently printed Greek *Grammar* of Gaza, and, later, many of the *Opuscula* of Galen, the latter printed in the original Greek with Latin versions. Wechel came into trouble in 1534 for having sold the treatise of Erasmus *De esu interdicto Carnium*, which had been censured by the Theological Faculty.

In the year 1530, the production of Greek books in Paris was taken up energetically by Gerardus Morrhuis Campensis, who dates his impressions from the College of the Sorbonne. His list includes a *Lexicon Græco-Latinum*, the *Rhetorica* and *Poetica* of Aristotle, the *Ajax* of Sophocles, and a number of the essays of Galen. The titles of the works selected by these earlier Parisian printers have interest as indicating the direction of the

studies pursued at the time in the University, or which were taken up in connection with special scholarly undertakings outside of the routine university curriculum. While these printer-publishers were usually able to secure, in preparing their editions for the press, the services of scholarly editors (or, as they were more frequently called, correctors), it is evident that no little original learning as well as scholarly judgment was required on the part of the publishers themselves in the selection of the texts and in the supervision of the correctors, while in the majority of cases the publishers added to their volumes original work of their own. Thus to the *Lexicon Græco-Latinum*, Morrhuis had contributed an elaborate Latin preface, while to the *Interpretatio Didymi in Odyseam*, he prefixed an analytical introduction in Greek.

Morrhuis, writing in 1531 to Erasmus, says: "There are even within the precincts of this college [the Sorbonne] those who wish well to you, but they are obliged to whisper, fearing to declare in public their real sentiments, to such a pitch has tyranny attained here. Your friends rejoice exceedingly that you have replied with so much moderation to the *Determinationes* of our divines, for they were afraid you would have branded the whole Faculty with a stigma that would have marked them to posterity, which you would have certainly been justified in doing." It is apparent from this and from many similar references that Erasmus was obliged to carry on contentions, so to speak, with both hands. On the one side, he was bitterly assailed by Lutherans no less than by Calvinists for failing to support with his talents, his learning, and his world-wide influence the cause of the Protestants. On the other side, the divines of the Roman Church stigmatised as a dangerous heretic a man who insisted that the writings of the Fathers, and even the Roman versions of the Scriptures themselves, must be subjected to critical analysis and to textual corrections, and that not a few of the *dicta*, which had been made the basis of doctrines called authoritative, were either fraudulent interpolations in the original texts, or were the result of the glosses and blunders of incompetent copyists.

Vascosanus, who was a son-in-law of Badius, continued the work of printing classic texts, and won repute for the beauty and correctness of his editions. He interested himself particularly in the production of the works of Cicero, printed in quarto with commentaries. The writings of Cicero were, as we shall note, very largely favoured by the publishers of the first century

of printing. The only important contemporary author with whose work the imprint of Vascosanus is associated, was Budæus, for whom he published an edition of the treatise *De Asse et ejus Partibus*. The device adopted by Vascosanus was a fountain, delineated, according to Maittaire's description, with artistic ornaments, and surrounded by the motto, ἐν βιβλίοις ῥέει ἡ Σοφίας πηγή.^[4] From 1566 to 1576, Vascosanus was *Typographus Regius*. The great typographer, Frederic Morel, was one of his grandsons.

Without undertaking to give in detail the list of the printer-publishers who are recorded by Maittaire and Greswell as having rendered honourable service during this period in the production in Paris of scholarly Latin and Greek texts, I will proceed at once to the record of Robert Estienne, whose work was of first importance for France and for Europe, and who is to be ranked with the great printer-publishers of the world.

Robert's responsibilities as a printer in his own name begin with 1524, in which year he became proprietor of the paternal *Imprimerie*. He was then twenty-one years of age. He had been able to profit but little from the training of his father, Henry, the first of the Estiennes who had devoted himself to printing, as the latter had died when Robert was but seventeen, but he had, as before noted, had the advantage of the supervision of his step-father Colines, himself both a skilled printer and a good scholar. The work of the young printer was begun in troublous times both for France and for Europe. It was but eight years since, by the burning at Wittenberg of the papal bull, Luther had initiated the great contest of the Reformation. The wordy strife of the theologians was proceeding with increasing bitterness throughout all Christian lands, and behind the theological contentions of the scholars, the feelings of the common people were being aroused into a condition of ferment and dogmatic partisanship such as the world had not yet witnessed, and which was for years to come, in the name of Christianity, to bring desolation upon many lands. This excited condition of France, Germany, and Switzerland, the desolating wars which followed, the absorption of the minds of men in theological issues, and the measures for a repressing censorship of the productions of the printing-press, which, immediately after the beginning of the Reformation, were instituted by the authorities both of Church and of State, were, of necessity, serious obstacles in the way of development of publishing undertakings, or at least of undertakings depending upon purely literary interests. On the other hand,

the general ferment in the minds of men, a ferment which, as we have noted, was by no means confined to the scholarly circles, brought about a very great development in the intellectual activities and the literary interests of Europe, causing “many to read who never read before, while those who read before, now read the more.” Mark Pattison points out that the Reformation was not only an appeal to Scripture versus tradition, but also “an appeal to history.”^[5] The makers of such an appeal must, of course, in order to render their contention effective, place within the reach of their communities the literature of the history cited as authoritative. The printing-press had been in use for three quarters of a century, but the demand for books had still (as in the manuscript period) been in large part restricted to the scholarly circles of the universities and of the educated ecclesiastics.

It was only with the eager popular demand for instruction and information which developed with the outbreak of the Reformation, that there came to the people at large a realisation of the value to them of the invention of Gutenberg, and an understanding of its importance for the work of educating and of organising the people for the securing of the right of individual thought and for protection against the oppression of Church and State. The work of publishing material for popular circulation begins practically with the Reformation. As the people came to realise the value of the new weapon that had been shaped for its use, there was developed a corresponding distrust and antagonism on the part of the Church (which had at first been a liberal supporter of the printers), and on the part also of not a few of the State rulers. The system of censorship, ecclesiastical and political, a system which was to do much to hamper the development of literature and of publishing, dates in substance from the Reformation; no censorship, however rigorous, was competent to restrain the growing activity of the press, an activity itself awakened by the increase in the popular demand for literature, and, notwithstanding all the difficulties above referred to, the reading public within reach of Robert Estienne was very much greater than that which twenty-five or thirty years back had been available for his father. At the time Robert began his business career, Francis I. was King of France, Charles V., Emperor of the Holy Roman Empire, Henry VIII., King of England. The Paris of 1524 contained about 350,000 inhabitants. The University, which under Louis XI. was said to have comprised over 20,000 students, had seriously declined, and was destined to lose still more during the succeeding century as the Romanist

spirit secured the complete control. It included, however, under Francis, not less than 10,000 students, and must still have ranked as the leading university of Europe. The printer-publishers of the city carried on their work in close connection with the University, of which, in fact, under the system handed down from the manuscript period, the *libraires jurés* were still members, and the University continued to claim the right to control such supervision and censorship as might be exercised over the productions of the press. The syndic of the Sorbonne (the theological division of the University) was at this time Noel Bedier, who affected the name of Beda, after the venerable Bede. He is described as a fanatical pedant and an incessant disputant, always on the lookout for heresy and for some new victim to persecute.^[6] It was a gratification to him to have been born in this age of heterodoxy, and he was constantly goading the Sorbonne to censure.

King Francis gave evidence of an intelligent appreciation of the importance, as well for the prestige of the Crown as for the welfare of the State, of the development of learning and literature. He showed a cordial regard for the scholarly publishers and editors who were at that time gathered in Paris, and was ready in most instances to throw the influence of the Crown upon the side of a liberal standard of supervision for the productions of the Paris Press. The authority of the University, on the other hand, as expressed through the Theological Faculty of the Sorbonne, was, from the time of the beginning of the Reformation, exercised persistently in behalf of a narrower and more rigorous censorship, and was used to restrict and to hamper nearly all classes of publishing undertakings. Behind the Sorbonne stood the Church of Rome. The co-operation of the Papacy with the literary spirit of the age, appears to have come to an end with the death of Leo X. His successors, Adrian VI., Clement VII., and Paul III., had learned to regard the printing-press as an efficient ally of the Reformers, and therefore as the enemy of the Church. They had convinced themselves that if the spread of pernicious doctrine among the people was to be checked, the issues of the press must be controlled by a rigorous and persistent censorship. As far as France was concerned, the persistency of the Church proved too strong to be offset by the friendly interest and rather vacillating liberalism of the Crown, and the ecclesiastical control of the printing-press became, before 1540, an established and an obstructive fact. One of the results of the antagonism of the Church to critical scholarship was to drive into the ranks of sympathisers with the Reformers, if not into

Protestantism itself, very many of the scholars who were not at the outset Reformers and who were not keenly interested in the theological issues of the period, but who were naturally indignant at the reiterated interference, often on the part of very ignorant men, with scholarly undertakings. The men engaged in preparing for the public critical editions of the world's literature, asked to be let alone, but they asked in vain.

It was under such conditions of strife and disturbance, of contests political and religious, of wars civil and foreign, of revolts against the Church, and of fresh assumptions on the part of the Church against any liberty of action for the community or for the individual, that the life-work of Robert Estienne was begun. He was born in 1503, and appears to have imbibed his scholarly interests and to have secured his early scholarly training principally from the learned men who had served as correctors of the press for his father, Henry. Henry died in 1520, and his widow married, in 1522, Simon de Colines, whose work as a typographer has already been referred to. Robert speedily became the assistant of his step-father, and the first important undertaking entrusted to him was the supervision through the press of an edition of the *Novum Testamentum*.^[7] The text followed the version of the Vulgate, but the youthful editor found occasion for certain corrections. The textual changes ventured upon in the volume at once called forth criticism from the divines of the Sorbonne, who were already raising objections to any general dissemination of the Scriptures, and Robert found himself classed with the group of heretical persons who required watching. This reputation clung to him through all his career, and the hostility of the divines, thus early aroused, was never withdrawn. According to Robert's correspondence, he held himself always ready to justify on critical grounds and by theological arguments the corrections in the Vulgate text upon which he had ventured. The divines, however, while continuing their invectives from their instructors' Chairs and even from the pulpit, took pains to avoid any direct controversy on the points at issue.^[8]

In 1525, appeared the first work published with the individual imprint of Robert, an edition of the *Apuleii Liber de Deo Socratis*, which was followed in 1526 by the *Ciceronis Epistolæ*, without which hardly any publishing list of the time could be begun. Robert adopted as his device a spreading olive tree, with one or more branches broken off, and the motto *Noli altum sapere, sed time*. This appears to be based upon the words in *Romans xi. 20*,

“Be not high-minded, but fear.” Robert’s career was, however, in a sense, a contradiction of his motto. He was high-minded, and he refused to fear, or at least to be fearful. Shortly after his majority, Robert married Petronilla, a daughter of the famous publisher Jodocus Badius, and the co-operation of his wife proved of no little service in the management of the editorial portion of his business, as she was herself a thorough scholar, and could read, write, and speak Latin fluently. The publisher’s household included for many years, in addition to the members of his family circle, a number of his editors and press-correctors. These assistants represented a number of nationalities, and they had, as a convenience, adopted Latin as their common tongue. Through the example of these permanent guests, aided by the facility of the mistress of the house, Latin became the language first of the table and finally of the whole domestic establishment, even the servants and children having gained a sufficient mastery of the idioms. Maittaire mentions that it was a custom of Robert Estienne to hang up in the streets or in the precincts of the University proof-sheets of important works which were passing through his Press, and to offer a reward for every error that might be discovered.

The following list of works, selected from among the more important of the publications issued by the second Estienne during the succeeding fifteen years, will serve to give an impression of the character of his undertakings. For the titles in this list I am indebted to Greswell.^[9]

1528. Linacer, Thomas, “De Emendata Latini Sermonis Structura,” quarto. Robert printed two later editions in octavo. Linacer was a learned Englishman, physician and ecclesiastic, and a correspondent of Erasmus, through whom probably he became known to Estienne. His death occurred in 1524, and this Paris edition of his most important work could, therefore, not have had the advantage of the author’s supervision. “Justiniani Institutiones,” and “Digestorum seu Pandectarum volumina quinque Biblia utriusque Testamenti Latina, ex veteribus MSS. exemplaribus emendata, fol. cal. Mart.” This was Robert’s first impression of the complete Bible. For its preparation he had made a very comprehensive collation of the existing manuscripts of the Vulgate with the texts heretofore printed.

“*Dictionarium seu Latinæ Linguae Thesaurus.*” This work was not completed in 1528, but during this year and the two years following, its preparation was in progress. Robert’s part in the undertaking was by no means restricted to the planning, the printing, and the publishing. Not having succeeded in securing the services of a competent editor, he finally decided himself to attempt the task of the compilation and the editing. Having secured from scholarly friends a favourable opinion on the first few sheets prepared for the press, he was encouraged to persevere, and applied himself to the task day and night for more than two years, during which he had also on his hands the responsibilities of his printing and publishing business. The work was adopted at once by the University of Paris, and, superseding the existing Latin dictionaries (of which the “*Cornucopia*” of Aldus Manutius, issued in 1513, was perhaps the most important), it remained for many years the standard authority on its subject, as well as a monument to the learning and industry of a representative publisher.

1529. “*Plinii Epistolæ, Panegyricus de Viris Illustribus, Suetonius de Claris Grammaticis,*” and “*Terentii Opera.*” In this last, Robert, with great trouble, restored the Greek passages cited by Donatus. In all preceding editions, blanks appeared where these Greek citations should have been inserted. The publisher claimed that he had also been able, by collation of the best MSS., to correct no less than 6000 errors that had found their way into texts previously accepted. Between the years 1529 and 1551, Robert printed of “*Terence*” no less than eleven editions.

1530. “*Plauti Opera,*” in folio, and “*Rhetores Latini.*”

1531. The first edition of the previously referred to “*Dictionary of the Latin Language*” bears date this year; it is printed in folio. In the course of twelve years, two later and revised editions were issued. The general acceptance of the Dictionary as the best work on its subject made it an object for the rapacity of a number of unscrupulous reprinters, and various unauthorised reprints appeared, some of which were seriously incorrect or incomplete. Estienne appears to have accepted with philosophy the inevitable injury to his business interests,

but complained bitterly at the loss to his repute as a scholar, caused by foisting upon the public, over his name, slovenly and inaccurate work.

1532. “Virgilii Opera cum Commentariis Servii Valeriani Castigationibus”, in folio. A second impression of the Scriptures, entitled “Biblia.” “Breves in eadem Annotationes ex Doctiss. Interpretationibus et Hebræorum Commentariis, etc., cum Priv. Regis.” This was magnificently printed in a handsome folio, with brief notes or *apostilles* on the margin. Notwithstanding Robert’s care in fortifying himself with the royal privilege, and with a license from the University censors (who for theological works were at that time appointed by the Sorbonne), the divines of the college renewed their warfare against him on the ground that he had dared to print the Scriptures at all. From the severest effects of this *odium theologicum* Robert was preserved through the personal influence of King Francis. He was obliged, however, to engage to print nothing further, presumably nothing of a doctrinal character, *nisi cum bona eorum gratia*.

1533. “Virgilii Opera.” 8vo. (Again.)

“Horatii ars poetica.” 4to.

“Plinii epistolæ.” (Again.) The edition of 1529 had apparently lasted for four years.

1534. Robert again hazarded the wrath of the divines by a third edition of the “Biblia,” for which the demand had evidently continued. This time he escaped without interference.

1535. “Budæi Annotationes in Pandecta” and “Budæi de transitu Hellenismi ad Christianismum Libri tres.” Folio.

1538. “Dictionarium Latino-Gallicum.” Folio.

“Dictionnaire François-Latin.”

“Ciceronis Epistolæ.”

1539. “Ciceronis Opera Omnia,” two volumes, octavo, probably the most beautiful edition of this oft printed author which had yet appeared.

1540. This year was marked by the appearance of a fourth impression of the Latin Scriptures. This presented some considerable modifications from the plan of the previous issues. It gave the Vulgate text, but with new and important elucidations, and it gave further, for comparison with the text, various readings based upon the Hebrew and Greek. The title is elaborate: “Biblia, Hebræa, Chaldæa, Græca et Latina, nomina virorum, mulierum, populorum, idolorum, urbium, fluviorum, montium cæterorumque locorum, quæ in ipsis Bibliis leguntur, restituta, cum Latina interpretatione et ipsorum locorum descriptione ex Cosmographis. His accesserunt schemata Tabernaculi Mosaici et Templi Solomonis, quæ præunte Francisco Vatablo, Hebraicarum literarum Regio professore doctissimo, summa arte et fide expressa sunt.”

“Parisiis ex officina Roberti Stephani, Typographi Regii, MDXL. cum privilegio Regis.” Folio.

This is the first publication of Robert’s containing the specification of his title as “Printer to the King.” His acknowledged erudition and the importance of the scholarly undertakings carried on by him had long before attracted the attention and the favour of Francis, and in 1539, in the thirty-sixth year of the typographer’s age, the King conferred upon him the honourable distinction of *Imprimeur Royal* for works in Hebrew and Latin. After June, 1539, Robert styles himself *Regius Typographus* or *Librarius*, or *Regius Hebraicarum et Latinarum Literarum Typographus*.

In 1540, on the death of Neobarius, the first who had received the title of “Printer in Greek to the King,” this distinction also was conferred upon Estienne. The official recognition and approval given by the Crown to his undertakings could not, however, save these from the censure and indignant opposition of the divines, and they did what they could to check and to discourage his publications. Robert was brought into special jeopardy and trouble through an impression of the Decalogue executed (in 1540) in large characters, and printed in the form of a hanging map for affixing to the walls of chambers and school-rooms. Such an undertaking seems to our present understanding innocent enough, whether considered from a Romanist or from a Protestant point of view, but in this publication of the

Ten Commandments, the divines appear to have discovered little less mischief than in all the heresies of Luther.^[10] Robert relates that the orthodox censors caused a counter impression of the Decalogue to be prepared by one Johannes Andreas, in which the first two commandments were combined into one, omitting the prohibition of making and worshipping images, and the tenth commandment was divided into two in order to make up the denary number.

During this year, Estienne goes on to say, there were instituted against him on the part of the Sorbonne, various rigorous proceedings. His house was frequently searched for heretical works, and in order to avoid being arrested, he was not infrequently compelled to absent himself from home and to betake himself for safety to the King's Court. This description of a publisher taking refuge at Court in order to protect himself against the violence of officials who were (at least nominally) the King's censors, throws a curious light on both the strength and the weakness of the Crown. With all the authority of the kingdom at his command, Francis was evidently unable to put any restriction upon the operations of the ecclesiastical censors, who in their dogmatic and unruly zeal were doing what was in their power to throw the influence of the University against the literary development of France and of Europe. On the other hand, the Doctors of the Sorbonne, although backed by the authority of Rome, were not strong enough, at least for a number of years, to put a stop to the publication in Catholic Paris of works stigmatised by them as dangerously heretical.

In 1541, undismayed by the dissatisfaction and continued threats of the Sorbonne, Robert put forth a Latin Pentateuch, entitled "Libri Moysi quinque cum annotationibus," etc., in folio, and as a companion volume, a "Novum Testamentum Latine, cum brevibus annotationibus," in octavo. This last was sharply attacked on the ground that the editor (in this case the publisher himself) had expressed himself objectionably on the subjects of purgatory and confession.

1542. He published, as a companion to his "Cicero," an edition in quarto of "Quintiliani Institutiones Oratoriæ."

1543. Appeared a new impression of the entire works of “Cicero,” the demand for whose writings appeared to be steadily increasing.

1544. Editions were printed in octavo of a number of the Latin historians, including “Sallust” and “Suetonius.”

1545. The completion of the quarto edition of the Hebrew Scriptures, issued in twenty-four parts, which Maittaire describes as a magnificent work.

In this year appeared also, printed in folio, the magnificent series of the Greek ecclesiastical writers, the Greek texts in which were printed with the royal Greek characters recently cast under instructions from the King. The series bears the title “Ecclesiastica Historia Eusebii, Socratis, Theodoriti, Theodori, Sozomeni, Evagrii, Græce.” To the “Historia” Robert prefixed a Greek epistle, in which, with what Maittaire calls Attic eloquence, he has celebrated the praises of Francis I., extolling at once the munificence of the King and the discriminating support given by him to the highest literary undertakings.

“Eusebii Pamphili Evangelicæ Demonstrationes, Libri X., Græce.” Folio.

“Moschopuli de Ratione Examinandæ Orationis Libellus, Græce.” 4to. This was a grammatical work for the instruction of youth, now first printed.

Impressions of “Juvenal, Persius, Valerius Maximus, Lucian, and Terence.”

A fifth impression of the complete “Biblia Latina,” for the fourth impression of which sale had evidently been found notwithstanding the denunciations of the Church authorities. Robert had for five years been making preparation for this edition by the collection both of printed texts and of MSS. For the notes, use had been made of the material of Erasmus, Gualtherus, and particularly of Vatablus, the learned Professor of Hebrew in the *Collège Royal*. The citations from the latter had been collected by diligent students who had attended the Professor’s lectures. The captious divines, finding the notes sanctioned by such an authority, did not at first venture to cavil at this edition. Later, however, they threatened Robert with various pains and

penalties because he had omitted to procure for the work their license. They contended that the title of “Printer to the King” did not exempt him from a compliance with the regulations prescribed by the University. This claim on the part of the University, that the approval of its own representatives must be secured even for works issued under the direct authority of the Crown, was throughout the following century a frequent cause of contention. It appears never to have been formally adjusted. The charge was made at the time that the *scholia* or *annotationes* complained of were really the work not of Vatablus, but of Robert himself. Such an accusation does credit to the publisher’s scholarship if not to his truthfulness, but there is no evidence to support it.

1546. “Biblia Hebræa,” 16mo, or *forma minima*, issued in eight volumes. Le Long speaks of the correctness and extreme beauty of this edition. [\[11\]](#)

A sixth edition of the Latin Bible, with a text more pure and more accurate than had been secured in any of the previous issues. This was the second of Robert’s Latin Bibles which escaped censure.

1546. The first and only publication from his press in Italian, which is ranked as one of the most interesting literary curiosities bearing his imprint, “La Coltivazione di Luigi Alamanni, al Christianissimo Re Francesco primo, con privilegi.” 4to. This is the first edition of what Greswell calls the georgical poem of Alamanni. The character is a bold italic, and the volume is a beautiful piece of book-making. The author was a Florentine poet, banished from his native country, who had found refuge at the Court of Francis. He is one of the very few contemporary writers who secured the advantage of Robert’s imprint.

1547. “Dionysii Halicarnassei Antiquitatum Romanarum, Libri X., Græce,” which Fabricius calls one of the most beautiful books produced by the Greek Press.

“Ciceronis Epistolæ.”

In this year (which witnessed the death of King Francis), Robert had occasion to publish various monographs presenting the funeral sermons, and describing the obsequies.

1548. “Alexandri Tralliani Medici, Libri XII., Græce;” and “Rhazæ de Pestilentia Libellus ex Syrorum lingua in Græcam translatus.”

“Dionis Romanarum Historiarum, Libri XXIII., Græce.”

1549. “Hebraicarum Institutionum, Libri IV. Pagnino auctore.” 4to.

“Dictionnaire François-Latin.” Folio.

“Virgilii Opera.”

“Horatii poemata, scholiis et argumentis ab H. Stephano illustrata.”

“Novum Testamentum, Græce.” This edition was described by Colomesius as not containing a single error, but the industrious Greswell finds in the preface itself *pulres* for *plures*.

1550. “Novum Testamentum, Græce,” in folio, with Robert’s own “Præfatio Græce et Latine scripta et annotationes,” Greek Tabulæ, and biographical notices of the writers of the Gospels and of St. Paul. To the Epistles are prefixed arguments and introductions from various writers, and in all the books marginal readings are given. The work also includes what Maittaire calls an extensive copy of Greek hexameters, composed by Henry Estienne (the second), the eldest son of Robert, who was at the time barely twenty-one years of age. This magnificent edition was long accepted as a most important authority on New Testament text, and critics like Gibbon, and scholars like Porson, have held this book and its publisher (who was also its editor) chiefly responsible for the perpetration of the interpolation of the famous verse in John i., 5, 7, on the heavenly witnesses.^[12] The record, however, of the long contests between the critics and the theologians, concerning this verse (now generally admitted to be an interpolation) and other similar textual issues, is foreign to my subject. It may, I think, fairly be assumed that in this instance, as in all editorial work, Robert acted honestly enough, following the best information and the most trustworthy authorities within his reach. The matter of the long contests with the Sorbonne brought about by this critical edition of the Testament, will be referred to a little later. I will here, for the convenience of reference, complete the list of selections from Robert’s list of publications:

1551. “Justini Philosophi et Martyris Opera, Græce.” Folio. Chevillier considers this the most excellent of the Greek impressions of the Estiennes. He contends that, “whether for the accuracy of the text, the superlative beauty of the characters, the excellence of the paper, or the evenness of the impressions, the work of Robert Estienne bore away the palm not only from the other typographers of Paris, but also from the most skilled printers in other countries.” “Robert,” he says, “raised the art to the summit of perfection.”^[13]

“Rudimenta fidei Christianæ, Græce, nunc primum in lucem edita.” Maittaire (“Vita Stephani”) explains that this is Calvin’s Catechism translated into Greek by the printer’s son Henry. The omission of any reference to Calvin was doubtless due to the desire to avoid arousing fresh indignation at the Sorbonne. It is difficult to understand, however, how a volume of this character could in any case have escaped the vigilance of the censors.

“Novum Testamentum, Græce, cum duplici interpretatione Erasmi et veteris interpretis,” etc. Yet another impression of the volume which had already brought upon the publisher the censorship and antagonism of the jealous divines. It contained a few changes from the text of the earlier issues, but the principal peculiarity of the edition is the fact that the text appears for the first time divided into verses, *versiculi*.

“Sententiæ Veterum Poetarum per G. Majorem in locos communes digestæ. Antonii Mancinelli de Poetica virtute libellus. Index sententiarum,” etc. 8vo.

“Commentarius puerorum de quotidiano sermone, Maturino Corderio, auctore.” 8vo. Cordier was one of the small group of contemporary authors with whose work Robert’s imprint is associated. He was a schoolmaster of Paris, but having adopted the reformed faith, he withdrew to Geneva.

“Dionis Nicæi Rerum Romanarum Epitome, Græce, auctore Joan. Xiphilino; ex Bibl. regia, ac. off. R. Stephani, Typogr. regii, regiis typis.” 4to. “Eadem Latine, Gulielmo Blanco Albiensi interprete.” 4to.

The *Epitome Dionis* is the last work printed by Robert in Paris prior to his removal to Geneva. Before giving the titles of the more important issues of

his Press in Geneva, it is desirable to go back in the narrative for a few years, and in outlining some of the events in the long contest between the private publisher and the divines of the Sorbonne, to indicate some of the causes which brought about the transfer of the great publishing establishment from Paris, at that time the most noteworthy and possibly the greatest city in Europe, to the quiet little town on Lake Geneva.

We have seen that the work of the enterprising and scholarly publisher was regarded with intelligent and appreciative interest by King Francis I., and that while the King had in various ways furthered the undertakings of Estienne, his most important service had been rendered in utilising the royal influence to protect the printer against the divines of the Sorbonne. The title of “Printer to the King,” while fully deserved, of course, on other grounds, was given to Robert with the special purpose of securing for him an additional safeguard against the assaults of the theological censors. These theological censors were irate at the assumption by the publisher, acting as his own editor, of the right to correct the text of Scripture, and to add marginal commentaries, while they were also indignant at what they considered an unwarrantable interference on the part of the King with the old-time right of the Theological Faculty of the University to exercise a censorship control over all theological and religious publications emanating from the French Press.

The interest of Francis in scholarship and the influence of Budæus and other scholars led him to initiate or to accept the scheme of a Royal College, to be devoted more particularly to instruction in the ancient languages. It was a part of the plan that Erasmus should be called from his peaceful retreat in the house of his friend Froben, the publisher of Basel, to the headship of the new college. The Emperor (Charles V.) put an end to the negotiation, however, by forbidding Erasmus to leave the territory of the empire, and by threatening him, in the event of his disobedience, with the stoppage of his pension. It is interesting to think of the most Catholic Emperor on the one hand, and the “eldest son of the Church” on the other, contending for the services of the scholar whose writings had been condemned in Rome as heretical, and were prohibited in Spain, and who could not at this time obtain from the Paris University a printing privilege. The college failed to secure Erasmus, and failed also, at least during the lifetime of Francis, to secure the buildings that the King had planned for it,

but its professorships were finally endowed in 1539. The authorities of the University were, with hardly an exception, bitterly opposed to the new foundation, and the considerations they presented against the plan were substantially the same as those which were from year to year being urged by the same group of divines against the printing and the distribution of “pagan,” *i. e.* classic, literature, and of works undertaking to criticise and to correct texts which had been accepted and approved by the Church. The argument of the University against the new college was presented before the Parliament of Paris (that is to say, the High Court of the capital) by M. Gaillard. He urged that “to propagate the knowledge of the Greek and Hebrew languages would operate to the absolute destruction of all religion.” “Were these professors theologians,” he asked, “that they should pretend to explain the Bible? Were not indeed the very Bibles of which they made use in large printed in Germany, the region of heresy? Or at least were they not indebted for them to the Jews?” The new professors made their rejoinder through Marillac, whose arguments covered, it will be noted, the points raised by Estienne in defence of his annotated editions of the Scriptures. “We make no pretensions,” said the professors, “to the name or the function of theologians. It is as philologists or grammarians only that we undertake to explain the Greek and Hebrew Scriptures. If you, who are criticising our teachings, possess any knowledge of Greek and Hebrew, you are at liberty to attend our lectures and, if you find any heresy in our instruction, to denounce us. If, however, you are yet ignorant of both Greek and Hebrew, on what grounds can you base your fitness as censors or your claims to forbid us to teach in these tongues? In teaching Greek, it is for us to decide what literature is best suited for our purpose. In teaching Hebrew, if, for various reasons, we find the Hebrew Scriptures best adapted for our classes, what right have you to complain? What other Hebrew book, indeed, would you select for us?” It is to be borne in mind that for the texts used for these lectures, the professors of the *Collège Royal* were largely dependent upon the presses of Estienne, and that in defending their right to teach Greek and Hebrew, they were also contending for his right to print and to sell the books required.

Impressed by these reasonings, and influenced also, of course, by the authority of the King, who had accepted for himself the responsibility for the scheme of instruction in his new college, the Parliament studiously avoided any decision in the controversy. This was, under the circumstances,

a substantial victory for the defendants, and the *Collège Royal* not only maintained its ground, but continued to increase in importance and in influence.^[14]

Maittaire quotes, in this connection, the testimony of Conrad Heresbach, a learned juriconsult, who says that (in 1540) he heard a monk speaking thus from the pulpit: “A new language has been discovered which they call Greek. Against this you must be carefully on your guard, for it is the infant tongue of all heresies. There is a book written in that language called the New Testament. It is *un livre plein de ronces et de vipères*. As to the Hebrew tongue, it is well known that all who learn it presently become Jews.”

In the edition of *Horace* prepared by Lambinus, the editor says, in the epistle dedicatory addressed to Charles IX.: “The University of Paris was then [in the time of Francis] equally destitute of sound philosophy and of elegant learning. The poets, historians, and philosophers of ancient Greece were scarcely known by name, and ... scarcely a single professor was acquainted with even the rudiments of Greek or Hebrew, or was capable of teaching Latin in its genuine purity.” Erasmus writes, in 1529, to some friends in the *Collège Royal*, encouraging them to persevere in their efforts to raise the standard of liberal scholarship in France, and referring to the progress of the College of Louvain, which had recently been instituted through the munificence of Busleiden, a simple canon of Brussels, and for the general organisation of which Erasmus was largely responsible. The original purpose of the college (which became, in the next century, a headquarters for Catholic theology) was the prosecution of Greek, Hebrew, and Latin.

It was in connection with the *Collège Royal*, and as, in fact, an essential part of his great scheme for the development of higher education, that King Francis instituted the *Imprimerie Royale*, with its appendage of *Typographus Regius*, an arrangement which was at the time unprecedented in the annals of literature. “By an apparatus which nothing less than princely munificence could have provided,” says Greswell, “the admirable productions of classic genius and taste, and particularly those of Greece, were now to be given to the public with a beauty of characters and an exquisiteness of technical perfection to which no typographer had ever yet attained or even in imagination aspired.”^[15]

The fonts of Greek type which came later to be known as *Characteres Regii*, were cast under the direction of Claude Garamond, from designs furnished by Angelus Vergetius, of Candia, whose Greek penmanship was so singularly beautiful as to have been selected as the pattern for Garamond to follow. Vergetius was appointed by the King to a post in the new college, as the King's *Ecrivain en Grecque*, with a stipend equal to that of the professors.

As has already been noted, the distinction of *Regius in Græcis Typographus*, was first conferred on Neobarius, who received an annual stipend of one hundred gold crowns. Neobarius died before the organisation of the *Imprimerie* was completed, and the first of the King's printers to assume the direction of the royal establishment and to make use of the new Greek fonts was Robert Estienne, who, both by technical knowledge as a printer and by his attainments as a scholar, was exceptionally fitted to carry out the large schemes the King had in mind, and who, in fact, was only too eager to supplement these with still larger schemes of his own. It was equally fortunate that the most enterprising and most scholarly printer-publisher in Europe should have been able to secure the all important co-operation of the resources and influence of an enlightened and ambitious monarch, and that the King should have had at hand for the first direction of his novel undertaking, a man possessing for the task such exceptional qualifications. Francis was the only ruler of the time in Europe who gave any important co-operation to the encouragement of literature and to the development of the still new art of printing and book-making, and, as far as intelligent literary interest is concerned, we must, to find any such distinctive service on the part of a monarch, go back to Ptolemy Philadelphus, in the third century B.C. Francis had a personal interest also in the process of printing, and took pleasure in inspecting from time to time the work in his *Imprimerie*. Maittaire relates that, calling one day at the *officina* of Estienne, the King found Robert engaged in correcting a proof, and would not permit the printer to interrupt his work, but waited until this was finished.

It was Francis who instituted the office of Librarian to the King, *Bibliothécaire du Roy*, a post which was first held by the great scholar Budæus. In connection with the great development in the art of printing which took place during his reign and of which a full measure of the credit

must be ascribed to the King, there arose a large interest in artistic bindings. The fashion of a taste for books set by the King was naturally taken up by many of the noblemen, who began to form libraries of handsomely printed and choicely bound books. One of the most zealous collectors of the time was Grolier de Servier, Vicomte d'Aguisy, who was for some years Ambassador of France at the Court of Rome. His library was said to have contained no less than three thousand volumes, an enormous collection for the sixteenth century, and the greater portion of these were elaborately and tastefully bound. The name of Grolier has ever since been held in honour by admirers of artistic book-making, and, in connection with the establishment in New York of a Grolier Club of book-collectors, is assured of preservation in appreciative memory.

In 1546, the continued antagonism of the Sorbonne to the publishing undertakings of Estienne, brought the divines into direct conflict with the authority of the King. In presenting to the King this year a copy of his fine edition of *Eusebius*, Robert wrote to Du Chastel, Bishop of Mascon, complaining that the divines were privately soliciting an interdict of the latest issue of his annotated Bible, and declared his willingness to submit the work, together with the censure of the Faculty, to any competent theologians whom the King might select. The King found this proposal satisfactory, and instructed the Bishop to transmit his royal mandate to the Doctors of the Sorbonne to institute an examination of Robert's Bible, to prepare a list of the alleged errors, and to submit this list to him. They promised compliance, but, in spite of a second mandate, no such list was prepared. It is probable that they did not possess the requisite scholarship for the purpose, while it is also evident that what they objected to was not an incidental error, but the whole spirit and character of the undertaking. In the meantime, they induced the theologians of Louvain to procure the insertion of Robert's Bible in an *index expurgatorius* which was at that time in preparation in Louvain. Du Chastel was directed to address a third injunction to the divines, and the King forbade the printing (at least in France) of the catalogue of Louvain. Finally, the Faculty submitted a list of fifteen passages which they claimed to contain dangerous heresies. The King ordered these to be examined by the Bishop of Mascon and the Chancellor of the University, whose report was favourable to Robert, and who pointed out that the divines had not properly understood either the text or the notes. The King issued a Brief with the royal seal affixed, ordering

the divines to complete their list of *censuræ*, or to withdraw their strictures upon the book, strictures which, for a work of this character, naturally interfered with the sale. The divines persisted in their contumacy, while Robert, trusting in the support of the King, went on with the printing and sale of his Bibles. In March, 1547, King Francis died. His death was a serious misfortune not only to Estienne but to the cause of liberal scholarship and literary production in France.

Francis was at the time of his death in his fifty-third year and had reigned for nearly thirty-three years. As before pointed out, no other monarch of Europe had done so much for scholarly literature. In Italy, valuable co-operation was given by certain of the princes and individual noblemen, while in Germany, the earlier printer-publishers were dependent rather upon the scholarly men of the middle classes and upon wealthy towns-people than upon princes or nobles. The same year, 1547, saw the death of Henry VIII. (who will in our memories always be associated with Francis on account of the famous meeting on the Field of the Cloth of Gold), of Vatablus, the learned Paris professor of Greek, and of Beatus Rhenanus, scholar, humanist, and friend of Erasmus and Froben. Luther, whose life-work had, in addition to the great results usually connected with it, exercised such a wide-spread influence on the production and distribution of literature, had passed away the year preceding.

Du Verdier (himself a Catholic) expresses the opinion “that the Lutheran heresy, and the controversies to which it gave rise, conspired greatly to the development of literature.” The advocates of the Reformation showed themselves to be persons of great intellectual ability and profound research in sacred and classical literature, of which they made in their writings a great use. The severe ridicule that they brought upon the ignorance and barbarism of their opponents finally aroused the Catholic doctors to similar scholarly researches, and to call in the aid of erudition, which they had previously imagined to be some species of heresy.^[16]

The famous Marguerite de Valois, sister of King Francis, was prominent both as an authoress and as a protectress of literature, and her influence was always ready in behalf of the undertakings of Estienne. Pierre du Chastel, who had been an instructor of Marguerite, and who was one of the few Greek scholars of the kingdom, was also a serviceable friend to Estienne. Du Chastel had succeeded in securing a patron for the unfortunate Dolet

after his first heretical offences (an interposition which brought upon Du Chastel himself the suspicion of the orthodox), and he had also obtained from the King a pardon for the Waldenses. In neither case did it prove possible to secure a lasting protection. Dolet was burned a few years later, while the persecution of the Waldenses was also renewed with fresh bitterness after the death of Francis. Dolet was a scholar who, having studied jurisprudence and, later, served as instructor, finally became a printer. He devoted himself particularly to the study of the writings of Cicero, and published a *Commentaria Linguae Latinae* and also the *Formulae Latinarum locutionum illustriorum*. Nicéron says that he was the author of not less than twenty-four separate works. He was imprisoned on various occasions for his freedom of speech on religious subjects, and was finally burned as a heretic in 1546. His heresy was evidently not of the kind to secure the sympathy of Calvin, who referred to him as an “impious wretch.”

Henry II., who, in 1547, succeeded to the throne of France, while not possessing the distinctive interest in literature which had characterised his father Francis, was, nevertheless, at least at the outset, favourably disposed towards the men of letters with whom Francis had come into personal relations, and he was prepared to carry out the engagements into which his father had entered concerning the printing-office and type-foundry. He also took up the issue that had been raised between his father and the divines of the Sorbonne. In the first year of his reign, he commanded the divines forthwith to complete their list of *censuræ*, and threatened, in the event of further contumacy, severe measures for their chastisement. This produced an engagement on their part that by the following All Saints’ Day should finally be made public the long-promised schedules of all the errors and heresies discovered by them in the several Bibles of Robert Estienne. On the day specified, however, in place of the promised *censuræ*, the divines presented simply a fresh petition that the sale of the Bibles might be interdicted, on the general ground that their editor was a sacramentarian, and that he had spoken of the souls of men as mortal. The petition received no attention, and after some months’ further delay, ten divines presented themselves at the palace at Fontainebleau, with a list of forty-five objectionable articles or passages. The presentation was made before the King’s Council, with which were sitting several cardinals and bishops. The printer was heard in his own defence, and the matter was then taken into consideration by the Council. The prelates decided that in forty of the

passages specified there was no just ground for criticism. The remaining five were liable to objection, but might be satisfactorily explained. The contending parties were then recalled before the Council, and the divines were rebuked for their groundless interference, and were forbidden to arrogate to themselves in future the *jus censorium*, which was declared to belong to the bishop only. Enraged and disappointed, the deputies returned to Paris, and there, by some special management, they succeeded in procuring an order for a temporary suspension of the sale of Robert's Bibles. Later, as a result, apparently, of some vacillation on the part of the King, they secured also a royal mandate that the case should be submitted for the examination of certain judges whose office it was to take cognisance of matters of heresy. After an anxious contest extending over eight months, Robert finally succeeded in securing a counter mandate cancelling the foregoing order, and confining the jurisdiction of the affair to the Privy Council. This served to protect him for a brief period.

I have given the account of this contest with some detail because it was the first case in France that had come to a formal trial, in which publications were charged with heresy, and because also the animus shown by the ecclesiastics of the Sorbonne emphasised the divergence of the University from the interests of literature and of critical scholarship, and foreshadowed the transfer of literary and publishing activity from Paris to Switzerland, Germany, and the Low Countries. In 1548, King Henry was intent on passing the Alps, and began his expedition from Troyes. The absence of the Court, and the necessity, in connection with his contest with the Sorbonne, of pursuing its movements, gave occasion to Robert to visit Lyons, and in this journey he is supposed to have performed the task of subdividing into verses the chapters of the New Testament. A great part of this labour he is said to have performed on horseback.^[17] The invention, if it may be so described, proved a convenience and found general acceptance, and has been followed in all later editions of the Testament.

In the same year, the divines completed a second series of one hundred and seven "articles" or charges of heresy against Robert's Bibles, and through the influence of the King's confessor, the vacillating monarch was induced to issue a new mandate prohibiting the sale of the Bibles. Robert now declared to his friend Du Chastel his intention of abandoning his native country, and the King, persuaded by the Bishop that this would be a serious

misfortune for France, finally, after a delay of some months, issued a new *brevet* of protection for his printer. In 1550, fresh attempts were made by the divines to secure the complete suppression of the Bibles, the sales of which had of necessity already been materially interfered with. On this occasion, Du Chastel, who was looking forward to a cardinal's hat, finally abandoned his advocacy of Estienne. Robert secured an interview with the divines, and presenting a copy of the latest issue of the New Testament complained of, he requested, as before, a specific statement of the charges. The two divines who acted as spokesmen, were, according to Robert's report, evidently ignorant of Greek. They demanded, however, that the original "copy" or manuscript should be placed before them. He replied that the original was not one manuscript only, but fifteen, the several texts of which had been with great diligence collated and the result printed with all possible fidelity. After some weeks of further "consideration," the divines finally gave their decision, to the effect that this edition of the New Testament could not be permitted to be sold. Robert requested that a copy of this decision, together with a specification of the grounds on which it had been based, should be presented to the King, but this the divines refused to do. Robert thereupon presented to the King a handsomely bound copy of this new impression of the Testament, and when he had received the royal acknowledgment of the receipt of this copy, he felt himself to be sufficiently assured of protection to be able to proceed with his sales. The divines were indignant that a mere typographer should presume thus to act in defiance of a *decretum theologicum*, but the royal weathercock being for the moment set fair in the direction of a liberal standard of Scriptural interpretation, they were helpless to stop the sales of the book to the general public, although they were still able to prevent its acceptance within the precincts of the University.

While Estienne had thus far been able to secure a successful result in each one of his several contests with the Sorbonne, these contests had been for him not only anxious and troublesome in themselves, but seriously hampering to his business undertakings. It had also been made clear to him that the new monarch could not be depended upon for any such intelligent understanding of literary and scholarly requirements as had been shown by King Francis, and that his policy in the control of the royal Press, or in the assertion of the authority of the Crown over final censorship of publication, was certain to vacillate from month to month according to the personal,

political, or ecclesiastical influences that might for the moment be brought to bear.

It was manifestly impossible to carry on with any sufficient assurance as to the future a publishing business involving the planning of large undertakings, unless some consistent and intelligent policy of censorship could be depended upon. The enmity of the Sorbonne appeared to be persistent and irremediable. The irritable suspicions of the divines concerning the heretical character of texts printed in Greek could hardly be removed as long as these divines remained ignorant of Greek. As Robert was not prepared, under the behests of such ignorant censorship, to discontinue his scholarly publishing undertakings, there remained for him no resource but to abandon Paris, and to transfer his business to some city where the censorship would be either less rigorous or more intelligent.

The removal of the business to Geneva took place early in 1552. The Swiss capital, while at the time a town of but moderate population, presented certain special advantages, which could at the time have been found in no other city out of France, for carrying on a publishing business of the character of Robert's. The sharp contests of the Reformation, turning as they did largely upon intellectual issues, such as the history of the Church, and the exegesis of the Scriptures and of the writings of the Fathers, had developed no little intellectual activity throughout Europe. Geneva had become the most important centre for the production of the dogmatic and controversial literature of the Protestants, or at least of the Calvinists. Its University, which dated from 1368, and had been reorganised by Calvin in 1539, was already a place of resort for students and scholars from all parts of Europe who were interested in the doctrines of the Reformers, or who were attracted by the commanding personality of Calvin, while the Swiss printers had established channels of distribution for their books not only through Germany and the Low Countries, but even in far off England. The distribution in France of the publications from Geneva, even for books of accepted orthodoxy, was very much restricted and hampered by the regulations of the University, which had been framed for the purpose of keeping the sale of the books in France in the hands of the French dealers. Heretical works, under which were classed all the writings of the Protestants, were, of course, prohibited altogether. It was not possible, however, through any amount of restriction or prohibition, to

prevent the Geneva printers from making sale of their works across the easily reached frontiers, and in fact the forbidden French territory formed a most important part of their market.

Robert Estienne had not thus far classed himself with the Protestants, but the persistent and ignorant hostility shown by the Catholics of the Paris University to his efforts in behalf of scholarly literature, and the fact that the principal interest in his undertakings had come from the liberals and the Reformers, had doubtless had the effect of bringing him into close sympathy with the Protestants, and particularly with the followers of Calvin. In 1552, at the time of Robert's arrival in Geneva, Calvin was probably at the height of his influence. Servetus, whose medical treatises had been published in Paris, printed at Vienne, in 1553, his *Christianity Restored*, the work which was the more immediate cause of his persecution. Escaping from the French Inquisition, Servetus took refuge in Geneva, and there, in the latter part of 1553, was burned at the stake, under the instructions of Calvin. To a man like Robert Estienne, who was seeking for a place where the production of good literature could be carried on freed from the blighting interference of ecclesiastical bigotry, the death of Servetus may well have served as a warning that Protestant Geneva was no more ready than was Catholic Paris to tolerate free speech or a free press.

Robert had found it necessary, in order to gain time to prepare for his escape, to temporise with his censors, and to go through the form of submitting to their authority. Their indignation when they found that he had given them the slip was very keen, and according to Beza, the divines went to the point of burning him in effigy.^[18] At the time of Estienne's arrival in Geneva, Switzerland had become a place of refuge for Protestant heretics from various parts of Europe, and the exiles were chiefly attracted either to Zurich, as the headquarters of the followers of Zwingli, or to Geneva, as the home of Calvin. A little later, the groups in those cities from Italy, France, and South Germany were added to by a number of divines and scholars from England, whence they had been driven by the persecution under Queen Mary. Among the sojourners from Italy were Lelius and Faustus Socinus (uncle and nephew) from Siena, whose name afterwards gave a designation to the group of Arians known as Socinians. The nephew was, later, active in diffusing Socinianism in Poland, where, however, it failed to

secure any lasting foundation. The inscription on his tomb, in Warsaw, is said to read as follows:

*Tota jacet Babylon; destruxit tecta Lutherus,
Muros Calvinus: sed fundamenta Socinus.* ^[19]

One may recall in this connection the description given by Lowell of that later vigorous Protestant, Theodore Parker: “He was so ultra-Cinian, he shocked the Socinians.”

There came also from Italy, Bernardus Ochinus, of Siena, and the more famous Peter Martyr (Vermilius), from Florence, the latter having, however, more recently been lecturing in Oxford, where he had been suspended from his lectureship on the accession of Queen Mary. A companion to Martyr was John Jewell, also from Oxford, who, later, became a bishop. Names like the above will give an impression of the character of the circle in which Estienne now found himself. It was not only for the scholar a personal gratification to be thrown into association with intellectual leaders skilled in critical and theological learning, but it must also have been of no little service for the reorganisation of his publishing business to have at hand a group of advisers and of editors who would have a keen personal interest in a large proportion at least of his scholarly undertakings.

The following titles of the more important publications issued by Robert after the establishment of the Geneva Press will give an impression of the general direction taken by his business.

1552. “Ad Censuras Theologorum Parisiensium, quibus Biblia a Roberto Stephano Typographo Regio excusa calumniose notarunt, ejusdem Roberti Stephani Responsio.” The “Response” was also printed in French.

In his “Histoire Critique du Nouveau Testament,” Father Simon, a good Catholic authority, has entered into a minute examination of the points at issue between Robert and his accusers, and his decisions are almost uniformly in favour of the publisher. ^[20]

1553. “La Bible,” in folio.

“Catéchisme,” by Jean Calvin.

“La Forme des Prières Ecclésiastiques.”

With these were a number of other devotional and doctrinal treatises printed under the immediate direction of Calvin. These treatises, being planned for popular circulation, were largely printed in French, and the Geneva list includes, in fact, a much larger proportion of works in the vernacular than had been issued in Paris.

1554. “In Genesin Commentarius Calvini.”

“Exposition Continuelle sur les Evangiles.”

“Ambrosii Calepini Dictionarium.”

“Defensio Orthodoxæ Fidei de Sacra Trinitate, contra prodigiosos errores Michælis Serveti Hispani, ubi ostenditur hæreticos jure gladii cœrcendos esse, et nominatim de homine hoc tam impio justi et merito sumptum Genevæ fuisse Supplicium, per Johannem Calvinum.”

“De Hæreticis a Civili Magistratu puniendis Libellus, Theodori Bezæ.”

It is somewhat to be wondered at that Robert, fresh from harassing persecution in Paris, should have been willing to place his imprint upon this argument of Calvin as to the rightfulness of the punishment of Servetus, and upon the companion treatise which the zeal of Beza had prompted him to compose in defence of the right of the civil magistrate to punish heretics. Assuming that by this time Estienne had thrown in his lot entirely with the Calvinists, it is nevertheless to be borne in mind that the record and the utterances of the man had heretofore shown him to be a consistent advocate of intellectual liberty. Even after his sojourn in Geneva, there is on record no utterance of Robert's which is not in accord with this view of his own personal predilections. Robert had, moreover, always taken such high ground as to publishing responsibility, that he cannot escape being held accountable for the approval implied in the association of his imprint with these zealous defences of an act that must always remain a serious blot on the history of Protestantism.

1555. “Concordantiæ Bibliorum utriusque Testamenti.”

“Calvinus in Acta Apostolorum.”

1556-57. “Commentaries (in Latin) on the New Testament, and on the five Prophets, Hosea, Joel, Amos, Obadiah, Jonas.”

“Liber Psalmorum Davidis.”

“Dictionnaire des Mots François tournés en Latin.”

1558. “Phrases Hebraicæ.”

“Adagiorum chiliades quatuor, cum sesquicenturia Erasmi, cum H. Stephani animadversionibus.” Folio.

This edition of the famous “*Adagia*” of Erasmus, first published in 1500, contained the latest revisions of the author. After the death of Erasmus, which had occurred in 1536, his works fell into the public domain and were reprinted by any publishers who were interested in them. This edition of Robert Estienne contained the first work as an editor and commentator of his son Henry.

1559. This was the last year of Robert’s typographical labours.

The more important impressions were:

“Kimhi in Habacuc, recognitus a Vatablo.”

“De Cœna Domini plana et perspicua tractatio in qua Joachimi Westphali calumniæ postremum editæ refelluntur, Theodoro Beza auctore.” 8vo.

“Calvini Commentarii in quinque libros Mosis.” Folio.

“Glossæ in tres Evangelistas, cum Calvini Commentariis, adjecto seorsim Johanne.” Folio.

“Harmonia ex tribus Evangelistis, adjuncto seorsim Johanne, cum Calvini Commentariis.” Folio.

“Le Nouveau Testament, revu et corrigé sur le Grec par l’avis des Ministres de Genève.”

“Calvini Institutio Christianæ Religionis, in libros quatuor nunc primum digesta, certisque capitibus distincta.” Folio.

The *Institutes* is the great work of Calvin, and is possibly the most important intellectual production of the Reformation. This edition of Robert Estienne's contained the final revision of the author, and was given by the author to the public as the *édition définitive*. The publication of this authoritative edition of a book which belongs to the distinctive literature not only of the sixteenth century but of the world's history, was a fitting undertaking with which to close the labours of the great publisher.

Robert Estienne died in the latter part of this year 1559, having continued actively engaged in the work of his printing-office until within a few weeks of his death. In the same year occurred the death of Henry II., the French King, which was occasioned by a wound received in a tournament. By Robert's will, the bulk of his property, including the printing-office and publishing business in Geneva, was left to his son Henry, who had for some years been actively associated in its management, and who had inherited a full measure of his father's scholarly interests and business capacity. The second son, Robert, who had remained in Paris as a printer, was, according to Maittaire, disinherited, possibly because he had thrown in his lot with the extreme Catholics of the Sorbonne.

Thuanus ascribes to Robert Estienne the praise of excelling in judgment and in technical skill and elegance such masters of the typographical art as Aldus and Froben. Without lessening the praise justly belonging to Estienne, it must be remembered in any comparison of his publications with those of Aldus, that the work of the latter was carried on fifty years earlier, when it was necessary to do much more creative work in organising book-making appliances, and when the difficulties in the way of distributing books were still greater than those with which Estienne had to contend. Thuanus is on firmer ground when he asserts that more real lustre and glory were reflected upon the reign of Francis I. by the genius and exertions of this single individual than by all the achievements of that monarch, whether in peace or in war. Scævola Sammasthanus speaks of Estienne as *Typographus solertissimus et splendidissimus*, and Gesner, in inscribing to him the fifth book of his *Pandects*, terms him *entre les Imprimeurs et Libraires ce qu'est le soleil entre les étoiles*.

The exceptional personal erudition of Robert Estienne, the distinctive importance of his publishing undertakings, the zeal evinced by him from the beginning of his career for the advancement of learning and for critical

scholarship, and the courageous fight made by him against the assumption of the bigoted divines of the Sorbonne of the right to exercise censorship over a literature of the very language of which they were for the most part ignorant, constitute the grounds for my selection of him as the most worthy representative of the printer-publishers of France of the sixteenth century, and for presenting with some little detail the chief incidents of his career. While the early memoirs give pretty full information concerning the literary side of Estienne's publishing undertakings and present also the history of his long series of contests in behalf of the freedom of the Press, the records of the business details of his enterprises are scanty and inadequate. We have no such information as has been preserved in the account books of Aldus, Koberger, and Plantin, showing the cost of the production of his books, or the amounts paid to editors and authors. The extent of the financial aid extended to Robert by the wise liberality of King Francis is also not clearly specified, although we can realise how important in many ways this royal assistance must have been, and especially in connection with the use of the great fonts of Greek type for the making of which the King had paid. We know that he was the only one of the pioneer printers who secured any intelligent and effective co-operation from a royal treasury, and we know also that important as this co-operation was, it was in the end more than offset by the disastrous antagonism of the ecclesiastics of the Sorbonne, whose persistency finally triumphed over both king and printer.

Information is also wanting as to the channels which were available for the distribution of the books when made, and concerning the methods employed for their sale. It is, in fact, very difficult to understand how, during a period of frequent war, when communications were irregular and travel was difficult not only between France and the adjoining states, but throughout the kingdom itself, it could have proved practicable to secure a remunerative sale for costly works of such special character as the majority of those issued by Estienne. The difficulty must have been considerable even in making known to scholars throughout Europe the fact of the publication of the books, and after the orders were received, there remained the task of making the deliveries and of collecting the payments. It is further to be borne in mind that the adverse influence of the divines of the Sorbonne must have hampered materially the demand from university and ecclesiastical centres for the editions of the Scriptures and for all the works possessing any theological character, while it was the case that of the Bibles

at least, the sale was absolutely blocked for several long periods. Notwithstanding all the difficulties and obstacles, Estienne must have succeeded in building up throughout Europe a remunerative demand for his publications, for at the time of his migration from France he was reputed to be a man of means, and even after all the losses and expenses attending the sudden closing of his concern in Paris and its re-establishment in Geneva, he was able, a few years later, to leave to his son a business on an assured foundation, and resources for carrying it on. An important part of these resources consisted in a great collection of texts, both printed and in manuscript, and in a comprehensive and valuable library. The career of Robert Estienne was assuredly both distinctive and honourable, and the services rendered by him to the cause of scholarly literature fairly entitle him to the name of the Aldus of France.

Some years after Robert's death, the charge was made by some of his old-time opponents that he had wrongfully carried away to Geneva certain of the matrices of the Greek type which belonged to the *Imprimerie Royale* of Paris, and of which he had the use as Printer to the King. According to Le Clerc, Robert took with him not the matrices, but the punches (*les poinçons des matrices*) of certain of the Greek fonts which had been made for the *Imprimerie Royale*, but this theory does not accord with the final history. It seems certainly to have been the case that the type used by Robert's son Henry for Greek books issued by him in Geneva after the death of his father, was identical with that of the royal Greek characters which had been made for King Francis under Robert's supervision. Greswell is of opinion that the charge was well founded, but he points out certain considerations which probably influenced Robert's action, and which seemed to him (as they seemed to Maittaire) to constitute, in some measure at least, a justification for such action. Robert left Paris hurriedly, and it could in any case have been no easy task to arrange for the transportation of the material of his printing-office and publishing concern without attracting the attention of his enemies in the Sorbonne.

1. If information had been given to King Henry concerning the preparations of the printer, the removal would doubtless have been forbidden. If Robert had taken pains to deposit the matrices in the chamber of accounts (where the punches of the three fonts were preserved in boxes lined with velvet),^[21] he would at once have betrayed his plans for removal.

2. The removal of this set of matrices does not appear to have excited any sensation whatsoever, either at the time of Robert's departure or at any later period; nor do we hear of any impediment being caused through the want of them to the business of the future *Impressores Regii*.

3. At the time of Robert's departure, the royal treasury was greatly in arrears to Robert, not merely for the King's promised remuneration of his losses, which the malevolence of the divines had intercepted, but also for the stipend due to him as *regius typographus*. He may, therefore, have believed himself to be warranted in retaining the set of matrices either as an offset or as a pledge. [\[22\]](#)

4. Chevillier, and others of the authorities of the time, writing from the Catholic point of view, while very indignant with Robert for having induced two monarchs to give to him, "an outrageous Calvinist heretic," the post of royal printer, make no mention of this accusation, while they would certainly have been very ready, if they had before them any evidence of such a theft, to include it among the sins of the heretical printer.

M. de Guignes finds evidence that under the reign of Louis XIII. certain of the divines of the Sorbonne, who had in preparation a new edition of the Greek Fathers, presented a petition to that prince requesting that the Greek matrices might be repurchased from Geneva, and that, in consequence of this petition, the King, in May, 1619, directed the sum of three thousand livres to be paid for them to Paul Estienne, the grandson of Robert, and that the matrices were brought back to the royal printing-house.

In the same essay, M. de Guignes mentions that in the year 1700, the University of Cambridge requested the Government (that of Louis XIV.) to favour it with a cast or font of the Greek characters of Francis I., then known by the name of "the King's Greek." The matter was referred to the French Academy, which expressed its willingness to send the font, under the condition that in all works in which the characters were used, there should be placed at the bottom of the title-page, after the usual subscription *Typis Academicis*, the words *Characteribus Græcis e Typographeo regio Parisiensi*. To this stipulation, however, the curators of the Cambridge University

Press were not willing to consent, and the negotiation therefore fell through. The incident indicates that after the lapse of a century and a half,

the Greek type planned by Estienne was still considered to excel fonts of later workmanship.





CHAPTER V.

THE LATER ESTIENNES AND CASAUBON.

1537-1659.

IT is not necessary for the purpose of this study to give the record in detail of the careers and publishing undertakings of all the printers of the great family of the Estiennes. I have been interested in presenting with some fulness the account of the life and work of Robert, because he stands out as the most distinctive and forcible member of a famous literary family, and because his experience illustrates very fairly the characteristic features and the chief difficulties of the business of publishing books in France in the first half of the sixteenth century. The business careers of the brothers and of the descendants of Robert should be mentioned, however, if only to indicate the exceptional position occupied by this noteworthy family in the history of printing and publishing, and the extent of the influence exercised by it through successive generations upon the production of scholarly literature.

Robert's elder brother, Francis, was a *libraire juré* of the University of Paris. His publications were comprised within the ten years from 1537 to 1547. He used as a mark a tripod which stands upon a closed book and from which issues a vine shoot. The motto is *Plus olei quam vini*. This is sometimes followed by the adage, which seems rather a truism than a truth, πάντων δυσχερέστατον τὸ πᾶσιν ἀρέσκειν, "Of all things, the most difficult is to please everybody."^[23] With the exception of one *Psalterium* and a *Horæ Virginis* in Greek, his few impressions were all in Latin, and were chiefly issues of the classics. He appears never to have come into conflict with the divines whose censorship gave so much trouble to his brother Robert.

Charles Estienne, who was the youngest of the three brothers, was known as a printer and publisher in Paris between the years 1550 and 1560. He had originally adopted the profession of medicine and attained high reputation as a physician and naturalist, and as a classical and antiquarian scholar.

While travelling in Italy, he became intimate with Paul Manutius, the son of Aldus. He was a voluminous author, and the first productions of his Press were the work of his own pen, and comprised a treatise on Dissection, a series of volumes on Horticulture, issued under the title of *Prædium Rusticum*, a work on Birds, and one on Fishes. He also wrote a history of the Dukes of Milan, a description of the Rivers of France, and a number of narratives of travel. Finally, he produced a number of critical works, such as a *Dictionarium Latino-Gallicum*.

This was published in 1552, and again in 1561, and remained for many years a scholarly authority on its subject, and was honoured by being largely “appropriated.” Cooper’s *Thesaurus Linguae Romanæ*, published in London in 1565, was said by Dr. White Kennett to be a *verbatim* transcript of Stephen’s Dictionary.^[24] It seems evident from the above brief summary that Charles Estienne secured an honourable position as a scholar and as an author.

In order to indicate the direction of his publishing interests, I select a few of the more important of the titles from his catalogue.

1554. “Compendium Michlol, authore Rodolpho Bayno Cantabrigiense, et sanctæ linguæ professore Regio Lutetiæ Parisior.” 4to. The author was an Englishman from York, who had accepted a professorship at Paris.

“Institutiones Linguae Syriacæ, Assyriacæ atque Thalmudicæ una cum Æthiopicæ atque Arabicæ collatione, Angelo Caninio Anglarensi, authore.” 4to.

1555. “Ciceronis Opera omnia.” 4 vols. Folio.

1558. “Petri Bunelli familiares aliquot epistolæ in adolescentulorum, Ciceronis studiosorum gratiam.”

Petrus Bunellus was a native of Toulouse, who had studied in Italy, where he had for four years lived with Paul Manutius. He had evidently shared the interest of his friend and host in the writings of Cicero.

1559. “Plutarque de la honte vicieuse, par Fr. le Grand.” 8vo.

“Histoire du siège de Metz en 1552, par Barthélemy de Salignac.”

“Traicté de la guerre de Malte, par de Villegagnon.” 4to.

“Missives de B. de Salignac, contenant le voyage du Roy Henry II. aux Pays-Bas.” 4to.

“De Latinis et Græcis nominibus arborum fruticum, herbarum, piscium et avium liber; ex Aristotele, Theophrasto, Galeno,” etc. This is described as an original and learned work.

The famous scholar Scaliger charges Charles Estienne with vanity and irritability of temper, but a publisher may be angry occasionally without any permanent imputation upon his morals or character. Scaliger had, by a breach of promise and by ill usage, given to Estienne just cause of offence. He had promised to place with Estienne the publication for France of all his works, while he afterwards committed to Vascosan and others such of them as seemed most likely to prove profitable undertakings. To Charles Estienne he offered those which on account of their special character promised neither popularity nor advantage. Under these circumstances, Estienne returned Scaliger’s manuscripts with an expression of indignation.^[25]

Robert Estienne the second was the eldest son of Robert Estienne the first, and had been brought up in the business of his more famous father. He did not accompany the latter on his removal to Geneva, having refused to abandon the Catholic faith. His remaining in Paris brought to him certain business advantages, as he was put in charge of the royal printing-office. As a further mark of confidence, and possibly as special consideration for his fidelity to the Catholic faith after the rest of his family had gone over to the heretics, Charles IX. further honoured him with a royal commission to travel in Italy in search of manuscripts and rare books for use in the publishing undertakings of the Royal Press, and appointed a provision for his family during his absence. In 1563, Robert received the formal appointment as *Typographus Regius*, and by that date he appears to have fully reconstituted his father’s establishment in Paris. He numbered among his friends and clients some of the principal scholars of the age, including Joseph Scaliger, George Buchanan, Sir Thomas Smith, and others, and appears to have fully maintained the family reputation for scholarly attainments and for devotion to higher literature.

Among his more important publications may be cited:

1565. “Josephi Scaligeri conjectanea in Varronem de Lingua Latina.”

1566. “Georgii Buchanani Scoti Psalmorum Davidis Paraphrasis poetica.”

“Psalmi Aliquot a Theodoro Beza versi.”

1568. “De recta et emendata linguæ Græcæ pronounciatione Thomæ Smith. Angli, tunc in Acad. Cantabr. publici prælectoris, ad Vintoniensem episcopum Epistola.” 4to.

“De recta et emendata linguæ Anglicæ scriptione Dialogus, Thoma Smitho equestris ordinis Anglo authore.” 4to.

Scaliger, while an Italian by race and a Frenchman by birth, is more usually associated with Holland, where he passed the greater part of his working years. As professor of belles-lettres in Leyden, he had among his pupils the celebrated Grotius. He was himself possibly the most noted of the group of Protestant scholars whose learning and attainments secured for the Reformers of the time an intellectual superiority over their Catholic opponents, a superiority which had as one result a decided revival of letters within the Church of Rome. The original editions of his books were issued in Leyden, but he was able, as noted above, to arrange for the publication in Paris of authorised editions from which he derived a profit, and of certain of these works editions appeared also in Basel.

George Buchanan, poet and historian, is best known in connection with his service as tutor for Mary Queen of Scots, and later, as preceptor for her son James. The latter was possibly largely indebted to Buchanan for his interest and proficiency in classical studies. Sir Thomas Smith was the English Ambassador at Paris. The interest of scholarly foreigners such as those named, in securing for their books the imprint of Estienne, indicates that the repute of the firm had already extended beyond the limits of France.

Henry Estienne the second, second son of Robert, carried on in Geneva, after the death of his father, what may be called the Protestant branch of the publishing concern, for a few years, when he returned to Paris and established there a second Estienne Press. He was apparently the most finished scholar of his scholarly family, and from an early age, before he had entered upon business responsibilities, we find him engaged in work as

editor and translator. His father had taken special pains with his education, and as a part of his general training had caused him to travel as a young man in Italy, England, and the Low Countries.

Henry had secured a familiarity with Latin in his home circle, where, as before stated, Latin was practically the language of the household. He took his first instruction in Greek from Petrus Danesius, one of the Greek scholars who had been brought to the royal college of Francis I. He spent nearly four years in travel and in sojourn in Italy, busying himself while there in collecting and collating manuscripts for his father's Press. Maittaire states that he collated for this purpose no fewer than fifteen manuscripts of *Æschylus*. Certain annotations made by him in his transcript of *Athenæus* were subsequently utilised by his son-in-law, the famous scholar Casaubon, in the edition printed forty years later.

In Venice he became acquainted with the Greek scholar Muretus, who, in addition to his work in the University of Padua, had for a number of years given editorial assistance in the Greek division of the Aldine Press. In Henry's diary of his journey, he speaks of being present at a gathering in Rome of *literati* and poets, who ignorantly condemned Hebrew *ut linguam asperam et horridam*. The young publisher who was well versed in Hebrew, successfully defended the sacred language and resolutely vindicated the cause both of David and his interpreters.

A little later, he met, in Florence, Petrus Victorius, one of the most profound Greek scholars at that time in Italy. Henry was able to present to his host a valuable *Codex* of Anacreon which the Greek professor had not before been acquainted with. In 1550, Henry's travels extended to England, where he was introduced, as a scholar of note, to King Edward VI. From England, he went to Flanders and became intimate with some of the scholars of Louvain. While in Flanders, he devoted himself to mastering the Spanish language, and he brought back with him from Antwerp to Paris the texts of certain Spanish classics of which he printed French versions. In the twenty-sixth year of his age, he returned to Paris to begin his active business career, for which he had certainly taken pains thoroughly to equip himself.

He began his publishing undertakings in 1554, with an edition of *Anacreon*, beautifully printed in quarto. The volume contains, in addition to

the Greek text, Latin versions of the *Odes* prepared by the publisher who himself acted as editor. During 1555, he was again in Italy collecting and collating manuscripts. In 1556, he issued an edition of the *Psalms* presented in a Latin version which was the combined work of George Buchanan a Scotchman, M. A. Flaminus an Italian, Solomon Macrinus a Frenchman, and Helius Eobanus a German. He was this year busily engaged, in company with other scholars, in editorial work on the *Thesaurus Græcus*.

In 1557, he produced editions of *Æschylus*, *Aristotle*, *Theophrastus*, and *Athenagoras*. The notes to *Æschylus* were the work of the scholar Petrus Victorius, with whom Henry had a long-time friendship. In this year was also issued the *Lexicon Ciceronianum Græco-Latinum*, which had been compiled by himself and in which he had brought together whatever passages or material Cicero had utilised from philosophers, historians, poets, or essayists. This work secured for its compiler and publisher high repute as a scholar of wide attainments.

In 1558, Henry assumed the appellation of a *Typographus illustris viri Huldrici Fuggeri, Domini in Kirchberg et Weyssenhorn*.^[26] Huldric Fugger was a native of Augsburg, born in 1526, and belonging to a family conspicuous for its antiquity, its mercantile ability, and its wealth. Huldric was himself a scholar, and became an eminent patron of literary men. He expended very great sums in the purchase of trustworthy manuscripts of ancient authors, and in having produced from these satisfactory printed editions. Henry Scrimger, a Scotch professor of considerable erudition, was engaged by him, on terms described as magnificent, to carry into effect those literary undertakings. Scrimger was an old friend of Henry Estienne, and it was undoubtedly at his instance that the baron conceived the plan of appointing Henry as his typographus. The printer received from Fugger for some years a pension of fifty gold crowns, but I have been unable to find any specification of the precise nature of the services which were given in consideration of this payment.

Expenditure for the promotion of literature was still very exceptional, and it is perhaps not surprising that the family of Huldric considered his patronage of letters as evidence of a deranged mind. They instituted a legal process, and succeeded in inducing the court to take their view of Huldric's actions. They secured a decree which caused him to be declared incapable of the administration of his own property, and he was for a time placed

under guardians. Eventually, however, he recovered possession of his property, and in fact succeeded also to the estate of his brother. With increased resources, he resumed his interest in collecting books, and at his death, in Heidelberg, in 1584, he bequeathed to the Palatinate a very fine library. It is probable, however, that his confinement had tended to mitigate his ardour for expending money in printing books, and his relations with Estienne were not resumed. The several experiences endured by this would-be German Mæcenas may have helped to discourage future similar attempts to further the production of good literature. If the expenditure of money in the production of books and the collection of libraries were to be accepted as evidences of mental derangement, it is not surprising that the printers and publishers of Germany secured during the sixteenth century very little patronage or compensation from the nobility of the land.

Huldric Fugger was, however, not the only one of his family who interested himself in literature. His elder brother, Joannes Jacobus, had a fine collection of books both printed and in manuscript, and was proficient in Greek. Other members of the family were in relations with Paul Manutius in Italy, with Koberger of Nuremberg, and with Froben of Basel.

The first book printed by Henry Estienne under his new designation of *Huldrici Fuggeri Typographus*, was an edition of the *Edicts* of Justinian, printed in Greek and Latin, which bears date 1558. In 1559, he issued the *Bibliotheca* of Diodorus, with annotations of his own, and in 1561, a very elaborate edition of the complete writings of *Xenophon*.

After the death, in 1559, of Henry II. and in 1560, of the young King Francis II., there was for a number of years, during the minority of Charles IX., a time of trouble and disturbance for France, during which literary undertakings and business enterprises were of necessity seriously interfered with. The Calvinists, who had been rapidly increasing in numbers throughout the kingdom, were making an earnest fight for consistent toleration, and, later, for official recognition and for equality with the Catholics before the law, a contention which was actively opposed by the Guises, and (with occasional pretensions of concession) by the Queen-Mother, Catharine of Medici. The result was a series of civil wars, with only occasional brief interludes of truce and quiet.

In 1562, Estienne completed the publication of certain theological works which had been left unfinished in Geneva at the time of his father's death,—an Exposition of the New Testament and an Exposition of the Psalms.

The editor, a certain Marloratus, a Huguenot minister at Rouen, was unfortunately, before the printing was completed, hanged as a heretic, under the direction of the Duke of Guise, but the books themselves were not suppressed nor was the publisher interfered with. In fact, the Faculty of the Sorbonne appears for the time to have suspended its censorious watchfulness over heretical publications, perhaps because it found its hands sufficiently full with the active work of suppressing by fire, gibbet, and sword the heretics themselves.

Henry Estienne had, as stated, established his printing-office in Paris, where his business may be considered as in a measure a continuation of the concern of his father Robert, although the post of printer to the King had, as we have noted, been given to his uncle. Henry continued, however, to print a certain portion of his books in Geneva, although it is not clear whether or not he retained the control of, or even an ownership in, the Press which had been established there by his father.^[27] He appears at this time to have divided his publishing undertakings, executing at Paris reprints of the classics and of works in general literature, and reserving for the Geneva Press theological works which were likely to give offence in a period of "religious irritation." This term is, I may mention, Maittaire's, and it is perhaps not too strong a description of a period in which a divine who had taken no part in politics could be hanged simply for editing a Protestant commentary.

I add some further selections of certain of the more important of the titles from Henry's Catalogue.

1563. "Rudimenta Fidei Christianæ; addita est ecclesiasticarum precum formula; Græc. Lat." 12mo.

This is Calvin's Catechism, translated into Greek by Henry himself.

"De abusu linguæ Græcæ in quibusdam vocibus, quas Latina usurpat admonitio." 8vo. Of this treatise Henry was author as well as publisher.

1564. “Fragmenta Poëtarum Veterum Latinorum, quorum opera non extant, Ennii, Accii, Lucilii” etc. This work was undertaken out of regard for the memory of his father, by whom the fragments had been collected, but who had not been able to complete the preparation of them for the press.

1566. “La confirmation de la discipline ecclésiastique observée dans les églises réformées du royaume de France; avec la réponse aux objections proposées à l’encontre.” This was printed in Geneva.

In the same year, was issued a Greek *Anthology* to which the publisher added certain annotations of his own. By way of exciting the emulation of young poets, Henry promised an addition of such Greek epigrams as had been turned into Latin metre by himself and others, and as a proof of his own facility, he introduced into his annotations to the *Anthology* above mentioned more than fifty translations of a single distich.

The publisher, in thus assuming responsibilities as an author, could, of course, not escape the criticism of other authors claiming authority in the same studies. Vavas seur, for instance, says of Henry’s literary productions: “His verse is more faulty than his prose, his numbers are harsh and unpolished, his muse is often triflingly diffuse. He is fluent in writing, but frequently not correct. He is both fastidious and dictatorial, talking freely of others and much of himself, and forgetting the modesty which becomes the author.”^[28] It is fair to remember that Father Vavas seur was a Jesuit and was possibly, therefore, no dispassionate judge of the defects of the scholarly but heretical publisher.

1566. “Herodoti Historiæ Libri IX. et de vita Homeri Libellus, Latine. Folio.”

This edition comprises also the *Opuscula* of Herodotus, Plutarch, and Porphyrius, relating to Homer’s life and poesy.

M. de Sallengre relates that Henry Estienne, having printed at a great expense the histories of Herodotus, his enemies and above all the monks, who sought every occasion to bring trouble upon him, decried his history as filled with fables *et de contes à dormir debout*, and that Henry, to repel the effect of this accusation, undertook to justify himself by the composition of

the following treatise, *Apologia pro Herodoto, sive Herodoti Historia fabulositatis accusata*.

This *Apologia* is described by Greswell as a serious performance, containing nothing that should be particularly offensive to the monks or to the Roman clergy, unless it be an incidental mention of *La papesse Jeanne* and a description of certain superstitions that Estienne had observed in his visit to the Church of our Lady of Loretto.

The *Apologia* was, later, prefixed to another issue of a Latin version of *Herodotus* and was subsequently printed in French in a separate volume under the title *L'apologie pour Hérodote*.^[29]

The *Apologia* appears to have been amplified and extended and to have been made the vehicle of a severe attack upon the Roman Hierarchy and a means of exposing the ignorance and vices of its ecclesiastics, the fooleries of their pulpit elocution, the astonishing credulity of the laity instructed by them, and the laxity of discipline and deterioration of manners which seemed to be the inevitable result of a corrupt faith. Greswell is of opinion that the motives which led to this attack are not to be sought for in any imaginary affront which Henry had experienced through the monkish accusations against his *Herodotus*, but that they were rather to be found in the irritation occasioned by the persecutions from which his family had suffered and in his rooted antipathy to the principles of the Church of Rome.^[30]

Maittaire's description of Henry's criticism of the manners and works of the monks recalls certain portions of the *Encomium Moriæ* of Erasmus. The author's general line of argument is as follows: The circumstances related by Herodotus in his History ought not to be pronounced fables on account of their seeming want of verisimilitude, as in recent times many things have happened which, though in themselves apparently far less probable than much that Herodotus has recorded, cannot be called in question. It is contended further that it is impossible for men ever to have been so stupid and so gross as Herodotus describes them; but Henry shows by undeniable examples how excessive in all respects was the grossness of many of those who lived in the fourteenth and fifteenth centuries, persons who were probably no less degraded than were the classes whose lives are recorded by Herodotus. In the account of the wrong-doings and degradation of later

generations, Henry does not spare the monks, who are attacked without mercy, and he speaks with hardly more reserve of the popes themselves. It is difficult to understand why divines of the Sorbonne, whose theological ire had been so bitter against Robert Estienne on account of Greek annotations to the Testament, should have allowed to pass, apparently without a protest, so sweeping a denunciation of the character of the ecclesiastics.

According to De Sallengre, the *Apologia* was a book which everyone wished to possess. It was read with avidity, and editions of it were multiplied. The first three, all printed in Geneva, were issued before the close of the year 1566. The fourth, fifth, and sixth were printed at Antwerp in 1567, 1568, and 1569. The seventh, eighth, ninth, and tenth were printed at Rochelle (the centre of French Protestantism) between 1572 and 1582, and the eleventh and twelfth at Lyons in 1592 and 1607. These editions were all superseded by that printed at The Hague in 1735, with notes by M. le Duchat.

An anonymous translation appeared in London in 1607, under the title of *A World of Wonders, or an Introduction to a treatise touching the conformitie of ancient and modern wonders; or a Preparative Treatise to the Apologie for Herodotus, the argument of which is taken from the Apologie for Herodotus written by Henry Stephen, etc.* I have thought it worth while to present the specification of the editions of a book which achieved, if not fame, at least popularity, as an indication of the activity of the printing-presses even during a period of political strife and of widely extended wars.

The book appears never to have been put into print in Paris, as it was doubtless not considered wise to test too severely the censorship of the University. According to De Sallengre, copies were, however, in very general circulation in Paris society, which was always ready to be amused with the recital of clerical enormities and with pictures of the scandals of private life.

The years 1562 and 1563 were signalled by active operations in the continued strife between the Protestants and the Catholics, and while, after 1563, there was a brief cessation of hostilities, the civil war broke out again in 1567 and continued with brief intervals until the Massacre of S.

Bartholomew in 1572. In each one of these years of disturbance, however, we find Henry Estienne's imprint associated with important publications, principally reissues of the classics, although it is not easy to understand how it could have proved practicable to secure any continued sale at this time in France for costly editions, or how there was in fact any opportunity of interesting the public or of bringing adequately to the attention of the public, books of any class. The frequent interference with the communications between Paris and the cities east of the Rhine must also have rendered it very difficult to arrange for the distribution of French editions in Germany, or in the Low Countries, while the latter were themselves in the throes of the great rebellion against the dominion of Spain.

In 1568, Henry printed *Henrici Stephani annotationes in Sophoclem et Euripidem*, etc., which is evidence that such little matters as the battles of St. Denis and Jarnac were not permitted to interfere with his classical studies any more than with the work of his printing-office. In the next year, he issued another work from his own pen: *Comicorum Græcorum sententiæ, id est Gnomæ, Græce Latinis versibus ab H. Stephano redditæ, et annotationibus illustratæ*. He also completed the publication of a collection of Latin historians. The list of the year includes a number of other titles of which the most important (with reference at least to the personality of Henry) were the two following:

Artis Typographicæ querimonia et Epitaphia typographorum quorundam, per H. Stephanum. 4to; and

Henrici Stephani epistola de suæ typographiæ statu; Index librorum qui ex ejusdem officina hætenus prodierunt. 8vo.

The former is a lament concerning the degradation of the noble art of typography. An art which had, as he complains, fallen into the hands of the most illiterate of persons, *quibus nihil cum musis commune est*. "What," he exclaims, "would Aldus Manutius say if, returning to life, he could behold the present miserable condition of the art to which his life was devoted!" He then proceeds to adduce various instances of the gross ignorance and corresponding obstinacy of some of the printers and editors of his time, exemplified by their adulteration of particular passages of classic authors.

These quotations are followed by a number of *Latin Elegiacs* and certain *Epitaphia*, partly in Greek and partly in Latin, which appear to have been included in the volume as evidence that one printer at least, was both a classical scholar and a man of literary capacity. It is doubtful whether the condition of printing throughout Europe at this time afforded any substantial justification for this sweeping complaint of Henry's. The presses of Plantin were, during these very years, active in Antwerp, although Plantin, like Estienne himself, was contending against manifold difficulties in the task of carrying on an international publishing business in the midst of civil war and political disintegration; and the books produced by Plantin will, not only for the beauty of their typography, but especially for the perfection of the magnificent copper-plate illustrations utilised for many of them, stand favourable comparison with the productions of earlier or later generations. The books issued in Nuremberg during the same decade, by the second of the Kobergers, who had built up the greatest publishing concern that Germany had ever known, can also be specified as excellent examples as well of scholarly editing as of tasteful and accurate typography. It was doubtless the case that in Paris as elsewhere, there were, during the last half of the sixteenth century, examples of scholarly and ignorant editing and of careless and inaccurate typography, but the same may be said of every century since the time of Gutenberg. Henry Estienne's essay may, I think, be considered partly as an affectation and partly as a piece of self-conceit.

The second of these monographs presents a description of the status of his Press, together with an *Index librorum* or classified catalogue of his publications. It forms in fact the chief authority for the history of his business. A considerable portion of the *Epistola* is devoted to a description of the purpose and character of the great *Thesaurus Linguae Graecae*, then in course of production. Henry takes pains to explain that the plan and inception of the *Thesaurus* were due to his father Robert, who had in fact, before his death, collected a large amount of material for the great etymological and lexicographical undertaking, which may be considered, therefore, as the work of two generations of scholarly publishers. Greswell is in accord with Maittaire in describing the work as an "admirable and unrivalled monument of ardent zeal for the advancement of learning, and as an example of unwearied diligence and of colossal erudition."^[31]

The remainder of the *Epistola* is devoted to a recital of the injuries done to the authors of classical antiquity by ignorant and careless editors and by credulous printers, ready to accept on the authority of such editors new readings and unfounded “emendations” in the text. Henry announces that he has in preparation a treatise to be entitled *De Origine Mendorum in authoribus Graecis et Latinis*, but Greswell can find no evidence that this was ever published.

The *Epistola* closes with a humorous complaint of the trivial and harassing interruptions to which a scholarly publisher is exposed at the Frankfort Fair and elsewhere, on the part of applicants for information concerning his publishing undertakings and plans. The complaint is printed in Latin iambics. I quote some of the lines as Englished by Greswell. It will be noted that the *Index librorum* or catalogue of Estienne had been printed for the purpose of answering such inquiries in print. Aldus had, it may be remembered, been driven to a similar course in 1498, but catalogues were still the exception rather than the rule.

I'm harassed by the crowd of those
At Frankfort who their wares expose;
And ever ask “What are you doing
In prospect of the Fair ensuing?
New works you'll shew, impressions splendid,
Where learning stands by Art commended?”
If I say “No,” “'Tis strange, what, none?
At least then promise—next but one.”
Still say I “No,” expostulation
Assumes the tone of indignation
That Frankfort's mart's so strongly slighted,
And faith is broken—never plighted.
Again, these quidnuncs set aside,
With letters, ceaseless, I'm annoyed,
Italian, English, German, French,
All on my studious hours entrench;
“What last has been achieved and ended?
What are the impressions next intended?”
Nor to such modest queries stinted,

Of books in print or to be printed
A thousand others they propound
Which e'en a prophet would confound.

Of what advantage all these letters?
Not stimulants are they, but fetters,
As though you'd spur a steed that's idle
Yet check his progress with the bridle.
My press resists the condescension
That to such foppery gives attention;
Stands still and bids them longer stay for
All they suggest, or even pay for.
For this annoyance then—be sure
Not small intent to find a cure.
Of books to former fairs I've given,
Or now project by leave of heaven,
These pages few, as best may suit you,
In form of catalogue salute you;
Which you'll my Rescript please to call,
Addrest to none and yet to all.

Henry's complaints concerning futile and troublesome correspondence might, of course, be repeated in many a publishing office to-day, but the modern publisher is helped out of the difficulty to some extent by his stenographers and typewriters. It remains a marvel how it was possible, without any time-saving appliances, for the publishers of the fifteenth century to conduct a complicated business, to give personal labour to preparing for the press works calling for original scholarship and detailed labour, and to carry on, in autographic letters, literary and theological correspondence.

The *Epistola* gives the titles or descriptions of a number of important works which the ambitious publisher had in plan, a list, in fact, too long to be completed within the lifetime or to be feasible for the resources of any one publisher, and only a portion of which were ever brought to completion.

In 1571, Henry issued, among other works, an edition of the works of Plutarch, which gives both the Greek and the Latin text, in thirteen volumes octavo. In 1572, he completed the great *Thesaurus*, the most important production of his busy life. The full title is as follows:

Thesaurus Græcæ Linguæ, ab Henrico Stephano constructus, in quo præter alia plurima quæ primus præstitit (paternæ diligentiae æmulus) vocabula in certas classes distribuit, multiplici derivatorum serie ad primigenia, tanquam ad radices unde pullulant, revocata. Thesaurus Lectori.

*Nunc alii intrepide vestigia nostra sequantur;
Me duce, plana via est quæ salebrosa fuit.*

Anno MDLXXII. excudebat Henr. Stephanus, cum privilegio Caes. Majestatis et Christianiss. Galliarum Regis. 4 vols. Folio, with two supplementary volumes containing an appendix and an index.

A seventh volume, issued a year later, adds two glossaries, and a treatise on the dialects of Attica. This *Thesaurus Græcus* was completed by Henry at about the same age as that at which his father, Robert, had published his Latin *Thesaurus*. The two works would have been for any generation of publishers creditable examples of scholarly and public-spirited enterprise, but when we remember that the publishers were the compilers, and were also the authors of the notes, commentaries, and separate treatises which make up a large portion of the bulk of the volumes, and that their work as editors and authors was done amidst the engrossing cares of the management in stormy times of a complex and absorbing business, the *Thesauri* remain magnificent monuments to the scholarship, the capacity, and the persistent energy of the two Estiennes.

The *Thesaurus Græcus* was inscribed by Henry to the Emperor Maximilian, Charles IX. of France, Elizabeth of England, and John George, Marquis of Brandenburg. He secured for it, in addition to the privilege of the French King, which bears date 1561, that of the Emperor, issued in 1570. In one of the several prefatory words Henry tells his readers that the only way in which he had found it practicable to complete his task, was to bind himself to produce each twenty-four hours, in readiness for the

compositors who had been detailed for the work, a stated quantity of written matter. The interruptions were often, he says, so frequent that he was obliged to lay aside the pen ten times in an hour; but there were few days on which the “copy” that he had pledged himself to complete was not in readiness at the hour fixed.

Henry makes a special appeal to scholars and to the public generally to protect his great work against any piratical appropriations, or any attempts on the part of epitomisers or abridgers. The appeal proved, however, ineffective, and the *Thesaurus Græcus* was utilised as a convenient quarry by a number of later lexicographers. Greswell makes special mention of Joannes Scapula as the first of the plagiarists who took advantage of the labours of Henry. He states that Scapula had been employed as one of Henry’s correctors, a position which gave him convenient facilities for an early appropriation of the sheets of Henry’s lexicon. The *Lexicon Græco-Latinum*, which bears the name of Scapula, was printed in Basel in 1579. In his introduction, he speaks of having had the plan of the undertaking long in mind, and of having, in fact, made considerable progress in his work before Henry’s volumes were printed. He does not admit the appropriation, or even the use of any of Henry’s material, although, as Maittaire points out, whole pages of the Basel lexicon are substantially identical with those of the Paris work.

The lexicon of Scapula being in smaller and less costly form, was found of convenience to students generally, but the scholars of Henry’s generation did not hesitate to censure severely the conduct of Scapula and to make strong condemnations of his literary dishonesty. Maittaire quotes Malinkrot to this effect, and records also that the celebrated Dr. Busby, of Westminster School, actually forbade his pupils, on the ground of indignation at literary larceny, to use what he called “the surreptitious lexicon” of Scapula. The instance is worth commemorating, because it marks a distinct advance in the development of popular, or at least of scholarly, opinion in regard to the rights of literary producers. There had been not a few examples in previous generations of indignation on the part of authors or editors concerning the appropriation of their own works, indignation which was, to be sure, chiefly concerned not with the diminution of the author’s proceeds, but with the risk or certainty that the surreptitious editions would be garbled and inaccurate, and would thus cause injustice to the reputation of the author. I

do not, however, find previous record of instances in which scholars or readers not personally associated with the author, had taken pains, simply on the ground of literary ethics, to discountenance or discourage surreptitious or piratical editions.

It remains to add concerning the *Thesaurus*, that, in common with not a few other public-spirited publishing undertakings, it brought to its author-publisher loss instead of profits. Henry complains that the publication involved him in serious pecuniary difficulties. La Caille is authority for the statement that these difficulties and the honour brought upon France by Henry's publications were made the ground of a donation, in 1578, by King Henry III. of three thousand livres. Maittaire is, however, clear in his mind that while the King had talked about such a compensation, and may even have promised it, the money was never paid. The instance appears in several respects to be parallel with that of the big Bible of Plantin, in connection with the publication of which Plantin received from Philip II. promises many, but no cash. A second edition was printed in 1572, the sale of which may have helped to lessen the publisher's loss. This was, however, the year of the massacre of S. Bartholomew and of the battles of Brissac and Moncontour, and it is probable that the business of selling books could hardly have been in a satisfactory condition.

In 1574, Estienne printed an edition of *Apollonius Rhodius*, and, in 1575, a work of his own composition entitled *Pseudo-Cicero Dialogus H. Stephani*, and, in the year following, a curious treatise compiled by himself, entitled *H. Stephani Schediasmatum Variorum*. This year also witnessed the completion of a magnificent impression of the works of *Plato*, the editorial work on which was done largely by himself. According to Maittaire and Fischer, hardly a single typographical error is to be found in the three volumes. The first volume is dedicated to Elizabeth, Queen of England, the second to James VI. of Scotland, and the third to the Republic of Berne.

King Henry III. showed an intelligent interest in the work of the Estienne Press, and appears to have extended to the printer not a few marks of royal favour, although, as Maittaire points out, it was the case in many instances that the gifts of money proffered by the King did not get beyond the stage of promises. In 1578, the King sent Henry into Switzerland in search of manuscripts and rare books, and in 1579, he conferred on him a general

privilege, “*Tant pour tous les Historiens Grecs et Latins que pour la Dictionnaire et Cours Civile.*”

It is evident, from the various headings of the printer's letters, that he was continually shifting his residence. He writes most frequently, to be sure, from Paris, but very often from Geneva, and again from Berne, Orleans, Lyons, and Frankfort. He appears to have given his personal attention, during many years, to the business of his House at the Frankfort Fair. It is sufficiently surprising that, with this migratory life, he was able to bring to a successful conclusion so many important editorial and publishing undertakings, especially as the work of the printing-office was so often interrupted by war or rumours of war.

The years 1578-1583 chronicled the production of a number of important books, chiefly editions of the classics. An edition of *Herodotus*, issued in 1581, the publisher dedicated to Sir Philip Sidney, with a prefatory address in which he reminds Sidney of their former literary intercourse, first in Germany and later in Austria. During 1584, Henry's Press appears to have been idle, but the five following years show a renewed activity. The assassination of his royal patron, Henry III., in 1588, did not fail to call forth the lamentations of Estienne's muse, but his *Epitaphia* on the monarch are said to evince more loyalty than poetic excellence.

The last work bearing Henry's imprint was an edition of the *Poemata Varia* of Beza, which bears the date of 1579. Henry's death came in 1598, in a hospital at Lyons. The seventy years of his active and eventful life had brought, as an offset to the well merited prestige and honours that had been accorded to him for his distinctive services, a full measure of vicissitudes and reverses. His life was full of sharp contrasts. He had intimate relations with many of the rich and great, and he found himself associated not infrequently with the splendours of courts and enjoyed the favour of more than one monarch; yet poverty was his prevailing lot, and his work was carried on under a constant struggle with difficulties and obstacles of the most serious character.

When we recall the limited extent of the circles of students and readers in France and throughout Europe who were interested in higher literature, the constant absorption of the rulers and nobles and of the active-minded citizens generally in war and in political strife to the necessary exclusion of

any adequate attention to the arts of peace; and when, further, we remember the constant succession of wars, civil and foreign, in which, during the lifetime of our publisher, France was engaged, wars which must have rendered all traffic difficult and have constituted a most serious hindrance to the business of producing and of distributing books, we can but be surprised at the number and the magnitude of his literary and his business achievements, and are prepared to accord full appreciation to his courage, his patient persistence, his enormous industry, and his omnivorous scholarship. It has been possible in this article merely to touch upon some of the more noteworthy of his own productions. The mere transcription of the titles of the literary labours achieved or projected by Henry would be a considerable task; and we gather the impression that in his strength and capacity for continuous work he must have as far exceeded the average literary worker of to-day, as the heroes of old were said to have exceeded in their physical powers the men of later times. In comparing the character of Henry with that of his father Robert, Maittaire says that they evinced equal skill and zeal in their profession, but speaks of Robert as less ostentatious of his own merits, more ingenuous, and more ready to acknowledge the co-operation of others. Greswell finds evidence of an arrogance and moroseness of temper in Henry, which increased with age, and which frequently led him into violent altercations.

Florence, the eldest daughter of Henry Estienne, had married (in 1586) the famous scholar Isaac Casaubon, a son-in-law of whom a father like Henry Estienne might well have been proud. Mark Pattison, in his biography of Casaubon, suggests that the latter had probably fallen in love with the manuscript collections of the father before he began to pay his court to the daughter. It was fortunate for Casaubon that his wife proved satisfactory in herself, as the jealousy of her father prevented him from securing any benefit from the manuscript collections. After a good deal of friction, Casaubon appears to have given up the attempt to carry on scholarly work with Estienne, and, according to Pattison, he never saw the inside of Estienne's library, notwithstanding the absence of the latter for months and even for years at a time, excepting on one memorable occasion when he and Florence summoned courage to break it open. ^[32]

According to Casaubon, Estienne was in fact a perfect dragon in the close keeping of his books and manuscripts. Speaking of a new book of

Camerarius, Casaubon writes to Bongars, “Read it I have not; seen it I have, but it was in the hands of Henry Estienne who would not so much as allow me to touch, much less to read it, while he is every day using or abusing my books as if they were his own.”^[33] Pattison goes on to point out, however, that Casaubon exaggerates the facts, when he complains that Estienne would lend him no books, as both with the *Strabo* and with the *Athenæus*, he derived material assistance from collations which Henry Estienne had made in Italy.

Casaubon contributed also to certain of the editions issued by his father-in-law, such as the *Thucydides* of 1588, the Latin *Dionysius* of the same year, the *Plinius* of 1591, and the *Diogenes Laertius* of 1593. According to his own account, he was, however, jealously excluded from all share in the text and the translation, or from any control of the contents of the volumes, and his contributions appear to have been limited to notes and commentaries.

Casaubon appears never to have secured from Estienne the payment of a certain dower, that belonged to or had been promised to his wife, while the portion of the property that finally came to Florence after the settlement of her father’s very meagre estate was but trifling and was, later, more than offset by a claim for which the estate was adjudged to be liable for the repayment of certain moneys that had been advanced, on the security of the matrices of the famous royal font of Greek type, which had been brought by Robert Estienne from Paris.

The business of the House of Estienne was carried on after Henry’s death by his son Paul and his nephews. The publications of these Estiennes of the fourth generation were chiefly, as heretofore, in the division of Greek and Roman classics, and were of a character fairly to maintain the high scholarly standard which had been established. Robert was himself a classicist and a poet, and Maittaire speaks of his literary productions as having secured a good repute.

Antoine, the son of Paul, succeeded his father in 1620, and in 1623 was appointed *Imprimeur du Roy*. His son Henry succeeded in 1649 to the latter title. Henry’s work closed about 1659. He left no children, and was the last of the family who devoted himself to the work of printing and publishing, and with his death, therefore, the history of the House comes to an end.

During a term of more than a century and a half the Estiennes or Stephani had, as printers, as publishers, and as scholars filled a large place in the literary history of France and of Europe, and I find record of no other family which has contributed to the profession of publishing so many distinctive and distinguished men.

Isaac Casaubon.—As a supplement to this sketch of the history of the Estienne family, I will add a brief reference to the literary work and the publishing relations of Isaac Casaubon, the famous scholar, who, as above mentioned, entered into the family circle as the son-in-law of the second Henry.

In 1589, the city of Geneva was being besieged by the Duke of Savoy. The siege continued, in form at least, during the ensuing nine years, and although it was, of course, not practicable during the whole of that period to maintain a close investment, the city suffered all the privations and many of the horrors of continued war.

Geneva contained in 1589, at the time of the beginning of the siege, a population of about 12,000. It was able to muster for its defence 2186 men capable of bearing arms. Against this little force the Duke brought up an army of 18,000 regular troops, with the determination to destroy the nest of heretics once for all. The importance of destroying the city was fully understood by the Catholic party, and was especially urged by S. Francis de Sales. The schools and the printing-presses were particularly pointed out by the Saint as instruments of mischief. The struggle against these odds was a gallant one, but the little Republic succeeded in preserving its existence and its independence, although when, by the peace of Vervins in 1598, it was released from its state of siege, it had lost out of its little levy nearly three fourths.

Isaac Casaubon, who, later, took rank as one of the most learned scholars of his time, was born in Geneva in 1559. He was the son of Arnold Casaubon, a Protestant pastor of Dauphiné. He held the Chair of Greek and of History in the Academy of Geneva from 1581 to 1596, (a term which included the period of the great siege) when he migrated to Montpellier. Isaac's salary as professor in Geneva was two hundred and eighty florins, to which he was able to add ninety florins from boarding students. On this

meagre income he ventured (in 1584) to marry a wife and managed also to bring together a considerable collection of books.

This first wife, who was a native of Geneva, died in two years, leaving a daughter. In 1586, Casaubon took for his second wife Florence, the daughter of Henry Estienne.

One of the manuscript-dealers with whom Casaubon, as an impecunious collector, came into relations, was Darmarius, described as one of the last of the caligraphs, a class which in Italy and in the university towns of Germany survived for nearly half a century the invention of printing. Darmarius had access to the libraries of Venice and Florence and travelled about Europe to sell his copies. His manuscripts, says Pattison, were not works of art like the productions of the pen of a Vergecio or a Rhosus, made to adorn the collections of princes and cardinals. The books sold by Darmarius were hasty transcripts, written on poor paper, chiefly of certain unpublished works that he had found in the library of Cardinal Bessarion. [34] They did not make up for their want of beauty by the accuracy of their text, for the transcriber does not seem to have known even the grammar of classic Greek, but for these wretched copies he was able to secure from scholars hungry for books, great prices. For a *Polyæmus*, Casaubon paid, in 1578, “a great sum,” *magno ære*, and for a *Julius Africanus* three hundred crowns, almost its weight in silver, but neither of these authors was as yet in print.

The admission of Casaubon into the family of the great publisher, so far from adding to his opportunities for getting his writings before the public, did not even secure for him any additional facilities for their preparation. Reference has already been made in the sketch of Henry Estienne to the jealous selfishness with which, particularly in the later years of his life, he retained in his own hands his collections of books and of manuscripts. But few friends appear to have ever secured from him permission to utilise his literary stores, while of his learned son-in-law he was particularly jealous. Casaubon was one of the few scholars in Europe who was competent to edit, from the original, a Greek text, and although in certain respects Estienne’s scholarly ideals were high, he seems to have laid more stress upon his individual prestige than upon the advance of learning.

Impecunious as Casaubon was during by far the greater portion of his life, he appears to have been always ready to give orders or commissions for the purchase of books or manuscripts. In some cases he was able to arrange to pay for these by services in one direction or another; in 1592, for instance, Henricus Petri of Basel sends him two copies of his second edition of *Homer*, one for the King of France and one for himself, the gift being accompanied with the request that Casaubon would secure for the book a (copyright) privilege for France.^[35] In 1608, Biondi of Venice has a standing commission to send books to Casaubon.^[36] Many presents of manuscripts were made to Casaubon, and in other instances manuscripts and books were loaned to him which were never returned. Pattison speaks of this part of Casaubon's collection as becoming his by "process of adhesion." In 1595, Casaubon writes to Commelin, a publisher of Heidelberg, as follows:

"If I ask you to send me direct all that issues from your press, it is not, believe me, dearest Commelin, because I am unwilling to buy these, but because I am unable. Our booksellers here in Geneva are a blind sort, who are unwilling to bring back from Frankfort any books that may not pay. I except Favre, who is not so stupid as the rest. You will have to write to De Tournes [a printer of Geneva] directing him to deliver to me the *Chrysostom*, as he refuses to do so without your express commands." Casaubon's complaint about the lack of enterprise on the part of the booksellers of Geneva has, of course, been frequently enough repeated by scholars of later date, who are not always able to understand that the bookseller who takes unwise risks in accumulating stock that may not sell, will very soon cease to be a bookseller at all. His annoyance at De Tournes for declining to hand over property of Commelin's without authority from the owner is equally naïve.

Casaubon tells us that Geneva in his day had a public library, but that the collection, although valuable, was very small. The *Commentaries* published by Casaubon in 1592, on Perseus, Theophrastus, Suetonius, and Diogenes Laertius, were based upon the lectures given by him in the Geneva Academy. The volumes were printed in Geneva, but I can find no record of the arrangement made by him of their publication. The references that he makes to the several sources of his very small income include no mention of receipts from the sale of his books, and it seems probable that these

brought to their author no returns other than the occasional expression of recognition or honorarium on the part of scholarly patrons. If Henry Estienne had been willing to give to these *Commentaries* the service of the imprint of his Paris House, the commercial results would probably have been much more satisfactory, but, whatever the difficulty, it was the case that no writings of Casaubon were issued by his father-in-law.

Casaubon tells us that the ministers of Geneva exercised a strict surveillance over the teaching both of the scholar and of the Academy, and that a professor in the latter could not even publish without first submitting his book to the censorship of divines. It seems probable that the Calvinistic scrutiny in Geneva may easily have been in its narrowness and in its persistency a more serious obstacle during the last ten years of the sixteenth century, in the way of publishing and literary undertakings, than the censorship of the Catholic theologians of Paris.

It is the conclusion of Pattison (which is not in harmony with the earlier descriptions of the intellectual activities of Geneva) that during the term of Casaubon's work there existed in the town nothing that could properly be called a literary interest. There was a poor and starved seminary for pious instruction; an academic printing-press devoted to the production of sermons and text-books; a theology not formal or nominal, but interfused throughout the life and the thought of each day. An armed enemy crouched at the gates of the city, watching his opportunity for the death spring; while each week brought news of some fresh outrage on believers with whom Geneva was in sympathy in the countries where the Catholic reaction was in its full tide.

On this ungenial soil, Casaubon developed out of his own instincts the true ideal of classical learning. Not a scheme of philology, as we now conceive it, but the idea of a complete mastery, by exhaustive reading, of the thought of the ancient world, a reconstruction of Greek and Roman antiquity out of the extant remains of the literature.^[37] Casaubon's first literary work of importance, the *Animadversiones* on Athenæus, was printed at Lyons in the year 1600. He was at the time occupying a Chair in the Protestant University of Montpellier, but there was no press in Montpellier with facilities for printing Greek text. In fact, the printing of books in the city appears to have begun only in 1597. Seventy years earlier, Rabelais had been obliged to have printed at Lyons his edition of the *Hypocratic*

Aphorisms. Casaubon endeavoured to induce a Geneva printer to establish in Montpellier a Press with a Greek font and a skilled corrector, but the business connected with the little University did not offer sufficient encouragement for the undertaking. It may be remembered that Oxford did not possess any Greek type until 1586, and that Greek was first printed in Cambridge some years later. Pattison is of opinion that there was probably at the time a Greek Press at Toulouse, but no heretic could print or even sojourn in this city of fanatical Romanism, a city in which even the edict of toleration could never be put in force.

What Casaubon would, of course, have preferred and what ought, through his father-in-law, to have been secured for him, was the advantage of the Greek Press of Paris, which, during the previous half-century, had secured for itself a well-earned pre-eminence. For the impecunious professor a journey to Paris was, however, at this time, out of the question, and he was obliged to content himself with a provincial publisher. Of the book-trade of the French provinces, Lyons was at that time the centre. In facilities for reaching the book markets of Switzerland and Germany, it had advantages over Paris itself. Its connections with Italy were, of course, very much more direct than those possessed by the publishers of Paris, and it utilised these connections not only for the prompt importation of the publications of France, of Florence, and of Rome, but for the reproduction, often in pretty close fac-simile, of the more noteworthy books issued from the Italian presses. With the smaller outlay requisite in reprinting works upon which the expense of editing and preparing for the press had already been covered, the publishers of Lyons were able to undersell Aldus and his successors and to secure for the Aldine texts a large part of the returns from the markets of southern Europe. They did not even limit their “appropriations” to the productions of foreign publishers, such as Aldus of Venice, Froben of Basel, and Koberger of Nuremberg. We find continual record of complaints on the part of the publishers of Paris that their “privileges” were not respected and that their more marketable books were reproduced by their piratical competitors in Lyons. The “enterprise” of the publishers in Lyons seems not even to have been restricted by their relations with the Catholic Church, for they built up a trade in the production of Calvinistic hymn-books for the use of the congregations of Switzerland.

The printers of Geneva, who were naturally of the opinion that Calvinism was their legitimate stock in trade and should be for them an exclusive possession, equally unmindful of their denominational obligations, retorted by manufacturing cheap editions of missals, books of hours, and even of Jesuit publications. The Lyonese printers availed themselves of the brand of heretic to secure the confiscation at the frontier of a good many shipments of the books from Geneva even when these books belonged to “orthodox” Jesuit literature. The Genevese could not easily meet this weapon, as there was at that time in force in the Republic no *index expurgatorius*, and there was, therefore, no means of securing an examination of books on the frontier. They continued, however, their invasion of the French market after peace had been restored between France and the Republic, and they managed to evade the prohibition or the restriction upon the importation of books printed in the Protestant city of Geneva, by placing upon their title-pages the name of some other publishing centre, such as Cologne or Antwerp. Occasionally even, the name of a French city was substituted for the obnoxious Geneva. For instance, the edition of *Aristotle*, printed in 1590 by Le Maire of Geneva, had upon it the title *Lugdunæ* (Lyons).

Henry Estienne died at Lyons in January, 1598, and Casaubon, on his way to Geneva, to look after the settlement of his wife’s interest in the estate, stopped at Lyons. He found there, in the person of a certain Meric de Vic, a patron who was willing to co-operate with him in the publication of the *Animadversiones*, and who, afterwards, gave him the means of making his visit to Paris. In later years, De Vic was known as a friend and patron of Grotius. I have been able to find no exact record of the arrangement with the Lyons publisher. The work was printed for the account of the author, by Antoine de Harsy, the cost being in large part provided by De Vic.

Pattison speaks of De Harsy as “one of those cormorants who about this time began to sit hard by the tree of knowledge,”^[38] but he does not give us the evidence for this unfavourable estimate. He goes on to say, as if in mitigation of his harsh description of Casaubon’s first publisher, that up to this time the publisher had usually been the friend of the author, and often his collaborator, even when not an author in his own name.

In arriving at Geneva, after the death of Estienne, Casaubon entered, only for the second time in his life, his father-in-law’s library. “Such a wreck of vast projects! A memorial of stupendous labour!” he exclaimed, on seeing

it. We learn from his diary that it was due to his influence that the co-heirs permitted the manuscripts to pass to Paul Estienne, to whom the Greek Press had been bequeathed. The printed books were sold for the benefit of the creditors. Such a termination of the scholarly labours and enormous energy of Estienne was hardly to have been looked for.

In the year 1600, at the instance of his friend De Vic, Casaubon journeyed to Paris, where he was hoping to receive from the King some kind of appointment that would secure him an income. He was received for a time as the guest of his wife's cousin, Henry Estienne. The publishing business of the old House of Estienne was then being carried on in Paris by the Patissons, who had connected themselves with the family by marriage.

The position which Casaubon understood from De Vic had been promised by the King was not secured without discouraging delay. He had hoped to be associated in some way with the instruction of Greek in the University, but his Protestant faith proved an insuperable obstacle to any University appointment. In 1601, after he had been kept waiting nearly a year, a royal patent was given to him as keeper of the Royal Library, where he succeeded the mathematician Gosselin. The salary was 1,200 livres, and the duties of the post left to the incumbent a large measure of leisure time.

The Paris of that day contained about 400,000 people. Coryat, writing in 1608, says that the Rue S. Jacques was "very full of booksellers that have faire shoppes most plentifully furnished with bookes." The library in which the scholar from Geneva now found himself installed contained about nine hundred works, a large proportion of which were in manuscript. The collection of Greek manuscripts was said to be second only to that of the Vatican.^[39]

The new librarian found himself in favour with the King, who visited the library from time to time and made gracious inquiries of the keeper concerning the contents of the books. It was said by Scaliger of Henry IV. that he could not keep his countenance and could not read a book. Moderate as was the salary of the keeper of the King's books, it was, by not a few of those in authority in a Court where literature was held in such low esteem, considered to be a wasteful and excessive expenditure. "You cost the King too much, Sir," said Sully to Casaubon; "your pay exceeds that of two good captains, and you are of no use to the country."^[40]

Casaubon's position in Paris proved, after a few years, to be an impossible one. It had, it seems, been the expectation of the King that his librarian would, for the sake of remaining in Paris, follow the royal example and accept (in form at least) the faith of Rome. This course the student from Geneva had, however, no idea of taking. The opposition of the theologians of the University and of the politicians of the Court (including the great minister Sully) proved in the end sufficient to withdraw from the librarian the King's favour, and Casaubon foresaw that he could not be assured of the continuance of the royal protection. At the invitation of some scholarly English friends—Spottswood, later, Archbishop of Glasgow, and Lamb, afterwards Bishop of Galway,—Casaubon went to London, ostensibly for a visit. He was presented to King James, whose ambition to be recognised as a member of the fraternity of European scholars induced him to offer to Casaubon a pension of three hundred pounds if he would make his home in England. The offer was accepted, and the remaining years of Casaubon's life were spent in London, with an occasional sojourn in Ely, where his good friend, Bishop Andrews, was always ready to tender appreciative hospitality.

One of the famous controversial publications of the latter half of the sixteenth century was the series entitled the *Magdeburg Centuries*. The purpose of the Lutheran writers of this work was to present a true history of the Church of Christ. According to this Protestant view, the Church had been instituted in the Apostolic age in perfect purity, but had been perverted by a process of slow canker, until it had become the Church, not of Christ but of Anti-Christ, an instrument not for saving men, but for destroying them. The *Centuries* were completed, in 1574, in no less than thirteen folio volumes. It was evident that, for a work of this compass, no wide circulation could be looked for with the impecunious public of Protestant Germany, but the historical thesis of which these folios were the laborious evidence made a deep impression upon the thought of the time.^[41]

A young priest named Baronius was selected by the authorities in Rome, or rather by S. Philip Neri, to prepare a reply to the *Centuries*, and he devoted his life to the task. The result was the production of the *Annales Ecclesiastici*, the most comprehensive work which the controversies of the Protestant revolt had as yet produced. The *Annales* were completed, as far as the work of Baronius was concerned, in thirteen folio volumes, in 1600,

but the series was continued by various writers until, in the edition issued at Lucca in 1738-1786, it had grown to thirty-eight folio volumes, a work of which purchase was difficult and perusal impossible.

Of the original work, the circulation, considering the bulk and the costliness of the volumes, was unprecedented. The printing was done at the Papal Press, the same press which had originally been organised by Paul Manutius. The cost was borne by the papal treasury and the full weight of the authority of the influence of the Church was given to securing the widest possible distribution. As a result, edition after edition was taken off by the demands from the libraries of the monasteries, the cathedral chapters, and the Jesuit colleges and also by individual prelates and princes, who had remained in the orthodox fold.^[42] The amount of the original labour put into the book by Baronius must have been enormous, as his texts, his notes, and even his extracts were all made with his own hand. According to his own statement, the continuous labour could never have been supported, had it not been in the first place for the stimulating authority of S. Philip Neri, and secondly for the special aid given by the Virgin, the saints, and the apostles Peter and Paul. Pattison sums up the purpose and the result of the work as follows: "Baronius exhibited the visible unity and impeccable purity of the Church founded upon Peter and handed down inviolate; such at this day as it had ever been ... the *Annales* transferred to the Catholic party the preponderance in the field of learning, which ever since Erasmus had been on the side of the innovators."

It was the turn of the Protestants to feel the need of an antidote to Baronius and an attempt to supply this need was made in the *Exercitationes* of Casaubon. Casaubon's work, however, never passed beyond the status of a fragment, although this fragment was sufficiently ponderous to form eight hundred folio pages. According to the Protestant authorities, Casaubon had no difficulty in showing the great lack of accurate scholarship on the part of Baronius and in pointing out in the earlier portions of the *Annales* (it was only the first two volumes that were considered in his *Exercitationes*) an enormous number of errors and misstatements. It was in fact difficult to understand how the task of writing the early history of the Church could have been undertaken (even with the aid of S. Peter and S. Paul) by an author who was ignorant both of Greek and of Hebrew. The volume of *Exercitationes* did not, however, secure any such general circulation or

wide-spread influence with Protestant readers as had been gained among the Catholics by the great series of *Annales*. There was no ecclesiastical authority to induce the purchase as an act of piety and no ecclesiastical machinery available to further circulation.

These three works seemed to me to call for some special reference, because they present noteworthy and characteristic examples of the theological controversies of the century and of the employment of scholarly labour to secure or to affirm the foundations of religious faith. The very great advantages possessed by the Roman writer in securing immediate channels of distribution and an assured reading public are also to be noted in connection with the serious obstacles existing at the time in the way of any general distribution of books by means of such machinery as was available for the publishers.

The *Exercitationes* was printed for Casaubon by the King's printer in London and was issued by a publisher named Bell. I can find no record of the publishing arrangement, but the cost of the undertaking appears to have been provided for in part by the royal treasury and in part by the aid of Bishop Andrews, who was an old friend of the author.

Casaubon's sojourn in England was more favourable for his literary labour than had been his position as royal librarian in Paris, but while he was the most industrious of students, and, according to his biographies, practically killed himself by close application to his desk, the number of his completed works is but inconsiderable. Pattison gives the titles or descriptions of not less than twenty-four books, which had been planned out and many of which had been in part written, but which remained at the death of the scholar either fragments or simply titles.

Of the twenty-five works that were finished during the lifetime of the scholar, a portion were afterwards characterised by himself as *juvenilia* which he was unwilling even to acknowledge. The edition of *Theophrastus*, published in 1592, is the first work with which in later years Casaubon expressed himself as satisfied. No one of the books appears to have retained for itself a literary life, that is to say, to have become a part of the world's literature or even to have remained in demand with the scholars. It was the case with Casaubon, as with Scaliger, that his reputation has remained greater than that of his productions. The scholar was more important than

his books. It seems evident, as far as can be gathered from the scanty references to business details in Casaubon's correspondence, that he never earned anything, at least directly, through the labours of his pen. His books must all have produced deficiencies instead of profits, and the sum required for their publication had to be obtained from the few wealthy friends who were able to appreciate the value to the world of a life devoted to scholarship.

Casaubon died in London in 1614, in his 55th year.





CHAPTER VI.

WILLIAM CAXTON, AND THE INTRODUCTION OF PRINTING INTO ENGLAND, 1422-1492.

A SKETCH of the early printer-publishers of Europe would of course be incomplete without some reference to the career of the man whose work will always be associated with the history of printing in England. The publishing undertakings of Caxton were, however, of much less considerable importance than those of his continental contemporaries to whom chapters have been devoted, while it is also the case that the events of his life have been so fully set forth in various English histories that they are already familiar to readers interested in the record of printing and publishing. It would, therefore, be superfluous for me to attempt to present, in a general sketch like the present, any extended or detailed information concerning Caxton's career. For my present purpose, it will be sufficient to indicate briefly the influences from which Caxton derived his interest in literary undertakings, and the sources from which he secured his training as a printer, with some reference to the character of his publishing undertakings as compared with those of the printers whose work had already been begun in Germany, France, and Italy.

Caxton was born in the Weald of Kent, about 1422, and died in London in 1492. His life covered, therefore, the period during which Gutenberg was perfecting his printing-press, and included also the years in which Koberger was beginning his publishing work in Nuremberg and Froben was organising his publishing concern in Basel. The first publication of Aldus in Venice was issued in the year after the death of Caxton. While the larger number of the early printers had had training in technical or mechanical work, which secured for them a certain preparation for the technical requirements of the new art, and others, as in the case of Aldus, had had experience as students and as instructors which gave them advantages for the editorial work of scholarly publishing, the larger proportion of the active life of Caxton had been devoted to business as a wool-merchant, in connection with which business he could, at least in his earlier years, have

had but few opportunities for coming into relations with men interested in literature. His literary interests came to him comparatively late in life, as a result of his association with the Court of the Duke of Burgundy, while his first knowledge of and attraction towards the work of printing were the result of the acquaintance formed at that Court with Colard Mansion, the first printer of Bruges.

Caxton's business work began as an apprentice to Robert Large, who was an eminent member of the Mercers' Company of London. It is the conclusion of Mr. Blades, who has made himself the authority on the subject of Caxton, that the admission of the young Kentishman to such a household as that of Large was in itself sufficient evidence, under the conditions of the time, that Caxton was a man of good family. It is Mr. Blades's belief that Caxton was a descendant of the Caunstons, who owned the manor of Caunston in the Weald.

In 1441, when Caxton was about twenty years old, his first master died and he was sent to Bruges, where he became a member of the English *House* or the English *Nation*, the term applied to the association of English merchants residing in Bruges, and carrying on from there business with England and with the other trade centres of the Continent. His early associations had given him some preparation for a sojourn in Flanders. A colony of Flemish wool-manufacturers had been established in the Weald by Edward III., and the Flemings, having inter-married with the Kentish families, had impressed their language and their social habits very largely upon that portion of the county. Of the English *Nation* in Bruges Caxton became governor, in or about 1462, a position which made him the leading Englishman in the dominions of Burgundy. His selection for such a position confirms the impression that he was a man of birth, while it was also evidence that he had been successful in his business undertakings and that he was recognised as a man of character and of executive ability.

His position brought him into official relations with the Court of Burgundy and with the new Duke, Charles the Bold, who, in 1467, succeeded his father, Philip the Good. Princess Margaret of England, the sister of King Edward IV., who became the wife of Charles, seems to have taken a keen, personal interest in Caxton, and, a year or two after her coming to Bruges, she induced him to give up his mercantile career and his honourable position as governor of the English merchants and to attach himself to her

personal service. Lord Scales, afterward Earl Rivers, who had visited Bruges as one of the ambassadors to conclude the treaty of marriage, was, later, one of the most liberal patrons of Caxton the printer, and his translation of the *Dictes and Sayings of the Philosophers* was the first book with the date of imprint issued from Caxton's London Press.^[43]

After 1467, while Caxton still held his official responsibilities and before he had begun to investigate the new art of printing, we find him interesting himself in literary pursuits. He began in that year the translation of the *Histories of Troy* (*Le Recueil des Histoires de Troye*), which translation was printed in 1474. In 1471, Caxton was in the service of the Duchess, receiving a yearly salary and other advantages, and being under instruction to proceed with his literary undertakings. Margaret seems, in fact, in giving Caxton an income in order that he might devote himself to literature, to have had in view a kind of endowment of research. He presented to the Duchess, in 1471, as a first result of his literary labours, a manuscript copy of his now completed translation of the *Histoires*, and the favour given by her to the work appears to have secured for it an immediate reputation, not only with the English-speaking members of the Court, but with their friends and correspondents in England, so that demand for Caxton's translation soon became more active than could be supplied by the work of the scribe. In the epilogue to the first printed edition, he speaks of his hand becoming "wery and not stedfast with much writing" while his eyes were "dimed with overmuch loking on the whit paper." Then it was, apparently, that, through the suggestion of his friend Colard Mansion, he was led to turn his attention to the new art of printing.^[44]

As has been mentioned in an earlier chapter, literary interests had, for a number of years before the beginning of printing, found a favourable environment in the dominions of the Duke of Burgundy. Burgundy and Flanders were, during the last half of the fifteenth century, among the richest territories in Europe. The arts and the luxuries of civilisation had at that time attained a higher development in Bruges than in almost any other capital, and with the other refinements of life, had come an active interest in literary pursuits and in the collection of libraries. These literary interests had been furthered by the example of the ruling family, successive dukes having set the fashion of collecting rare and costly works and of employing great staffs of skilled scribes, illuminators, and binders, to put into the most

beautiful possible dress the manuscripts that had been secured from all parts of Europe. David Aubert, a well-known scribe, writing in 1457, thus describes the literary interests of Duke Philip the Good: “This renowned and virtuous prince has been accustomed, for many years past, to have ancient histories read to him daily. His library surpasses all others, for from his youth he has had in his service numerous translators, scholars, historians, and scribes, working diligently not only in Bruges but in various countries, so that now there is not in all christendom a prince who has so varied and rich a collection.”^[45]

Barrois, in describing the library of this sovereign, gives (as a selection only) the titles of nearly three thousand works, the greater part being magnificent folios, written on vellum, beautifully illuminated, and bound in velvet, satin, or damask. Many of the volumes were studded with gems, and were fastened with gold clasps, jewelled or chased.

The fashion set by the Court was followed by the opulent nobles, and, later, by the wealthy merchants, who vied with each other in multiplying libraries. A nobleman whose name became famous in connection with literature was Louis de Bruges, Seigneur de la Gruthuyse, who afterwards received from Edward IV. of England the title of Earl of Winchester. The larger portion of his manuscripts were the work of Flemish scribes and were decorated by Flemish artists. His library afterwards came into possession of the kings of France, being added to the collection of the Chateau of Blois. A number of the manuscripts are now preserved in the *Bibliothèque Nationale* of Paris. The Flemish armorial bearings had been partly obliterated in order to be replaced with those of the French King, but the obliteration was not so complete as to prevent the identification of the manuscripts with the original collection of Louis. It was to Louis de Bruges that Colard Mansion owed the first assistance he secured in the attempt (which was finally unsuccessful) to establish a printing concern in Bruges. It is somewhat surprising, in consideration of the great wealth of the Flemish capital, the large measure of literary interest shown by its noblemen and its merchants, the extensive collections of beautiful and accurate manuscripts available for the use of the printers, and the exceptional trade facilities and connections possessed by a city which was at the time the commercial capital of North Europe, that the art of printing should not at once have secured an assured foothold, and that some printer should not have built up in the Flemish

capital a successful publishing concern. The first publishers who did secure an assured business foundation and a wide-spread literary prestige were obliged to do their work under conditions which appeared to be much less favourable than those existing in 1470 at Bruges. Bruges was probably the first city in Europe which possessed, some years before the beginning of printing, a guild of makers of books, the organisation of which was entirely on a mercantile basis, that is to say, which had no connection with any university and was under no other supervision or control than that of the monarch. The company, which in 1454 received a formal charter, is styled *Der Ghilde van sinte jan Ewagz*, or the Guild of S. John the Evangelist, who was the patron saint of scribes. The branches of industry connected with book-making which were represented in this guild are specified by Van Praet as follows: scriveners, illuminators, printers (that is to say, those who produced from blocks impressions of illustrations), parchment and vellum makers, letter engravers, figure engravers, carvers, cloth shearers, curriers, bookbinders, painters, vignette designers, print sellers, booksellers.

In Antwerp a similar guild, instituted at about the same time, was called the Guild of S. Luke; while at Brussels the scriveners instituted a limited guild of their own, called *Les Frères de la Plume*. It is to be borne in mind that there was in England no guild of writers or makers of books until a number of years after the introduction of printing, the charter of the Stationers' Company dating from 1552.

It was the good fortune of Caxton to be for thirty-three years a resident of the city which could divide with Paris the distinction of being the literary capital of North Europe, and for the latter portion of that time, in his close association with the Court, to have had access to the ducal libraries and the other great collections of the city. Mr. Blades is of opinion that, in the course of his mercantile business, Caxton must often have had occasion to fill commissions, from correspondents in England who were interested in literature, for transcripts of Flemish manuscripts. If this be the case, he became a connecting link between his native country and the literary treasures of the continent a number of years before he began in London the work of printing for English readers his own versions of the Flemish manuscripts.

Of the history of Colard Mansion, the first printer of Bruges, but few details have been preserved. He is known to have been a skilled scribe, and

one of the earliest references to him occurs in 1450, when there is record of his receiving from Duke Philip fifty-four livres for the manuscript of a romance entitled *Romuleon*, which was illuminated and bound in velvet. This copy is now in the Royal Library at Brussels.^[46] From 1454 to 1473, Mansion's name is found in the list of subscribers to the Guild of S. John, and, in or about the year 1471, he removed from Brussels to Bruges, and devoted himself to the work of printing. In 1484, he appears to have broken down in resources and in credit. He left Bruges, and after that time nothing further is known of him. He was at the time in arrears to the chapter of S. Donatus for the rent of his printing-office, the work of which he had carried on in two rooms over the porch of the church, but the value of the printed sheets left in the rooms appears to have been sufficient to liquidate this debt. Van Praet speaks of twenty-one works as having been printed by him, while Blades finds record of twenty-two. Of these, the most important was probably the edition of Ovid's *Metamorphoses*, printed in French, in a large folio, with numerous woodcuts. The practice of adorning books with illustrations and with ornate initials and tail-pieces remained a characteristic of the Press of the Low Countries. Other noteworthy works on the list were French editions of *Boëthius* and *Boccaccio*. With the exception of one work, *Dionysii Areopagiticae liber*, all of Mansion's publications were in French. In this respect he forms a noteworthy exception to the printers of his generation, whose earlier works were nearly exclusively in Latin. One or two of the first printers in Lyons also began their work with volumes in French. Mansion's undertakings were divided nearly equally between books of devotion and books of frivolity, such as *Les Advineaux Amoureux*, the only volume on the list which reached a second edition. The opinion of Mr. Blades, that the fonts of type used by Mansion were identical with those later employed in the first books of Caxton, may, I judge, be considered as established.^[47]

It is the contention of the German historians that Caxton secured his training as a printer not in Bruges but in Cologne, and that the initiative for the introduction of printing into England is, therefore, to be credited to Germany. The evidence for and against this theory, evidence which depends largely upon technical details, such as the identity of certain fonts of type, the spacing of lines, etc., has been very thoroughly and skilfully analysed by Mr. Blades, and his conclusion, that Caxton did no work in the Cologne

printing-offices and that his first printed books did not follow the Cologne models, can, I judge, be safely accepted. Some reference to the grounds for the German belief may, however, be made. Printing had been introduced into Cologne by Ulrich Zell, who was a fugitive from the sack of Mayence. His first publication, or at least his first book with a date, was the *Liber Joannis Chrysostomi super Psalmo quinquagesimo*, issued in 1466. His second undertaking was an edition of the *De Officiis* of Cicero. He printed in all no less than one hundred and twenty separate works, and was the leading printer in the city at the time of Caxton's visit in 1471. In connection with his business as a wool-merchant and his official responsibilities for the English *Nation*, Caxton had had continued relations with Cologne, and must have had a full acquaintance with the city. Madden speaks of Caxton as being a visitor, in 1470, at the Weidenbach convent of the Brothers of Common Life in Cologne, at which time the Brothers had their printing-office in active operation.^[48] Caxton's diary tells us that the translation of his *Recueil*, begun in Bruges and continued in Ghent, was completed at Cologne on the 19th of September, 1471. Kapp concludes that his first idea for reproducing his translation in printed copies most probably came to him from an examination of the work of the presses of Zell or of the Brothers. It is of course possible enough that Caxton interested himself, while in Cologne in 1471, in inspecting the printing establishment of Zell, which must, as a novelty, have been one of the noteworthy sights of the city. It seems evident, however, from Mr. Blades's analysis of the fonts of type used by Mansion and, later, by Caxton, that these were not secured from Cologne, but were cast in Bruges, while various details of the workmanship of Caxton's earlier volumes show methods entirely different from those of the Cologne printers. As one such detail, Mr. Blades points out that Zell, after 1467, always spaced out the lines of his books to one even length, and feels convinced that he would have taught any one learning the art from him to do the same; yet this improvement was not adopted by either Mansion or Caxton until several years later. "Whoever may have been the instructor of Mansion and Caxton, and whatever may have been the origin of their typography, the opinion that either of them, after learning the art in an advanced school such as that of Cologne, would have adopted in their first productions, without any necessity for so doing, primitive customs which they had never been taught, and would have returned in after years by slow

degrees to the rules of their original tuition, has only to be plainly stated to render it untenable.”^[49]

The chief information concerning Caxton’s training as a printer is derived from his own *Prologues* and *Epilogues*. The first six books ascribed to Caxton’s Press are:

“The Recuyell of the Historyes of Troye.”

“Le Recueil des Histoires de Troye.”

“The Game and Playe of Chesse, with Prologue by Caxton.”

“The Meditacions sur les Sept Pseaulmes Penitenceaux.”

“Les Fais et Processus du Chevalier Jason.”

“Les Quatre Dernières Choses Advenir.”

Without going into the careful analysis presented by Blades of the evidence concerning the production of these books, it is sufficient to give his conclusions. The *Recueil*, with the translation of which Caxton had begun his literary undertakings, was probably first printed (in Caxton’s version) in 1474, and the edition of the French original must have followed shortly afterwards. The remaining four books were brought before the public between this date and 1476.

It is interesting to note the character of the selections made by Caxton for the first issues of his Press. With the exception of the *Meditations on the Psalms*, this group of books belongs entirely to what to-day would be called light literature. The same general character obtains with the books printed by Mansion, and, excepting with one or two Houses in Lyons, it could not be paralleled by the lists of any other of the printers of this generation, whose first undertakings were almost exclusively devoted to the service of the Church or to the revival of the classics. How far the responsibility for the literary standard of the two printers of Bruges rested with themselves, and how far it was determined by the preferences and suggestions of their patroness the Duchess, it is probably not now practicable to determine.

The German printers, Heynlin and Fichet, who introduced printing into Paris, and their successors, Krantz, Gering, and others, beginning their work under the instructions of the University, had printed the books which were selected for them by the University authorities, and these earlier issues of the Paris Press were restricted to theology and jurisprudence. Later, were

added the works of certain selected classic authors. It was a number of years, however, before any volume was printed in Paris in the French language. The first volume printed in French in Europe was, in fact, Caxton's edition of the Burgundian romance, *Le Recueil*. The first French books printed in France were issued in Lyons, where the publishers were free from the hampering supervision of the theologians of the University. The early Lyons lists of the fifteenth century included indeed a series of quite frivolous publications, in the vernacular, such as *Le Roman de la Rose*, *La Farce de Pathelin*, *Les Quinze Joies de Mariage*, *Le Champion des Dames*, and a French version of the *Facetiæ* of Poggio. The publishers of Paris, working under the restrictions of the University censors, must not infrequently have looked with envy at the publishing undertakings of their enterprising Lyons competitors, who were, with the exception of Caxton, the first to address themselves to the tastes and to the interests of the unscholarly and pleasure-seeking readers. In the matter of cultivating and supplying a taste for popular literature, Mansion and Caxton were in accord with the methods of Lyons rather than those of Paris.

It is the conclusion of Mr. Blades that the books above specified, while nominally issued by Caxton, were actually printed by Mansion. However this may be, it is evident that, in connection with the production of these books, Caxton secured a sufficient knowledge of the technicalities of the art to be qualified to carry on a printing-office himself. It is probable that the ready sale found in England for the printed copies of the *Recueil* which were sent over there gave him encouragement concerning the possibilities of the English market for similar printed books. It is certain that, in 1476, he gave up his home in Bruges, resigning at the same time the honours and privileges pertaining to his position at Court, and, retiring to England, established himself at Westminster. The type, and probably also the presses, taken over for his Westminster office, were those of Mansion, which had become the property of Caxton, doubtless through purchase from Mansion's creditors. It was during the fifteen years that remained to him of active work after his varied life experience as an apprentice, a merchant, a governor of a great mercantile colony, a magistrate, and a courtier, that he was able to complete the undertakings with which his name will always be associated, and to bring to his native country the most important result produced by the activity of man during the noteworthy fifteenth century.

In the advertisement or announcement of his business, issued by Caxton about 1480, he professes himself ready to satisfy any man, whether spiritually or temporally inclined. The wording of the advertisement is as follows:

“If it plesse any man spirituel or temporel to bye any pyes of two and thre *comemoracios* of Salisburi ose empyrnted after the forme of this present lettre whiche ben and truly correct, late hym come to Westmenester in to the almonesrye at the reed pale and he shall have them good chepe.”

The phrase “printed in the Abbey of Westminster,” which is affixed to some of the books, is not to be understood as indicating that the work of the printing-office was actually carried on within the walls of the church itself. The tenement occupied by Caxton, called the “red pale,” was in the almonry, this being a space within the abbey precincts, where alms were distributed to the poor. In the same enclosure were other buildings, including the almshouses built by Lady Margaret, the mother of Henry VII., who was one of Caxton’s patronesses. Some chroniclers have suggested that the *scriptorium* of the abbey would have been a very appropriate place in which to begin the work of producing printed books for England. One difficulty with this suggestion is the lack of evidence that the abbey had ever contained a *scriptorium*. No mention of such a place is made by any historian, nor does any existing manuscript bear record of having been produced within the abbey. Caxton’s immediate successor, Wynken de Worde, who had been his assistant, continued for some years after Caxton’s death to carry on the work of the printing-office in the same building. He placed on his books, for the Latin form of imprint, the words, “In domo Caxton in Westmonasterio.” His English imprint, with sundry variations, was most frequently “Printed in Caxton’s house at Westmynstere.”

Mr. Blades gives a list of ninety-eight separate works identified as Caxton’s, in addition to which there are eight or ten others concerning which the evidence is doubtful. The titles of the first five, printed in Bruges, in co-operation with Mansion, have already been cited. I give the titles of the remaining ninety-three:

1477. “Dictes and Sayings of Philosophers,” translated by Earl Rivers. This was probably the first book printed in England. The first printed book in Italy was issued in 1464, and was a “Donatus.” The

first book printed in France bears date 1469, and was an edition of the “Letters of Kaspar von Bergamo.” A large proportion of the publications identified as Caxton’s were printed without imprint or specification of the place or date of issue. Mr. Blades is able, however, to give a list of twenty books which bear the record of having been printed at Westminster. The imprints and colophons show a pleasing variety in form and in spelling.

1478. Chaucer’s “Canterbury Tales.” 1st edition. Folio.

The “Canterbury Tales” had been written about 1395, and during the century which preceded this first printed edition, the work had secured an assured prestige and a circulation which for a book in manuscript must have been very considerable. As one of the most famous productions of English literature, it was a very natural selection to be included with Caxton’s earlier publications. This first edition was in fact the tenth work produced from the Caxton Press. The second edition was printed about six years later (Blades says “probably 1484”), and appears to have had the advantage of a more correct or more complete text. In a prefatory note printed by the publisher in this volume, Caxton gives the following account of the way in which this better text came into his hands: “Of which book so incorrect was one brought to me six year passed, which I supposed had been very true and correct, and according to the same I did imprint a certain number of them, which anon were sold to many and divers gentlemen: of whom one gentleman came to me, and said that this book was not according in many places unto the book that Geoffrey Chaucer had made. To whom I answered that I had made it according to my copy, and by me was nothing added or diminished. Then he said he knew a book which his father had and much loved, that was very true, and according unto his own first book by him made; and said more, if I would imprint it again, he would get me the same book for a copy. How be it, he wist well his father would not gladly part from it; to whom I said, in case that he could get me such a book true and correct, that I would once endeavour me to imprint it again, for to satisfy the author: whereas before by ignorance I erred in hurting and defaming his book in divers places, in setting in some things that he never said nor made, and leaving out many things that he made which are

requisite to be set in. And thus we fell at accord; and he full gently got me of his father the said book, and delivered it to me, by which I have corrected my book.”

1478. “The Moral Proverbs of Cristyne,” translated by Earl Rivers. Folio.

Christine de Pisa wrote these “Proverbs” about 1400. Thomassy speaks of her as, with the exception of Joan of Arc, the most famous woman of her age.^[50] Blades says of her that she was early left a widow, with children and parents to support, and urged on by necessity, she devoted herself to a literary life, and soon became famous, and that for many years her labours were incessant. He appears to be of the opinion that she succeeded in securing a livelihood by her pen. If this opinion be correct, Christine was certainly a marked exception to the other authors of the fourteenth century.

1478. “The Horse, the Sheep, and the Goose.”

This is not a treatise on the care of domestic animals, but a series of dialogues in verse, attributed to Dr. John Lydgate. It reached a second edition.

1478. “The Chorle and the Bird.” 4to. A Fable, probably by Lydgate. This reached a second edition.

1479 (about). “The Book of Courtesy.” 4to.

1479. “The Temple of Brass or the Parliament of Fowls.”

“Envoy of Chaucer to Skogan.” 4to.

1479. “Queen Anelida and False Arcyte.”

“The Complaint of Chaucer to His Purse.”

1479. “Boethius de Consolacione Philosophiæ,” translated into English by Geoffrey Chaucer. Folio. “I William Caxton have done my devoir to emprinte it.”

With the exception of the anonymous French version printed by Mansion in Bruges, in 1471, this was the first edition of this perennial work issued in Europe in any version but the original

Latin. The earliest printed edition of the Latin, that of Koberger, had been issued in Nuremberg in 1473. Boëthius had received continued attention at the hands of the scribes, and the number of manuscript copies available for the earlier printers was possibly greater than of any other classic. M. Paris speaks of five different translations of the “De Consolacione” into French verse, which had been produced in the fifteenth century. Mr. Blades says that the version by Chaucer was made not from the French, but from the original Latin. One of the three copies of the Caxton edition in the British Museum, which was discovered in the library of the school attached to the Abbey of St. Albans (an abbey which had had an old-time association with literature), was noteworthy because in the covers were discovered certain printed sheets of other of Caxton’s publications not previously known.^[51]

Chaucer appears to have considered this translation to be one of his praiseworthy undertakings. He writes:

And for to speke of other holynesse
He hath in prose translated Boëce.^[52]

1479. “Cordiale, or the Four Last Things.” Folio. Translated from the French by Earl Rivers.

1480. “The Chronicles of England.” Folio. “Emprynted by me William Caxton in thabbey of Westmynstre.” 1st edition.

This work is often referred to as “Caxton’s Chronicle.” It presents, in substance, the chronicle of Brute, with the narrative brought down to the battle of Towton (1461). The old chronicle of Brute was so called from the opening chapter, which describes the settlement in Britain of Brutus, the descendant of Æneas.^[53]

1481. “Parvus et Magnus Chato.” 3rd edition. Folio.

This edition contains two woodcuts, which Mr. Blades believes to be the earliest specimens of wood-engraving in England. In the matter of book-illustrations, the printers of England were, during the

fourteenth and fifteenth centuries, very much surpassed by those of the continent.

1481. "The Mirroure of the World," translated from the French by Caxton. Folio, with illustrations.

The French version from which Caxton worked was that of "Maître Gossevin," which was itself based upon the metrical version, prepared, in 1245, by the Duke of Berri. The Latin original, "Speculum vel Imago Mundi," was the work of some unknown author writing early in the thirteenth century. The number of manuscript copies which had been preserved, is evidence of its early popularity. Caxton's judgment in reviving the work in an English version and a printed edition proved to be well founded, as it passed through various editions. This first edition was, however, not the speculation of the printer, the cost of its production having been borne by Alderman Hugh Brice.^[54]

1481. "The History of Reynard the Fox." Folio. A translation prepared by Caxton from a Flemish version of the popular legend.

1481. "Tully on Old Age"; "Tully on Friendship"; "The Declamation of Noblesse." Folio. "Emprynted by me, symple person, William Caxton."

This translation was made, as is stated in the Prologue, "at the ordinance and desire of Sir John Falstoffe."

1481. "Cura Sapientiae," or the "Court of Sapience." By John Lydgate.

This poet, several of whose productions have been preserved by Caxton's Press, died in 1461, about fifteen years before Caxton began his printing work. While not quite a contemporary, he was one of the few English authors of his own times with whom Caxton's imprint is associated. The poem presents a debate between Mercy, Truth, Justice, and Peace, together with a metrical description of theology, geography, natural history, horticulture, grammar, rhetoric, arithmetic, geometry, music, and astronomy. I am not sure from the description whether it is to be classed with light literature, or

may properly be considered as one of the publisher's "solid" productions.

The author is frank enough in regard to his own deficiencies. He writes:

I am a monk by my profession,
Of Bury, called John Lydgate by my name,
And wear a habit of perfection,
Although my life agree not with the same.

1481. "The History of Godfrey of Bulloigne, or the Conquest of Jerusalem." Folio. A translation by Caxton from an anonymous French chronicle.

"Polychronicon." Folio. "Imprinted and set in forme by me William Caxton."

This volume includes the most considerable and important original work undertaken by Caxton. The "Polychronicon" had its origin with Roger Monk, of St. Werberg in Chester, early in the fourteenth century. It was continued by Higden of the same monastery, and, in 1387, Trevisa, chaplain of the Earl of Berkeley, prepared from the Latin text an English version. Caxton revised this version of Trevisa, and added a continuation of the history, bringing the record down to 1460.

1483. A "Vocabulary" in French and English. Folio.

1483. Gower's "Confessio Amantis." Large folio. "Emprynted at Westmestre, by me William Caxton." Gower had died in 1408, and belonged, therefore, to a previous century, but even as late as the century succeeding his death, he continued to be the most widely read (at least in England) of the English poets. It is probable that the literary authorities of Caxton's time rated Gower higher than Chaucer. It is certain that the "Confessio Amantis" was one of the most successful of Caxton's publications. Some lines of Gower's give an impression of the taste of English readers in his time.

Full oft time it falleth so,
Mine ear with a good pittance
Is fed of reading of romance,
Of Iodyne, and of Amadas,
That whilom weren in my case,
And eke of other many a score,
That loveden long ere I was bore.

His “Confessio Amantis” had, he states, been written at the command of King Richard II., the same monarch to whom Froissart tells us he presented a volume of the famous “Chronicles,” “fair illumined and written, and covered with crimson velvet, with ten buttons of silver and gilt and roses of gold in the midst, with two great clasps, gilt, richly wrought.” Richard’s interest in books must, therefore, have included literature in two languages.

1484. “The Book which the Knight of the Tower Made to the ‘Enseygnment’ and Teaching of His Daughters.” Folio. “Emprynted at Westmynstre the last day of Januer the fyrst yere of the regne of Kynge Richard the Thyrd.” This was a translation by Caxton of a book by Geoffrey de la Tour, written in 1371.

1484. “The Golden Legend.” Folio. “Fynysshed at Westmere the twenty day of Novembre/ the yere of our Lord M/CCC/LXXXIII/. By me Wyllyam Caxton.”

This work is described as the most laborious and most important of Caxton’s literary and publishing undertakings. The collection from which the various versions of “The Golden Legend” were derived was a compilation entitled “Legenda Aurea,” made in the thirteenth century by Jacobus de Voragine, Archbishop of Genoa, in which were narrated the lives and miracles of the Saints.^[55] Caxton appears to have had before him, in preparing his volume for the press, one of the many Latin texts, an English version compiled about 1450, and the French version of Jean de Vignay. In editing the collection for English readers, Caxton omitted a number of the more incredible and more objectionable of the stories. Some of the best of these stories are

identical with those given in the “Gesta Romanorum,” the first printed edition of which was issued by Koberger in 1493. Caxton’s volume was extensively illustrated, and he speaks of the preparation of the designs as having caused him much trouble and expense. The undertaking was suggested by the Earl of Arundel, who agreed to take “a reasonable number of copies,” and further to pay as an annuity “a buck in summer and a doe in winter.”

1484. “The Fables of Æsop”; of “Avian”; of “Alfonse”; and of “Poge” (Poggio), the Florentine. Folio. “Emprynted by me William Caxton at Westmynstre.” Illustrated. The text was translated by Caxton from the French, and was the first version of “Æsop” in English.

1485. “Troylus and Creside.” Folio.

1485. “The Lyf of Our Ladye.” Folio. “Emprynted by Wyllyam Caxton.”

This poem was the work of John Lydgate, and had been written at the “excitation” of Henry V. It belonged to what may be called the popular group of Caxton’s publications.

1485. “The Noble Histories of King Arthur and of certain of his Knights.” Folio. “Emprynted in thabbey of Westmestre.”

This was the work of Sir Thomas Malory, and was generally known as the “Morte d’Arthur”; it was completed, as the author states, in 1470. Caxton states in his Prologue, that Sir Thomas had “reduced” the romances “from certain books in French.” I have not been able to find record of the date of Malory’s death, but as Caxton makes no reference to any relations with him, it is probable that in 1485 he was no longer living. His “Histories” certainly, however, could be classed as contemporary literature, and their selection by Caxton for the honour of a printed edition gives the impression of a publisher who was not so absorbed in the literature of the past as to be unmindful of the literary activities and possibilities in his own community.

Caxton gives in his Prologue his reasons for the selection of Malory’s work for publication. He considers Arthur to be a national hero and one of the nine great characters of the world’s history, his list comprising Hector, Alexander, Arthur, Charlemagne, and Godfrey of

Bouillon. "In these playsaunt historyes," says Caxton, "may be seen noble chyvalrye, curtosye, humanyte, frendlynnesse, hardynesse, love, frendship, cowardyse, murdre, hate, vertue and synne. Doo after the good and leve the evyl and it shal brynge you to good fame and renommee." A book containing all this was certainly deserving of the honour of a printed edition. Caxton's selection of the "Morte d'Arthur" showed admirable publishing judgment. The book was not only excellent "copy" for the time, but has had a more abiding repute than perhaps any production of its age.

1485. "The Life of the Noble and Christian Prince Charles the Great." Folio. "Explicit per William Caxton."

This "Life" was based upon the biography (itself a compilation) by Henry Bolomyer, Canon of Lausanne. The work, which is something more than a translation, was undertaken by Caxton at the instance of Danberry, treasurer of the King's jewels, and of certain other persons of noble estate and degree.

1485. "The Knight Paris and the Fair Vienne." Folio. "Explicit per Caxton."

A translation by Caxton of a famous romance, which had originally been written in "Catalane," but of which versions had appeared in a number of languages. It can be described as belonging to the popular literature of Europe, for after securing a wide circulation in manuscript editions, it was printed in Trevisa as early as 1482, in London, as above, in 1485, in Antwerp in 1487, and frequently thereafter.

1487. "The book of Good Manners." Folio. "Explicit et hic est finis per Caxton."

This is the work of Jaques Legrand, an Augustinian friar, said to have been a native of Toledo. It was written about 1370. Legrand was also the author of the "Sophologium." Caxton states in his Prologue that he undertook the translation in response to a "death-bed request" of his friend William Pratt, who was a man of influence in the Mercers' Guild, and Caxton refers to him as "a singular friend of old Knowledge."

1487. "Speculum Vitæ Christi." Folio. "Emprynted by Wyllyam Caxton." Probably a translation of the French version of the "Vita Christi," written in 1410, by S. Bonaventura.

1488. "The Royal Book, or Book for a King." Folio. "Translated out of Frensshe into Englysshe by me Wyllyam Caxton."

This is a translation of "Le Livre des Vices et des Vertus," said to have been written early in the fourteenth century by Friar Laurent, confessor of Philip the Bold. The book had come into general circulation in France and had been twice translated into English before the version of Caxton.

1489. "The Faytes of Arms and of Chivalry." Folio. Per Caxton.

This is a translation by Caxton of the work of Christine de Pisa of Venice. It was written in France about 1400. In her preface, Christine says: "Because men of arms are not clerks, nor instructed in the science of language, I have assembled and gathered together diverse books to produce this work, and because that this is a thing not accustomed and out of usage to women, which commonly do not intermit but to spin on the distaff and to occupy themselves in the things of the household; I supplicate humbly ... to have nor to take for no evil if I, a woman, charge myself to treat of so high a matter."

1489. "Statutes of Henry VII." Folio. The earliest known volume of statutes, and noteworthy also because printed in English.

1489. "The Governal of Health"; "The Medicina Stomachi."

The "Governal" was originally written in Latin, but was translated into English before Caxton's time. It is a compilation from the writings of certain Greek and Arabian physicians. The "Medicina" is attributed to Lydgate, who seems to have been Caxton's favourite author.

1489. "The Four Sons of Aymon." Folio.

A translation by Caxton of a very famous and popular romance, which originated probably as early as the twelfth century. Caxton's version was apparently produced from the volume printed in Lyons in 1480, "Les Quatre Filz Aymon."

1490. "Eneydos." Folio. "Translated by me Wyllyam Caxton."

The original was not a version of the “Æneid,” but a romance based in part on the “Æneid,” and in part on the “Fall of Princes” of Boccaccio. Mr. Blades points out that a good sale was probably expected for it, as a large impression was struck off, and the existing copies are therefore comparatively numerous. The book failed, however, to reach a second edition.

1490. “A Book of Divers Ghostly Matters.” “Emprynted at Westmynstre. Qui legit emendet, pressorem non reprehendat Wylllelmn Caxton. Cui, de alta tradat.”

The volume contains, with various writings, the “Rule of S. Benet.” The compilation is credited to Jehan de Sonshavie.

1491. “The Arte and Craft to Know Well to Die.” Folio. Translated by Caxton in 1490.

The complete work, of which Caxton’s volume is an abridgment, had been known during the century, in manuscript form, under the title “The Art and Craft to Live Well and to Die Well.” It had been printed in Latin in Paris in 1483. Caxton had probably utilised for his translation the French version printed in Bruges by Mansion.

1491. “The Chastening of God’s Children.” Folio. Authorship unknown.

1491. “Ars Moriendi”: That is to say, “The Craft for to die for the Health of Man’s Soul.”

A translation, by Caxton, of a Latin tract. The only copy known, either in MS. or in print, is in the Bodleian Library. This is the latest work certainly identified as Caxton’s, and, as he died in 1491, it is very possibly the last undertaking of his busy life.

I have classed under the dates specified, the works selected as representative of Caxton’s undertakings. I should explain, however, that the greater number of them were issued without date, and many without imprint of any kind. Mr. Blades has, with painstaking skill, identified the volumes issued from Caxton’s Press during the lifetime of the master, by a careful analysis and classification of the type used. He finds that six different fonts were utilised in all, the first being that secured from the wreck of Mansion’s

concern in Bruges and forming the beginning of Caxton's plant at Westminster, and the others having been added from year to year, according to the requirements and according also to the resources available. Very few of the books had any title-pages, and when the name of the author is mentioned, it must, as a rule, be looked for in the publisher's or translator's prologue. In some instances the dates of the printing have been arrived at or approximated by the references made by Caxton in his Prologue, or in a concluding paragraph, to the date when the work of the translation had been completed. In the small number of volumes containing an imprint, the pleasing variety of the form and spelling of such imprint is to be noted. The more usual wording is "Emprynted by me Wylliam Caxton at Westmynstre," but from this form there are a number of modifications. In selecting from the list of Caxton's publications certain titles taken as fairly representative of the general character of his undertakings, I have avoided specifying any re-issues or later editions. As the entire typesetting had to be repeated, the labour and expense of producing a second edition was for the manufacturing items very nearly as great as for the original publication. The illustrations were, however, in the majority of cases, available for the reissue, while the work of translating or of the compilation, collation, and revision of texts needed, of course, to be incurred but once. There was, therefore, a better prospect of satisfactory returns if a second edition could be reached, while the record of such editions serves also as a partial test of the publisher's judgment in gauging the taste and the interest of his public. Of the ninety-eight works issued by Caxton, three reached, during his lifetime, a third edition, the *Dictes of Philosophers*, the *Parvus Chato*, and the *Horæ*. While of fifteen, including, of course, the above, second editions were called for, the other twelve titles being: *The Horse, the Sheep, and the Goose*, *The Chorle and the Bird*, *The Game of Chesse*, *Indulgence*, *The Chronicles of England*, *The Canterbury Tales*, *The Golden Legend*, the *Speculum Christi*, *The Mirrour of the World*, *The Book of Courtesy*, and the *Liber Festivalis*. A number of Caxton's books were issued, after his death, by De Worde in later editions. The more noteworthy of these were *The Canterbury Pilgrimage*, *The Chronicles of England*, and *The Golden Legend*.

Caxton's absorption in his printing business at Westminster and in his literary occupations did not prevent him from continuing his association with the Mercers' Company, in which he must have retained a number of

old friends. Blades finds record of a payment made, in 1479, to Caxton from the royal treasury, of thirty pounds (equal to about four hundred and fifty pounds at this time), “for certain causes or matters performed by him for the said Lord the King”; and thinks it probable that this payment was for assistance rendered to Edward IV. and his retinue when fugitives at Bruges. It seems certain that the friendship of Margaret of Burgundy, Edward’s sister, secured for Caxton royal favour and interest in his venturesome undertakings. *Tully* and *Godfrey* were printed under the “protection” of the King, which probably means that the cost of their production was supplied from the royal treasury. Margaret, Countess of Richmond, mother of Henry VII., and Earl Rivers, brother to the King, were included in the list of Caxton’s Court friends. *The Chesse Booke* was dedicated to the Earl of Warwick, which probably also meant some measure of co-operation. *The Order of Chivalry* was dedicated to Richard III. *The Faytes of Arms* was translated and printed by Caxton, at the request of Henry VII., while the *Eneydos* was specially presented to Arthur, Prince of Wales. Caxton appears to have been more fortunate than some of the courtiers of his time, in being able, after the battle of Bosworth Field, to retain with Henry the favourable relations he had had with Richard. Caxton speaks of William Daubeney, the treasurer of Henry VI., as his “good and syngular friend.” William, Earl of Arundel, showed his interest in the work of the Caxton Press by allowing to the printer a “yearly fee of a buck in summer and a doe in winter.” Other of Caxton’s friends, whose names are given by Blades, were Sir John Falstoffe, described as a great lover of books, and Hugh Bryce and William Pratt, important members in the Mercers’ Company. Some of Caxton’s clients utilised his services with commissions for translating as well as for printing. For one “noble lady with many fair daughters,” he produced *The Knyght of the Toure*. *The Book of Good Manners* was printed by Caxton at the special request (made on his death-bed) of Caxton’s old friend, William Pratt, the purpose of the publication being “the amendment of manners and the increase of virtuous living.”

It is a suggestion of Blades that the occasion for the publication of the treatise *The Arte and Craft to Die Well*, was the death, in 1490, of Caxton’s wife Maude. Blades goes on to say, however, that there is no direct evidence that the Maude Caxton who died in that year and who was buried at S. Margaret’s was the wife of the printer.

The work done by Caxton as a translator includes versions of the following books: *The Whole Life of Jason*, *The Mirrour of the World*, *Reynard the Fox*, *Godfrey of Bulloyne*, *The Golden Legend*, *The Book Called Caton*, *The Knight of the Tower*, *Æsop's Fables*, *The Order of Chivalry*, *The Royal Book*, *The Life of Charles the Great*, *The History of the Knight and the Fair Vienne*, *The Book of Good Manners*, *The Doctrinal of Sapience*, *The Faytes of Arms*, *The Arte and Craft to Die Well*, *Eneydos*, *The Curial*, *The Life of S. Winifred*, *Blanchardin and Eglantine*, *The Four Sons of Aymon*, *The Gouvernayle of Health*, and the *Vitæ Patrum*. This last was, at the time of his death not quite finished. These volumes, when printed, comprised together more than forty-five hundred pages. It would appear, therefore, that, apart from the very considerable labours and responsibilities of the management of his printing-office, nearly all the employees in which must have required training in each detail of their work, Caxton must have kept his time very fully occupied. Blades finds record from Caxton's journal, that ten weeks' time was required for the translation of *The Mirrour of the World*, containing one hundred and ninety-eight pages, and twelve weeks for *Godfrey of Bulloyne*, which contained two hundred and eighty-four pages. It may be assumed, however, that leisure for the literary work could be found only occasionally when the labour in the printing-office did not happen to be continuous. The time required for printing these books varied materially, according to the book. The edition of *Cordiale*, a volume of one hundred and fifty-two pages, was completed in seven weeks, while the *Godfrey* took nearly six months. I do not find any record of the number of copies printed in the editions, nor does there seem to have been any uniform list of selling prices.

Under Caxton's will, it appears (the will itself not having as yet been discovered) that fifteen copies of *The Golden Legend* were "bequothed to the Chirch behove by William Caxston." The citation is from the parish accounts of S. Margaret's. In 1496, or about five years after the death of Caxton, the churchwardens had sold but three of the fifteen copies, for two of which they secured 6s. 8d. each and for the third 6s. 4d. The remaining copies were sold within the next sixteen years at an average price of 5s. 8d. It is probable that the price asked for these copies by the churchwardens was, at the outset at least, based upon the usual selling price of the printing-office.

Caxton died in 1491, when he was nearly seventy years of age. He was at work until within a few hours of his death upon the translation of the *Vitæ Patrum*. His assistant and successor, Wynken de Worde, in the colophon to the edition of this volume, makes the following record of his master, the translator: "Thus endyth the moost vertuous hystorye of the dewoute and right renowned lyves of holy faders lyvyng in deserte, worthy of remembraunce to all wel dysposed persones which hathe be translated oute of Frenche into Englisshe by William Caxton of Westmynstre late ded, and fynysshed at the laste daye of hys lyff."

The list of Caxton's publications, as compared with the lists of the first printers in Germany, Italy, and France, is noteworthy in a number of respects. Caxton did not undertake a single edition of the Scriptures or of any portion of the Scriptures, while the books of the Bible had formed the first and most important ventures of all the early printers of the continent. Caxton's judgment that the England of his day was not asking for Bibles, was confirmed by his immediate successors, and no edition of the Bible was printed in England before the close of the fifteenth century. The list contains also no theological works, no editions of the Fathers, and, with the exception of a single treatise of *Cicero* and a volume of *Boëthius*, no works belonging to the older classics. Its most distinctive feature is the long series of romances and legends translated from the French, the translations of which were largely the work of the printer himself. Noteworthy also, of course, is the appreciation of the abiding literary importance of Chaucer, the recognition of the availability for popular sale of Gower, and the discovery and prompt utilisation of Malory. Caxton was not only his own translator, but he was his own adviser, that is, he seems to have been dependent for his selections chiefly upon his own knowledge of the literature of France and of Flanders. While the earlier issues from the presses of Mayence, Basel, Paris, and Venice, restricted almost exclusively to the Scriptures, to editions of the Fathers, and of classics, were in Latin, Caxton's books were, with hardly an exception, printed in English. It was evidently his purpose to reach not the circles of scholars and theologians (circles which undoubtedly were at the time small in England), but as large a proportion as possible of the English public. I can but think, in looking at the long series of romances and poems and treatises on love, and the like, that Caxton had in mind the taste and requirements of women readers as well as of the men. In fact, in the fifteenth as in the nineteenth century, there must have been a larger

share of leisure for the “fair ladyes” than for the noble gentlemen, and it is to be borne in mind that the first incentive towards his literary and publishing undertakings came to Caxton from a woman, his noble friend the Duchess Margaret of Burgundy. Caxton’s books give us the impression that they were the selections and productions of a man with a clear understanding, a wide knowledge of the world, a keen sense of humour, and a sympathy for pleasure-loving people, who proposed to do what was in his power to imbue his fellow-countrymen with an interest in literature. He printed certain stories which, from a modern point of view, are open to criticism, but it is evident from the pains taken by him in his selections and eliminations, that he had a standard of his own, and that in rejecting material which seemed to him unworthy, he had in view the directing and developing of the standard of his English readers. He seems to have made comparatively few serious blunders, and must be credited with good publishing judgment. He had also the business wisdom not to attempt to go ahead too fast. Copeland, one of his workmen, who was later in business for himself, says in the Prologue to his edition of *Kynge Apolyn of Thyre*, his first publication: “I am gladly followynge the trace of my mayster Caxton, begynnynge with small storyes and pamfletes, and so to other,” a very sound policy for any publishing concern.

In the preface to his translation of *Blanchardin and Eglantine*, Caxton makes an “apologie” for the literature of romance and chivalry, which is worth quoting. The translation had been made from the French, at the command of the Duchess of Somerset, mother of King Henry VII. The passage shows us that the old printers were dealers in foreign books as well as in their own productions: “Which book I had long to fore sold to my said lady, and knew well that the story of it was honest and joyful to all virtuous young noble gentlemen and women, for to read therein, as for their pastime. For under correction, in my judgment, histories of noble feats and valiant acts of arms and war, which have been achieved in old time of many noble princes, lords, and knights, are as well for to see and know their valiantness for to stand in the special grace and love of their ladies, and in like wise for gentle young ladies, and demoiselles for to learn to be stedfast and constant in their part to them that they once have promised and agreed to, such as they have put their lives oft in jeopardy for to please them to stand in grace, as it is to occupy the ken and study overmuch in books of contemplation.”

This is possibly the earliest defence of novel-reading which occurs in the records of English literature.

The historian Gibbon makes it a cause of special regret that, in the choice of his authors, Caxton “was reduced to comply with the vicious taste of his readers; to gratify his nobles with treatises on heraldry, hawking, and the game of chess, and to amuse the popular credulity with romances of fabulous knights and legends of fabulous saints. The father of [English] printing expresses a laudable desire to elucidate the history of his country; but instead of publishing the Latin Chronicle of Radulphus Higden, he could only venture on the English version by John de Trevisa.... The world is not indebted to England for a single *first* edition of a classic author.”^[56]

Blades, taking up the cudgels for his hero, points out that Caxton very properly made a careful study of the wants of the public which was about him. It was essential for his purposes that the business should be placed on an assured foundation and should be made profitable. Caxton tells us in the preface to his *Charles the Great*, that he earned his living by his printing-office. It seems probable that he could have brought with him from Bruges no further property than was required to get his printing business into working shape, and it appears that at his death he left for his heirs very little beyond his presses, his type, and the remainders of the editions of his books.

It is probable that the knowledge of Latin, even among the circles that were interested in literature, must have been at this time much less general in England than on the Continent, and it is certain that the interest in theological writings continued during the century following to be very much smaller with Englishmen than with the Germans reached by the presses of Wittenberg, Leipzig, and Basel. It is, I judge, generally accepted that during the fifteenth and the first half of the sixteenth century, the standard of general cultivation was lower, and the extent of learning and of literary interests more limited in England than in Italy or the Low Countries.

“The demand in England in the fifteenth century,” says Blades, “was not for Bibles in the vernacular, nor for Horace nor Homer, whose writings very few could read in the original texts; but the clergy wanted service books, and Caxton accordingly provided them with Psalters, Commemorations,

and Directories; the preachers wanted sermons, and were supplied with *The Golden Legend*; the ‘prynces, lordes, barons, knyghtes, and gentilmen,’ were craving for ‘joyous and pleyaunt historyes’ of chivalry, and the Press at the Red Pale produced a fresh romance nearly every year. Poetry and history required for their appreciation a more advanced standard of education [than at this time obtained in England], and of these, therefore, the issue was comparatively scanty.”

The England of Caxton’s time was torn asunder by civil war. The year 1471, in which Caxton was beginning his printing undertakings in Bruges, was the year in which was fought, only a few miles from London, the battle of Barnet, and it was the year of the death of Warwick and of Henry VI. The year 1485, in which Caxton was busied with the translation and printing of several of his most important books, including *Charles the Great*, witnessed the battle of Bosworth Field and a change of monarchs in England. All the troubles of the civil wars and the excitement connected with the overthrow of a great political party and the accession of a new king had, it seems, little influence upon the preference of that small portion of English society which was interested at all in literature, for “joyous and pleasant histories.” It was doubtless also the case that this direction of literary taste was influenced by the preferences and the knowledge of Caxton himself and of his associate and successor, Wynken de Worde. They brought with them to England the literary interests and standards of the gay Flemish capital, in which the capacity for pleasure and enjoyment was developed to its fullest extent. The rule of the Puritans in England was still more than a century distant.

It is probable that a remunerative demand could have been secured for an edition of the Bible or of the New Testament printed in the vernacular. There were, however, difficulties in the way. Sir Thomas More has clearly shown the reason why Caxton could not venture to print a Bible, although the people would have greedily bought Wyclif’s translation. There were translations of the Bible before Wyclif, and that translation which goes by the name of this great reformer was probably made up in some degree from those previous translations. Wyclif’s translation was interdicted, and thus More says: “On account of the penalties ordered by Archbishop Arundel’s constitution, though the old translations that were before Wyclif’s days remained lawful and were in some folks’ hands had and read, yet he thought no printer would lightly be so hot to put any Bible in print at his own

charge, and then hang upon a doubtful trial whether the first copy of his translation was made before Wyclif's days or since. For if it were made since, it must be approved before the printing." This was a dilemma that Caxton would have been too prudent to encounter.^[57]

Caxton's experience as a publisher did nothing toward the development of any conception of literary property. Such literary labour as was contributed to his publications was his own work, and if there had at that time existed in England anything of the nature of copyright, the ownership in such copyright would, for the series of translations which comprised the most important portion of Caxton's list, have been vested in the publisher himself. There seems to be, in the record of his business in Westminster, no reference to any literary payments whatever, that is to say, to any arrangements for editorial service or to compensation to scholars for the collection or collation of manuscripts. In this matter of the securing of "copy" for his Press, Caxton's task was assuredly less arduous than that which came upon the first printers in Germany or Italy. He had at his command or within his reach the manuscript treasures of the great collections in Bruges, and during the years which were spared to him for carrying on the work of his Press, he was able to make but a very small beginning in the work of placing before the English public the legends and histories selected from those collections.

Caxton brought into his publishing business methods and standards which were the results of a long and honourable experience as a merchant. While he did not amass wealth, he seems to have sufficiently mastered the principles of a balance-sheet to have been able to carry on his undertakings with a full measure of independence and with no such serious financial anxieties as those which oppressed Gutenberg or which hampered the too idealistic ventures of Aldus. Caxton was evidently a clear-headed, practical man of business (although his interests came to be rather literary than commercial), possessing a keen sense of humour, shown in his appreciation of the best humorous literature of the time, and with a perception far beyond that of his publishing contemporaries as to the actual requirements of the public he was endeavouring to serve. Caxton made no claim to scholarship in the sense in which the term was used in the fifteenth century, but he is justly to be ranked with the men of letters. He was evidently a good linguist, having a thorough knowledge of French and Flemish, and a

sufficient familiarity with Latin to enable him to print correctly books in that tongue, and to translate from Latin into English. In his edition of *The Golden Legend*, in the *Life of S. Roche* he prints the following record: "Which lyff is translated oute of latyn in to englysshe by me, Wyllyam Caxton." His English style was fluent, and will compare favourably with that of other writers of the time. In the prologues and epilogues attached to his translations, he utilised freely (as was the custom of the time) material from various sources, altering this as he found convenient, and it is not always easy to distinguish between the pages that were original with himself and those of which he was simply the translator. He was able, however, to stamp his own individuality pretty thoroughly on all the editorial portions of his volumes, and occasionally, as in the sharp satire of women in the *Dictes and Sayings of Philosophers*, we find something which seems to be very definitely an expression of personal opinion.

For poetry Caxton had a cordial appreciation, and he printed the most noteworthy poems which were within his reach. In his second edition of *The Canterbury Tales*, he speaks of Chaucer as "the first founder of ornate eloquence in our English." In history, the only works at that time available in English were the *Chronicle of Brute* and the *Polychronicon*. To the latter, Caxton himself prepared a continuation, bringing the narrative down nearly to his own time. Some of the earlier English authors, in recognition of the value of his work as a chronicler, class Caxton among the historians, while overlooking his distinctive service in introducing into England the art of printing. He was evidently a man of wide reading, and the acquaintance which he possessed with existing literature must have seemed very exceptional for his generation. His great delight was in romances, but he takes pains to tell us that these pleased him not simply for their accounts of feats of personal prowess, but rather for the examples presented in them of "courtesy, humanity, friendliness, hardiness, love, cowardice, murder, hate, virtue, and sin, which inflamed the hearts of the readers and hearers to eschew and flee works vicious and dishonest. ^[58]"

In his long and varied business career Caxton appears to have made no enemies and to have given no grounds for criticism or complaint, and during the troublous times of civil war he was able, notwithstanding his intimate relations with some of those high in authority, to preserve his independence of character and an unsullied record. He was not a man of

genius, nor, perhaps, of the highest ideals; but he showed imagination, enterprise, and persistent courage. His work was honestly, intelligently, and effectively done, and his country has good reason to honour the memory of its first publisher.

Wynken de Worde.—Caxton's successor, Wynken de Worde, was by birth a Lorrainer, and had accompanied Caxton on his removal from Bruges to London. He had made good use of his years of preliminary training, and he was able largely to improve upon Caxton's printing methods, while in his publishing undertakings, he had the advantage of a constantly widening circle of readers of books. His publications comprised no less than four hundred separate works, covering a wide range of literature. He does not appear himself to have undertaken any translating or editorial responsibilities, and in fact no one of the English printers of the sixteenth century is to be placed in the group of scholars to which belonged Aldus, Froben, and the Estiennes.

The demand for printed books in England, a demand which had, as we have seen, antedated the establishment of Caxton's Press at Westminster, was much greater than could be satisfied by either Caxton, or his immediate successors, De Worde and Richard Pynson, and the importation of books from Paris, Rouen, Bruges, Antwerp, Cologne, and other continental cities, increased steadily during the last part of the fifteenth and the first portion of the sixteenth century. Of a number of the English publications of this period, the editions were printed on the Continent especially for the English market. Humphreys cites, among other instances, a series of missals printed in 1516 by Olivier of Rouen for the church of York, and an edition of the *Chronicles of England* printed (in English) in Antwerp, in 1493, by Gerard Leew.^[59] These Rouen missals were among the last of the Roman Catholic books of service printed abroad for the use of the English churches, as, in 1534, these churches adopted the *Ritual of the Reformation*. The title of the chronicles reads, "*Chronycles of the Lond of Englund.*"

Printing in Oxford.—The second printing-office established in England was that of Oxford. The authority on the earlier history of printing in Oxford is the treatise and comprehensive bibliography of Mr. Madan, published in 1895, under the title of *The Early Oxford Press*. Some of the earlier historians of the University had claimed for the Oxford Press an

earlier date than that of Caxton's undertaking. This claim has rested almost entirely on the date 1468, which appears in the colophon of a treatise on the Apostles' Creed, which treatise, says Madan, was undoubtedly the first product of the Oxford Press. The authorship of the volume as printed is ascribed to S. Jerome, and it is so referred to by Humphreys and other writers. Madan points out, however, that the actual author was Tyranneus Rufinus. It is his conclusion that the date 1468 (which is nine years earlier than the date of the first Caxton publication) is undoubtedly an error, and an error probably due to a single misprint.

The history of this volume came to possess some importance apart from its relation to the chronology of the English printing-press. In 1664, Richard Atkyns, a graduate of Balliol, printed in London a monograph entitled, *The Original and Growth of Printing, Collected out of History and the Records of this Kingdome. Wherein is also Demonstrated that Printing Appertaineth to the Prerogative Royal, and is a Flower of the Crown of England*. It was the purpose of Atkyns to recommend himself to the attention of King Charles II. by proving that printing was a royal privilege, and for this purpose it was desirable that there should be evidence of the introduction of the art into England under royal protection. The history of the establishment of the printing-press of Caxton did not give grounds for such a claim. In this Oxford volume bearing date 1468, Atkyns found, however, the evidence which could be made to serve his purpose. He goes on to give in his narrative a story, more or less confused, as to persons and places, the purport of which was, that at the instance of Thomas Bourchier, Archbishop of Canterbury, King Henry VI. had taken measures to bring into the kingdom a "printing-mold." The King, says Atkyns, was a "good man and much given to works of this nature." He was very ready to further the undertaking, and he provided a considerable sum of money, to be used for enticing away some of the workmen from *Harlein in Holland*, where the art had recently been invented by *John Cuthenberg*. "The money was confided to me, Robert Tournour, Master of the Robes, who took into his assistance Mr. Caxton, a citizen of good abilities, who traded much in Holland." Further details of the journey to Holland made by Tournour and Caxton are given, with the final result that they succeeded in getting off one of the under workmen, whose name was Frederick Corsells (or Corsellis). It was not thought prudent to set Corsellis to work in London, and he was, therefore, taken to Oxford, where, according to this theory, he instituted the

first printing-press in England. Atkyns goes on to point out that “This press at Oxon was at least ten years before there was any printing in Europe (except at *Harlein* and *Mentz*) where also it was but new born.” Later, “the King set up a press at St. Albans and another at the Abbey of Westminster, where they printed several books of Divinity and Physics (for the King, for reasons best known to himself and Council, permitted no law books to be printed), nor did any printer exercise that art but only such as were the King’s sworn servants; the King himself having the Price and Emolument for Printing Books.” For the mixing up in this narrative of Harlem and Koster and Mentz and Gutenberg, it is to be noted, Atkyns refers, as his authority, to an old manuscript in Lambeth, which has, however, not been found.

This story of Atkyns is dismissed by Madan (as it had previously been dismissed by Humphreys and Blades) as a “clumsy forgery.”^[60] It is of interest, however, as indicating the theory of the Crown, or at least the theory which the Crown was supposed to favour at the time of Charles II., concerning the relation of the printing-press to the Crown and the historic foundation for the royal claim to control and supervise printed literature.

If the corrected date of 1478 be accepted for the *Rufinus*, it still appears that the work of printing in Oxford began very promptly after the establishment of the Caxton Press in Westminster. It is further evident from the comparison of the typography and other manufacturing details of this first Oxford volume and of its immediate successors, that the methods and instruction of the Oxford printers were not derived from London or from Bruges, but are to be connected directly with the undertakings of the printers of Cologne, and more particularly with the orifice of Ulrich Zell, whose name has already been referred to.

The second Oxford publication, bearing an unquestioned date of 1479, is an edition of a treatise by Bishop Ægidius de Columna, of Rome. The third work, issued in the same year, was a Latin translation, prepared by Brunus of Arezzo, of the *Ethics* of Aristotle. The fourth publication, issued in 1480, was an edition of the oration of Cicero, *Pro Milone*. Both Madan and Blades are of opinion that the book probably belonged to Oxford and to this year, although the evidence is not conclusive. If the book has been correctly placed, it is the first Latin classic printed in England, the second being a *Terence* issued (in London) in 1497.^[61] The work of the first printing-press

of Oxford came to a close suddenly in 1487. The printing at St. Albans ceased at about the same time. The first printers in Oxford did not connect their names with their volumes. The name of the printer of the *Rufinus* and of the *Ægidius* has not been traced. The printer of the *Cicero*, and of some works following the *Cicero*, is identified as Theodoricus Rood de Colonia. The same name appears in connection with that of Thomas Hunt (Anglicus) as the printers together, in 1485, of the *Letters of Phalaris*. Thomas Hunt's name is recorded in 1473, as that of a *Universitatis Oxoni Stationarius*. A record has been preserved, bearing date 1483, in which Sir Thomas Hunt agrees to sell certain books in Oxford at fixed prices. Madan suggests that the stopping of the Oxford Press in 1487 may have been due to the departure of Rood for Cologne, as he finds record of the printing in Cologne in that year of certain books in a type similar to that used for the preceding Oxford volumes, by a printer registered as *Theodoricus*.

During the years 1517 and 1518, editions of Burley on *Aristotle*, Burley's *Principia*, and three or four other books were printed in Oxford by Johannes Scolar and Carolus Kyrfoth. These were evidently Germans, and were probably from Cologne. Three of the works were issued *cum privilegio*. After 1518, printing ceases in Oxford for nearly forty years. ^[62]

Later English Presses.—The third place in England in which a printing-press was established was the Abbey of St. Albans, an abbey which during the manuscript period had had a long and honourable association with literary activity. The first book issued from the St. Albans Press, the *Exempla Sacrae Scripturae*, bears date 1481. The type is from the same font, or from a precisely similar font, as that used in the Caxton volumes of this year, and Humphreys is of opinion that Caxton was concerned in this St. Albans undertaking. The most famous publication of the St. Albans Press, which is also printed in what may be described as a Caxton font of type, is *The Bokys of Haukyng and Huntyng and also of Cootarmuris*, by Dame Juliana Berners, who was Prioress of Sopwell Nunnery near St. Albans. This work was printed in 1486, and is frequently referred to as *The Book of St. Albans*.

The beginning of printing in the University of Cambridge was delayed until about 1520. This was nearly fifty years later than the establishment of the printing concerns connected with the University of Paris, and twenty-

five years later than the beginning of the series of editions of the classics issued from the Aldine Press of Venice, which may properly also be described as the Press of the University of Padua. The first publication of importance bearing the imprint of Cambridge University was an edition of Bulloc's translation of *Lucian*, issued in 1521.

The business of printing in London took a great development when De Worde associated with him in the management of the Caxton Press his assistant Richard Pynson, who had been one of Caxton's apprentices. These printers made a large use in their volumes of engraved illustrations, the blocks for which were in great part imported from the Continent. Many of these engravings had evidently been prepared originally for Flemish or German books, and, having been purchased at second hand, were frequently introduced into English books, without any regard to their fitness in character, or to any relation to the text. They were apparently, in fact, utilised not as illustrations but simply as adornments. This practice of importing illustrations from the Continent and of scattering them miscellaneously through texts with which they have no relation, is not unknown among English publishers of the nineteenth century.

After the death of De Worde, Pynson continued the work of the Caxton Press with his own imprint. Among the more important of his earlier issues were the translation of *Froissart*, by Lord Berners, and his English version of the famous *Navis Stultifera Mortalium*, issued under the title of *The Shyp of Folyes*. Up to the date of about 1490, the fonts used in the Caxton Press were purchased either in Bruges or in Cologne. In 1493, Pynson imported some French fonts, which probably came from Rouen. Lord Berners makes the "Book-fool," the first described of the passengers of the *Ship of Fools*, to speak as follows:

"I am the firste fole of all the whole Navy
To kepe the pompe, the helme, and eke the sayle;
And this is my mynde, this one pleasure have I
Of books to have great plenty, and aparayle
Yet take no wisdom by them; nor yet awayle,
Nor them perceyve not."

“The fole” (whose modern name would, of course, be “bibliomaniac”) possesses his books, in short, for show, for the repute of having a library, and for their fine binding:

“Full Goodly bounde in pleasant Couverture
Of Damas, satin, or else of velvet pure.”

Pynson did not confine his list to books of satire or of amusement, although these formed by far the larger proportion of his publications. He continued the series of chronicles begun by Caxton. In 1516, he published the *Chronicle Fabyan*, in which Brute, of the regal family of Priam of Troy, is made the founder of the first colony in the British Isles. With hardly an exception, the books of both De Worde and Pynson were very fully illustrated. Their interest in illustrated texts had been formed in the environment of the Flemish school, the printers in which seem to have considered that a book without illustrations was hardly complete. It was of course also the case that the class of literature selected by the first group of the English printers was in its subject-matter much more available for illustration than were the classical texts or the controversial and theological treatises which were at this time absorbing so large a share of the attention of the printers in Paris, in Germany, and in Switzerland.

The first Bible published in England was Tyndale’s English version of the New Testament. This first issue, however, was printed, not in England, but in Cologne, at the Press of Quentell. Tyndale was by birth a Welshman. After studying in Oxford and in Cambridge, he sojourned in Antwerp, and in that city he completed, in the year 1525, with the assistance of John Fryth and Joseph Royes, his translation of the New Testament. The supplies of the book when forwarded to London were very promptly bought up; but as soon as the ecclesiastical authorities had an opportunity of examining the book, it was put under ban, and all copies that could be found were seized and destroyed. At the instance of the Roman Catholic party in England, Tyndale was, in 1536, arrested at Antwerp, under the authority of the Emperor Charles V., and after being imprisoned for eighteen months, was burned. A similar fate befell his assistants, Fryth having been burned at Smithfield, and Royes in Lisbon. It is not clear from the record at what time the translation by Tyndale of the Pentateuch was produced, but it appears

not to have been printed until after Tyndale's death. In 1535, a complete English Bible, comprising Tyndale's version of the New Testament and the Pentateuch and a translation prepared by Coverdale and others, of the remaining books of the Old Testament, was printed on the Continent, the name of the printer not being given. Humphreys is in accord with Wanley in the belief that this Coverdale Bible was printed at Zurich by Christopher Froschauer. Coverdale utilised, as the basis of his portion of the translation, the German Bible of Luther, but makes references also to the Latin Vulgate.

Fortunately for the freedom of the English Press and for the spread of religious belief through the instruction of the Scriptures, it happened that, shortly after the completion of the Coverdale Bible, Henry VIII. wanted to marry Anne Boleyn. I need not here refer to the large results brought about in connection with this particular preference of the King. It is sufficient to point out that, with the close of the supremacy of the papal power in England, and with the addition of Great Britain to the list of the countries accepting the principles of the Reformation, the printing and distribution of the English version of the Scriptures became practicable. It would not be correct to say that from this date the printing-press in England was free, but it was the case that it became free for the production of the Protestant Scriptures and of other Protestant literature, while it was also the case that the censorship put in force by the authorities of the English Church never proved as severe, or as serious an obstruction to publishing, as had been the case with the ecclesiastical censorship of the Catholics.

The Coverdale Bible contains a series of graphic illustrations, the designs for which some of the historians have attributed to Holbein. The work was dedicated to King Henry VIII., and the dedication makes reference to his "just wyfe and vertuous prencesse Queene Anne." In the later editions, the name of Anne is replaced in succession by those of the later queens. ^[63]

The Bible known as "Matthews's" was published in London, in 1537, by Grafton. This appears to have been the first English Bible that was published under the authority of the State. A royal license or privilege for the publication was procured for it by Archbishop Cranmer, who had interested in the undertaking Thomas Cromwell, Earl of Essex. Humphreys speaks of Grafton, the English publisher, as having furnished five hundred pounds for the undertaking, the remaining portion of the cost being provided by Cranmer and Cromwell. The text was a combination of

Tyndale's and Coverdale's. The type is from a German font, and the work was probably printed in Hesse. ^[64]

The first English Bible printed in England was the translation by John Hollybushe, which was issued in 1538 by John Nicholson, in Southwark. The great Cranmer Bible was printed between 1539 and 1541, by Richard Grafton and Edward Whitchurch. The funds for its publication were supplied by Cranmer and Cromwell, and the magnificent illustrations are ascribed to Holbein. This work is described as the finest specimen of typography and the best example of artistic and graphic illustrations that had as yet been published in England. The text contains a number of variations from that of Tyndale and Coverdale. The first edition bore on the title-page the arms of Cromwell, but in the second edition, printed in 1540, these arms were omitted, the Earl having perished on the scaffold in July, 1540. A separate edition of this Cranmer Bible was printed in 1539 by John Bydell, under the editorship of the Greek scholar Taverner. This publication constituted an infringement of the patent issued to Grafton, but no steps appear to have been taken for his protection. Grafton continued for some years to be the authorised publisher for the Reformed Church of England, and he published in 1549 the first authorised Prayer-Book of the Church.

Next to Grafton, the most eminent of the English printer-publishers of the sixteenth century, was John Day, who has been called the English Plantin. He greatly improved the Greek and the italic types, and was the first to make use of Saxon characters. His most important publication was *The Acts and Monuments of the Church*, by John Fox, commonly called *Fox's Book of Martyrs*, issued in 1563. This work exercised probably a larger influence than any English book of the century in completing the conversion of England from Romanism to Protestantism, an influence which continued through the following centuries. John Fox was a Fellow of Magdalen College, Oxford, and after the death of Queen Mary (during whose reign he had been an exile in Switzerland) he was made a prebendary in Salisbury. I do not find any record of his publishing arrangement with Day. The *Book of Martyrs* came into immediate and continued demand and ought to have brought to its author large returns. His interest in the undertaking was, however, evidently in connection with the fight against Rome, and it is quite probable that he made his literary labour a contribution to the cause of the Reformation. The book, which was dedicated to Queen Elizabeth, was

printed in excellent style, and the effectiveness of the long series of dramatic and tragic narratives was very much heightened by the graphic and well-executed illustrations. Its publication was evidently considered by the Protestant friends of Day to be the chief glory of his career. Over his tomb in the village of Bradley Parva, the following epitaph is inscribed:

“Here lyes the Daye that darkness could not blinde,
When Popish fogges had overcast the sonne;
This Daye the cruel nighte did leave behinde,
To view and shew what blodi actes were donne.”^[65]

The plan and compass of the present work will not permit any detailed account of the work of the English printers and publishers during the sixteenth and seventeenth centuries. These centuries were periods of very great literary activity, and were rendered noteworthy by the production of some of the greatest works in the literature of the world. A list of authors which includes such names as those of Shakespeare, Spenser, Jonson, and Bacon, gives an indication of the importance as a lasting property of the books of the Elizabethan writers. The literary productiveness of England came, however, in advance of any system of law for the protection of literary producers, and it is probable that neither the writers above specified, nor any of their contemporaries, secured compensation from the sales of their books.

Miss Scott,^[66] in her scholarly monograph on Elizabethan translations from the Italian, in referring to the large influence exercised by the literature of Italy upon the work of the writers of the Elizabethan age, says that she has “collected more than one hundred and sixty translations from the Italian, made by ninety translators. The translators include nearly every well-known Elizabethan author, except Shakespeare and Bacon.” Apart from the translations, it is evident that a very liberal use was made by English authors of the time, and especially by the dramatists, of Italian stories and other literary material which could be reshaped for the requirements of English readers. Italy seems in fact to have served as a kind of literary quarry for the authors of Elizabeth, very much as Greece had done for the writers of the Augustan age.

The taste for romances appears to have continued without abatement throughout the sixteenth century, the stories put into print being very largely translations or free adaptations of French and Italian tales. It was a period when Italian thought and Italian literary methods were beginning to exert a very large influence upon both writers and readers in England. Roger Ascham declaimed against the pernicious tendencies of the Italian literature in much the same language as has been used to-day against the influence of French books upon the morals of English readers. From Paynter's *Palace of Pleasure*, printed in 1561, which contained a series of studies from French and Italian authors, were derived the plots of several of Shakespeare's plays, including that of *Romeo and Juliet*.^[67] Certain of these volumes secured what can be described as a popular success. *The Goodli History of the Ladye Lucre of Scene in Tuskane and of her Lover Eurialus*, a translation from the *Æneas Piccolomini*, went through twenty-three editions in the fifteenth century and was eight times translated.^[68] I do not find record of the names of the fortunate publishers, but it is not probable that the publisher who arranged for the translation first issued, was able to keep his version from being appropriated by others.

Mr. Furnivall cites a curious list of books which, in 1575, were recorded as the property of a man of the lower-middle class, a mason by trade,—such a man, remarks Jusserand, as would have been an average member of a Shakespearian audience. The titles include *Kyng Arthurz Book*, *Huon of Burdeaus*, *The Foour Suns of Aymion*, *Bevis of Hampton*, *Lucre and Eurialus*, and a number of other illustrated romances.^[69]

English readers of the time were not only interesting themselves in translations from the Italian, but were evidently to some extent prepared to read their Italian literature in the original. Among the books of which editions printed in Italian were issued in London in the latter part of the sixteenth century, was the *Pastor Fido* of Guarini, published in 1590.^[70]

During the lifetime of Shakespeare, there were published of his no less than seventy-two separate original works, plays and poems, the first in date being *Venus and Adonis*, in 1593, and the last, *The Rape of Lucrece*, in 1616. A number of these volumes reached a third or fourth edition, and, notwithstanding the lack of adequate book-selling machinery, the sales of many of them appear to have been considerable. The authorities on the life

of Shakespeare are, however, I believe, in substantial accord in the conclusion that the author secured from these sales no direct benefit, and that the independent fortune accumulated by him was derived from his pay as an actor, from the interest later possessed by him in the business of the theatre, and probably, also, from some recognition on the part of the performing companies of the author's right to a share of the profits earned by his plays. Shakespeare apparently benefited by stage-right if not by copyright. The seventy-two publications above referred to include only those which, having been duly entered for copyright, may be described as "authorised." There are various references to unauthorised editions, but no record of any one of these having been suppressed. The first issue of *Venus and Adonis*, printed by Richard Field, was certainly authorised, as it contained a dedication by the author. The copyright was registered in the name of Field, while the book was published by John Harrison. A diary of the time speaks of the selling price as being twelve pence.^[71] *Lucrece*, published in its first edition in the year following, was, like the earlier book, dedicated by the author to the Earl of Southampton, and was likewise printed by Field for Harrison. We find from this time an increasing tendency to separate the business of printing from that of publishing, while the copyright entry is nearly always made in the name of the printer. *The Comedy of Errors*, printed in 1594, was entered as belonging to the Lord Chamberlain's company, that to which Shakespeare was at the time attached. It was the case with other, though not with all, of the plays, that the copyright was vested in the company for which they had been written. The first publisher who secured copyright in a play of Shakespeare's was Andrew White, who, in 1597, made entry of *Richard the Second*. Neither in this case nor in that of the long list of other printers and publishers who, during the lifetime of the author, "claimed copie" in Shakespeare's writings, does it appear by what authority they undertook to control such "copie." While there may possibly in the case of the plays have been assignments or authorisations on the part of the theatre company, there is, I understand, no record of, or specific reference to, any such assignments. The first collection of Shakespeare's plays for which any measure of completeness was claimed, was presented in the well-known folio of 1623, the publication of which was supervised by Heminge and Condell, who had been fellow actors with the dramatist. It does not appear what

compensation, if any, the two editors secured for their labours from printer or from publisher.

In order to find an instance of the payment of “copy money” for an original work, we must look forward sixty years later than the death of Shakespeare. The oft cited agreement between Milton and the printer Samuel Simmons, which was executed in April, 1667, is possibly the earliest of the kind in the history of publishing in England. Under this agreement, the copyright of *Paradise Lost* was assigned for a present payment of five pounds, with the obligation for a further payment of the same amount when 1300 copies had been sold. The agreement authorised the printing of a second and a third edition (no limit being fixed for the number of copies in either) on the payment, at the time of each printing, of the further sum of five pounds. The author received before his death ten pounds in all, and his widow later relinquished for the sum of eight pounds all further right in the “copy.” The first impression of the poem had not been sold at the expiration of seven years, and trivial as the honorarium to the author certainly was, it is probable, as Sir Walter Scott remarks, that the publisher did not make much by his bargain.

As an example of a more remunerative transaction, may be cited, among others, the arrangement between Dryden and the publisher Tonson for the poet’s translation of *Virgil*, an undertaking from which Dryden received nearly £1300. The date of the agreement was 1695, less than thirty years later than the date of the sale of *Paradise Lost*. We are now, however, approaching the period of copyright law, while it was the case that during the last years of the seventeenth century, the printer-publishers of the Stationers’ Company appear to have been sufficiently powerful, in advance of copyright statutes, to secure for their “copies” a substantial measure of protection, and thus to maintain the common-law property rights assigned to them by their authors.

The earliest catalogue of books published in England contains a list “of all books printed in England since the dreadful fire, 1666, to the end of Trinity term, 1680.” The statistical results of this catalogue of the productions of the press for fourteen years have been ascertained. The whole number of books printed was 3550; of which 947 belonged to divinity, 420 to law, 153 to physic; 397 were school-books. About one-half of these works were single sermons and tracts. Deducting the reprints, pamphlets, single

sermons, and maps, it is estimated that, upon an average, 100 new books were produced in each year.^[72] This average, which is based upon the estimate of Knight, does not, however, give an accurate impression of the actual production of each year,—the output of the later years of the series being much more considerable than of those immediately succeeding the fire.



CHAPTER VII.

THE KOBERGERS OF NUREMBERG.

1440-1540.

ANTHONI KOBERGER (the elder), who for a number of years held the position of the leading publisher of his time, came of an old Nuremberg family. One of his ancestors had been a burgomaster of Nuremberg as far back as 1349, and took an active part at that time in a successful effort to overthrow the rule of the nobles over the city, and, during the two centuries following, the Kobergers continued to be leading citizens.

Anthoni was born about 1440, or ten years before the completion of Gutenberg's printing-press. He was probably brought up as a jeweller, an occupation in which in the later years of his life he was again interested, but in 1472, he devoted himself to the new art of printing, and in 1473 he issued the first volume, bearing a date, which is certainly identified as his. The work chosen was one of the great books of the world's literature, *Boethii Liber de Consolatione Philosophiæ cum Commentario Thomæ de Aquino*, a dignified and judicious selection with which to initiate the publishing undertakings of the Kobergers, and one which was fairly representative of the general character of their subsequent issues.

Albert Dürer, whose original trade was that of a goldsmith, had served as godfather for Anthoni Koberger, and Anthoni's eldest son was apprenticed to Dürer. There was a close connection, in Germany as well as in Italy, between the earlier book illustrators and the goldsmiths and other artificers in metals, and not a few of the first designers and engravers, together with some of the best of the printers, came, like Dürer, from the ranks of the metal-workers.

The first printing-office in Nuremberg had been established in 1470, by Heinrich Kefer, of Mayence (who had been an assistant of Gutenberg), in company with Sensenschmid from Eger, and their first publication was a tract on the Song of Solomon, by Dr. Gerson, Chancellor of Paris, who had

died in 1429. It was very exceptional for printers of this time to begin their operations with a work by a contemporary or recent writer.

Anthoni's active work as a publisher continued until about 1513. His contemporary, Johann Neudorffer, writing about 1509, says that he was then employing about twenty-four presses, with over a hundred workmen, the latter comprising compositors, pressmen, binders, correctors, illuminators, and designers.^[73] All of these, says Neudorffer, were provided with their meals by their employer, in a building apart from the works, and they were obliged to go between the two buildings at regular hours and with military discipline. It is noteworthy to find so fully organised and disciplined a book-manufacturing concern within half a century after the beginning of printing, and we may fairly assume that the founder was a man of distinctive character and ability.

In the actual number of separate works issued, Koberger was possibly equalled by one or more of his contemporaries, but in respect to literary importance and costliness, and in the beauty and excellence of the typography, the Koberger publications were not equalled by any books of the time excepting the issues of Aldus in Venice. He did not limit his publishing undertakings to the works printed from his own presses, but gave contracts for the printing of a number of important publications to printers in other cities. In 1525, for instance, Grüninger of Strasburg prints for Koberger the translation by Pirckheimer of the *Geography* of Ptolemy, and Amerbach of Basel, who had begun his work as a corrector with Koberger, printed for him, later, a number of works.

Koberger's correspondence shows that he had agents or active representatives not only in the other book-centres of the empire, such as Frankfort, Leipzig, Vienna, Basel, Strasburg, and Cologne, but in more distant cities, with which business interchange must, during the first years of the sixteenth century, have been subject to serious risks and to many interruptions, such as Paris, Buda-Pesth, Warsaw, Venice, Florence, Rome, Antwerp, Bruges, and Leyden. In this matter of organising connections and distributing machinery throughout the Continent, Koberger had a decided advantage over his great contemporary Aldus, who found, as we have seen, no little difficulty in maintaining permanent satisfactory arrangements for the distribution of his books north of the Alps. Aldus was obliged to depend chiefly upon his direct correspondence with individual buyers among the

scholars of Europe, but Koberger secured larger results by utilising the services of the book-trade, the organisation of which in Germany and France was now taking shape. He was himself, in fact, a bookseller as well as a publisher and printer, selling both to the book-trade and at retail, and he was the first of the booksellers of Germany, and possibly of Europe, to issue a classified catalogue of current publications. Kapp describes his book-shop as the best equipped repository for standard literature (*Sortiments-Buchhandlung*), in Germany. Possessing full knowledge and experience of all divisions of book-making and of book-selling, Koberger was in a position to take an active part in furthering the organisation of the German book-trade, of which for a number of years he was recognised as the natural leader.

One of the results of the Reformation had been, as will be noted in the chapter on Luther, to transfer the centre of literary activity from the south to the north of Germany. Previous to this time, Nuremberg had been conveniently enough located for the publishing trade and for the distribution of books, but, if it had not been for the energy and enterprise of Koberger, it would doubtless have been very much outclassed in the importance of its book-trade by some one of the cities possessing facilities for water transportation. Koberger appears not to have been a bigoted Romanist, but his sympathies were on the whole with the Church party, and his theological publications, which formed by far the most important portion both of his undertakings and of his retail stock, were nearly all in line with conservative Catholic theology. The sales of all the older theological works, the writings of the Fathers, etc., were very much lessened by the effects of the Reformation, and, after the Reform doctrine had begun to take root in Nuremberg, this division of the business of the Kobergers was materially interfered with. Notwithstanding the very considerable demand that came up in Nuremberg for the writings of the Reformers, the imprint of Anthoni Koberger appears never to have been associated with any of these.

In order to indicate the general character of his undertakings, I give the titles of some of the more characteristic of his publications. I omit half a dozen volumes issued prior to 1473, which have not certainly been identified as Koberger's.

1473. “Boethii Liber de Consolatione Philosophiæ, c. comm. Thomæ de Aquino.” (Reprinted four or five times later.)

1474. “Duns Scoti, in quartum librum sententiarum.”

1475. “Thomæ de Aquino, glossa continua super quatuor Evangelistas Biblia Latina.”

1477. “Walteri Burley, Libellus de Vita et Moribus Philos. et Poetarum.”

“Biblia Latina.”

1478. “Biblia Latina.” (Printed twice in this year.)

“Antonini Summæ Theologicæ, pars prima.”

“Ludolphi Carthusiensis, Vita Christi.”

1479. Gritsch, Joannis, “Quadragesimale.”

1480. “Biblia Latina.”

Duranti, Gulielmi, “Rationale Divinorum Officiorum.”

Petrus Daubussen. “Relatio de Obsidione Urbis Rhodiæ.”

1481. “Biblia Latina cum postillis.” Nicolai de Lyra, 4 vols.

“Duns Scoti, in quatuor libros. Sententiarum Petri Lombardi.”

“Æneæ Sylvii Epistolæ.”

1482. “Biblia Latina.”

“Clementis Papæ V. Constitutiones c. apparatu.”

“Alexandri de Ales Summæ Theologicæ pars prima, pars tertia, pars quarta.”

“Justiniani pandectarum opus. Digestum vetus Glossatum.”

1483. “Die Deutsche Bibel, mit Bildern.” This was the version which preceded Luther’s by about a third of a century.

“Hugonis de Prato Sermones Dominicales Super Evangelia et epist.”

“Vincentii Belluacensis Speculum Historiale.”

“Vincentii Belluacensis Speculum Naturale.”

1484. “Antonini Opus Historiarum seu Chronicarum Tribus const. part.”

1485. “Biblia Latina cum postillis, Nicolai de Lyra.”

“Fortalitium Fidei Contra Judæos, Hæreticos et Saracenos.”

1486. “Justiniani Institutiones cum glossa.”

“Gratiani Decretum.”

“Breviarum Romanorum,” C. Calend.

1487. “Meffreth”, “Hortulus Reginæ seu Sermones de temp. et de Sanctis.”

1488. “Justiniani Imperatoris Codex repetitæ prælectionis cum glossa.”

1491. “Antonini Opus Historiarum seu Chronicarum.”

1492. “Summa Angelica de Casibus.” “Conscientiæ P. Angelum de Clavastio.”

“P. Virgilii Maronis Opera cum Comment. diversis.”

“Vocabularius Utriusque Juris.”

1493. “Gregorii IX. Decretales cum summariis.”

“Gesta Romanorum.” The first printed edition.

1494. “Psalterium Brunonis.”

1495. “Hieronymi Epistolarum omnes partes.”

1496. “Heinrici Institoris tractatus varii contra quatuor Errores novissime exortos adv. Diviniss. Eucharistiæ Sacram.”

“Guillermi postilla in Epistolas Pauli et Evangelia.”

“Gregorii IX. libri quinque Decretalium.”

“Guillermi Opera de Fide, Legibus etc.”

“Guillermus de Universo.”

“Thesaurus Novus Sermonum de Tempore.”

“Thomæ de Aquino Summæ Theologiæ tres partes.”

1497. "Marsilii Ficinii Epistolæ."

"Ciceronis Opera."

"Juvenalis Satiræ."

1498. "Alexandri Doctrinalis Partes quatuor de verborum significat."

"Vocabularis Breviloquus." Joh. Reuchlin.

"Summa Angelica de casibus Conscientiæ p. Angelum de Clavasio."

1499. "Wann, Pauli, Sermones de Tempore."

"Johannis de Friburgo Summa Confessorum."

1500. "Revelationes S. Birgittæ."

"Mariæ Virginis Privilegiæ et Prærogativæ."

"Alexandri Doctrinalis tertia et quarta partes."

1501. "Biblia Latina."

"Jacobi de Voragine Historia Lombardica."

1502. "Das Buch der Himmlischen Offenbarung der heil. Wittiben Birgitta." One of the very few German volumes from Anthoni's press.

1503. Justiniani Pandectarum opus.

1504. "Biblia cum postilla Hugonis." 7 vols. Printed by Amerbach. The commentaries were those of Cardinal Hugo, written in the latter part of the thirteenth century. This was, in point of labour and costliness, the most important undertaking of Koberger.

"Volumen de Tortis" (Justiniani authenticæ seu novellæ constitutiones).

1509. "Hortulus Animæ."

1511. "Biblia Latina."

1512. "Augustini Tractatus Super Evangelium Johannis."

"Augustini Liber Epistolarum."

The total list for the forty years from 1473 to 1513, in which year Anthoni Koberger died, aggregates no less than two hundred and thirty-six separate works. These were nearly all in large octavo or quarto form, and the larger number comprised several volumes. The most considerable and the most costly undertaking was the Hugo Bible issued in eight volumes. Anthoni issued in all no less than fifteen issues or impressions of the Scriptures. A very large proportion of his books were, as the selection indicates, devoted to theology, and the list includes a number of collections of sermons and tracts (always in Latin text) by writers whose names are known otherwise little or not at all. It is possible that the cost of the printing of these was in some cases borne by the divines who were responsible for them, but there is no reference in the record of Koberger's business to any publications "for the author's account." It is not easy to understand how it was practicable, within half a century of the beginning of printing, to build up a publishing machinery adequate for the effective distribution of such a collection of solid literature. In fact, a publisher of to-day, whether in Germany or elsewhere, would hardly venture to base his business upon such a series of heavy books.

During the forty years of his work, Anthoni's imprint appears upon but three publications in German. The number of classical editions is also much smaller than is usual with the publishing lists of the period. In planning his big series of Latin tomes, Koberger was addressing himself to scholars, and only to scholars of the orthodox Catholic faith. The production of editions of the pagan writers he left to his great contemporary, Aldus of Venice, and to Badius of Paris. The latter, in the preface to his edition of the *Letters of Politian*, refers to Koberger as "that glorious Nuremberger ... esteemed by honourable men everywhere as the prince of booksellers ... the man who conducted his business with the most exact integrity, and with the highest ideals ... with whom the production and distribution of good books was carried on as a sacred trust."^[74]

Conrad Leontorius, a Cistercian monk, and the well-known Jacob Wimpfeling, both speak of Koberger as "a true Humanist," which is evidence that, notwithstanding his theological interests and associates, Koberger was by no means to be classed with the narrow or bigoted Romanists. A man who stood in intimate friendly relations with such leaders of liberal thought as Conrad Celtes, Albert Dürer, and Pirckheimer,

must himself have possessed some intellectual breadth and distinctiveness. Koberger had a full mastery of Latin, which was, in fact, a first requirement for any publisher of scholarly literature, but with Greek his acquaintance appears to have been limited. He did not venture upon any such serious editorial responsibilities with his publications as those undertaken by Aldus, and later by the Estiennes, but he appears to have possessed excellent judgment in the selection of scholarly editions and advisers. One of Koberger's associates emphasises "his enormous capacity for persistent work, the far-seeing and wide-reaching enterprise, the conscientious regard for the rights of others, the large conceptions and the careful attention to details, the keen sense of humour, and genial and cheerful manner,"^[75] qualities which must certainly have formed an exceptionally advantageous combination for an effective business career. His correspondents in Basel speak of him with a cordial affection which indicated a closer relation than that of mere business, and further evidence of such friendship is afforded, after the death in Basel of his old associate Amerbach, by the care given by Koberger to Amerbach's children. In 1500, the Emperor Maximilian writes to "our trusty Anthoni Koberger, whose great service entitles him to honour, alike from ourselves and from the realm."

Koberger seems to have had the all-valuable faculty of making many friends and no enemies. He was valued by the Catholics as a most serviceable ally and representative, while by not a few of the Reformers he was regarded as a personal friend, and in all the bitter controversies of the time (the years immediately preceding the Reformation) there appear never to have been any harsh expressions used concerning the Nuremberg publisher. It is true, however, that it was not until after Koberger's death that the religious contests developed into their fiercer phase.

The most important work on the foregoing list of Anthoni's publications was, as said, the edition of Cardinal Hugo's Bible, in eight volumes folio. This work was undertaken in co-operation with Koberger's friend Amerbach in Basel, and the volumes were printed in Basel. The plan of the publication had, however, originated with Koberger, and the larger portion of the very considerable investment required for its production was supplied by him. The Hugo, whose notes and commentaries formed the basis for this edition, had been born at St. Cher in Dauphiné, about the year 1200. He was for a time an inmate of the Dominican cloister of S. Jacob, but, later,

became an instructor in the Theological Faculty of the University of Paris. He prepared a revised text of the Vulgate, known as the *Correctorium Bibliæ*, which was never printed, but which was afterwards utilised in the preparation of what was known as the Bible of the Sorbonne. The work published by Koberger had been written about 1240, under the title *Postilla in Universa Biblia juxta Quadruplicem Sensem*. It was used for two centuries (of course in manuscript form) as one of the theological text-books of the Sorbonne, but the codex from which Amerbach's type-setters did their work was secured from the Cistercian monastery in Heilsbronn.

Hugo was made a cardinal by Pope Innocent IV., and died in Italy in 1263. The text of the Scriptures as revised by him, together with his notes, were utilised by Luther and by a number of the later editors and translators of the Scriptures, and the enterprise of Koberger in preserving this text in printed form was, from a scholarly point of view, fully justified. As a commercial venture, the undertaking was, however, a mistake, the sales not proving sufficient to return the very considerable outlay. The Greek Testament of Erasmus, and the Lutheran versions of the New and of the Old Testaments, while not the only editions of the Scriptures which proved remunerative publications, were certainly very noteworthy exceptions as to the extent of their popularity and of their commercial value.

Koberger's publishing catalogue had included, as said, no less than fifteen impressions of the *Biblia Latina*, eight of which presented material differences of notes and commentaries which entitled them to be described as distinct editions. In addition to these, he interested himself in keeping in stock, and in describing in his *Sortiments-Catalog*, examples of all the noteworthy issues of the Bible as yet in print. These included the four-volume Bible printed in Strasburg, 1478-1480, containing the commentary of Walafrid Strabo (dating from 849) and the notes of Anselm of Laon, written in 1117, the Lyons editions of Castellanus and of Gradibus, and the several issues of Froben and others in Basel. The characteristic feature of all the editions of the Scriptures preceding the Reformation was the long series of notes and commentaries. Luther took the ground that the words of God in Holy Writ had been so overlaid and overweighted with the comments of men that their true purport was in danger of being lost sight of or not properly apprehended. In Luther's Bible, therefore, the bold innovation was adopted of printing the text of the Scriptures without note or commentary.

In the year 1483, the year in which Luther was born, Koberger published his German Bible. The text was translated from the Latin of the Vulgate, and was illustrated with woodcuts. I have not been able to ascertain what was the German idiom used for this version, but it was a form that never took any permanent place in the literature of the country. Luther, referring to the Nuremberg Bible, declared that “no one could speak German of this outlandish kind.”^[76] Two German versions of the Bible had been published before this of Koberger, one in Strasburg and one in Cologne. They were both based on the Vulgate, and neither was complete. Some years after the death of Anthoni Koberger, his nephew Johannes issued the first Nuremberg editions of Luther’s version of the New Testament and of the Psalms. Both volumes were printed by Friedrich Peypus, and both were illustrated by woodcuts. The fonts of type were the same as those used in Anthoni’s Bible of 1483. The imperial edict and the ecclesiastical censure do not appear to have been effective in preventing the sale through South Germany, in the usual channels, of these Nuremberg editions. I have not been able to find record of any correspondence between Johannes Koberger and Luther in regard to these editions. In 1525, Luther made overtures to Melchior Koberger concerning publishing arrangements for the Lutheran books in South Germany, and suggested using his book-shop in Wittenberg as a depot for the Koberger publications. The negotiations came to nothing however. The activity of the House appears by that time to have been exhausted.^[77]

Anthoni Koberger had born to him no less than twenty-five children, and it appeared, therefore, as if there should have been no difficulty in perpetuating the family name or in carrying on the work which had made the name famous. The publishing concern was continued, however, only until 1540, first by his nephew Johannes, and later by his sons Anthoni and Melchior. With the death of the founder, however, the energy and the initiative of the House appear to have departed, and, during the succeeding twenty-seven years, but fifty-three works were added to the list of its publications. These additions included a number of impressions of the *Biblia Latina*, editions of *S. Augustine*, *S. Ambrose*, and *Fulgentius*, and the *Geography* of Ptolemy, edited by Pirckheimer. The last work bearing the Koberger imprint was the *Bohemian Bible*, issued by Melchior in 1540. This was printed for him by Melchtaler, and, according to Hase, was not so

much a business undertaking as a contribution made by Melchior to the cause of the Bohemian Brothers, a sect in the teachings of which he had interested himself.

The fact that the first place in their undertakings was given by the Kobergers to editions of the Bible is the more exceptional, as, in the theological instruction of the time, the Scriptures certainly occupied no such place, and, for the thirty years following 1493, the Kobergers were the representative theological publishers of Germany. As their catalogue shows, however, they added to their long series of Bibles the chief works, first, of the Fathers of the Church, and, later, of the great scholastic writers. The editions of *S. Ambrose*, *S. Augustine*, *S. Jerome*, and *S. Chrysostom*, have already been referred to. Of these works there were, however, other, if less desirable, editions already in print. Among the authors first presented in printed form through the enterprise of the Nuremberg publishers were Petrus Lombardius (d. 1164), Hugo of St. Victor (d. 1141), Alexander of Hales (d. 1245), Thomas Aquinas (d. 1274), Bonaventura (d. 1274), and Duns Scotus (d. 1308).

The authoritative works on Canonical Law were issued from the Koberger Press, together with the series of Papal Decretals of Gregory IX., Boniface VIII., and Clement V. A much smaller measure of attention was given by him to classic writers, but his list included an edition of *Selections from the Teachings of Plato*, prepared by Alkinous, and the *Introduction to Aristotle* of Porphyry. A work which has retained a longer vitality than any of the writings of the above formidable series of scholars is the collection of monkish tales, probably compiled in the thirteenth century, and known as the *Gesta Romanorum*, the first printed edition of which was issued by Koberger in 1494. In the year 1518 (that is, five years after the death of Anthoni), there was published from the Koberger Press the *Germania* of Franciscus Irenicus, which included a special chapter on Nuremberg, contributed by Conrad Celtes. Hase speaks of this as the first noteworthy attempt to present German national history from a popular and patriotic standpoint.

The catalogues of nearly all of the publishers whose work was done within the half century succeeding Gutenberg were devoted to what would to-day be described as "heavy" literature. The most noteworthy exception to this statement is the list of publications issued by Caxton in London, between

1476 and 1492, a list which included hardly any “solid” books. The long lists of folios of scholastic writings give to the student of to-day the impression that these first publishers felt a very serious responsibility indeed in connection with the use of this “God-given art” of printing, and would have considered the use of the printing-press for frivolous literature as a kind of breach of trust. This description would, however, apply with exceptional force to the undertakings of the first Koberger, whose name appears to have been associated with no work more trifling than the famous *Gesta Romanorum*, which, while indeed to be described as fiction, was fiction of a very pious character and purpose. The catalogue of Koberger constituted, in fact, a very good representation of the foundations of scholarly Catholicism. The Catholic teachers, who rested their contention for the supremacy of the Roman Church upon history and tradition as interpreted for fifteen centuries by the scholars of the Church, depended for the material of their teachings upon such folios as those produced by Koberger. Weighty as were these folios, and assured as appeared to be the foundations upon which the great structure of ecclesiasticism had been raised, their instruction was undermined, and their authority, for a large portion at least of the community, was overthrown a little later by the influence of the widely circulated pamphlets and sheets, the *Flugschriften*, which brought to the people the teachings of the Reformers.

For the years between 1517 and 1532, the contest for the control of German thought and of German faith was fought out very largely by means of the productions of the printing-press, and with these productions the fight was between the folios and the pamphlets, the former standing for the traditional faith of the Church Universal, and the latter for the doctrines of the Reformers. In North Germany the victory rested with the pamphlets. Anthoni Koberger’s death occurred before the beginning of this new epoch of thought and of this new phase of publishing. His work had been completed during the age of orthodox scholarship, the authority of which, previous to 1513, had hardly been seriously questioned.

Jacob Wimpfeling, a Humanist, who was also an orthodox Catholic, writing in 1501, says (in a phrase which is curiously akin to the expressions from the Berlin or Leipzig of to-day): “We Germans practically control the intellectual world. We use our power and our influence for the service of God, for the care of souls, and for the development of the people.... It is for

this work that we owe the largest acknowledgment for the service of a man like Koberger, who employs his publishing facilities only for the production of that which is best.”

At about the same date Amerbach writes to Koberger: “You have never printed anything that is worldly or frivolous; your books are all of righteous and godly literature. For the support of the true faith and for the development of godly scholarship, you have brought before the world the books which are the most trustworthy and authoritative, the books which have stood the test of time.”^[78]

It was to Koberger’s business advantage that the fiercer strife of the Reformation was delayed until his own career was at an end. As already indicated, the religious controversies and the strife which they engendered interfered seriously with the demand for existing literature. The lists of the German publishers of the first decade of the sixteenth century, were devoted almost exclusively to editions of the Fathers and to works of doctrine or of devotion prepared for Catholic readers, together with editions of certain selected classics. The Lutheran movement lessened to a very great extent the demand for these three classes of books. With such burning issues before them as were presented by the leaders on either side of the great controversy, the people no longer had leisure for pagan writers or for old-time theological writings. While large numbers were absorbed in the tracts coming from Wittenberg, the others whose sympathies and belief remained with the Church of Rome were more interested in the pamphlets of writers like Eck or Cochläus, than in the *Confessions* of S. Augustine or the treatises of S. Jerome. The publishers heretofore devoted to theology, who were unwilling to place their imprints upon the works of the Lutherans, and who were also out of sympathy with the bitter and often by no means scholarly pamphlets of their opponents, found their business seriously undermined by the great contest which was dividing Germany. While the Reformation did very much to increase the demand for printed material and to further the business of a number of publishers and booksellers throughout Germany, it had a disastrous effect upon the business of the Kobergers, and was an important factor in bringing that business to a close.

A further important cause of the weakening of the foundations of the concern was the impairment of the capital, caused by the withdrawal from year to year of the amounts due to the long series of heirs, but few of whom

were prepared to retain any interest in the book business. Several of the sons and grandsons returned to the old occupation of the Kobergers, and became workers in gold and silver.

Anthoni Koberger had, in common with the other printers of Germany, followed Gutenberg in adopting for his type the style that we describe as Gothic, but for which the German writers of the time use the term *fraktur*. In 1492, however, he used for his edition of *Virgil* a type based upon a Venetian model, similar to that in use at this time by the father-in-law of Aldus. It is probable that the most distinctive contribution which had been made by Gutenberg to the work of book-printing was the discovery of a method of making type by casting. The art of cutting or engraving letters and other symbols was, of course, no new thing. The technical training of Fust, himself a goldsmith and stamp-cutter, was doubtless of material service in connection with the development of the manufacture of type, as well as in the production of designs for initials and tail-pieces. Nuremberg had long been a centre for skilled artificers in metals, gold, silver, and copper, and their services were largely made use of by Koberger and other of the earlier printers.

One result of utilising the letters of known scribes as models for the fonts of type was to secure for each font a very distinctive individuality of its own. Luther was, for instance, able to claim that through the special character of his Wittenberg type, modelled on the script of his own scribes, the authorised editions of his books could be identified, and could be guaranteed as correct and complete.^[79] The fonts in Koberger's printing-office did not include any Greek text, and in the edition of *Boëthius*, issued by him in 1576, which was in other respects a beautiful piece of typography, the lines of quotations from the Greek were left blank, to be filled in by hand. Very few of the German printers of the time possessed any Greek fonts. While Latin was their working language, the newly revised or newly discovered Greek had for them still an unfamiliar aspect. Thomas Anshelm, writing from Hagenau in 1518, says of one of Koberger's younger authors: "His style is bad; he is bringing in too much Greek." Hans Grüninger, of Strasburg, who took charge for Koberger of the printing of the great *Geography* of Ptolemy, found no little difficulty with the Greek terms. He writes to the editor, Pirckheimer: "The Greek is very troublesome, and is costing me altogether too much." Pirckheimer on his

part complains: "Koberger promised me that there should be a full supply of Greek type, and I find out only now, in reading the proofs, that your type has neither accents nor points." In the printing of Greek, the publishers of Venice and of Paris were at this time considerably in advance of their German contemporaries.

The leading German publishers of Koberger's generation were fortunate in having at hand a number of scholars who were ready to render service in the selection and editing of manuscripts, in the collating of texts, and in the supervision of the work of the typesetters. In the beginning of the sixteenth century, a man who was competent to fill the office described in the publishing records as "press-corrector," required to possess a varied and comprehensive scholarship. A mastery of Latin was an acquirement so usual as not in itself to constitute any claim to scholarly attainment. With this knowledge, it was, however, essential, at a time when so large a proportion of the works printed belonged to the class of theology, for the corrector to be versed in Hebrew and in Greek. As the typesetters were collected from different parts of Europe, it was also convenient, if not necessary, for the man who supervised their work to possess a working knowledge, at least, of German, French, Italian, and Dutch. The selection and collation of manuscripts, with the purpose of securing a fairly correct "copy" for the printed text, called for a certain measure of skill in palæography, and also necessitated such familiarity with the classic writers or Church Fathers as would enable the more evident blunders of the scribes to be corrected by the general sense of the context. It was not unusual, as the records of various of the earlier publishing offices show, to utilise as the basis of the printed text half a dozen, or occasionally as many as a dozen manuscripts, in which case the preparation of the final "copy" for the typesetters rested with the correctors. Among the scholarly associates who did work of this kind for the Press of Koberger, were his friend Amerbach, of Basel; Professor Frissner, of Leipzig; Pirckheimer, of Nuremberg; Von Wyle, Wimpfeling, and Beckenhaub. The last named was an ecclesiastic from Mayence.

Among the responsibilities that came upon the correctors was that of visiting the libraries or monasteries where famous manuscripts were preserved, and of arranging, when practicable, for the hire or the loan of such manuscripts. When, as was frequently the case, the custodians were unwilling to permit their parchments to go out of their hands, the transcripts

for the use of the typesetters had to be prepared (often with considerable difficulty) in the place where the manuscript was stored—sometimes even on the old *armarium* (or library chest) to which the parchment was chained. Some of these transcripts were made by the correctors themselves. From time to time, when it did not seem practicable to arrange for the copying, we find the publishers offering for the original manuscripts prices which, under modern calculations, seem to be exorbitant, and which must have constituted a very serious addition indeed to the risk of these earlier publishing undertakings.

Pirckheimer writes to Hans Koberger, in 1520, concerning a manuscript of Fulgentius: “They told me in the first place that it absolutely could not be bought, but finally, after increasing our offer step by step to a sum that I am almost afraid to report to you, I managed to bring the volume away with me.” In September, 1485, Busch writes from Italy to Amerbach, who is acting on behalf of Koberger: “I am sending to you with this what I believe to be a magnificent copy of the *Institutes* (of Cassian), the text of which has been carefully collated. This parchment must be preserved with exceptional care, as, if a single spot should come upon it, we should be liable for heavy damages. It must be returned to me not later than S. Martin’s Day, and the transcribing must be done in your own house, from which the parchment must not be taken.”

Busch appears to have continued to perform this class of service for Koberger, for we find him, ten years later (in May, 1495), writing again as follows: “I have succeeded in getting hold of a beautiful copy of *Hugo*. I am not allowed to remove the manuscript, but am having transcripts prepared from it. I have three good writers employed in the work, who are able to turn out each six *quaternes* a week.” The *Hugo* here referred to was the text of the *Postillas* or commentaries written in the thirteenth century by Cardinal Hugo, which formed the basis of the great Hugo edition of the Scriptures, the publication of which was begun by Koberger in 1497, and was completed in 1504. The set comprises seven volumes folio. The manuscripts upon which the text was based and which were doubtless those referred to by Busch, formed the great treasure of the library of the Cistercian Monastery at Heilsbronn. This particular parchment, or series of parchments, had been written by, or had been written under the direction of, Abbot Conrad, between the years 1303 and 1329. The editors who

coöperated with Koberger in the production of the Hugo Bible were, in addition to Amerbach, Conrad Leontorius, the Humanist Jacob Wimpfeling, and Heynlin von Stein. For the editing of *S. Augustine* Koberger secured the help of Augustin Dodo, and his edition of *S. Jerome* was supervised by the great scholar Reuchlin.

The association of Koberger with Albert Dürer has already been referred to. Some time before Koberger's book-presses began their work in Nuremberg, Dürer had been using hand-presses for the impressions of his woodcuts and of his designs engraved on copper. Hase is of opinion that Dürer gave direct coöperation in Koberger's press-room, and that the excellence and evenness of print of the Koberger editions may be very largely credited to Dürer's artistic supervision.^[80]

At least one work remains which bears the imprint of Dürer as printer. A volume containing the *Book of Revelation* bears on its title-page, *Gedrucket zu Nürnberg durch Albrecht Dürer, Maler, nach Christi Geburt MCCCC. und danach im XCVIII. jahr.* There is, however, no record of the establishment of any book-printing-office under Dürer's ownership, and it seems probable that the volume in question was printed on a Koberger press under Dürer's supervision.

A few years later, we shall find the artist and engraver Cranach associating himself in a similar manner with the work of Luther's printers in Wittenberg. The connection between the work of designers who were also engravers and who usually did the printing of their own impressions, and that of the book-printers in whose volumes many of the same designs were included, is a very obvious one.

After the time of the close of the business of the Kobergers, a considerable change took place in the character of the publications issued in Germany. A continually increasing proportion of these were printed in German, while the costly folios, quartos, and octavos were to a very great extent replaced by low-priced duodecimos, cheap pamphlets and tracts (*Flugschriften*). The burning issues brought to the front by the Reformers were of interest not only to scholars, but to the mass of the people, and to supply information on these issues called for reading-matter printed in the vernacular, and in the cheapest possible form. There would not, at first thought, seem to be any reason why this new demand for cheap books on the part of the masses

should lessen the sale to the educated classes of literature in more costly and permanent form. This was, however, certainly the effect during the quarter of a century in which the earlier issues of the Reformation were fought over. The Reformers had their hands full with the controversy. They were making Church history, and had little time for the study of the history of the Church in past centuries. The writings of the Fathers of the Church, who were the spiritual ancestors of the Protestants no less than of the Catholics, were for the time put to one side, although some years later they again found place in the libraries and in the university work of the Protestants. For the study of the philosophy of the schoolmen and for a proper appreciation of the literature of classic times, the period of the Reformation was likewise unfavourable. Philosophy and poetry demand periods of leisure and cannot be pursued to advantage during periods of civil and religious strife.

The bearing of these influences upon the publishing conditions of Germany in the sixteenth century is obvious. There was, after 1517, an enormous increase in the circulation of printed matter and a very great development in the habit of reading on the part of the people at large, and the intellectual activities engendered by the popular interest in the religious and ecclesiastical controversies had in the end a very important part in furthering the growth of the literary and the publishing activities of Germany. During the earlier years of the contest, however, the first result was an actual diminution in the demand in Germany for the class of books to the production of which publishers of the higher grade had devoted themselves. Some of the firms, who could not easily adapt themselves to the new conditions, or who did not find themselves in sympathy with the new influences, decided, like the Kobergers, to retire altogether. New men took the lead in the publishing business of Germany. The first period in the age of printing, the period in which its service had been rendered almost exclusively to scholars, came to a close. German replaced Latin, and the Press became the servant of the people at large.

In the general course of Koberger's publishing undertakings, the question of compensation for authors, or at least for original work of authors, could have arisen but very seldom, and in this respect his experience was identical with that of publishers generally in his generation. Their publications consisted chiefly, and with some firms exclusively, of works of an earlier

time, the authors of which had long been dead; in the limited instances in which they used their presses for the books of living writers, the main purpose of these writers was to bring their productions before the public, and they considered themselves under obligations to the publishers who were willing to incur the risk and expense of the undertaking. The books written by the few authors of Koberger's generation were for the most part works of doctrine or having a dogmatic purpose of some kind. The object of their production was not the possibility of gain, but the influencing of public opinion, the furthering of a cause, the overthrow of abuses, or the defence of institutions that had been assailed. For such aims the chief thing, almost the only thing, to be considered was the securing of as wide a circulation as possible. Apart from this consideration, these writers might easily have considered it presumptuous to expect compensation for the publication of their productions, when the publishers had available for their use all the literary heritage of antiquity, together with the long series of writings of the Church Fathers. It was also, of course, the case that under the publishing and bookselling conditions of the time, when it was by no means easy to bring effectively before a reading public the works of authors whose names were famous in literature or in the records of the Church, the difficulty must have been enormously greater in the case of books, however distinctive in themselves, by writers who were not known to the public. There was, in fact, no adequate machinery for bringing new books to the attention of possible readers. Many years were still to elapse before anything in the shape of a periodical came into existence, and in the impossibility of reviews or of advertisements, there was no way of giving or of distributing information about new books except by word of mouth or by personal correspondence.

It is to be borne in mind that I am speaking of the years immediately preceding the Reformation. The enormous public interest aroused by the writings of Luther and his associates brought about an immediate change in publishing methods and possibilities, a change which will be described in a later chapter. The books of Erasmus, which in large part preceded the Lutheran writings, must be considered as having constituted a noteworthy exception to the literary conditions of his time. Their record also will be given farther on. It remained the case, however, that with a few inconsiderable exceptions, the only moneys paid to authors by the first Koberger were for editorial service. Hase mentions that in the production of

the great *Chronicle* of Schedel, funds had to be provided only for the illustrations and for the printing, the compiler, Hartmann Schedel, and his associate, George Alt, being willing to accept their compensation in the form of sets of the work.

The scholars of the Humanistic school had made it their chief interest to further the production and the understanding of the works of the classic writers, and when the influence of the Reformation brought about a reaction against the influence of the literature of Greece and Rome, these Humanist scholars found their special occupation gone. Many of them sought occupation on the staffs of the publishers and earned a livelihood in editorial service of a different character, or sometimes in purely hack work in collating and proof-reading. When the Basel edition of *S. Jerome* was in preparation, Amerbach applied to Reuchlin for aid in connection with the printing of the Hebrew portions, and wrote, "We shall be very ready to pay for your help whatever you may ask." Reuchlin had shortly before completed the publication of his *Rudimenta*. The work had been undertaken at the author's cost, and as the sales were but small, he found himself in trouble with his printer, Anshelm. He wrote to his good friend Amerbach, "I shall be well pleased to do the editorial work required for the *Jerome* without compensation if you will relieve me from the claims of this troublesome Anshelm."^[81] It is evident that Reuchlin, while imagining that he was publishing his *Rudimenta* at his own risk, had in fact left the payment of the printer's bill to be contingent upon the sales of the book, having no other resources available, and the printer had, therefore, been made involuntarily a sharer of the risk, while if the work had succeeded, he would have been entitled to no share in the profits. Anshelm's account must, however, have been settled by Amerbach, in consideration of the work done by Reuchlin on the *Jerome*, as we find him, later, again in friendly relations with the Hebrew scholar.

Shortly after the death of Anthoni Koberger, we begin to find more frequent references in the correspondence of the publishers of Germany to compensation for original literary work. Boniface Amerbach had recommended to Froben the *Lucubrations* of Zasius, and writes in 1518 concerning the author: "Zasius thinks that he ought to be paid for this work, and speaks of thirty florins as a proper price. I should, however, not assent to any such demand. He is anxious to get his book into print, and had said

before that he should expect to be paid well if it succeeded, and should be quite ready to accept little or nothing if it failed to sell, a result which, however, he could not believe possible.”^[82] In 1524, Hans Koberger arranged with Zasius, through Dr. Roth, for the publication of the *Intellectus Juris*. He first offered as honorarium fifty or sixty copies of the book. To this suggestion Zasius replied: “I must have my honorarium in hard cash.... I have had an enormous amount of labour and pains in getting this material into shape, and I ought to receive not less than fifty guildens.” This was an early instance of the very natural, though not very reasonable, expectation or requirement on the part of the author that his compensation ought to be based upon the extent of the labour given to the book, instead of upon the return that the public was willing to make for the book itself.

Koberger did not come to terms for the *Intellectus Juris*, and it was finally published by Cratander, who paid for it twenty florins. Zasius does not appear, however, to have got along very well with Cratander, for we find him a little later breaking away from him with the word, “The devil take the printers [*zum Teufel mit deinen Drückern*], who never have treated me decently.”^[83] Zasius appears to have had his full share of the *genus irritabile*. Some expressions in his correspondence recall the references made by Martial to his four publishers.

He was a near friend of Zwingli, and a number of the letters preserved in the *Epistolæ* were addressed to Zwingli. Zasius was in sympathy with the earlier efforts of the Reformers against the abuses that had crept into the Church, but he held with Erasmus that the duty of Christians was to reform and not to destroy or to divide the Church.

The authors were doubtless in a position in many cases to dispose of their free copies for money. It is evident, however, from the literary correspondence of the time, that the practice was very general on the part of authors of sending complimentary copies to each other, a practice which, as developed, came to absorb a substantial portion of the edition. Authors were able to build up their libraries with books received in exchange, but collections of books, however essential or desirable, did not help directly towards income. This distribution of complimentary copies became naturally a still more considerable item when there was question, not simply of an exchange of scholarly compliments, but of the widest possible distribution of a teaching or a doctrine. Thus Luther is described as giving

away whole editions of certain of his monographs, which he could do the more easily as the editions printed in Wittenberg were, for the most part, the property of the author.^[84]

The practice of securing money presents in consideration of dedications or of eulogies printed in prefatory epistles, seems to have played an important part in the calculations of certain classes of authors during the first half of the sixteenth century. Cuspinian writes to Pirckheimer, in 1501, asking counsel concerning the advisability of dedicating the first volume of a work he had in press with Koberger to the chief magistrate of Nuremberg. Pirckheimer tells his friend that some more advantageous patron could doubtless be found. "You must remember," he writes, "that we are here a very commercial people ... and some among our magistrates hardly understand what literature is."^[85] Five years earlier, however, Martin Behaim (or Behem) had received from the Nuremberg magistrate of that day a gift of twenty-four florins for some honourable mention of the magistrate's name on his big map of the world.^[86] A year or two earlier, namely in 1488, the magistrates in Nuremberg had given to Siegmund Mensterlin thirty-seven florins for his *Chronicle* of the city. This may, however, be considered in the light of a direct payment for a service to the city, rather than as an honorarium for a compliment. In 1502, Conrad Celtes received in like manner from the treasury in Nuremberg the sum of twenty florins, "for his labour in the description of our city and for the record of its origin."

The general question whether it befitted the dignity of authors (considered possibly not so much in the light of literary producers as of gentlemen who had happened to interest themselves in literature) to receive compensation for their work, was a matter of debate during a large part of the sixteenth century. It was inevitable, while all the conditions of literary production and distribution were still to be shaped, and while the difficulties of estimating with any degree of accuracy the possibilities of securing commercial returns for literary productions were still so great, that many questions concerning the division of ownership and returns, when any returns accrued, must arise and must for some time remain unsettled. The whole matter of compensation for literary service remained, therefore, during the period between the beginning of printing and the establishment of some system of control of the books printed, in a hap-hazard and anomalous condition. We

find authors of one group, whose interest is limited exclusively to the circulation of sound doctrine, wondering that any writers of doctrinal works could permit themselves to receive pay for bringing the truth to mankind. We find other equally unselfish but more far-seeing authors like Luther and Melancthon, accepting pay for books sold, if only for the purpose of instituting a larger production and a wider distribution of similar books. We find writers devoting their pens to the defence of the Roman Church unwilling to accept any returns from their booksellers, but quite ready to receive compensation for their labours in the form of presents of money from pope, cardinals, or bishops. Other authors, such as Cuspinian, whose letter has been quoted, who considered it beneath their dignity to make an agreement with their publishers for a royalty or an honorarium, were quite willing to utilise their pens in the composition of high-flown complimentary epistles or of fulsome dedications, which were, as they hoped, to result in bringing to the writers substantial presents from the patrons thus flattered. In the bitter controversy which Ulrich von Hutten, in the last year of his life, carried on with Erasmus, and in the course of which the knight took pains to bring together a long series of invectives, he found no ground for criticism in the relations borne by Erasmus to various patrons for whose gifts he had been a suppliant, but thought he could say nothing more invidious of his scholarly opponent than that he had received moneys from the publisher Froben, moneys which had been earned by the sale of the works of Erasmus.

The point of view and the standard of action were, however, in the course of a few years to be materially changed. The organisation of the German book-trade, carrying with it a substantial though by no means complete measure of protection for the productions of each of the publishers taking part in the organisation, had as its immediate result a great development in literary production, in the circulation of books, and in the extent of the returns secured. A later and hardly less important result was the securing for original literature of an assured business foundation. Literary producers, thus placed in a position to secure a compensation for their labours proportioned to the extent of the value placed by the community upon their production, were freed from the necessity of earlier years, of seeking gifts and of depending upon patrons.





CHAPTER VIII.

FROBEN OF BASEL.

1460-1528.

JOHANN FROBEN, who achieved a well-deserved reputation as one of the most enlightened and enterprising publishers of the sixteenth century, and who will be remembered as having been honoured with the friendship and confidence of Erasmus, was born in 1460, in Hammelburg, a village in Franconia. He studied in the University of Basel (which had been founded the year before his birth), and achieved distinction as a scholar in Latin, Greek, and Hebrew. He was trained as type-setter and press-corrector by the famous printer Amerbach, and thus equipped, he secured citizenship in Basel in 1490, and in the following year began business in his own name as a master printer and publisher. Gutenberg had been dead for twenty years, but the business established by Fust and Schöffer with the original Gutenberg plant (representing the earliest printing concern in Europe) was still being carried on by the son of Schöffer. The work of Caxton, which had been begun in Bruges in 1470, had, in 1474, been transferred to London, and closed with his death in 1492, the year in which Aldus Manutius began his printing operations in Venice. In Paris the leading typographer of the town was Badius, the predecessor of the more famous Estiennes.

At the time Froben began his work, the methods of carrying on a printing-office, and the machinery for the production and distribution of books, were still to be established. Type-setters, pressmen, and correctors were all to be trained, and every technical detail of the work of book-making called for the personal supervision and often for the individual inventiveness of the master. Upon him came also of necessity the responsibility for the selection of the work to be undertaken, the securing of text for “copy,” the collation and preparation of the “copy” for the type-setters, and an unremitting watchfulness over each page as put into type. It is to be borne in mind that nearly all the earlier books were printed in Latin, which for the majority of the Swiss or German compositors was an unfamiliar tongue, a circumstance that very seriously increased the risk of type-setting errors. It is surprising

that in the face of difficulties of this kind, the books of the fifteenth century present, with rare exceptions, a fairly correct text.

Froben's first publication was a Latin Bible in convenient octavo form. The several earlier Bibles had been issued in folio, and this less costly edition won for itself at once a widespread appreciation. Froben's undertakings were restricted to books in Latin and Greek—that is, to works addressed to scholars. He left to later publishers the task of preparing books in the vernacular for the unlearned reader. In fact, the interest of the latter in 1492, was in the main limited to almanacs, horn-books, legends, and such picturesque compendiums as the *Sachsen-Spiegel*. For general literature, the common folk was not yet ready. The educational influence of the Reformation was required to arouse the intelligence of the people and to induce a popular demand for reading-matter.

In 1500, Froben, then forty years of age, married Gertrude, the daughter of a prosperous bookseller named Lachner. The latter supplied means for the extension of the printing-office in which, in 1504, seven presses were at work. During the thirty-six years of the business career of Froben, he printed no less than two hundred and fifty-seven separate works, many of these being of distinctive importance and of considerable compass. Among these were the complete works of S. Jerome, which appeared in 1516 in nine folio volumes; the works of S. Augustine, completed in 1529, in ten folio volumes; the New Testament in Greek (this was the first edition of the Greek text, and it was, later, utilised by Luther in the preparation of his German version); and the writings of Erasmus, who appears to be the only contemporary author whose books were undertaken by Froben. These proved to be good property for both the author and publishers, as Erasmus was addressing himself to the scholarly readers of the civilised world, and his writings were eagerly read throughout Europe by both the clergy and the laity. In addition to the authorised editions issued in Basel, Venice, and Paris, there were many piracy reprints, but notwithstanding the competition of these, the author was able to secure from his three publishers, Froben, Aldus, and Badius of Paris, returns that made a material addition to his income. He was probably the first author in Europe, writing after the invention of printing, who made any money by his pen. Froben secured the coöperation, in the course of his publishing work, of a number of learned associates who rendered assistance as literary advisers, editors, and press-

correctors, the list including, among other scholars, Erasmus (who was for many years an inmate of his house), Oecolampadius, Heiland, Musculus, and Gelenius. To Froben also is to be credited the discovery of Hans Holbein. Holbein was born in Grünstadt in 1497, and came to Basel about 1517, with the view of making his living as a wood-engraver. Froben was one of the first to give him employment, and many of the designs in the Froben books issued between 1518 and 1522 were both drawn and engraved by young Holbein. It was through Froben that the talent of the young artist was brought to the attention of Erasmus, and Erasmus was the means of securing an invitation from Sir Thomas More for Holbein to visit England, where he spent the rest of his life and where his most important art-work was done. King Henry VIII. attached him to the Court and bestowed on him a pension.

Froben's list included a number of "orthodox" theological works, and remaining as he did in the fold of the Church, the influence of his Press was as a whole exercised consistently against the doctrines of the Reformers. His imprint appears never to have been associated with any of the doctrinal books or tractates of the Lutherans, Calvinists, or Zwinglians.^[87] Not a few of Froben's more costly publications were undertaken in coöperation with other publishers, a kind of partnership agreement being entered into for each particular book taken up in this manner. His more important associates were Johann Amerbach, who took high rank among the scholarly printers of the time, Johann Petri, also of Basel, and Franz Birckmann of Cologne. This method of dividing the risk of an undertaking between several publishing concerns became, later, a very general practice with the publishers of London.

Erasmus, writing from Basel, in 1523, to Vergilius Polydorus, says: "I find here three methods of bringing a book into print. Sometimes Froben takes upon himself the entire risk and outlay.... In other cases the publication is undertaken for the account of some person interested, and Froben simply reserves a commission for his services; and under a third arrangement, the publication is undertaken by two or more firms, associated as a temporary company.... It is now being considered in Paris whether this book of yours [Erasmus does not mention the title of the book] is to be published by Birckmann alone, or by the 'Company.' As soon as Froben has returned from the Fair (at Frankfort) I will write to you what the decision has been. I

hope that I shall be able to arrange the matter to your best advantage.” Whatever may have been the pressure of work in the Froben printing-office, either in connection with the completion of books for the Frankfort Fair, or for any other cause, there appears never to have been question of postponing the publications of any of the writings of Erasmus himself. For these the presses were always ready because for these there was always a waiting public.

A year or two later Erasmus writes: “Froben is expending enormous sums for manuscripts and for collation and revision of these.” Among the revisers referred to in this statement was the famous scholar Beatus Rhenanus, who having studied philosophy in Paris and sojourned for a brief period in Strasburg, had migrated to Basel, and was devoting himself exclusively to the work of the Froben Press. He served not only as a reviser and press-corrector, but as a literary counsellor, to whose suggestions were due a number of Froben’s scholarly undertakings. Erasmus speaks with high regard of his learning and conscientiousness and of the value for Froben of his coöperation.

One of the charges made by Ulrich von Hutten in his little controversy with Erasmus (a controversy in which the last word was the *Spongia*, or *Sponge*, of the latter) was that he received money for work done for a printer. The charge was well founded, for Froben paid Erasmus two hundred guldens a year for his services as editor or reviser. It does not appear from the records that have been preserved whether he received, in addition, his board and lodging during the time that he sojourned in his publisher’s house, or whether there was for this a separate arrangement. There is also no precise statement concerning the receipts that came to Erasmus from the sale of Froben’s editions of his books, but the scholar makes a number of appreciative references to the effective service rendered by his Basel publishers and to the importance of these receipts. It is evident from the phrases used by the pugnacious Von Hutten that the earning of money by labour was still considered by many as something unbecoming a man of gentle birth or gentle station,—and, as before said, Erasmus was one of the first of European authors who had secured an income from the work of his pen. It would be more exact to say, from the sale of his own productions, for a considerable number of scholars of his generation were accepting compensation for services as editors and press-correctors.

Kapp is of opinion that Luther, whose writings secured a wider circulation than even those of Erasmus, never accepted any honorarium, and that his compensation for his books was limited^[88] to a few complimentary copies. Luther speaks of “the exceptional greed” of a translator who secured a gold gulden for the rendering of a quarto. The number of pages is not specified, but we may hope, for the sake of the translator, that the quarto was a thin one.^[89] On the other hand, Thomas Murner sold his *Geuchmatt* to the Strasburg publisher, Hupfuff, in 1514, for four guldens, a sum which Kapp estimates as the equivalent of forty guldens to-day. I will give consideration in a later chapter to the data that have been preserved concerning the general compensation secured in Germany during the century succeeding Gutenberg for literary or editorial work. The first of the books of Erasmus to be issued by Froben was the famous *Encomium Moriae* (*The Praise of Folly*), printed in 1515. Of the first Basel edition, 1800 copies were sold in the first six months. The Latin version was printed also by Aldus in Venice and by Badius in Paris. A German version was speedily issued, illustrated with designs by Holbein, and this was followed by translations in French and Dutch. During the lifetime of the author, no less than twenty-seven editions appeared, the larger number of which were unauthorised and brought to the author no returns. *The Praise of Folly* was the first printed book that secured during the lifetime of its author what may be called a “world-wide circulation,” which for the “world” of that time was practically limited to Europe. The circulation of many of the treatises of Luther was very great, but these found their way to few but Protestant readers, while in its original Latin and in the various versions in the vernacular, *The Praise of Folly* was welcomed in all circles—Protestant, Catholic, lay and ecclesiastical, scholarly and unlearned. *The Praise of Folly* has taken its place with the world’s literature, but a still greater success with the generation of the author was secured by the next book of Erasmus, the *Adagia*, or *Proverbs*. Of this there were printed in the authorised editions, by Froben, between 1513 and 1539, ten thousand; by Aldus, in Venice, between 1508 and 1524, eight thousand; by Schürer, in Strasburg, between 1513 and 1520, eleven thousand; by Badius and Philippus, in Paris, three thousand; or, in all, thirty-two thousand copies. There were also a number of unauthorised editions issued in Lyons, Cologne, and elsewhere, the statistics of which are not available.

The third of the more important works of Erasmus, the *Colloquia*, which may be described as a kind of predecessor of Landor's *Imaginary Conversations*, also published in Basel, Venice, and Paris, found a sale (for the authorised editions) in a term of ten years, of about twenty-four thousand copies. The demand for this was hastened by the rumour that it was shortly to be placed on the *Index Expurgatorius*.

Erasmus speaks of Froben as "the Aldus of Germany," and can give him no higher commendation. Froben had selected for his publishing symbol or trade-mark a design representing an upright staff on the point of which rests a dove, about which are twined two serpents with their heads raised towards the dove. It is not difficult to imagine the kind of interpretation that would be given by the wits of a modern authors' society to such a symbol, with its suggestion of the innocent and hapless author lifting his aspirations towards the heavens, but powerless to escape the toils of the wily publishers of the earth, earthy. No such criticism appears, however, to have arisen in the sixteenth century to disturb Froben's peace of mind.

His best friend, the most influential author of his time, expresses the wish that his serpents may prove as serviceable for Froben as the dolphin has been for Aldus, and that in combining, as he does, the innocence of the dove with the wisdom of the serpent, Froben may achieve a well-earned fame and future.^[90] Rhenanus, Mutianus, Rufus, and many others of those who were proud to call themselves the *Auctores Frobeniani*, are all in accord in their appreciative references to the high literary ideals, the thorough scholarship, and the liberal business methods of the great Basel publisher.

I insert here certain letters from Zwingli to Beatus Rhenanus, which have a bearing upon the esteem in which Froben was held by his literary friends, and which contain also some interesting references to the books most desired by Zwingli.^[91]

Zwingli to Beatus Rhenanus.

ZURICH, February 22, 1519.

... We have received from Froben certain presents of books. While they are pleasing on account of their contents, that they are the gifts of Froben, adds to their value.... If Froben has them,

let him send three copies of *Sallust*. Also send some more copies of the *Paraclesis* and *Compendium* of Erasmus.

March 25, 1519.

... Urbanus Rhegius has just sent us a little book, edited by himself, on the *Dignity of Priesthood*.... We wonder very much that Froben, who is usually so wide awake, has in this instance been asleep and has allowed such a book to go forth from his press. While the book has been made by *Faber* it is not well “*fabricated*.”

April 24, 1519.

... *Phalarismus* has not yet come to us; and only a single copy of *Febricula* (two dialogues of Hutten’s); please send if possible several copies; also the *Paraphrases* (of Erasmus) and the *Apology* of Zasius against Eck.... We will send the money to Froben, I trust, sometime within the month. We are continually in want of the *Etymologicum* and of *Pliny*, *Lucian*, and *Cyprian*.... Greet Froben and all of his....

June 7, 1519.

... I am indebted to Froben for many favours and am also under great obligations to yourself because you are at such pains to provide me and my flock with the things of value to us which appear from time to time. Will you be so kind (for what will one not ask of a patron of letters?) as to put into the press, if Froben is not thereby inconvenienced, some dialogue of Lucian annotated by Erasmus, yet not so annotated as to become an interpretation, for that would induce laziness in the boys. He may, if he will, take in its place the first book of Aristotle on animals.... Clauserus the physician asks from Froben the works of Copus to be prepared in his own name.... Greetings to Froben.

June 25, 1519.

... Lichtenberg says that Capito has a copy of *Lucian* and of *Aristophanes*; these I wish you would induce him to sell to us as soon as he returns home. When the writings of Luther have come from the press, please send them to us by the first

messenger or carrier who can bring a considerable number of copies. He shall have the money at once.

Oct. 12, 1520.

... Jerome Froben had accommodated us with a Greek *Euripides* which now, as is right, he wants back. Still he holds out the hope that he will be able to buy a copy from Curio, and so I send three florins that he may buy one there and may bind it in place of the one I have.... We gladly send him this copy of his and he can give the money to his father for the Greek books which he promised to let us have for ten florins.

September 8, 1521.

John Froben sent me as a gift some time ago the *Complaint* of Hutten, the Apostolic man (for the man is a bubble) whom Eck cudgelled.

The following letter from Froben himself is interesting as indicating the personal relation borne by the publisher to certain of his publishing undertakings:

John Froben to his friend Zwingli.

Just as I was about to publish the little book of C. Cornelius Tacitus upon the customs and locations of the Germanic tribes, a friend [Beatus Rhenanus] showed me a brief commentary which he had prepared stating who now live in the locations described by Tacitus. This seemed to me to be a good idea, as it is a mistake to confine one's reading to the more ancient authors to the neglect of those less remote. Think of the changes which have occurred since Cæsar's day! Therefore, while his *Commentaries* are worthy of the highest praise in point of truthfulness and style, yet it is necessary to read also Spartianus, Vopiscus, Trebellius Pollio, Ammianus Marcellinus, and Eutropius Procopius. Surely, if Cæsar were to return from the shades, he would scarcely recognise his former localities. The races have become so mixed, the population so changed, partly through destruction and partly through transplanting, that I may say all things are different. Because I know that you interrupt

your higher studies to nibble on tit-bits of this description, I dedicate to you this commentary, which students will find useful. Thus light has been shed upon antiquity by the labours of the Swiss scholars, two of whom should especially be mentioned, Henricus Glareanus, my dear friend, and Joachim Vadianus, whose notes upon Pomponius Mela, I am happy to report, have received the applause of all the learned.

Farewell.

BASEL, 1519.

Rhenanus, in referring to the intimate relation between Erasmus and Froben, speaks of it as a friendship between the prince of scholars and the prince of publishers. The circle of intimates who were gathered about the two “princes” during the nine years of the sojourn of Erasmus in Basel (1521-1530) included the brothers Amerbach, Glareanus, Oecolampadius, Rhenanus, Listrius, Gerbelius, Fontejus, and Eobanus Hessius. The older Amerbach, who coöperated with Froben in many of his more important publications, trained three sons to take responsibilities in the editorial division of his business. One became an expert in Greek, the second in Latin, the third in Hebrew. One of the books in which the Amerbachs took an important part was the great edition of the works of S. Jerome. Concerning this, Erasmus writes in April, 1515, to Pope Leo X.: “A great work is being carried on in this city, in the establishment of Froben, most trustworthy and most capable of all publishers; S. Jerome is again in life and his words are to be freshly given to the world. Providence itself appears to have brought this firm into existence, in order again to cause to be felt the influence of S. Jerome. Froben himself, Amerbach and his three sons are devoting their whole energies to the undertaking.”

Through the influence of Erasmus, a papal privilege was secured in the name of Froben, for the works of Jerome for a term of five years, for which privilege six ducats had to be paid. The publication of the *Jerome* was a notable event in the world of scholarship and in ecclesiastical circles and brought great prestige to the Basel publisher. Many congratulatory letters were received from all parts of Europe. Dorpius, writing in July, 1515, to Erasmus, asks the latter to give to Froben, “chief among printers,” a cordial greeting for the great services rendered by him to the Church and to

learning. “May the Lord give to him,” he continues, “many long years in which to carry on his noble undertakings.” Erasmus himself, writing to Feltichius, in December, 1526, says: “No one who has not been intimately associated with my friend Froben, can fairly realise the extent of his devotion to good work and the toilsome labour that he has given to his undertakings. The world has never seen a publisher who has striven so earnestly and so unselfishly in the cause of scholarship.” After the death of Froben, which occurred in 1528, Erasmus writes again: “We have lost Froben, that most exceptional man. His life was devoted to earnest and conscientious labours and he died at his work.... For the past eight years I have been his house guest and have had with him the most cordial friendship. A truer friend than Froben, I could not wish from the Gods. For the family that he has left I feel for his sake a cordial affection.”^[92]

Writing in August, 1531, to Jerome, the son of Froben, Erasmus says: “Many virtues possessed Johann Froben of blessed memory, but through nothing did he bring himself to me so closely as in this, that he gave the devotion of his life to the task of bringing to the world the best literature; a task in furthering which, his death came to him.... So it resulted that he gave more thought to his scholarly ideals than to his own fortunes, and thus has left to his heirs a great repute but a small estate.... Now that I understand that his son has inherited his high purposes, so can I assure this son that the good will and coöperation which I extended to his father will not be intermitted for him.”

One of the most important of the works which was left unfinished at the time of Froben’s death and to which his own last working hours had been given, was the edition of *S. Augustine*, which was to form a companion to the works of S. Jerome. The *S. Augustine* was published by Froben’s son with the coöperation of the younger Amerbachs and with the all-important aid also of Erasmus and Rhenanus. Erasmus exerted himself to secure for the *S. Augustine* a privilege for France, but for some reason not given this privilege was denied. Erasmus does not mention what amount he received for his editorial service in the undertaking, but (writing in September, 1528) says that he would not have undertaken such a task for two thousand guldens. According to Kapp, he refused to receive from Froben the elder more than one third of the annual payments that the publisher wanted to make to him, and he also refused to accept a house which Froben had

tendered to him as a gift. The entire relation between the two men forms a noteworthy episode in the somewhat chequered history of authors and publishers.

Froben had at one time taken up the publication of the writings of Luther. On the fourteenth of February, 1519, he writes to Luther that he has made very large sales of Luther's books in France, Spain, Italy, Brabant, and England.^[93] This reference is to the first collection of Luther's writings, which had been printed by Froben in October, 1518, and of which further impressions were made in August, 1519, and in March, 1520. After 1520, Froben prints no further books for Luther, although it is evident that an assured and increasing sale was being secured for these. It is probable that he was influenced to this decision by the counsels of Erasmus and in connection with his relations to Leo X. It seems evident that Froben, while not a bigoted Romanist, had not been attracted by the doctrines of the Reformers. Irrespective of his long personal association with Erasmus, it is probable that his own scholarly temperament and direction of thought would have brought him into sympathy rather with the views of the scholar of Rotterdam than with those of the monk of Wittenberg. He believed that the Church was to be set right not by being broken into fragments, but by being brought back to the teachings of its founders and of their successors, the Fathers, and he was prepared to do his part in this work of reform and of re-inspiration by devoting his life and his fortunes to the task of presenting to believers these teachings in accurate and accessible texts. Froben's editions of the Scriptures, the works of S. Jerome and of S. Augustine and of other of the Fathers, and his issues of the books of Erasmus, to the production of which he devoted a lifetime of conscientious toil, constituted the publisher's contribution to the settlement of the vexed questions which were bringing turmoil upon Europe and by which the Church was rent in twain. But the contest was too bitter, and the passions it had aroused were too fierce to make it possible for either the wisdom of the Fathers or the scholarship and wit of Erasmus to be of much present service in furthering a peaceable outcome.



CHAPTER IX.

ERASMUS AND HIS BOOKS.

1467-1536.

IT is convenient to make in this place such further reference as is pertinent to my subject to the literary undertakings of Erasmus, of whom I have before spoken as perhaps the most typical author of his time. In popularity, as far as popularity is to be gauged by extent of circulation, his books were excelled only by the writings of Luther, while the range of their distribution—that is, the extent of the territory reached and the variety of the circles of readers by whom they were welcomed—must have been much in advance of anything attained by the writings of Luther. The direct influence of these last was, for a long time at least, limited to Germany and to the Low Countries, while their principal sale was in the common tongue and among the masses of the people. The writings of Erasmus, in their original Latin form, found their way in the first place to the educated circles of the upper classes, and to the more liberal minded of the ecclesiastics, while the versions in the vernacular which speedily followed, in both authorised and unauthorised editions, were taken up with cordial appreciation by all classes of readers throughout Europe.

It is undoubtedly the case that, while Erasmus always refused to take sides with the Protestants and held himself to be a dutiful son of the Catholic Church, the influence of his writings was a most important factor in bringing about the conditions that made the Reformation possible. Drummond speaks of the *Praise of Folly* as “the first decisive trumpet-blast summoning the friends of right and learning to gird on their armour, and heralding the advance of that reforming spirit with which the Papal power was destined ere long to engage in deadly and terrible encounter.”^[94] It would, however, be outside of the plan of this study to go into the question of the relations of Erasmus to the Reformation, a theme which has been treated with full knowledge and excellent critical judgment in the scholarly biography of Mr. Drummond, and more recently, with less thoroughness,

but with no little force and suggestiveness, in the brilliant biographical study of Mr. Froude.

The following are the dates of the more important events in the career of the man who is to be described, not only as a great scholar but as the most successful and influential author of his age. He was born in Rotterdam in 1467, seventeen years after Gutenberg had printed his first book. He was placed as a boy at the school carried on at Deventer by the Brothers of Common Life. The interest taken by this fraternity in the multiplication and circulation of literature, and the importance of its publishing undertakings both during the manuscript period and after the beginning of printing, have already been noted.

In 1485, when he was eighteen years old, Erasmus took vows as a monk of the Order of S. Augustine (the same Order to which, later, Luther belonged), vows from which a number of years afterwards he was released by Pope Leo X. In 1492, through the favour of the Bishop of Cambray, he was enabled to pass some years at the University of Paris, which, though at that time not a little degenerated, was still the leading university of Europe. In 1498, Erasmus made his first visit to England, where he remained nearly two years, chiefly in Oxford, and where he was at once brought into relations with a number of famous men, some of whom became valued friends, such as Thomas Linacre, William Grocyn, John Colet, and Sir Thomas More. In 1500, Erasmus, then again in Paris, published the first edition of the *Adagia*, a collection of proverbs, which became in its subsequent and enlarged issues a very different work from the first small volume.

In 1506, Erasmus made his first visit to Italy, and received at Bologna the degree of Doctor of Divinity. He remained at Venice, in the house of the publisher Aldus, until 1509, and published through Aldus, in 1508, the enlarged edition of the *Adagia*. In the latter part of 1509 he is again in England, living with his friend More, and publishes the famous satire, *The Praise of Folly* (*Encomium Moriae*).

In 1514, Erasmus makes his first sojourn in Basel, and begins the intimacy with Froben which was to continue during the lifetime of the latter. In 1516, he prints, in Basel, *The New Testament* in Greek and Latin; this was the first time the complete Greek text had been put into type.^[95] In 1517, Erasmus

takes up his residence for a time at the University of Louvain, and during the two or three years following, devotes much earnest correspondence to the Lutheran controversies. He is still at Louvain in 1520, but in 1521, at the time of the Diet of Worms, he removes to Basel, where he takes up his abode with his good friend Froben, with whom he remains until Froben's death in 1527. In 1529, he moves to Friburg, but in 1534, he returns to Basel, where he died in 1536.

The *Adagia*, the first of the books of Erasmus which brought him into fame, was originally printed in Paris in 1500. Drummond is of opinion that this first edition was put together hurriedly for the purpose of recruiting the exhausted finances of its author by means of a publication which was "sure to sell."^[96] It seems evident that Erasmus considered the receipts from its sale important, but he fails to mention the amount actually realised or the nature of the several publishing arrangements under which it was published. Several references give the impression, however, that the author himself retained the ownership of his Paris edition. He writes in 1504 to Colet, Dean of St. Paul's, asking the Dean to look up for him the matter of one hundred copies of the *Adagia* sent to London three years back, for "which he had received no returns." He understands the copies have all been sold, and concludes, not unnaturally, that "somebody must have got the money."^[97] He makes no later reference to the business, and we may therefore hope that the books were finally paid for.

While it is certain that Erasmus secured considerable sums for the sale of the *Adagia*, and, later, from the *Encomium Moriæ*, it is equally clear that during all the earlier portion of his life he was in continued need of money, and in addition to accepting with expectant gratitude presents from various friends, he found occasion for frequent applications for gifts to other friends and to possible patrons. From the point of view of to-day, many of these letters appear to be seriously lacking in the dignity and self-respect which ought to have characterised a great author and an intellectual leader. It would however be very absurd to arrive at a judgment in the matter from the standpoint of the nineteenth century, when from the vantage-ground of an assured copyright protection, authors are able to dictate terms to publishers and readers. In applying to people of wealth for means with which to continue or extend his studies, Erasmus feels evidently that he is asking help not so much for himself personally, as for the literature and

scholarship of which he is the representative. It is an appeal for the endowment of research. He appears also to have possessed no capacity for keeping a balance-sheet, or for a business-like management of his resources, and when money did come into his hands, it disappeared very rapidly. It is to be remembered that while he was willing to beg, and was ready for the sake of financial aid to write flattering letters to possible patrons, he appears never to have been willing to sacrifice for the favour of such patrons any measure of conviction or of consistency. On various occasions he put to one side opportunities for gain or for advancement which involved as conditions what seemed to him to be a sacrifice of personal independence or of honestly held opinions. In fact, excepting in this matter of subsidies from patrons, Erasmus may fairly claim to have shown in his career, under very great pressure from various quarters, a clear-headed, well-balanced and courageous independence of opinion and of action that was most exceptional at a time when theological partisanship was bitter to the point of ferocity. It is also to be borne in mind that when, through the satisfactory management of his literary undertakings on the part, first of Aldus, and later and most importantly, of his good friend Froben, Erasmus began to secure from his writings an assured income, the disagreeable subsidy suggestions disappear from his correspondence, although he is still very ready to accept *honoraria* from appreciative friends. It is certainly not a little to the credit of both Erasmus and his publisher, that there is no single instance in the long correspondence of an application to Froben for moneys, either as “advances” or as loans, or a single complaint about inadequacy of payments. In fact, as specified later, Erasmus criticises Froben for undue liberality to himself.

The first journey to Italy would probably not have been undertaken (or at least not at that time) if it had not been for the friendly help of the Lady of Vere. Froude doubtless, however, sacrifices (and not for the first time) accuracy of statement to dramatic antithesis when he writes: “Without Mæcenæ we might have had no *Odes* or *Satires* from Horace; without the Duke of Lerma we should have had no *Don Quixote*; without the Duke of Weimar we might have had no *Faust*; without the Lady of Vere there would have been no *New Testament*, no *Moriæ*, no *Colloquies*.” This is a kind of *reductio ad absurdum*, an attempt to make the production of men of creative power depend upon, instead of being merely furthered by, the help of their patrons. But Froude probably does not mean to be taken seriously. He goes

on to say: “The patronage system may not be the best, but it is better than leaving genius to be smothered or debased by misery, and when genius is taught that life depends on pleasing the readers at the shilling book-stalls, it may be smothered that way too, for all that I can see to the contrary.”^[98] It is not easy to understand to what book-stall influences Froude refers, although we can recall certain strictures of Freeman to the effect that Froude himself attempted to debase history to the level of the readers of “shilling shockers.”

The Paris edition of the *Adagia* is not the work in the form in which it is now known. When Erasmus, in 1507, took up his abode for a time with Aldus in Venice, he re-wrote and greatly enlarged the book to such an extent as almost entirely to change its character. He tells us that for a large proportion of the new material he was indebted to the suggestions and to the magnificent library of Aldus.^[99] He had, he goes on to say, brought with him to Venice little more than a confused mass of materials derived from authors already in print. Aldus and his associates, Laskaris, Marcus Musurus, Aleander, and some even whose names were not known to Erasmus, placed at his disposal many valuable manuscripts which had not before come into print. The number of proverbs collected now amounted to thirty-five hundred, and a vast mass of learning, drawn from the most varied sources, was thus given to the world. Erasmus writes with candid appreciation of the generous encouragement given to a foreigner, in this and his other literary undertakings, by the Italian publisher and his associates.

The motto used by Aldus under his famous emblem of the dolphin and the anchor, *festina lente*, was borrowed from a coin by the Emperor Vespasian, with whom as well as with Augustus, this saying was a great favourite. Erasmus writes in 1508: “If some deity friendly to literature will but favour the truly royal vows of Aldus, I can promise that within a few years the studious will possess, by his work alone, all the good authors there are in the four languages, Latin, Greek, Hebrew, and Chaldee, in a complete and accurate form, and no one need have any lack of literary material. And then we shall see how many excellent manuscripts there are still hidden, which are either kept back through ignorance, or which are suppressed, owing to the ambition of certain persons who care for nothing except that they may be thought the only wise men. Then, too, we shall know with what prodigious errors existing texts abound which are now considered tolerably

correct.... The library of Ptolemy,” he adds, “was contained within the walls of a house, but Aldus is constructing a library which shall have no limits but those of the world.”^[100]

In the same volume of his correspondence, Erasmus speaks of himself as having surpassed Hercules, who was unable to grapple with two monsters at once, whereas he has not only brought out at the same time the great edition of *S. Jerome* and the enlarged edition of the *Adagia*, but in so doing has overcome the greatest enemy of the works of man, Time, which is devouring its own offspring.^[101] In its expanded and final form, the *Adagia* fills one of the eleven folio volumes which constitute the set of the works of Erasmus. Drummond speaks of it as “a monument of vast learning ... and a rich repository of anecdotes, quotations, and historical and biographical sketches.... It formed an introduction to the Greek and Latin classics, and it furnished eloquent declamations against kings and monks, war and priestcraft. It served the purpose of a dictionary and a grammar, a commonplace book, a journal, and a book of travels all in one.”^[102] Froude says that “through the *Adagia* can be traced the spirit of Lucian, so like was the Europe of the fifteenth century to the Europe of the second.”^[103] The divines were outspoken in their indignation. They said (again to quote Froude) that the Proverbs of Solomon were enough, without adding the Proverbs of Erasmus. The revised edition of the *Adagia* was reprinted by Froben in 1513, from the text of Aldus, in an edition rivalling that of Aldus in the beauty of its typography. The two publishers appear to have made a friendly arrangement with each other and with Erasmus to divide between them the market for the writings of their famous friend.

The *Praise of Folly* (*Encomium Moriæ*), the book which exceeded the *Adagia* in its final popularity, and which is possibly the only work of Erasmus that continues to be read, three centuries after his death, was written in 1509. Erasmus was at the time again in England, living in the family of his friend, Sir Thomas More. He mentions in the preface that the plan of the work had taken shape in his mind as he was riding across the Alps on his way from Venice to London, and that it had then occurred to him how odd it was that the wisest and wittiest man he knew should have a name which in Greek signified a fool. In another letter, Erasmus gives a somewhat different account, saying that the first suggestion of the book came from More, and that it was, in part at least, based upon More’s

conversations with him at Chelsea.^[104] I find record of an edition of this book, which is probably the first, printed in Strasburg in 1511 (three years earlier than the issue in Basel) by a printer named Schürer. The text was revised and added to before the printing in Basel and in Paris. It does not appear what relations, if any, the author had with the printer Schürer, whose name was not again associated with his writings.

The Froben edition, printed in Basel in 1514, included a commentary by Gerard Listrius, a physician of Basel and a trusted friend of Erasmus. The book was reprinted several times by Froben, one of the editions containing the famous illustrations by Holbein. Authorised editions were also published by Aldus in Venice, and by Badius in Paris, while unauthorised issues of the Latin original appeared in Cologne, Lyons, Salamanca, and elsewhere. A number of translations appeared in different parts of Europe, the majority of which were probably unauthorised, although on this point trustworthy information does not exist. In its various forms it possibly secured a larger sale than any book, except the Bible, that had as yet been printed. Erasmus was able to write that kings, bishops, archbishops, and cardinals were delighted with it, and Leo X. read it through from beginning to end.^[105] Drummond sums up the volume as “containing in a short compass the author’s whole philosophy of man, all that he ever wrote on the abuses of his times, on the superstitions of monks and the pride of kings;... abounding in wit and eloquence and displaying great knowledge of the world and keen observation of men and things, it has its deep and serious meanings beneath the light satire.” One result of the publication of the *Praise of Folly* was the prohibition of the writings of Erasmus in many of the universities, including Paris, Louvain, Oxford, and Cambridge, where the ecclesiastical influence controlled. “See what comes of Greek,” cried the clergy.^[106]

Drummond assigns as an important reason for the departure of Erasmus from England in 1514, the fact that the Press of England was at the time too far behind the Press of the Continent to permit of the satisfactory printing of important works. The reputation of the scholarly work done by Froben, and the news that he was at work on an edition of *S. Jerome*, had reached England, and were the means of directing Erasmus to Basel and of bringing about an association that proved of no little importance for both author and publisher. It was on the journey that he met Sebastian Brandt, author of one

of the famous works of the century, *The Ship of Fools*, Wimpfelingus, Listrius, who wrote a commentary on the *Praise of Folly*, and Beatus Rhenanus, who became a life-long friend.

On arriving at Basel, Erasmus plunged at once into the work of Froben's publishing office. During his first year in Basel, in addition to revising his *Encomium Moriae*, and preparing for the press successive editions of the *Adagia* and the *De Copia* (Book of Similes), he gave arduous labour to the *S. Jerome*, the investment in which he shared with Froben, and to another great undertaking, a complete edition of the works of Seneca. He also began a series of translations from Plutarch, and, a little later, undertook the editorial work on the Froben edition of the New Testament. In 1515, while on a third visit to England, Erasmus wrote his treatise on the *Education of a Christian Prince* (*Institutio Principis Christiani*), which was printed by Froben in the year following. The prince on whose behalf the essay had been prepared, and to whom it was dedicated, was Charles of Austria, the Arch-duke of Burgundy, then a lad of fifteen, who was afterwards known to history as the Emperor Charles V. Erasmus had visited Brussels in 1513, and, while there, had been appointed a Councillor to the young prince. The treatise is spoken of by biographers as sound in counsel and wholesome in tone, but as possessing no very distinctive importance, and Erasmus himself speaks slightly of it. The essay written by Erasmus for the guidance of the future emperor will naturally be compared with the more famous treatise of Machiavelli, *The Prince*, which was composed at about the same time, probably in 1516. *The Prince* was prepared for the private use of Lorenzo de' Medici, and was not designed for publication. It was put into print in Florence about 1520, and despite the harsh criticisms that have been brought upon it for what in modern times would be termed its "Machiavellian" morality, it is to-day, nearly four centuries after its publication, considered as belonging to the world's literature.

In 1515, Erasmus took time from his literary work to interest himself in behalf of his friend, the learned and high-minded Reuchlin, the greatest Hebrew scholar of the age. Reuchlin had fallen under the persecution of the Dominicans, led by the ignorant and bigoted Hochstraten, for his opposition to the diabolical proposal to destroy all existing Hebrew literature, the Scriptures alone excepted. He had defended himself in a book entitled *The Eyeglass* (*Speculum Oculare*), and on a mandate being issued by

Hochstraten to burn this, Reuchlin had appealed from the Inquisition to the Pope.^[107] The Bishop of Speyer, to whom Leo committed the case, gave judgment in favour of Reuchlin, and imposed on his enemies perpetual silence, a sentence which proved difficult of execution. Reuchlin was condemned by the Universities of Mayence, Erfurt, Louvain, and Paris, although there were at the time professorships of Hebrew both in Louvain and in Paris. The matter, in some fashion, was again brought before the Pope. Erasmus made an earnest and eloquent appeal to the Pope on behalf of his friend, and the support of the Emperor Maximilian was also secured for the aged scholar who had done so much to bring honour upon the cause of learning in Germany and in Europe. The Pope finally confirmed the previous decision in favour of Reuchlin, a decision which rescued from the status of heresy, in which it had been placed by the Dominicans and the learned Faculties of the universities above specified, the language of the Hebrew Scriptures and the literature of the chosen people of God. Reuchlin's books were rescued from the ban and their learned author was saved from the risk of the stake. He continued to teach Hebrew in Tübingen and in Ingolstadt, and published in 1520, in Stuttgart, the first Hebrew Dictionary issued in Germany. In the appeal made to the Pope by Erasmus, he is shrewd enough to emphasise the importance of the collaboration rendered by Reuchlin in the preparation of the *S. Jerome*, a work which had been fitly spoken of as an enormous service rendered to the Church, and which the Pope himself had specially commended.

The edition of the New Testament, edited by Erasmus at the instance of Froben, was based in part upon the previous labours of Laurentius Valla, to whom must be given the honour of having been the first to attempt a revision of the text by a comparison of authorities. In fact, some time before beginning work on his New Testament, Erasmus had edited for Froben a volume containing the annotations of Valla. In April, 1515, Beatus Rhenanus writes to Erasmus from Basel: "Froben wants you to place in his hands your proposed edition of the New Testament, and promises that he will give for your work as much as anybody."^[108] A sentence so worded, written by one literary man to another, has quite a modern sound, giving the impression that several publishers were prepared at this time to bid against each other for the editorial service of the first scholar of Europe. As a fact, however, such a work as was projected could at this time have been

undertaken in but three or four places, while only two or three publishers possessed the knowledge, the enterprise, or the plant requisite for its production. The New Testament with the Erasmian notes might have been printed in Paris, as far as the facilities for Greek type were concerned, but the influence of the Theological Faculty of the Sorbonne was entirely unfavourable to the presentation to the public of any critical or analytical work on the Scriptures, and it was very difficult, if not impracticable, for a university publisher to handle successfully a work in the department of theology, of which the Sorbonne disapproved. Koberger of Nuremberg had publishing facilities adequate for such an undertaking, but Koberger appears to have associated himself with the more conservative group of Catholic scholars, and to this group the Testament of Erasmus, with its critical notes, seemed to be a very dangerous innovation.

The result showed that there was ground for their misgivings, as the Testament of Erasmus was to prove of most vital service to the cause of the Reformation, although the learned editor himself was at the time regarded with suspicion, if not with enmity, by the larger number of Protestant leaders. There remained the Press of Aldus; the Venetian would unquestionably have been very ready to take charge of the book, and his Press possessed at the time larger facilities for the printing of Greek than could be offered by Froben, or than existed outside of Venice. Erasmus appears, however, to have decided that for the purposes of this work Basel was a better centre of distribution than Venice, and it was doubtless the case that a much larger circle of readers could be looked for in Switzerland, Germany, and other regions to be conveniently reached from Basel, than was to be found in the market more immediately at the command of Venice.

Notwithstanding the very large investment of skilled labour and of money that the New Testament called for, the publication proved a financial success. A second edition was required within three years, making a total printing, up to 1519, of 3300 folio copies. In this second edition the text was largely altered and the volume was fortified with a papal brief, a copy of the Nicene creed, and an engraving of the Trinity, which ought, as Drummond remarks, to have proved effectual in protecting the work against charges of heresy. Above the letter of the Pope is printed a quaint device, a woodcut representing the victorious Germans under Arminius overthrowing the legions of Varus, and accompanied by an inscription, *Tandem, vipera,*

Sibillare desiste. The insertion of this German device with its motto was probably the work of the printer. The purport of it could hardly be considered as complimentary to an Italian Pope. Froude, in commenting upon the great popular interest in the book, says that 100,000 copies were speedily sold in France alone, [\[109\]](#) but I can find no evidence in the records of the printing of any such number, and I think that Froude must have been misled by some general reference to its wide distribution.

There is not space here to consider the long series of controversies provoked by the publication of the Testament of Erasmus, a volume which undoubtedly contained the first text approximating to correctness that Europe had as yet known. As before stated, the text was utilised by Luther as the basis of his own all-important German version, although in the bitterness of the disappointment on the part of the Lutherans that they had not secured the adherence of the great scholar, they appear never to have made any very specific acknowledgment of the enormous service rendered to the cause of the Reformation, as well by his scholarship as by his courage. On the side of the Church, the murmurings were many and soon became bitter. Accusations were heard of heresy and Arianism. Erasmus had departed from the version of the Vulgate, and had substituted comparatively pure Latin for the monastic barbarisms, and he had even, it was said, charged the Apostles with writing bad Greek. He had had the temerity to correct a number of texts in such a way as materially to alter their meaning, and he had omitted altogether the testimony of the “Three Witnesses” in the first Epistle of John. This unfortunate verse, after being accepted by the Protestants on the strength of its retention by Luther, and of the later and more scholarly authority of the editors of the King James version, was finally condemned as an interpolation by the revisers under Victoria, who were thus in a position, after an interval of three and a half centuries, to bear testimony to the accurate scholarship and the editorial boldness of Erasmus. It is to be regretted, on the ground of the consistency of Erasmus, that he was induced, in a later edition, to restore this text (I John, v. 7).

That Erasmus did possess the courage of his convictions was evidenced by the character of the notes appended to the volume. I have space for but a single instance. In commenting upon the famous text, Matt. xvi. 18, “Upon this rock will I build my church,” he takes occasion to deny altogether the

primacy of Peter, and to express his surprise that words undoubtedly meant to apply to all Christians should have been interpreted as applying exclusively to the Roman Pontiff; and this is said, it should be remembered, in a volume dedicated to the Pope. ^[110]

In 1524, Erasmus completed his *Paraphrase of the New Testament*, which was also printed by Froben. Drummond speaks of this book as of no great intrinsic importance, but says further, that no other of his productions gave such universal satisfaction, or so entirely escaped criticism. An English version was printed in London under the authority of the author, and the work was so highly appreciated in England that a copy was ordered to be placed in every parish church beside the Bible. ^[111]

It had been the hope of Erasmus that the reformation of the Church, the necessity for which he so fully recognised, was to be brought about by the advancement of sound learning and the diffusion of the Scriptures. By this means, as he believed, the superstitions of the monks and their followers would be dissipated, the corruptions of the Church would be purged, and the unity of christendom be preserved. To the production of literature planned to further this great purpose, Erasmus had devoted a lifetime of arduous and scholarly toil, and to his books he added the influence of an enormous and far-reaching correspondence. It was also to the initiation and inspiration of Erasmus that must be credited not a few of the great undertakings of his earnest friend Froben, “the publisher of high ideals,” undertakings which, with hardly an exception, had for their purpose the enlightenment and development of a perplexed world. The final work of the Reformation was to be done under other leaders than Erasmus, and the results were to be brought about by other means than the publication of correct texts, scholarly commentaries, or even of satires upon monkish abuses. But the wit, learning, and intellectual force of Erasmus, brought to bear, in part through his correspondence, and in part through the Presses of Froben, Badius, and Aldus, exerted a wider influence and played a much greater part in the long contest against the rule of monkish superstition than was understood at the time, or than has, in fact, been fully recognised until a comparatively recent period.

In 1519, Erasmus completed for Froben an edition of *Cyprian*, planned as a companion to the *Jerome*, and an edition of Cicero’s *Offices*, a book which, as before mentioned, the list of no scholarly publisher could be

without. In 1518, Froben published for his friend the *Familiar Colloquies*, which became, next to the *Praise of Folly*, the best known work of Erasmus, and which is accepted by his biographers, as expressing, perhaps more directly and comprehensively than any other of his writings, his personal opinions, prejudices, feelings, and preferences. Drummond says of it: "The established fame of the author, the intrinsic merits of the work itself, its adaptation to the times, the pungent epigrams which glittered on every page, and, perhaps not least, the suspicions of heresy which began to be whispered round, all contributed to secure for it an immense circulation."^[112] Froude writes: "The *Colloquies* are pictures of his own mind, pictures of men and things which show the hand of an artist in the highest sense, never spiteful, never malicious, always delightful and amusing, and finished photographs of the world in which the author lived and moved."^[113] The book was translated into nearly every European tongue. The authorised editions were many and profitable, and the unauthorised, still more numerous. One printer in Paris took advantage of a report that the University was about to condemn the work, to print no less than twenty-four thousand copies.^[114] From this edition the author appears to have derived no advantage. He bears patiently enough the financial injury caused by the unauthorised issues, but becomes justly indignant when a Dominican friar publishes an "expurgated edition" from which are eliminated or "corrected" the passages bearing hardly upon the monks, of which there were not a few. The work was finally condemned by the Sorbonne, and it had the honour, somewhat later, of being placed by the Inquisition in the first class of prohibited books.^[115]

In 1523, Erasmus published through Froben the first complete edition of the writings of S. Hilary, a work which, owing to the great corruption of the manuscript, cost him, as he tells us, enormous labour, and which was also for the publisher a very costly undertaking. The account books of Froben have, unfortunately, not been preserved, but it is probable from the references in his correspondence, that the *Hilary*, undertaken at the instance of Erasmus, brought upon him a loss. This was followed in the same year by an enlarged edition of his *Method of True Theology*, in which Erasmus draws a laboured comparison between the pains of authors and those of mothers, remarking that some of the former are like bears, which bring

forth mere lumps of flesh and then are compelled to lick their cubs into shape. [\[116\]](#)

In 1524, Erasmus published his famous treatise on *Free Will*, in which he defined clearly his relations to the Lutheran movement. In so far as this movement represented a protest and revolt against the many abuses that had crept into the Church, Erasmus had found himself in cordial sympathy with it, and, in fact, by no one had these abuses been set forth more graphically and more boldly than by himself. His criticism of the corruption and the evils of the Romanists had been so keen and so unsparing that the Protestants could not understand why he did not join hands with their leaders and break altogether with Rome. Erasmus was prevented from taking this course by two considerations: he did believe in a Church Universal, and he did not believe in the Lutheran doctrines. Condemned as a heretic by many of the Roman ecclesiastics, he was stamped by the Protestants as a coward and a time-server. To the student of to-day, it would appear that the course taken by him was the result of honest and consistent conviction, and gave evidence of a higher and more discriminating courage than would have been evidenced by an acceptance of the cardinal's hat that was waiting for him in Rome, or of the leadership in a popular cause which was proffered from Wittenberg. The treatise on *Free Will* was the statement of Erasmus of the grounds on which he was unable to accept the conclusions of Luther.

In 1526, the Dean and Faculty of the Theological School of Paris came together to consider the erroneous, scandalous, and impious propositions contained in the book by Desiderius Erasmus of Rotterdam, called *Familiar Colloquies*, and decided that the reading of the same should be prohibited. The prime mover in this censure was the Chancellor Bedier, who was for many years the persistent opponent of the liberal-minded publisher, Robert Estienne. The writings of Erasmus had secured a considerable circulation in Spain, the editions which were sold there being at the outset supplied from Basel and from Paris. Later, unauthorised issues of the Latin version were printed in Salamanca, and the *Enchiridion* and the *Colloquies* were both printed also in Spanish translations. The Dominicans and Franciscans attacked furiously both the books and their author, but the authority of the Archbishop of Seville, directed probably by the favourable influence of the Emperor, was sufficient for a quarter of a century to prevent the books from

being formally condemned. Their titles finally appear in the *Index* of the Inquisition in 1550 (see the chapter on Plantin).

In 1527, there came to Erasmus a great loss in the death of his trusted friend Froben. "I bore with calmness the death of my brother," writes Erasmus, "but I cannot endure the loss of Froben. He was a true friend, so simple and sincere, that even if he had wished to conceal anything, it was so repugnant to his nature that he would have found it impossible, so ready to do good to all that he was glad to confer a favour even where it was not desired, which made him an easy prey to thieves and impostors.... To me his kindness was unbounded. What plots would he not lay, what occasions would he not seek, to force some present, upon me! nor did I ever see him better pleased than when he had prevailed upon me, either by artifice or by entreaties, to accept one ... nor did I ever find more use for my rhetoric than to invent pretexts for declining the munificence of my publisher without giving umbrage to my friend: for I could not bear to see him disappointed.... He paid bills for me before I suspected it, nor could he be prevailed upon by any entreaties to take back the money ... and this kind of contest went on between us continually ... but I am sure all his family will bear witness that I availed myself of his kindness very moderately. Whatever labours I undertook for him I undertook for the love of learning. Considering that he gave up his whole life to the advancement of such labours, avoiding no fatigue by day or night, but esteeming it a sufficient gain if a good author came into the hands of the public with due dignity, how could I prey upon a man thus minded? Sometimes, when he showed to me and to other friends the first pages of some great author, how he danced for joy, how his face beamed with triumph! You would have thought he was already reaping in the greatest abundance the fruits of his labours and expected no other reward.... Within these few years, how many volumes, and in what noble type, have issued from Froben's office.... He has refrained from having anything to do with controversial tracts, from which no small profits have been made by others, lest he should bring useful learning into disrepute.... He was bent on printing *Augustine* to equal the splendour of the *Jerome*, notwithstanding the discouragements of myself and other friends, and he was wont to say that he desired no longer life than would suffice to finish *Augustine*, of which he saw the completion of the first and second volumes only. It was a pious wish, and the spirit by which he was animated was deserving of immortality.... He leaves wife, children, friends, the whole city,

all who knew him or his work, bitterly to lament his loss.... Gratitude demands that we give our hearty support to the printing-office of Froben, which is to be continued, so that what he has so well begun may ever improve and develop.”^[117] This letter is certainly most honourable both to the writer and to the man whose faithful work is thus commemorated, and the friendship between the two men forms an interesting and characteristic episode in the long history of the relations of publishers and authors.

The later productions from the pen of Erasmus may be briefly noted: A treatise on the Confessional, which appeared in 1524, and which, with characteristic boldness, contains a scathing exposure of the evils of the institution; an exposition of the Lord's Prayer, printed at about the same date; a series of devotional addresses and brief commentaries, in 1524 and 1525; a treatise on the use and abuse of the tongue, in 1525; the *Institution of Christian Matrimony*, in 1526; the *Christian Widow*, in 1527, written in compliment to Maria, sister of Charles V., whose husband, the King of Bohemia, had been killed shortly before; an edition of *Irenæus*, in 1526 (*Irenæus* had not before been printed, and the work of Erasmus had, therefore, to be done from manuscripts); an edition of *Ambrose*, in four volumes, in 1527; an essay on the correct pronunciation of Latin and Greek, in 1528; an edition of *Seneca* (of whom he speaks as a pagan saint), in 1529; the concluding volumes of the great *S. Augustine*, in the same year; the works of S. Chrysostom, in 1530 (this contains a Latin translation and a memoir); the *Apopthegms of the Ancients*, in eight books, in 1531; the works of S. Basil, in 1532; and, finally, *Ecclesiastes*, a treatise on the preacher, in 1534. This was the last book completed by the busy scholar, but his correspondence continued active until his death, which occurred in July, 1536. A number of the larger works mentioned in the above brief summary, such as the *S. Augustine* and the *S. Chrysostom*, were prepared for the press with the co-operation of others, but even these represented very considerable labour on the part of the responsible editor, and it is not easy to understand how, dyspeptic invalid that he was, he was able to find the time and the strength for such continuous and such arduous labour. Nearly all of the books of the last nine years were printed in the Froben Press, which was being successfully carried on by Jerome Froben, the eldest son of its founder, with the aid of his friend Boniface Amerbach. Erasmus had, in 1529, on the ground of the increasing bitterness of the Protestant feeling in Basel, given up with no little regret his home in that city, and had removed

to Friburg. His intercourse with the Frobens continued unbroken, however, and Jerome Froben was with him at the time of his death.

I have given a fuller reference to the literary undertakings of Erasmus than might seem to be warranted by the general purpose and proportion of my narrative. I had, however, thought it desirable to present with some detail the record of the publishing relations of some representative author of the time, and the career of Erasmus rendered him, on a number of grounds, the most distinctive author for my purpose. His commanding position and world-wide celebrity as a scholar, his relations with men of note and of learning in Protestant as well as Catholic circles, the wide circulation secured for his writings, a circulation absolutely without precedent in the history of the world's literature, and, finally, his close association with the most famous publishers of their time, two of whom, Aldus and Froben, must take rank with the most famous publishers of any time—all these considerations unite to make the experience of Erasmus, as an author, one of exceptional interest in the history of publishing undertakings. To the above summary must be added the important detail that Erasmus was the first author, after the invention of printing, to secure a large and continued return from the sales of his writings. From the time of Gutenberg on, payments had been made by publishers to the scholarly editors whose services were utilised in preparing for the press the editions of the classics and the Fathers, to whose works the earlier publishing undertakings were with rare exceptions restricted. There is record also of the publication before the close of the fifteenth century and early in the sixteenth, chiefly in Paris, of occasional volumes of original writings. Few of these, however, were addressed to what we should call the general public, and before the time of Erasmus there is no record of an author's making money by the sale of original productions. While the correspondence and diaries of Erasmus have been preserved, I find no mention of any accounts, and, in fact, he was not the kind of a man who would have been likely to trouble himself with such details as account-books. Unfortunately, the records of Froben's business have disappeared, and we have no means of ascertaining the precise amounts paid to Erasmus by his publishers, either for his editorial services or for royalties on his books. Drummond is, however, of opinion that these receipts were very considerable. Erasmus spent from year to year considerable sums in journeys, in books and manuscripts, and in other ways, although during the years of his sojourn in the house of Froben, his

actual living expenses must have been moderate. He had no property, the small inheritance from his father having been dissipated by his guardians. In addition to the income from his books, he had, after 1507, a pension of sixty pounds settled on him by Warham, Archbishop of Canterbury; there was, for a time at least, a pension from Lord Mountjoy; and a pension of some smaller amount (I have not been able to find the exact figures) from the Emperor Charles V. after 1523. Froude estimates his income from pensions in 1529 at four hundred florins. ^[118] He also received from time to time various presents of money from his wealthy English friends, such as Colet, More, Warham, and the Lady of Vere, and from Popes Leo X., Adrian VI., and Clement VII. According to Froude, he had no capacity for taking care of money, and however much he received, he was always in need. In his earlier years he found occasion, in fact, to write not a few applications for money, in a style of appeal which strikes the reader of to-day as entirely unbecoming for a man of his character, education, and intellectual distinction. It was, indeed, not until his association with Froben had made clear to him that his writings possessed commercial value, that he was able to shake off the feeling of dependence upon the purses of patrons. With his earlier books, his first thought appears to have been to utilise the appreciation of them by his friends as a means of securing gifts. After Froben had shown him that by proper management the books could be made to secure from the appreciation of the public at large good returns for the author, the letters of Erasmus became free from the repeated suggestions concerning gifts and financial aid which formed a disagreeable feature of much of the earlier correspondence.

It was not the least of the important services rendered by Froben that he was able to further the development of a spirit of independence on the part of the greatest author of his time, and to rescue him from the demoralising influences of literary patronage.



CHAPTER X.

LUTHER AS AN AUTHOR—1483-1546.

IN the long list of the noteworthy men of the sixteenth century, the men who helped to shape the history not only of their own generation, but of long series of generations to come, a leading place, possibly the leading place, must be assigned to Martin Luther.

The story of the bold-hearted Augustinian monk, who, strong in his convictions of the justice of his cause, and strong in his faith that the Lord would protect his own, ventured to assail the abuses and, finally, even to question the authority of the Church of Rome, the only Church then known to Europe, and who dared, standing almost alone, to withstand the mandates of pope and of emperor—this story, forming one of the great dramas of history, has been often told. For the purposes of the present narrative, however, I am not concerned with Luther as a Reformer, as a fighter, or as a Christian hero, but simply with his work and his relations as an author.

It was inevitable, in selecting two authors as examples of the literary activities and of the publishing methods of the first part of the sixteenth century, that one of these two should be Luther, whose writings achieved a larger popularity and exercised a more far-reaching influence than could be claimed for any books of the century. It is to be borne in mind, however, that Luther's work as an author was not something apart from his interests as a Reformer. He wrote because he felt the spirit of the Lord to be upon him, and because he had the conviction that he was God's instrument for bringing a message to the world, and for delivering the true Church from the burdens and corruptions that had been brought upon it through the wiles of Satan.

The Reformation was an intellectual revolution, and the immediate work of the Reformers was carried on by argument, presented in part by preaching, but very largely by means of printed material, books and pamphlets. It is difficult to conceive of the accomplishment of the Reformation without the aid of the printing-press, and it is probably, in fact, not too much to say that, without the printing-press, the work done by the

Reformers could not have been brought about at all. The Church authorities had, as we have seen, given to the first printers a cordial welcome, and many of the earlier typographers had been indebted to ecclesiastics for all important co-operation and support. After, however, the printers of Wittenberg had begun to send out by thousands the pamphlets of Luther and Melanchthon, and when, a little later, the presses of Geneva and Zurich were being devoted to supplying to a public still nearer to Rome the writings of Calvin and Zwingli; when, in fact, Europe seemed to be full of “winged words,” words the sting of which was nearly always directed against Rome, the ecclesiastics began to realise the extent of their blunder. Repression in various forms was attempted: rigorous censorship, prohibition, confiscation and burning of copies, the *Index Expurgatorius*, the ban of excommunication on writers and printers of forbidden books—all these and other forms of restriction were put into force, with the very general result of advertising the objectionable literature, of emphasising its importance, and of adding to its circulation and its influence. The Church finally took the printing-press into its own service, and it succeeded, in the course of a generation or two, in training up a school of literary defenders and apologists who, in the period of the Catholic revival, were able, in a measure at least, to hold their own in controversy with the Protestant opponents of Rome. It was certainly the case, however, that, taking the sixteenth century as a whole, the printing press proved one of the most effective of the influences for undermining the authority of the Papacy and for restricting the rule of the Roman Church.

Luther had been prompt to recognise the value for his work of the new art. He was equally keen in his appreciation of the fact that if the fight against Rome was to secure a popular support, it was necessary to reach with the teachings of the Reformers not only the limited circles of the educated, but the masses of the people. It was for this purpose that Luther, first among the leaders of the Reformation, put forth his sermons, tracts, and controversial pamphlets at once in the language of the people, and he completed his great appeal to the understanding and the moral sense of his fellow countrymen with the stupendous and magnificent achievement of the German Bible. For thousands of Germans, the first practical knowledge of the existence of the possibilities of the printing-press came to them with the sight of the sheets of the Wittenberg pamphlets or of the volumes of the Wittenberg Testament.

It would doubtless have seemed to Luther a small thing in his life's work that, while carrying on his great fight against Rome, he was also laying the foundation of the book-trade of Germany and of Europe, but this was a matter of no little moment, if only for the lasting influence of the Reformation itself. The historians of the time are certainly in substantial accord in the conclusion that the enormous impetus given to the education and active-mindedness of the people through the distribution and the eager acceptance of the writings of the Reformers, the habits then formed of buying and of reading printed matter, the incentive secured for the work of the printers and the booksellers, and the practice that came into vogue of circulating books and pamphlets by means of pedlars and colporteurs in districts far beyond the reach of the book-shops, had both an immediate and an abiding effect upon the reading habits of the German people and did much to bring about the development of the publishing and bookselling business in Germany.

Luther's life covered the sixty-three years between 1483 and 1546. At the time of his birth, the printing-press had been in operation for a third of a century. When, in 1517, he printed, in Wittenberg, his first book (a collection of sermons on the Ten Commandments and the Lord's Prayer), the production of printed books was still an unfamiliar art. The principal German centres of the new publishing trade were Basel, Frankfort, Augsburg, and Nuremberg. In the North of Germany, much less had been done, although, for some years, there had been presses in Cologne, and a beginning had been made in Leipzig. It was the Reformation and the superior intellectual activity of the Protestants that transferred the literary and publishing preponderance from South to North Germany, a preponderance that through the succeeding centuries has continued and has increased.

The list of Luther's works is not a long one, and is made up in great part of pamphlets. His chief writings may be briefly summarised as follows:

1516. "Sermons on the Ten Commandments and the Lord's Prayer."

1517. "Commentary on the Seven Penitential Psalms."

The title-page of this volume reads: *F. Martinus Luder Augustiner zů Wittenberg*. (The Seven Penitential Psalms was one of the two

devotional publications of Colard Mansion, the first printer of Bruges, whose edition was issued in 1471.)

1517. “A Sermon on Indulgences and Grace.”

The immediate incentive to this sermon was the sale of Indulgences by Tetzel.

1518. “Conclusions.” The title given to the famous ninety-five theses.

1518. “Lectures on the Epistle to the Galatians.”

1520. “Address to the Christian Nobility of Germany.”

The title-page bears no date and no imprint. Below the name of the author appears simply “Zu Wittenberg.”

1520. A treatise entitled “Why the Books of the Pope and his Disciples were burnt by Dr. Martin Luther.”

This was published shortly after the burning by Martin Luther, in Wittenberg, of the papal decretals, the name given by Köstlin to the papal law-books, and a collection of the writings of Eck and other papal advocates.

1521 (The year of the Diet of Worms). A series of controversial pamphlets in reply to Emser.

1521. An “Exposition of the Gospel” and a Commentary on the “Magnificat.”

1521. Tracts on “The Abuse of Masses,” and “On Monastic Vows.”

1522 (September). The complete German version of “The New Testament.”

The first edition comprised 5000 copies.

1522 (December). A second edition of 5000 copies.

1527. Various treatises in reply to the teachings of Zwingli and Œcolampadius.

The four years following 1522 appear to have been chiefly devoted, as far as literary production was concerned, to the revision of “The

New Testament” and to work on the version of the books of “The Old Testament.”

1528. Various treatises or tracts on “Confession,” the “Lord’s Supper,” “Anabaptism,” the war against the Turks, a commentary on the first twenty-five Psalms, and a version of thirteen of the “Fables of Æsop.”

1530 (The year of the Diet of Augsburg). A series of tracts on “The Keys of the Church,” “The Forgiveness of Sins,” and “The Sacrament,” “The Duty of Keeping Children at School,” and a commentary on the 118th Psalm.

1531. The German version of the Psalms.

1531. Gloss on the supposed “Edict” of the Emperor, and a “Warning to his Beloved Germans.”

1532. “Exposition of Genesis.”

1537. A treatise on German Names.

This was issued at Wittenberg, anonymously, but, according to Köstlin, was unquestionably the work of Luther.

1539. A treatise on Councils and Churches.

1539. A tract against the practice of usury.

1541. A treatise on Biblical Chronology.

1541. The completed German version of the Bible.

Revised issues of this were printed in 1543 and in 1545.

1543. “The Summer Postills,” with a series of sermons on the Epistles.

1545. A pamphlet entitled “The Popedom at Rome Instituted by the Devil.”

1545. Cranach’s Caricatures against Popedom, with brief verses on texts by Luther.

1545. A revised edition of his collected Latin writings.

All the above were printed at Wittenberg.

The greater number of the pamphlets were issued at once in two editions, one Latin and one German.

One of the more important of the earlier pamphlets or *Flugschriften* of Luther was the *Address to the Nobles of Germany*, which was printed in August, 1520, and of which five thousand copies were sold in five days. Of the pamphlet containing his controversial address against Eck, printed in 1518, fourteen hundred copies were sold in two days at the Frankfort Fair. The popular interest excited by the writings of Luther and his associates brought about a great change in the trade of the book-shops. Editions of the Fathers and of the lives of the Saints were pushed to one side from the counters or the book-shelves, or were stored away in the warehouses, and even the classics were neglected. All the demand was for the writings of the Reformers. The replies of the defenders of the Church found for some years a comparatively slow sale, as the sympathies of the larger book-publishing centres and of the public reached by them were largely with the Protestants. Some few of the leading publishers, including the two most important in Germany, Froben of Basel and Koberger of Nuremberg, remained, however, in the orthodox fold, and Froben, possibly at the instance of Erasmus, gave up printing the writings of Luther.

Luther's first publisher was Johann Weissenburger from Nuremberg, who had, in 1513, established himself in Landshut in Bavaria. In Landshut he printed, in 1517, a tract by Luther entitled *Tractatus de his qui ad Ecclesias Confugiunt*. Later in the same year, the treatise on the Seven Penitential Psalms was printed by Joh. Grunenberg in Wittenberg, also in Latin. This was, however, immediately followed by a version in German, of which in five years no less than nine editions appeared. The ninety-five theses, copies of which, on the 31st of October, 1517, Luther had nailed on the doors of the Wittenberg castle church, were printed in that town, in the same year, in Latin, under the title *Disputatio pro Declaratione Virtutis Indulgentiarum*. This first edition was followed by three others printed in Wittenberg, and one in Nuremberg. A year later appeared, also in Wittenberg, the first edition in German, which, in the course of the next two years, was followed by twenty-two other editions. These were printed in Wittenberg, Leipzig, Nuremberg, Augsburg, Basel, and Breslau. It does not seem practicable to ascertain, either from the publishing records or from the

references in the various biographies, how far these editions were authorised or how far they represented simply the enterprise of piratical printers. What is made quite clear in the various utterances of Luther himself, is the fact that his only desire was to secure for the theses the widest possible circulation. He made no criticism of the action of any of the printers who put into the market editions of this or of his other writings, excepting when such editions, not having had the benefit of the author's supervision, were printed in incorrect or incomplete form.

The *Sermo de Digna Preparatione Cordis* was published in 1518, and the German version followed a few months later. Of the original were printed during the next two years eight editions in Wittenberg, Leipzig, and Augsburg, while of the translation, during the same period, were issued no less than thirteen editions. Of the tract entitled *Die Deutsche Theologie*, printed at once in Latin and in German in 1518, appeared during the succeeding four years from seventy-five to eighty separate editions. The bibliographers are in doubt as to the precise number.^[119]

Of the sermon or tract upon the *Sale of Indulgences*, Kapp records ten authorised editions in the two years succeeding 1518, and three editions issued respectively in Leipzig, Nuremberg, and Augsburg, which are specifically described as unauthorised. The next of the series of tracts of this year, *Decem Precepta Wittenbergensi Predicata Popula*, was printed in the Latin form in five editions, and in the German version in seven. Among the latter are included three unauthorised issues, again dating from Leipzig, Augsburg, and Basel. There was also a Bohemian edition issued in Prague in 1520. It is not surprising that printers like Petri, working at so distant a point as Basel, should have felt free, with "missionary" material of this kind for which there was an immediate popular demand, to put forth editions without reference to the author. It is somewhat surprising, however, that unauthorised editions should also have been issued in Leipzig, but a few miles from Wittenberg, as with the leading publishers of Leipzig Luther and his Wittenberg associates had maintained satisfactory relations. Other tracts of this period, the most of which were printed in the same publishing centres, and the editions of which, both Latin and German, were promptly absorbed by the public, were the *Resolutiones Disputationum de Indulgentiarum Virtute*, the German version of the hundred and tenth Psalm, and the *Sermo de Virtute Excommunicationis*.

The complete Lutheran version of *The New Testament*, published in 1522, constituted not only, as the historians of the time make clear, a central fact of first importance in the work of the Reformation, but the most noteworthy of the literary productions of its author. The work is of necessity classed as a translation, but it was a translation into which had been absorbed, in very large measure, the individuality and original thought of the writer. The production of this German Bible was an essential part of the work of the Protestant Reformers. The teaching that Christian believers must base their relations with their Creator upon the inspired Word required that this Word should be placed within reach of all Christians and should be in a form to be understood by the unlettered as well as by the scholarly.

In addition to the great work done by Luther for the world at large, he rendered to Germany the essential service of initiating (or, as some German historians say, of creating) high German literature. The half century's work of the printing-press had thus far been devoted almost exclusively to the production of books for scholars, printed in Latin, the universal language of scholarship, or, in a few instances, in Greek. The Brothers of Common Life in Holland, and a small number of other printers in North Germany, had printed for the use of the people books of a popular character in low German, *platt-deutsch*. It was Luther who recognised the better possibilities of development and for literary expression existing in the division of the language known as high German, the form that (with the changes of three centuries) has since been known as German. In selecting this tongue for his own writings, and, what was of more abiding importance, for his version of the Bible, Luther made of it the foundation of modern German literature. He did not, in fact, find a vehicle ready-made and fully fitted for his purpose, but through his own wealth of imagination and study and incisive speech, he contributed not a little to secure for this new language of literature strength and flexibility for forcible and varied expression. The printed books in German before the appearance of the first tracts of Luther, formed but an inconsiderable group, and were restricted practically to chap-books and almanacs, and to popular medicine or herb-lore, a few folk-songs and tales, and some editions of lives of the Saints, printed principally by the Brothers of Common Life.

The labour and natural philological capacity required for such a task as producing a German version of the Bible at a time when no such thing as a

German dictionary existed, and when there was, in fact, no accepted standard for literary expression in the German tongue, must have been very considerable. It was peculiarly fortunate that this capacity was, in Luther, united with the strenuousness of purpose and persistent industry which rendered the work possible at all. The final work of his translation was completed in the Castle of the Wartburg, during his sojourn there as a voluntary prisoner in charge of his valiant defender, Ulrich von Hutten, after his return from the Diet of Worms.

The piratical reprinters took prompt advantage of the popular interest in the work. The “enterprising” Petri of Basel was the earliest in the field, getting his first reprint into the market before the close of the year (1522) in which the original had appeared. During the succeeding three years, Petri printed in all seven editions, four in octavo and three in folio. His neighbour and rival, Wolf, printed during the same time five editions, and Schönsperger of Augsburg followed with three. I do not find record of the number of copies comprised in these several editions, but they must have aggregated a good many thousands. In estimating the cost of their production, it is to be borne in mind that the process of taking casts or *clichés* of the type was an invention of a much later period, and it was, therefore, necessary with each fresh impression to reset the type.

In 1520, a Bull of Leo X. excommunicated Luther, condemned his works individually and collectively, ordered existing copies to be burnt, and prohibited, under severe penalties, the printing, sale, distribution, or even possession of any of his writings. The immediate effect of this Bull was to cause a largely increased sale throughout nearly all parts of Germany for everything that Luther had written, and to bring about also a very considerable demand for them from other countries. Köstlin estimates that by 1520, more than one hundred editions had been printed of the German versions of Luther’s sermons and tracts. This estimate includes, of course, all the unauthorised issues, as well as the editions printed at Luther’s Wittenberg Press. The distribution of these pamphlets was effected only in part through the regular book-trade. Thousands of copies were sold in the market-places by dealers of all kinds, many of whom had never before handled books; and large supplies were distributed among readers out of reach of the book-shops and the market-places, by travelling pedlars and by colporteurs. Many of the latter were travelling students, who were working

not for gain, but in the cause of the Reform. These popular tracts of the excommunicated heretic appear to have met the needs of all classes, educated and uneducated, and secured a wider circulation than had heretofore been achieved by any religious works, or, for that matter, by any writings whatever.

During the earlier years of his work, while this work was directed rather against the abuses that had grown up in the Church than against the authority of the Church itself, and before the Reformers had attempted any constructive theology, Luther was able to preserve relations with the leaders of the Humanistic movement, and received encouraging letters from men like Erasmus and Reuchlin, who stood at the head of the liberal scholarship of the time. It was only later, when the Church had cast out Luther and the Lutherans had definitely repudiated the authority of the Church, and when the doctrines of the Lutheran creed had been finally formulated, that Erasmus, who had heartily sympathised with the fight against the abuses of ecclesiasticism, but who believed that the Church Universal should be preserved, and who did not believe in the doctrine of justification by faith, cast in his lot with the opponents of Luther, a decision that was marked by the publication of his famous essay on *Free Will*. The Reformers took pains, however, to utilise for their cause, as far as practicable, the influence and the learning of the Humanists.

In 1520, Ulrich von Hutten published a translation of the treatise of Laurentius Valla, one of the earliest of the Italian Humanists, which had been first issued in Naples in 1450, and in which was exposed the forgery of the *Donation* of Constantine. The *Donation* was the document or edict in which Constantine was supposed to have granted to the Roman See the possession and control of the entire western world, making the Church the heir of the Roman Empire. The scholarly argument of Valla had never been refuted, and its republication at this time dealt a heavy blow to the traditional pretensions of the Papacy; but this purpose did not prevent von Hutten from dedicating his translation to Leo X.

Shortly after the publication of the revised edition of *The New Testament*, the indefatigable Luther entered upon the still more laborious task of translating the books of *The Old Testament*, the work upon which continued for a number of years. He secured the help of a group of scholarly collaborators, of whom the most important was Melanchthon. For *The New*

Testament he had had the use of the Greek edition edited by Erasmus, and recently published by Froben of Basel, a volume which, as well for the accuracy of its text as for the scholarly authority, the boldness and the original information of its notes, far surpassed any texts of the Scriptures as yet issued. Luther expresses very freely his obligations to the learning and industry of Erasmus, and never got over his astonishment that a man who had the scholarship and the courage to puncture so many of the unwarranted assumptions of the Roman Church, could still believe that Church to be worth preserving.

The Catholic theologian Cochläus, a violent opponent, says: “Luther’s *New Testament* was multiplied by the printers in a most wonderful degree, so that even shoe-makers and women and every lay person acquainted with the German type, read it greedily as the fountain of all truth, and by repeatedly reading it impressed it on their memory. By this means they acquired in a few months so much knowledge that they ventured to dispute not only with Catholic laymen, but even with masters and doctors of theology, about faith and the gospel.”^[120]

Luther’s young friend, Mathesius, thus describes one of the meetings of Luther and his collaborators on the work of the German Bible: “Dr. Luther came to them with his old Latin Bible, his Hebrew texts, and the portions of his German translation. Philip (Melanchthon) brought the Greek text, and Dr. Kreuziger (Cruciger), besides the Hebrew, the Chaldaic Bible (the translations or paraphrase in use among the ancient Jews); the other professors had with them their ‘Rabbis’ (*i. e.* the Rabbinical writings of the Old Testament). Each one had previously armed himself with a knowledge of the text and had compared the Greek and Latin with the Jewish version. The president then pronounced a text and let the opinions go round. Speeches of wondrous truth and beauty are said to have been made at these sittings.”^[121]

The most important of the publishers who issued unauthorised editions of Luther’s writings was, as stated, Adam Petri, of Basel. During the ten years between 1520 and 1530, he made a special business of the issue of these reprints, and according to Kapp, he derived from them large profits. I find no record of any complaints from Luther directed specifically against Petri. His principal annoyance about reprints had been in connection with

inaccurate and incomplete texts, but the Petri Press had a good repute for the excellence of its typography.

In Augsburg, where had appeared some of the earliest issues of the Bible, Hans Schönsperger printed, in 1523, an (unauthorised) edition of Luther's *New Testament*, with woodcuts by Schäuflein. In 1524, a complete series of Luther's writings was printed by Sylvan Othmar. It is not clear whether or not this edition received the sanction of the author. Siegmund Grimm, of Augsburg, acted as the principal publisher of the writings of Hutten. Hase tells us, in his history of the great Koberger publishing house of Nuremberg, that during the ten years succeeding 1517, the sales of the works of theology (orthodox Catholic) of which the Kobergers made a special interest were very seriously lessened through the influence of Luther and of Luther's writings.

During the years 1520-1523, Magdeburg became a centre for the production and distribution of Protestant polemical literature, and a great number of controversial pamphlets were issued there. Through the influence of Luther, these were for the most part first printed in high German, but towards the latter portion of the period, many of the briefer and less scholastic tracts were issued also in low German in order to reach the lower classes and readers of the Northwest. After the death of the liberal-minded and tolerant Archbishop Ernst, and with the accession of the bigoted Albert of Brandenburg (who was also Archbishop of Mayence), the publishing activities of the city were seriously hampered. The Roman side of the controversy was then taken up in Magdeburg by Dr. Mensing, the Court preacher, and by Dr. Cyclops. Tübingen, however, became for a time the centre for the controversial publications of the Romanists, and it was there that appeared, between 1519-1522, the works and pamphlets of Luther's opponents, Eck, Cochläus, Dietenberger, Neudorffer, and others.

The presses of Tübingen were, however, also utilised for the cause of the Reformers. In 1529, Primus Truber and Ulrich Morhart issued (under an assumed imprint) a Slovenic or Slovakian version of Luther's Catechism. The same men printed the first Slovenic primer and dictionary, and were thus instrumental in fixing a printed form for Slovenic literature. In 1530, they printed an edition in Bohemian of Luther's *New Testament*, a work that should have rejoiced the spirit of John Huss, dead one hundred and nine years earlier. The work of these enterprising printers was of no little

importance in furthering the spread of Lutheran doctrines among the Slovaks of Moravia, Bohemia, and Hungary. In 1557, the Freiherr of Ungnad, an earnest Protestant, placed funds at the disposition of Truber for the printing of editions of Luther's writings in the Croatian tongue.

In 1518, Luther brought to Wittenberg from Leipzig Melchior Lotter, who was an experienced printer and a man of good training and scholarship. Lotter brought with him a good equipment of presses, type, and moulds, and also a valuable collection of collated texts. In 1519, Luther is able to write with satisfaction to Lange, the Augustinian Vicar in Erfurt: "Lotter has completed the organisation here in Wittenberg of a well-appointed printing-office, fitted for work in three languages." The languages were probably Latin, Greek, and German, but, a little later, Hebrew fonts must also have been added. Lotter did not give up his business in Leipzig, but after the completion of the organisation of the Wittenberg establishment he placed in charge of it his two sons, and arranged to pass the greater portion of his time in Leipzig. I do not find any record of the arrangement entered into by Luther with Lotter. It seems probable that the printer, who was a man of established business and with resources, entered upon the undertaking in Wittenberg as a venture of his own, on the strength of the assurance from Luther that he could depend upon securing the printing commissions of Luther and his associates and of such further material as might come from the University. Luther had paid Grunenberg for the printing of the earlier volumes, and he probably also retained in his own hands the ownership of the editions manufactured by Lotter. Unfortunately, the accounts of these editions appear not to have been preserved. In 1531, Rhaw printed the Augsburg Confession, his edition of which was accepted as the standard. He printed also many of the writings of Melanchthon. Hans Lufft, whose work continued from 1523 to 1584, printed after 1524 many of the publications of Luther. His special achievement was the production of the German Bible in the several parts and in the completed volume.

The printing and publishing interests of Wittenberg, which had their beginning under the direction of Luther, in the University, continued during a large part of the existence of the University to be associated with and directed by it.

The first issue of Luther's Bible in low German was printed in Lübeck, in 1533, by Ludwig Dietz, of Rostock. In Jena, Conrad König was agent for

the sale of Luther's works. The price per volume for the Bible was eighteen groschens for Jena, at the Leipzig Fair nineteen groschens, and at the Frankfort Fair twenty groschens.^[122]

These earlier printers were fortunate in securing in their offices the services, as revisers and correctors, of learned men who had a scholarly interest in the work. Melanchthon served as editor, reviser, and press-corrector in 1514-15 with Thomas Anshelm in Tübingen. Professor Johann Hildebrand, of the University of Tübingen, Melanchthon's predecessor in Anshelm's office, named himself with pride *Castigator Chalcographiæ Anselmitanæ*. He had supervised the printing of several Latin and Greek grammars, and also of the *Epistolæ Virorum Clarorum*, published as a rejoinder to the famous *Epistolæ Virorum Obscurorum*. Pellican (Conrad) supervised for Petri of Basel the printing of the piracy edition of Luther's Bible, receiving for his service board during the months he was occupied. The long association of Erasmus with Froben has been already referred to. Rhenanus writes to Erasmus, May 10, 1517: "Lachner promises to secure due acknowledgment to you for your services. In September you will receive payment for the work of revising the text of *S. Augustine*. He is now arranging the matter with Koberger in Frankfort."^[123]

Kapp is authority for the statement that Luther received for his literary work no honorarium or compensation other than occasional copies of the printed volumes. This statement has reference doubtless only to those publications of Luther's (many of them wholly unauthorised) which were issued by printer-publishers as ventures of their own. It is probable, however, as before stated, that the Wittenberg editions of the miscellaneous writings, and that of the German Bible, were printed at Luther's risk and expense, and it is fair to assume that for the sale of these editions, which were his property, the receipts (less some selling commission) were paid over to Luther. The sale of Luther's writings (both books and pamphlets) certainly exceeded anything that had as yet been known in the book-markets of Germany or of the world, and from the Wittenberg editions alone there must have been some proceeds. The first editions of Luther's smaller and larger catechisms were printed in 1529 by George Rhaw, who had established himself as a printer in Wittenberg in 1521. He was distinguished as a musician and a mathematician, and, later, became magistrate of the town.

After the publication of the Edict of Worms, Duke George of Saxony took ground against the Reformers and forbade the printing and the distribution of their literature. The authority of the Duke was sufficient to put a stop to the larger portion of the printing that had been carried on in Leipzig for the Reform writers, but Wittenberg was outside of the Duke's domain, and the Elector Ernest and his successor Frederick, were both friendly to the Lutheran cause. As a result of the restrictions in Leipzig, a number of the exiled printers made their way to Wittenberg, and the presses of Wittenberg became busier than ever. The printing of the German New Testament, begun in April, 1522, was completed on the 22d of September of the same year, the first edition comprising five thousand copies. By the end of July, Luther reports that three presses were at work upon the book. This first edition was printed in folio, and with the simple title, *Das Neue Testament, Deutsch, Vuittenberg*. Neither the translator nor the printer is specified, and the title-page bears no date. The volume was published at one and a half guilders, the equivalent of twenty-five marks of to-day, or \$6.25. The edition was exhausted within three months after publication. The German edition of the Old Testament appeared in divisions; the Pentateuch was issued in January, 1523, and by the end of 1524 had been published all but the Books of the Prophets. There was then a long gap in the publication, the work being finally brought to completion in 1534, in which year appeared the first edition of the entire Scriptures in one volume.

In 1524, the artist, Lucas Cranach, an old friend of Luther, instituted, in company with a goldsmith named Döring, a new printing-office, to which was afterwards confided a large proportion of the work of Luther. Cranach appears to have been a man of varied activities. The portraits from his brush that have been preserved give evidence of continuous work in his studio during this period, while in addition to the printing-office above referred to, he carried on a paper-warehouse and a book-shop. His several portraits of Luther are the chief authority for the Reformer's personal appearance. In 1534, the Cranach-Döring printing establishment was transferred to three new partners, Goltz, Schramm, and Vogel, who had secured from the Elector Johann Friedrich a privilege covering the complete Bible. They purchased the woodcuts that had been prepared from Cranach's designs for the Apocalypse, and they appear to have continued to utilise the co-operation of Melchior Lotter (the younger).

Kapp records that during the lifetime of the Reformer, not less than 100,000 copies of Luther's New Testament were printed in Wittenberg. It would be much more difficult, and probably impracticable, to arrive at any trustworthy estimate of the aggregate of the various unauthorised editions issued in Germany. The circulation of both the authorised and unauthorised editions was very much furthered, outside of the regular channels of the book-trade, by the work of the pedlars and the travelling preachers.

As has before been indicated, it would not be in order to judge by the standards of later times the "reprinting" undertakings of the period of the Reformation. It was not only the case that the larger number at least of these reprinters felt no consciousness of wrong-doing or of the infringement of any rights either of the author or of the original publisher, but that, as far at least as the controversial writings of the time were concerned, they believed they were rendering a material service to the cause, and were carrying out the wishes of the Reformers in securing for these writings the widest possible circulation. The German Bible, having been placed under the ban of the Church, must be classed with the controversial writings referred to, and it was, of course, the most influential publication of the series in extending the doctrines of the Reformation.

At the time of the death of Luther, there appear to have been no privileges in force covering his version of the Bible, although claims to its ownership were asserted by Hans Lufft. In 1500, Rühel and Sulfisch of Wittenberg secured a privilege for printing the Bible, but this evidently did not convey any exclusive right, and should therefore be regarded rather in the light of a permit. Other editions soon appeared in Leipzig, which was the best market for the sale of the Bible, and for the control of this market various contests arose. The restrictions upon the Leipzig publishers in regard to the printing of the Luther versions were gradually removed, but it was not until 1564, and chiefly at the instance of the Duke of Weimar, that this version became common property (*literärisches Gemeingut*) for all Germany, and was formally declared free of privilege.

Well pleased as Luther and his associates certainly were in being able, either through their own publishers or through the reprinters, to reach so many thousand readers, they were not a little troubled at the inaccuracy and incompleteness of much of the material sold over their names. In September, 1525, Luther writes to inquire whether his printers have not

been heedless in permitting thieves or burglars to make away with “copy” or sheets for use in unauthorised printing elsewhere. “It is bad enough,” he says, “for these rascals to get the advantage, through theft, of my labour and pains, but with that I would be patient, if it were not for the shamelessly false and blundering form in which they issue books described as mine.... In looking at one of these appropriated volumes, I find here a big gap, there something entirely transposed, here a sentence falsified, and, again, an entire paragraph left without corrections. It seems to me an abominable thing that we should labour while others secure the results of our toil, leaving for us only annoyance and shame.”

Luther closes his complaint, however, not with any contention for the complete control of his material, but with the very moderate suggestion that the reprinters ought, if only as a matter of Christian feeling (*aus Christlicher Liebe*), first to wait a few months in order to give to the original edition a fair chance before interfering with it, and, secondly, to print their own issues with a decent regard for correctness and completeness.

In September, 1525, Luther writes to the magistrates of Nuremberg, complaining that a large portion of the proof-sheets of a volume of his sermons had been stolen from his printing-office in Wittenberg, and had been made use of in Nuremberg for the production of a piracy volume. The publication of this volume in advance of the issue of the complete work had caused his printers serious injury. (*Wodurch seinen Drückern ein merklichen Schaden zugefügt sei.*) He speaks here, it is to be noted, as if the risk and ownership of this publication rested not with himself, but with his printers. He goes on to say in his letter to Nuremberg that he believes the printer Herrgott had been concerned in this affair. He begs the magistrates to use their influence with the local printers to induce them to delay bringing out reprints of his writings until seven or eight weeks after the publication of the original editions; certainly a very moderate request. He concludes, “If you can give me no help in this matter, I shall be obliged to make an open publication to warn the public against these thieves and robbers, but I should be sorry to have to print in such a connection the name of the city of Nuremberg.”^[124]

The magistracy promised in reply to this appeal, that an edict should be issued forbidding the reprinting, within a specified time, of Luther’s

writings. It appears, nevertheless, that for some years at least no further action was taken. In 1532, however, in response to a renewed appeal from Luther, an edict was issued, not forbidding the Nuremberg printers to issue reprints, but simply forbidding the use on publications printed in Nuremberg of the false imprint of Wittenberg. This prohibition was, however, simply a repetition of a provision of the imperial Act. The Nuremberg edict also insisted upon greater care for an accurate text (*besser correctür befleyssen*).

In a letter from Luther to Spengler, the Syndic of Nuremberg, dated November 7, 1525, he refers to an association that had been formed of certain leading printers of the Rhine cities to repress or discourage piracy (*diese Buberei* is the expression used by Luther), and asks the Syndic to induce Koberger to give to the association the aid of his all-important influence and co-operation. It does not appear, however, that the Kobergers interested themselves in the undertaking. Their publications were almost exclusively works of a scholarly character, issued (in Latin) in folio or in quarto, works which did not tempt the German reprinters, whose appropriations were chiefly devoted to volumes of a popular character and to pamphlets, *Flugschriften*. Aggravating as this very general practice of piratical reprinting was to Luther and to such other authors of the time (a group, however, at best but inconsiderable) who had secured a popular hearing, and also to their authorised publishers, it seems evident not only, as before pointed out, that it furthered very largely the rapid spread of the doctrines of the Reformation, but also that it helped to build up the business of publishing and bookselling, and to develop the habit among the masses of the people of buying and of reading books, and of being influenced by printed arguments.

During the first years of the sixteenth century, instructors and students were much hampered by the scarcity of text-books. When, in 1520, Reuchlin began his lectures in Ingolstadt, he reports that there was in the town no single volume in Greek or Hebrew. He was obliged, therefore, in his instruction work to write out texts in the two languages on black-boards for the students to transcribe. Basilius Amerbach, when he was a student in Tübingen, speaks of hiring on certain hours in the week a copy of the *Corpus Juris*. Trutwetter, the teacher of Luther, had taken his own classical instruction from Publicus Rufus, a Florentine who had brought to Erfurt,

shortly after 1500, the revived Italian enthusiasm for classical studies. The University of Erfurt was one of the oldest in Germany, dating from 1392.

Luther mentions, as if it were an exceptional instance, that in 1506, when he was a student in Erfurt, he had bought a copy of the *Corpus Juris* (the book from which the lecturer was then giving instruction).^[125] It was evidently at this time not common for students to own copies of the text-books in use. Thomas Plater relates in his autobiography that in the school of S. Elizabeth at Breslau, as late as 1515, there was usually but one text-book for each class. The instructor or one of the students would read this for dictation, and the students having taken their notes would memorise them for recitation.^[126] When Melanchthon began, in 1524, his lectures on Demosthenes, the only copy of the *Orations* in town was that owned by the lecturer.

The chief representative of the intellectuality of the Lutheran movement was doubtless Philip Melanchthon. Of Melanchthon's relations with the literary and publishing activities of the time, the limits of this chapter will not permit any full consideration. It is sufficient to say that, apart from his service as a preacher, and as collaborator on the German Bible, he devoted himself particularly to the work of preparing text-books for higher grade students, a work which earned for him the title of *Præceptor Germaniæ*. He edited, and himself in part wrote a series of text-books for use in the high schools and universities on the subjects of Latin and Greek Grammar, Rhetoric, Theology, Ethics, Physics, and Physiology. These books displaced in the institutions of Protestant Germany the works of Catholic writers, many of which were survivals of the schoolmen, and were entirely antiquated and inadequate. The contention maintained by so many good Catholics, that no literature that had once been sanctioned by the Church as good and sufficient, could ever lose its value or authority, was of course especially abused when applied to works of instruction. Under the initiative chiefly of Melanchthon, Wittenberg became the centre of instruction for the preachers and teachers of all Lutheran Germany, while for a considerable period Strasburg filled a similar place for the Calvinists of the South-west.

While the immediate direction of this educational work fell to Melanchthon, the inspiration for it, as for so much of the intellectual activity of the Reformation, is very largely to be credited to Luther, who had from an early stage in the Reform work insisted upon the necessity of

defending the minds of the younger generation from the influence of the educational traditions and routine doctrinal teachings of the Church schools.

The work of the Lutheran educators would, of course, have been impracticable if it had not been for the rapid development of the publishing and book-selling trade of the country, a development the chief incentive of which is also due to Luther. "Now the printers will have their hands full," writes Hutten in 1517, to the Count of Neuenar, when he hears of Luther's declaration against the operations of Tetzel. Hutten's prophecy was fulfilled far beyond his largest imaginings. The bold attack of Luther was directed not merely at Tetzel and his fraudulent auction sales of God's forgiveness of sins, but at the corruption and demoralisation of the Church, a demoralisation of which, as Luther recognised, Tetzel and his Indulgences were but an inconsiderable symptom.

The downfall of imperial Rome, which (irrespective of the internal causes) was brought about by persistent Teutonic onslaughts, terminated the period of the world's history which is, for convenience, called classic or ancient. In like manner, the overthrow of the world-wide domination of ecclesiastical Rome was brought about by the attack of the Teuton Luther, an attack which, backed up by the Teutonic forces of North Europe, developed into a revolution against Italian rule, and terminated the epoch of mediævalism. For long periods to come, however, the questions raised by Luther and his fellow Protestants were to bring anxieties and conflicts upon popes, emperors, princes, and people. These questions were also to provide issues and themes for innumerable writers, and to secure an apparently inexhaustible supply of material for the printing-presses and the booksellers. It is only with this last-named result that, for the purposes of the present study, I am concerned.

According to the statistics of book-production collected with painstaking thoroughness by Panzer, Weller, and Kuczynski, and tabulated by Kapp, the total number of separate works (principally pamphlets, *Flugschriften*) printed in German in the year 1513 was 90; in 1518, 146; in 1520, 571; and in 1523, 944. The aggregate for the ten years is 3113. Of the total for the decade, no less than 600 were printed in Wittenberg, a place which before 1517 had not possessed a printing-press^[127]; this is an indication of the immediate effect produced by the Lutheran movement upon the work of the printers. The revolution in publishing methods brought about in connection

with the Reformation was not restricted to the introduction of German as a language for popular publications. Of almost equal importance was the change in the form and the price of books, the costly folios and quartos being replaced by comparatively inexpensive twelvemos and sixteenmos, and by far the larger proportion of the writings which exercised the most immediate influence on the thought of the time being issued in the form of pamphlets. These pamphlets, sold in the market-places, along the highways, and from house to house, by pedlars working for gain, and by colporteurs having a missionary purpose, took the place which in modern times is filled by the magazine or weekly paper.

Luther recognised at once the importance of the printing-press for the work he had in hand, but he was himself amazed at the extent of the public that he was able to reach when, after 1518, his tracts and sermons came to be printed in German. Up to this time these had been originally issued, according to the prevailing practice, in Latin, and only in part translated into German. It is not easy at this period to understand how the middle and lower classes in Germany had been able, by the beginning of the sixteenth century, to secure so general a proficiency in reading as to be able to profit by the pamphlet literature of the time, but, that a widespread elementary education existed, is evident from the circulation secured for these pamphlets, and from their immediate influence upon opinion and belief. I can but think that the high standard of popular intelligence which rendered possible the comprehensive and general acceptance of the doctrines of the Reformers, doctrines largely made known through printed arguments, may very properly be taken as a limitation upon the rather highly coloured descriptions given by D'Aubigné and some other Protestant historians of the extreme ignorance in which the masses of the people had been left under the ministrations of the Church of Rome.

The Edict of Worms of 1521, which committed the Emperor Charles V. to the support of the contentions of the Papacy, and threw the great weight of the Holy Roman Empire against the cause of the Protestant Reformers, marks also an important stage in the history of publishing undertakings in Germany. It announced the beginning of an imperial censorship, a censorship which was confirmed and extended by the Edict of Nuremberg of 1524. The first part of the edict may be summarised as condemning Luther and all his works, while the second, under the head of "regulation of

printing" (*Gesetz der Druckerey*), forbids the printing of all writings that have not secured the explicit approval and sanction of the ecclesiastical authorities. In the regions under Lutheran influence, the only effect of the imperial and ecclesiastical prohibition was, as noted, to increase largely the circulation of the writings of the Reformers. In the districts into which the Reform doctrines had only begun to penetrate, the ecclesiastics were able in great part, at least, to stop the further circulation of the pamphlets, by taking prompt and harsh measures against the colporteurs. From this time and until the close of the Thirty Years' War, Church and State worked together (though not always in harmony) against the freedom of the Press, on the broad ground that such freedom necessarily resulted in heresy and in treason. The first imperial Act in regard to libellous publications appears to have been framed on the assumption that every writing by a Protestant, even if entirely unconnected with theology or with politics, must be libellous.

Charles V. had been willing to leave the responsibility for the censorship of the Press in the hands of the Church. During his reign, the printers were busying themselves chiefly with controversial material, and in the effects of this upon the minds of the people the State was interested only indirectly. The Emperor Ferdinand was a more faithful, that is to say, a more bigoted, son of the Church than Charles, but he refused to admit that the control of the Press was a Church matter. He took the ground that censorship was a matter pertaining to the State, that is, to the Crown, and that the Bishops could take part in it only as delegates of the authority of the State. This was the contention asserted and finally secured by Francis I. and his successors in France.

In 1528, under the authority of the Emperor, Balthasar Hubmayer, a preacher, printer, and travelling bookseller of Nikolsburg, was burned in Vienna, together with his wife and two apprentices, for spreading false doctrines. Hubmayer had at first accepted the Lutheran views, but had, later, associated himself with the Anabaptists. In 1529, the persecution of the printers and of the Protestants in Austria was for the time relaxed because of the peril of Vienna from the Turks, an exigency which absorbed the full attention of the imperial authorities. In 1564, was published in Rome an *Index librorum prohibitorum*, the first of a long series.

The censorship was by no means left exclusively in the hands of the imperial or of the ecclesiastical authorities. With no little variation of policy both as to the theory or standard of supervision and as to the methods of carrying out the restrictions imposed, many of the States established censorship of their own, and the same course was taken by a number of the cities like Nuremberg, Strasburg, Frankfort, and others, in which the printing business had begun to assume importance, and where the Church authorities had not already taken charge of the function. In Nuremberg, one of the earliest instances of the exercise of a city censorship occurred in 1527, in the case of a volume containing woodcuts illustrating the history of the Tower of Babel, for which cuts a rhyming text had been supplied by the cobbler-poet, Hans Sachs. The book had been printed without a licence or permission from the magistracy. The magistrates decided that the book must be suppressed. They further cautioned Sachs that the writing of verses was not his proper business, and that he should keep to his own trade of shoemaking. *Nun seye solches seines Amtes nicht, gebuhre ihm auch nicht.... Rathes ernster Befehl dass er seines Schuhmachens warte, sich auch enthalte Büchlein oder Reymen hierfür ausgehen zu lassen.* The edict was simply an emphatic reiteration of the old proverb, “Shoemaker, stick to your last,” or *Ne sutor supra crepidam*. The difficulty appears in this case to have been due not to the Lutheran tendencies of Sachs’s rhymes, but to the lack of respect shown to the magistrates in issuing a book without a permit; and to the further breach of authority on the part of a man licensed only as a shoemaker, undertaking also to carry on the avocation of a poet. Sachs’s later history shows, however, that it did not prove practicable to keep the poetic shoemaker from writing and from printing his productions.

Luther was, it should be remembered, thoroughly in accord with Pope and with Emperor in the belief that it was the duty of the believers to stamp out heresy. He only differed with them as to what constituted heresy. In 1525, we find him invoking the aid of the censorship regulations of Saxony and of Brandenburg for the purpose of stamping out the “pernicious doctrines” of the Anabaptists and of the followers of Zwingli. The Protestant princes were, for the most part, more than willing to establish and to maintain a censorship for the presses of their several localities, as such a system served in more ways than one to strengthen their authority, while it could be utilised also to head off undesirable criticism.

As an evidence of the very general distribution secured for Luther's writings, may be cited a letter, dated February 14, 1519, written to the Reformer from Basel by the publisher Froben, in which he speaks of large supplies of the Basel editions being called for, not only in Germany, but in France, Spain, Italy, Brabant, and England. The reference is to the first collection of Luther's works, of which impressions were printed in 1518, 1519, and again in 1520.^[128] Kapp is of opinion that from these sales the author asked for and received no return either in the form of royalty or honorarium. His purposes were accomplished when his teachings, correctly printed, in editions authorised and supervised by himself, and sold at the lowest prices compatible with accurate typography, had secured the widest possible circulation. While, therefore, Luther serves as an example of a successful author, the most successful, in fact, that the world had as yet seen, his experience as an author did not help to advance the recognition of the rights of an author in his literary productions. To Luther, his writings were not property, to be controlled for the benefit of the author, but great truths and sound doctrine essential for the saving of souls, and to be scattered widely for the benefit of the reader. Köpflin, writing to Luther from Hagenau in 1519, says, "We have printed your books one after another, and within six months have disposed of all the copies."

Luther himself writes to Cardinal Lang, in the same year, that his books were being read by the theologians of the Sorbonne. Johann Faber, Vicar-General in Constance, writes in 1521 to Vadian, "Through the wrong-doing of irresponsible printers, all kinds of unlettered people have read or have had read to them the teachings of Luther: even the old women in the streets stop to chatter about them."^[129] It is to be remembered that the effective circulation of Luther's pamphlets (and of all the popular publications of the time) was very much multiplied by the practice on the part of those interested in the doctrines, of reading such pamphlets out loud in the market-places, to all who might be interested. After the Lutheran writings had been put under interdict, such public readings had to be discontinued in the towns and districts which remained under Catholic control; but the pamphlets were still widely (though surreptitiously) sold by pedlars and colporteurs, and the readings continued in places which were less liable to interruption than the inns and market-places.

The jurist Scheurl writes from Nuremberg to Cardinal Campeggi, March 15, 1524, "Every common man is now asking for books or pamphlets, and more reading is being done in a day than heretofore in a year."^[130] In Nuremberg, as in other towns, it became the practice to read the books of Luther out loud in the market-place. Erasmus complains, in 1523, that since the publication of the New Testament, the whole book-trade seems to be absorbed with the writings of Luther, and to be interested in giving attention to nothing else. He says that it is very difficult to find publishers willing to place their imprint upon works written in behalf of the papacy. In one form or another, the German Testament and the other writings of Luther were distributed with surprising rapidity among all classes of people. As an example of the kind of interest they excited, it is recorded that the magistrates of Bremen sent a bookseller to Wittenberg for the purpose of purchasing for their use a set of Luther's works. The citizens of Speyer are described as having the books read to them at supper, and as making transcripts of them. In hundreds of towns throughout Germany, Luther's writings were brought to the notice of the people by means of the very edict which had for its purpose their final suppression, and after the Diet of Worms, the demand for them rapidly increased. The preacher Matthäus Zell writes from Strasburg in 1523, "The Lutheran books are for sale here in the market-place immediately beneath the edicts of the Emperor and of the Pope declaring them to be prohibited."

In the first half of the sixteenth century, means of communication were very imperfect, and the delays and difficulties of transportation of goods from one part of the country to another (particularly on routes away from the rivers) were very considerable. With no trustworthy postal system, and with very restricted facilities for remitting money, the hindrances in the way of ordering books, of delivering them, and of collecting the amounts due for them, must have been very great. In the absence of journals, it could have been by no means an easy matter even to make known to possible buyers the fact that certain books had been published. The booksellers depended for information concerning new publications upon the semi-annual Fair which had been instituted at Frankfort, but at this period it was only the more considerable dealers who could afford to make regular visits to the Fair, while it was also the case that a considerable proportion of possible buyers were not within reach of book-dealers of this class. There were, therefore, in this initial stage of the book-trade, not a few inducements for

the production in various places, for supplying the demand of the particular locality, of books of a popular character, and this practice of producing unauthorised reprints, while often causing grievances of one kind or another, was hardly regarded as a misdemeanour, if carried on with moderation and with some little regard for the wishes of the author. The practice had also certain specific advantages for the community, in ensuring prompter supplies of books of present interest, and in furthering the developing of local bookselling and of general education. The material service rendered to the cause of the Reformation by these earlier “book-pirates” has already been touched upon.

Under the pressure of the widespread interest in the writings of the Reformation, publishing business was done in a number of out-of-the-way little towns which would to-day hardly support a printing-press. Lutheran tracts were printed, for instance, in such places as Grimma, Zwickau, and Eilenburg, principally for sale through the pedlars. These issues were very frequently published without imprint or date, and the tracing of the history of their publication has, therefore, been difficult. The patience of the German bibliographers is, however, inexhaustible, and the lists of the presses of the fifteenth and sixteenth centuries are probably now fairly complete.

Kapp says that the Petri edition of Luther’s *Testament*, printed in Basel, could hardly have found its way as far north as Saxony, and when, therefore, he finds record of the sale of copies in Meissen in 1523, as low as fifteen groschens, when the Wittenberg price was thirty groschens, it is evident that piracy editions must have been produced in the North as well as in the South. The activity of Magdeburg as a centre for the production and distribution of Protestant literature, has already been referred to. After the death of Luther, the publishing trade of Wittenberg, which had been the creation of his personality, slackened, and Magdeburg became the headquarters of the literary interests of the Reformers. The trade in Bibles and hymn books, and in the collected works of Luther was especially important, and continued until the destruction of the city by Tilly in 1631.

The city of Münster was another place where Protestantism had taken a strong hold, and large supplies of the New Testament and of the Lutheran writings were distributed from the presses of Münster throughout Westphalia and the adjoining provinces on the north. The excesses of the

Anabaptists, who, under John of Leyden and his associates, had possession of the town for a number of months, 1535-36, were, however, wellnigh destructive of its Protestantism, and proved fatal to its publishing business. In the general havoc which obtained both before and after the overthrow of the Anabaptists, books and printing-presses perished together. When the Catholic Bishop resumed his sway, the production of the Lutheran literature ceased, and there were but few Catholic publications to take its place. The story of the brief and dramatic rule of the Anabaptists in Münster was utilised by Meyerbeer for his opera, *The Prophet*. In 1562, an edict issued by the Bishop ordered the destruction of all Protestant books in Westphalia, and made it a misdemeanour to print, sell, or possess any such books. The sales continued notwithstanding, the supplies coming mainly from Magdeburg.

In the Austrian dominions, the Church succeeded, in 1525, in inducing the Emperor Ferdinand to prohibit the sale or the possession of Lutheran or Calvinist literature. The book-pedlars succeeded for a time in evading the prohibition and in distributing large supplies of the Testament and of the tracts. The persistency of the Jesuits was, however, in the end successful in crushing out the business. Book-pedlars were treated as malefactors, the peasantry and the townsfolk were frightened, and the demand gradually died away. In other portions of Germany, the circulation of the Protestant literature was, on the whole, increased through the prohibitions. The usual price for the Protestant tracts was one groschen, equal to two and a half cents, or in purchasing power to perhaps twelve cents to-day. Each tract reached, as a rule, a number of readers or of hearers, for the old Oriental and Greek practice of reading aloud to an audience was carried on in hundreds of market-places, shops, and other informal auditoriums.

One of the travelling printers and book-pedlars who came to a tragical end was Johann Herrgott, who has before been referred to as a reprinter in Nuremberg of Luther's writings, and who appears to have circulated also a number of tracts considered by Luther to be extremely heretical. He was executed, in 1527, in Leipzig, under the instructions of Duke George of Saxony. The Duke was an old-time opponent of Luther, and he appears to have taken the ground that freedom of speech in any direction was objectionable. There was paid for the burial of this too-persistent bookseller the sum of six groschens.

The circulation of the Lutheran tracts was taken charge of not only by the book-pedlars and colporteurs but by a large number of travelling preachers, *Prädikanten*. These “preachers” were, in part, old-time priests, but in many cases laymen of very varying degrees of education or of ignorance. The Wittenberg tracts gave, however, a supply of ammunition which even the most ignorant preachers could make effective. In reaching the masses of the people, such tracts could be made more serviceable than the rejoinders of the Catholic writers, as these last were, with hardly an exception, written in Latin.

During the troublous times of the war of the peasants, the progress of the Reformation was checked, and the circulation of the Lutheran publications, in the districts affected by the uprising, was for the time brought to a close. As one of the historians expresses it, “The bloody crushing out of the revolting peasants cut through the vital nerve of the Lutheran movement towards the creation of a national Church.... Luther showed, however, the capacity to meet the crisis.... Fortunately for the nation, he now possessed the influence which enabled him to direct.... Repressing, on the one hand, the tumultuous contentions of his followers among the peasants, using his influence, on the other, to temper the fierce indignation of the noble class, he was in a position to do much to further the final settlement, and was able, finally, to save from the ruin that had seemed imminent the beginnings of the Lutheran Church.”^[131]

The active leadership of the Reform movement had fallen upon Luther, who, while quite conscious of the power of argument, of which he made full use, was by nature a fighter, and whose very arguments, in their forcible and trenchant and sometimes brutal character, had the effect of verbal cudgels. One characteristic, in fact, of the literature, or perhaps it is more accurate to say of the controversial literature, of the sixteenth century, was the tendency to coarseness of expression, and the frequent use of libels and lampoons. When great scholars like Erasmus and Reuchlin permitted themselves to indulge in satirical invective, of which, judged by the standard of to-day, the coarseness was often more apparent than the wit, it is not surprising that fighters like Luther and Hutten should be ready to indulge in verbal onslaughts which seem more akin to brutal horse-play than to reasonable argument. Luther’s last publication, issued in 1545, was a series of theses written in reply to a fresh condemnation pronounced

against him by the theologians of Louvain, in which series he included a final paper against the Zwinglians. His death occurred in 1546.

Enormous as was the circulation of Luther's writings at the time, and important and far-reaching as was their influence, they have not taken a place in the world's literature, and but few of them would to-day find readers except among special students of the period. It is to be borne in mind, however, that while the writings of Luther have not lived as books, the teachings and doctrines presented in them have formed the basis of an enormous mass of doctrinal and religious literature, and have continued to direct, or at least to influence, the thought and the faith of a very large division of the Christian world. Luther as an author may be dead, but three hundred and fifty years after his death, his thoughts and teachings are still, through the books of his followers, reaching thousands of readers, and on both sides of the Atlantic his spirit is still preaching in thousands of pulpits.

I have presented this summary of the published writings of Luther simply as an example of the literary undertakings and of the publishing methods of the time. What has been said about the printing and the distribution of the works of Luther could be repeated in regard to the long series of productions of most of the other writers of the Reformation, such as Melancthon, Zwingli, Oecolampadius, and also those of their opponents, Cochläus, Eck, and the others.

It was doubtless an obstacle in the way of the development of the conception of property in literary productions, that during the first century of the printing-press, so large a proportion of the publications which were the work of contemporary writers, belonged to the class of religious, doctrinal, and controversial literature. The chief purpose of authors like Luther and Zwingli, was, as we have seen, to secure the widest possible distribution for their teachings. They believed that a right understanding of certain doctrines was essential to salvation, and they believed, further, that the responsibility had been confided to them of bringing these doctrines to humanity. It was not easy for authors holding such a conviction to undertake to restrict or control the sale of their writings for the purpose of securing profits for themselves. There would, of course, under the existing conditions, have been many difficulties in the way of carrying out such control if it had been attempted. The fact remains, however, that such attempts were but infrequent. With this attitude on the part of the writers,

and of those who were earnestly interested with these writers in establishing creeds and in influencing public opinion, it is not surprising that the practice became general of reprinting any material for which there was demand, or for which it was believed that a demand could be created.

Such reprints were made in many cases by zealous disciples, who multiplied and distributed copies for “missionary” work, but outside of the believers, there were naturally many others, printers and book-pedlars, who were very ready to take advantage of a time of religious fervour or of controversial interest, and to make money by supplying the literature produced by the Reformers or by their antagonists. The objections that came from the authors were mainly on the ground of inaccuracy in the printing of these unsupervised editions. If the cause was to be furthered by the wholesale appropriation and general distribution of their writings, they were estopped from any serious opposition to the reprinters. The habit thus became very generally established on the part of the printers and the booksellers, of regarding literary productions as *feræ naturæ*, in connection with which no property right could be claimed. The reading public, which, as far as the mass of the people was concerned, came into existence only with the application of the printing-press to the literature of the Reformation, grew up, therefore, with the general belief that nothing more was due to the author than to read his teachings in any form in which they could be obtained, and for these earlier readers any distinction between an authorised and an unauthorised edition was, for more reasons than one, an impossibility. While Luther received moneys from the sale of the Wittenberg editions of his books and possibly from a few others, it is certainly the case that he made no money from these sales. Every gulden that was paid for the books, every pfennig that came in from the fly-leaves or pamphlets, appears to have been at once expended in further printings and in instituting further distributing machinery. The same was the case with the other writers of the Lutheran group and also with Zwingli and the Swiss reformers generally. The books of Calvin formed to some extent an exception. They were less available for popular circulation, and, being addressed more particularly to scholarly readers, were for the most part printed in Latin. For them, the publishing arrangements were more in accord with later methods, and the competition of piracy editions was less serious. It is probable, therefore, that they produced some returns for the author. Some details concerning the Calvin publications are given in the

chapter on Robert Estienne. We may conclude that while the Reformation was of important service in furthering the work of the printers, in giving material for the booksellers, and in inducing the habit of buying and of reading printed matter, it probably helped to delay for a number of years the formation of a correct conception of literary productions as property. The one writer of the time who was, however, able to do something to establish such an understanding, and who succeeded also in securing some substantial returns from the sale of his works, was Erasmus. An account of the publishing undertakings of Erasmus has been given in another chapter.





CHAPTER XI.

THE HOUSE OF PLANTIN.

1555-1650.

THE House established in Antwerp, in 1555, by Christophe Plantin secured for itself high distinction among the printer-publishers of the century, and, as well for the beauty and importance of the productions of its presses, as by reason of the exceptional length of its history as a business concern, it must always hold an honourable place in the record of the great publishers of the world. Plantin's work as a pioneer was, however, not so difficult, so distinctive, or so important as that of several of his great predecessors, such as Aldus, Badius, Estienne, or Froben. At the time Plantin printed his first book, in 1555, a century had elapsed since the Press of Gutenberg had begun its work, and the technical difficulties which had beset the earlier printers had been very largely overcome; publishing machinery had been created, and methods for the distribution of books had been arrived at; while the scholars of the universities had learned to utilise their attainments for editorial work, and fairly trustworthy texts of the greater number of the world's classics were already available in printed form for the use of the compositors in the preparation of later and possibly improved editions.

Unlike many of his famous predecessors and contemporaries among the publishers, Plantin laid no claim to erudition, and although he was a good linguist, he is not to be classed with the scholars of his time. Nor would it be fair to say of him that he was actuated in his work by as high ideals as those which impelled men like Aldus and Estienne. He had, like them, literary ambitions, and a certain literary imagination, but the question of direct profit filled a larger place and exercised a more continued influence on his business policy and decision. In religion and in politics Plantin was also evidently something of a trimmer, and he was prepared from time to time, if not to sacrifice convictions, yet to be very economical in the assertion of convictions if reticence seemed likely to further commercial advantage.

While Plantin belongs, therefore, both chronologically and in personal prestige, rather to the second than to the first grade of the earlier printer-publishers, he is to be credited with the accomplishment of a great work, and a work carried on in the face of many difficulties, including wars, foreign and civil, the hampering censorship of the Church, the bad faith of princes, his own over-optimism, and the financial embarrassments resulting from these and from other causes. As a result of his energy, creative capacity, and persistency, he was able to overcome these serious obstacles and to impart such vitality to his concern as to secure for it a life of three centuries, the longest continued existence ever enjoyed by any publishing House. Its business, begun in 1555, came to a close only in 1867, when the city of Antwerp bought the printery in order to perpetuate its reputation through the establishing of the Plantin Museum. The chief authority on the life of Plantin and on the history of the publishing undertakings of his House, is the beautiful memorial volume by Max Rooses, published in Antwerp in 1883. The full title is given in the Bibliography. To this work I am chiefly indebted for the materials for the present chapter.

Christophe Plantin was born in 1514, in a village near Tours. He died in Antwerp in 1589, continuing to the last year of his long life to be active in his business affairs. He appears to have had what to-day would be called a good school education; this included (what is to-day not so common as a result of school training) a working knowledge if not a full mastery of Latin, which, as the universal literary language of the time, was an essential part of the training of all printer-publishers. His work as a printer was begun in Paris, but when he was twenty-five years of age, he moved to Caen, in Normandy, a town which, in connection with its University, was already assuming importance as a literary and publishing centre. The printing of books in Caen had been begun by Durandas and Quijone as early as 1480, a few years after the first German printers settled at Paris. Plantin completed his apprenticeship with Macé (the second of the name) and, in 1546, married and moved to Antwerp, where he secured citizenship and became a master-printer.

From the middle of the sixteenth century and until the time of the great disasters brought on during the revolt of the Netherlands, the “Spanish fury” of 1576, and the great siege of 1585, Antwerp was at the height of its prosperity, and in the extent and varied character of its commercial

relations, it was, possibly, the leading city of Europe. While the enterprise and the genius for commerce of the Netherlanders had brought into their hands so large a proportion of the trade of the world, the people were very far from being mere traders. Their active-mindedness and incisive energy caused them to be keenly interested in intellectual pursuits and in all pending issues in religion, politics, and literature, while their sturdiness of character gave them a respect for their own opinions and made them ready to support these not only with arguments, but, when the time came, with the devotion of their lives. It is probable that, except in Florence, Venice, and a few other communities in Italy, there was no country in the world in which during the sixteenth century intelligence and cultivation were so widely diffused as in the Netherlands.

Before the life and death struggle with Spain, the differences between Flanders and Brabant in the South and Holland and its sister provinces to the North were much less strongly marked than was the case after the division of the Netherlands had left one part Catholic and one part Protestant, and had brought about, through exiling over both borders, the concentration of the Protestants in the free provinces of the North, and of the Catholics in the provinces which remained under Spanish rule in the South. At the time of Plantin's settlement in Antwerp, Flanders (using this term to cover roughly the modern Belgium) contained a large Protestant population, and the relations of the city with the towns of the Northern provinces were active and intimate. The neighbouring University of Louvain supplied the scholarly coöperation which was so essential for all the publishing undertakings of the age, while not a few scholars who, a few years later, found themselves with the exiles in Leyden or in Amsterdam, were at that time resident in Antwerp, and were already largely associated with the work of the printing-press.

It will be recognised, therefore, that Antwerp possessed exceptional advantages as a centre of book-production, advantages so great that they could not be entirely destroyed even by "the Spanish fury," the disastrous siege, and the confirmation of the Spanish domination. In fact, before the close of the fifteenth century, out of the sixty-five printers who were at work in the Netherlands, no less than thirteen were in Antwerp. At the time of Plantin's arrival, an entire quarter of the city was devoted to the making

of books, a circumstance at the time without a parallel among the cities of Europe.

Plantin began his work in Antwerp as a binder, but he shortly added to his business a shop for books. In 1555, he entered upon his responsibilities as a printer and publisher by the publication of a small volume entitled *Institution d'une Fille de Noble Maison*. This was followed, in the same year, by *Flores de l'anneo Seneca*, translated into Spanish "with privilege of the magistracy." The following titles, selected from the publishing record and catalogues, will give an impression of the general character of Plantin's undertakings during the earlier years of his career:

1556. "Le Favori du Court."

"Comites Flandriæ," by Jacob Meyer.

"Sossiego de Lalma" (in Spanish).

"Lettres Amoureuses de Messer Girolam Parabosque." Translated from Italian into French.

Almanacs and Calendars: the printing of these, begun in 1556, continued for many years as a most important division of his business.

1557. Liturgies.

"Vocabulaire François-Flameng," by Meunier.

"La Grammaire Française," by Meunier.

These two were printed at the expense of the author, to whom the privilege was issued.

The Four Orations of Cicero against Catiline.

"Le Livre de la Victoire contre toutes tribulations." Translated by Doré.

"La Divine Philosophie de Vivre."

1558. "Virgil," "Horace," "S. Jerome" (in Latin).

"Theologia Germanica."

"Letters of Phalaris."

“Isocrates.”

“Histoire et description de l’Ethiopée.”

“Theologia Germanica.” Printed (in Latin and French) with privilege royal, having been approved by Alva or by his examiners.

“Chiromancie de Fricasse.”

1559. The “Decameron” of Boccaccio (in French).

“Le Nouveau Testament.”

Of the latter he printed 2500 copies. In 1560, he had remaining 372 copies.

A Description of the Funeral Ceremonies of Charles V. (a magnificent folio, printed at the expense of Philip II.).

“Les Amours et Opuscles de Ronsard.”

“L’Histoire et description de l’Afrique,” par Jean Léon.

1560. “Historia de gentibus septentrionalibus,” by Olaus Magnus.

A portion of the edition was sold at Frankfort, while plates of the illustrations were sold to Paul Aldus, in Venice.

“Le Premier Livre des Odes, de Charles de Rouillon,” *Avec grâce et privilège du Roy.*

This privilege is given by the Privy Council in the name of the King. The document certifies that the Odes “ne contiennent aucune mauvaise secte ou doctrine.”

“Terentius,” “Catullus,” “Tibullus,” “Propertius.”

“Dictionnaire Tetraglotton.”

1561. “Amadis de Gaule.”

In this year, Plantin secured in all seven privileges.

1562. “Traité sur la Réformation,” by de Saintes.

Boëthius, “De Consolatione Philosophiæ.”

1564. “Virgilii Opera.”

“The Psalms.” French Version (with royal privilege).

1565. “Plautus,” “Juvenal,” “Ovid.”

Reprints (issued apparently under arrangement with Paul Aldus) of several of the Aldine classics.

1567. “Corpus Juris Civilis,” in ten volumes.

The writings of Galen, and a number of other medical and scientific works.

The Breviary of the Council of Trent.

1568. “La Bible Royale, ou Bible Polyglotte,” edited by Arias Montanus and his collaborators.

This was by far the most important work ever issued by the printers of the Low Countries, and the most scholarly edition of the Scriptures that had thus far been put into print. A polyglot Bible had been planned by Aldus but he had not lived to complete it. In 1517, the Cardinal Ximenes had had printed at Alcala a polyglot edition of the Old Testament, and, in 1547, an edition of the Pentateuch, in Hebrew, Latin, Greek, and Syrian, was printed in Constantinople under the supervision of certain Jewish editors. Plantin secured for his Bible a subvention (or at least the promise of a subvention) from King Philip II. of 21,000 florins, which amount was to be repaid to the King in copies of the book. The general editor, Benoît Arias Montanus, was appointed by the King, and Montanus associated with himself in the editorial work certain members of the Theological Faculty of the University of Louvain. The enterprise received also the coöperation and support of Cardinal Granvelle. One of the most important and also one of the most difficult parts of the undertaking was the securing of the various privileges required to authorise the sale of the work and to protect it from infringement in the several countries in which a demand for it was expected. A general privilege was first obtained from the Governor-General of the Netherlands, acting on behalf of the King, and this secular authorisation was supplemented by a certificate of orthodoxy issued by the Theological Faculty of Louvain, which was naturally prepared to approve of its own work. The Pope, Pius V., or his advisers, took the ground, however, that any general circulation of the Scriptures might prove dangerous, and in spite of the approval given to the work by the Catholic

theologians of Louvain, he refused to sanction its publication. This refusal blocked the undertaking for some years, and brought upon Plantin serious financial difficulties in connection with the heavy outlays already incurred. The history of the undertaking presents a convenient example of the special difficulties attending publishing enterprises of the time. The examiners or censors, whether political or ecclesiastical, were prepared to make their examinations and to arrive at decisions only when the work in question was already in printed form. It was necessary, therefore, that the expenses of the editing, type-setting, and printing should be incurred before the publisher could ascertain whether or not the publication would be permitted. It was quite possible also that the plan of the publication might be approved by one authority while the work, when completed, might fail to secure the sanction of some other or succeeding authority. With Plantin's *Bible*, the history took a different course. Pope Gregory XIII., who succeeded Pius V., was finally persuaded to give his approval to the work, and, in 1572, he issued a privilege for it which gave to the publisher an exclusive control for the term of twenty years, and which brought upon any reprinter excommunication and a fine of two thousand livres. When the papal sanction had been secured, the royal privilege covering all the dominions of Spain, which, after first being issued, had been withdrawn pending the papal decision, was confirmed for twenty years. Other privileges were secured as follows: From Germany, in the name of the Emperor Maximilian, for ten years; from France, in the name of King Charles IX., for twenty years; from Venice, in the name of the Doge and the Senate, for twenty years, and from Naples for twenty years. Montanus, after finishing his editorial labours and supervising the printing of the final sheets of the Bible, was obliged to devote some years to travelling from Court to Court, and to a long sojourn in Rome, in order to secure these privileges. Even after the work had secured the approval of Gregory, it was vigorously attacked by a group of the stricter Romanists, headed by Professor Leon de Castro, of Salamanca. De Castro took the ground that the Vulgate had been accepted by the Church as the authoritative text, and that all attempts to go back to the original Hebrew, Greek, or Syriac, must, therefore, be sacrilegious. As early as 1520, Noel Beda, Dean of the Faculty of Theology of the Sorbonne, had taken similar ground in connection with the editions of the Bible printed by Henry Estienne. Beda contended that the study of Greek and Hebrew would bring religion into peril, as it would tend to

undermine the authority of the Vulgate. When Montanus, after completing his work in Antwerp, returned to Spain, he was accused of being a partisan of the Jews and an enemy of the Church, and was threatened with a trial for heresy. He was able, however, through his own scholarship and with the backing of the Pope, to hold his own against his accusers, and no formal trial ever took place. He died in Spain in 1598. He may be considered as the most distinguished of the scholarly associates of the great Antwerp publisher, his relations with whom were in many ways similar to those which had obtained half a century earlier between Erasmus and Froben of Basel.

The polyglot Bible, the result of the enterprise and persistence of Plantin, and of the erudition, independence of thought and courage of Montanus, survived all the attacks that were made upon it, and remains one of the greatest monuments as well of the erudition as of the publishing enterprise of the sixteenth century. From a financial point of view, the undertaking was, however, a failure. It had probably been planned on too large a scale, while the outlays were seriously increased and the returns from sales not a little delayed and lessened in connection with the many obstacles in the issue of the privileges, and in connection also with the serious assaults made upon the orthodoxy of the book by certain Spanish ecclesiastics. The first edition printed had comprised 1213 copies, a considerable proportion of which were, five years later, still in the hands of the publishers. Plantin was left heavily in debt, the amount of the deficiency being increased by the failure of King Philip to complete the payment of the promised subsidy.

The more important of the publications of Plantin's Press which followed the big Bible, are as follows:

1571. The "Psalterium," printed with the aid of Cardinal Granvelle. An "Index Expurgatorius," prepared, under the direction of Philip II., for the use of the censors throughout the kingdom.

The preparation of the "Index" was confided to a college or commission of ecclesiastics sitting at Antwerp, and comprising, among others, the Bishop of Louvain and Arias Montanus. The "Index" specified what portions of the books condemned contained heretical material, and the booksellers in each town were charged to cut out the condemned pages and were permitted to sell the books thus

expurgated. The first of the “Indexes” issued in the Low Countries had been printed in Louvain in 1546, by Seruacs van Sassen (see reference later in this chapter).

1573. An “Antiphonaire,” printed with the aid of the Bishop of Tournai.

The “Hours” of the Virgin.

For this work, the Pope gave to the publisher a privilege (confirmed by his representative in Brussels) covering all the countries of Europe.

1573. “Thesaurus Theutonicæ Linguae,” a dictionary of French, Flemish, and Latin.

This was edited by Cornelius Kiel, who was the most important of the philological scholars associated with the Plantin Press.

“Vivæ Imagines Partium Corporis Humani.”

1575. “Corpus Civile, Pandectæ, Codicis Justiniani,” twelve books. A long series of Greek and Latin texts.

“Origines Antwerpianæ,” by Becanius.

The author was a physician and an old friend of Plantin. His treatise proves that Flemish is the most ancient of the mother tongues of the world. The edition was paid for by the author, in whose name the royal privilege was issued.

1576. The works of Tertullian, in three volumes.

“Historia Frumentorum,” with eighty-four plates.

1581. Works of S. Augustine, in ten volumes.

Works of S. Jerome, in five volumes.

Ortelius, the Geographer, Maps and “Theatrum Orbis.”

Mercator, the Maps of.

1583. “Stirpium Historia Pomptades Sex.”

A Description of the Netherlands, by Guicciardini, printed, with many illustrations, in German, Latin, French, Flemish, and Italian.

The elaborate plans of the cities were paid for by the municipalities interested. The author received as his compensation one hundred and fifty florins and a number of copies of the book.

“Humanæ Salutus monumenta,” by Arias Montanus, with seventy-two plates.

1575-85. A long series of Musical Works, for the text of which special fonts had to be made.

In 1567, Plantin coöperated with Paul Manutius (the son of Aldus), who was at that time established in Rome, in the production of a series of Breviaries, eleven in all. Manutius had secured for the work a papal privilege covering all the Catholic States, and as consideration for the assignment of this privilege for the Netherlands, Plantin was to pay one tenth of all the copies printed by him. A royal privilege, confirming the papal sanction, was secured from Philip II., who also advanced 2000 florins to facilitate the publication. Later, Plantin was relieved from the payment to Manutius of the tenth, the Pope having authorised, for the dominions of Philip, a somewhat different form of Breviary. This undertaking proved very remunerative.

In 1557, Plantin's consignment to the Frankfort Fair comprised no less than 1200 volumes, together with a large assortment of prints from copper plates. He was at this time, unquestionably, one of the two leading publishers of the world, the other being Henry Estienne of Geneva. In the publication of elaborately illustrated works, of illustrations for separate sale, and of finely engraved maps, his work represents an enormous advance over anything that had before been attempted, and it is difficult to-day to understand how the resources at his command and the markets within his reach could have been sufficient to warrant the production of works of such magnitude and costliness.

In 1562, a grave misfortune came upon Plantin, which caused serious interruption to his business, and consequent loss. He was accused by the Margrave of Antwerp of heresy, because there had been printed in his establishment an edition of a treatise entitled *Brièfve instruction pour prier*. Plantin was condemned *in absentio* (he was at the time in Paris) and his goods were seized and sold at auction. He was able, however, later, to show

that the book had been printed during his absence and without his knowledge, and for the account not of his own publishing concern but of some outside customer of the printing-office, and he was finally acquitted. The more important portion of the goods that had been sold at auction had been bought in for him by personal friends, so that he was shortly again in a position to go on with his business. Some of these friends supplied further capital, and, in 1563, a company was organised for the printing and publishing of books, of which company Plantin became manager.

Plantin came under suspicion of heresy a number of times, but he was always able to present evidence of his orthodoxy in the Catholic faith. It was, I understand, only after his death that the documents were found showing that, as early as 1550, he had been a member of a sect known as *La Famille de la Charité*, the leader of which was Niclaes. Plantin printed for Niclaes (but without the imprint of his printing-office) the *Spiegel der Gherechtigheit* or *Le Miroir de la Justice*. He did not fail, however, during these years, to continue to do whatever was requisite to preserve his good standing in the Church of Rome, a course that was certainly judicious at a time when Antwerp was in charge of rulers like Alva, and when the publisher was carrying on undertakings which required the coöperation or the support of the theologians of Louvain, of King Philip, and of the Pope. Whatever the temptation or the necessities, it seems certain that Plantin was willing, for the sake probably, in the main, of his business interests, to act the part of a trimmer, and it must be admitted that he played the rôle skilfully and successfully.

The censorship of the Press, as far at least as Germany and the Low Countries were concerned, began with the time of Luther. Before the burning of the Papal Bull at Wittenberg, the Press had enjoyed the same measure of freedom as that accorded to other industries. On the 25th of May, 1521, an imperial edict of Charles V. ordered that, thereafter, all books must, before being printed, secure the approval of censors appointed for the purpose under imperial authority. The first censors so appointed were ecclesiastics, and the censorship appeared to have reference only to matters of theological heresy. In the same year, 1521, the Diet of Worms placed under condemnation the writings of Luther. All existing copies of these writings were ordered destroyed, and those convicted of printing, selling, or reading the same were adjudged guilty of treason (*lèse-majesté*).

In 1529, a further imperial edict forbade the printing of all books containing the new heresies, and forbade also the printing (unless with the special sanction of the Church) of any portion of the Scriptures. The penalty for printing any book without the authorisation of the Government was fixed at five florins gold. Two years later, a supplementary edict added to this fine the punishment of public exposure and of branding with a hot iron, or of having an eye put out or the hand chopped off, as the judge might decide.

In 1550, an imperial ordinance punished with death those who printed or published the books condemned in 1529, and the fine for printing other books without authorisation was raised to twenty florins gold. No one could become a printer without an imperial license. Booksellers could open their packages only in the presence of the censors. They were obliged to post in their shops the lists of books condemned, and also the lists of the books kept in sale. The penalty for failure to do this was fixed at one hundred florins. Under the direction of King Philip II., the Inquisition took into its own hands, in all the countries of his dominions, the supervision and censorship of the Press.

In 1895, Mr. A. M. Huntington, of New York, printed, at the De Vinne Press, reproductions in facsimile of five of the *Indexes* issued during this period under the authority of Charles V., of Philip II., and of the Spanish Inquisition. The following brief summary will give an impression of the purpose and character of the group of *Indexes*, a group which can, I judge, be considered as fairly characteristic of the whole series.

I. THE LOUVAIN INDEX OF 1546.

“Mandamêt der Keyserliicker Maieiteit vuytghegene int laer Xlvi. Met Dintitulatie ende declaratie vande geroprobeerde boecken, gheschiet beiden, Doctoren inde Faculteyt van Theologie in D’universiteyt van Loeuen, Duer dordonnantie ende beuel der seluer K. M.”

Text of the edict of his Imperial Majesty concerning books the circulation of which is prohibited under the censorship of the doctors of the Faculty of Theology in the University of Louvain; issued in the year 1546; printed at Louvain by Seruacs van Sassen, 1546, with favour and privilege.

The monograph, which as printed in the edition of Mr. Huntington, comprises about ninety pages, is made up as follows: I. The text of the privilege. II. The full text of the edict ("Mandamêt"). The edict closes with a list of the books the circulation of which is permitted, a list which includes: the "Syntaxis" of Erasmus, "Grammaticæ" by several authors, "Fabulae Æsopæ," the "Dialectica" and "Rhetorica" of Agricola, editions of the "Letters" of Cicero, of the works of Virgil, Lucan, Horace, Cæsar, Livy, the "Orations" of Cicero, the writings of Boëthius, the works of Gaza and of Laskaris, the works of Lucian, of Isocrates, Xenophon, Horace, Aristophanes, Hesiod, and Plutarch, and the "Orations" of Demosthenes. III. An address to readers by the Theological Faculty of Louvain. IV. A list of the forbidden books, comprising: the editions of the Bible issued by Robert Estienne of Paris, Goinus of Antwerp, Savoris of Lyons, Boule of Lyons, Cæsar of Antwerp, Froben of Basel (this last was probably the edition with the notes of Erasmus), Stelsium of Antwerp, Gabianus of Lyons, Regnault of Paris, Gryphium of Paris, Paganus of Lyons, Münster of Basel, the Greek editions of the Bible by Argentoratus. Dutch editions as follows: Liesuelt of Antwerp, Vorsterma of Antwerp, Peeters of Antwerp. Flemish editions as follows: by Martinus of Antwerp, by Antoninus of Antwerp. Editions of the New Testament as follows: by Robert Estienne of Paris, by Maranus of Antwerp, by Batman of Antwerp. Editions of the New Testament in Dutch as follows: by Gymmick of Cologne, by Cornelius of Antwerp, by Lieseult, by Godifredus of Antwerp, by Keyser of Antwerp, by Petrus of Leyden, by Van Loe of Antwerp, by Crom of Antwerp, by Mirdmans of Antwerp, by Coch of Antwerp, by Claes of Antwerp, by Hage of Antwerp; the New Testament in Flemish by De Monte of Antwerp, by Petrus of Antwerp, and by Richart of Antwerp. This list includes in all forty-nine editions of the Bible and of the New Testament. The schedule of Bibles is followed by a list of works, also prohibited, aggregating one hundred and fifty-eight titles. In addition to the books prohibited by name, this division of the *Index* includes a prohibition of "all the writings" of the

following authors: Luther, Wiclif, Huss, Massilius of Padua, Oecolampadius, Zwingli, Melanchthon, Lambertus, Pomerinus, Brunselsius, Justus Jonas. I add a selection of the more noteworthy titles from the list of separate works:

“Historia de Germanorum Origine.”

“Commentaria Pythagoræ poema.”

“Erasmi Scholia in Evangelium Secundum.”

“Matthaeum, Marcum, et Lucam.”

“Erasmi Postilla in Evangelia dominicalia, per totum annum.”

“Epitome Chronicorum Latine et Teutonice.”

“Agrippa de Vanitate Scientiarum.”

“Chronicon regum et regnorum, authore Paulo Constatino Phrygione.”

“In Joannis Catacuzeni contra fide Mahumeticam librû præfatio, Gualteri Tigurini.”

“Geographia Universalis, Basileæ, per Petri.”

“Joachimi Camerarii Commentarii in Tusculano quæstionis Ciceronis.”

“Paidalogia Petri Mosellani.”

“Judocus Uvelichius de pronunciatione Rhetorica.”

“La Louainge du Mariage et recueil des Histoires de bonnes (vertueuses) et illustres femmes, composée par Maistre Pierre de Lesuanderie.”

The greater portion of the list is devoted to the controversial works of Protestant writers, works which we should expect to find in such an Index. It is, however, somewhat surprising that the Divines of Louvain should have thought it necessary to place their condemnation also upon such apparently innocent productions as treatises on the origin of the “Germans” or on

“Universal Geography,” or on the “Tusculan Disputations” of Cicero, and it is difficult to understand the ground on which these should have been considered as likely to prove dangerous to the true Faith.

In the spelling of the titles, I have followed Mr. Huntington’s text, which has, I understand, been reproduced from the original by a photographic process.

The lists in the several *Indexes* repeat titles very largely, and in nearly all, after the writings of an author have been condemned *in toto* under some such head as “opera omnia,” a number of them are afterwards condemned under their separate titles.

II. THE LOUVAIN INDEX OF 1550.

This comprises the following material: A catalogue of the books condemned according to the judgment of the University of Louvain, and under an edict of “his Cæsarean Majesty” (this list is in part a repetition of that of 1546); a Bull of the Holy Father, Pope Julius III., against all those possessing or reading copies of the forbidden or condemned books; a further catalogue of books previously condemned under the authority of the most illustrious and reverend Lord Don Ferdinand of Valdes, Archbishop of Seville, Inquisitor-General of the Council of the holy general Inquisition; together with the edict of the apostolic inquisitors in the city of Toledo, under whose decree the titles of several later books are added to the original list. The *Index* was printed in Toledo in the office of Joh. de Ajala, in 1551. The title-page closes with a clause inflicting excommunication and a fine of 50,000 maravedas upon those who may sell or possess copies of the works condemned.

Following the title, comes an address to the reader from the Rector and Faculty of the University.

The Louvain catalogue comprises 295 titles, of which 62 are of works in Flemish and in Dutch, and 233 of works in Latin. The Archbishop’s catalogue comprises 69 titles, of which 55 are of works in Latin and 14 of works in Spanish. In the Louvain list

are included certain specific writings of Erasmus, and also his entire works ("Opera Omnia"). Erasmus was himself the most distinguished student whom Louvain had sent out. There are also editions of the Bible as printed in Paris by Robert Estienne, the works of Luther, Zwingli, Melanchthon and other Reformers, etc. The Latin books are from presses in Paris, Antwerp, Basel, Cologne, The Hague, etc. The Flemish and Dutch titles are from Antwerp, Ghent, Middelburg, and Leyden. The Archbishop's Latin list includes the Koran and "all books containing the errors of Mahomet," the writings of Servetus, Œcolampadius, and Zwingli, and the "Colloquies" of Erasmus. His Spanish list includes "all books printed in Hebrew," and "all theological works printed in Arabic"; also "all editions of the Bible printed in the vulgar tongue."

III. THE SAME LOUVAIN INDEX OF 1550.

Printed in Cordova, by Francisco Ferdinand in 1551. This volume includes, in addition to the titles of the books condemned by the Divines of Louvain, a list of thirty works sanctioned by the University for use as text-books. Among these are a Syntax, a Greek Grammar, a "Copia," and a Guide to letter-writing, by Erasmus of Rotterdam, volumes which under a strict construction of language might naturally be understood to be included among the "Opera Omnia" of Erasmus, condemned in the previous list.

Following the list of the text-books authorised, is the catalogue of the books previously condemned by the Inquisition, comprising eighty-five titles. This includes various writings of Erasmus, Luther, Servetus, Melanchthon, Zwingli, and other Reformers, also all versions of the Bible in Spanish or in other vulgar tongues.

IV. THE CORDOVA INDEX OF 1554.

This is described on its title-page as a "Censura Generalis contra errores, quibus recentes haeretici Sacram Scriptorem asperserunt, edita a supremo senatu Inquisitionis adversus

hereticam provitatem et apostasiam in Hispania, et aliis regnis, et dominiis Cæsareæ Majestatis constituto.”

It was printed at Cordova by Francisco Ferdinand, and was sold for forty maravedas.

The volume contains an edict of the King (printed in Spanish) approving the list as constituted; a statement (printed in Latin) from Ferdinand, Archbishop and Inquisitor-General, of the reasons for the condemnation of the heretical interpretations that had been permitted to obscure or to dishonour certain passages of the Scriptures and also other Sacred writings; the same printed in Spanish; an Introduction (*Præfatio*) to the list of condemned texts; a list of the editions of the Bible which at this time call for correction and condemnation.

The list comprises forty-seven editions. Of these, twenty-eight are printed in Lyons, eight in Paris, six in Basel, three in Venice, one in Antwerp and one in Tigurium. The Paris editions include those of Robert Estienne, who was at this time engaged in his long fight with the Sorbonne. The Lyons list contains the title of the great Bible of Hugo, later reprinted by Koberger in Nuremberg. The schedule of Bibles is followed by a list of one hundred and thirty texts from the Old and New Testaments, together with the heretical interpretations and the orthodox refutations and corrections of these. Then comes a general condemnation of all the errors which are to be found in the Bibles that have been thus corrupted by the heretics, with an enumeration of the chapters misinterpreted. A Bible printed at Basel by John Oporimus, receives the honour of a special condemnation, with which the volume closes.

V. THE VALLADOLID INDEX OF 1559.

This is a catalogue of the books which are prohibited according to the mandate of the most illustrious and reverend Doctor Ferdinand of Seville, Inquisitor-General of Spain, and under the authority of the Supreme Senate of the Holy Inquisition. It was printed at Valladolid, by Sebastian Martinez, in 1559, and was sold for seven reals.

The volume includes a special edict of the Archbishop, prohibiting the printing of this *Index* by any one but Martinez.

Following the title-page is a letter from Pope Paul IV. to Ferdinand, setting forth the necessity of protecting the orthodox faith against the assaults of the heretics.

The schedule of books prohibited comprises about 620 titles, of which 350 are in Latin, 140 in Spanish, and 120 in Dutch. This is followed by a supplementary list of 32 titles, comprising 12 in German, 10 in French, and 10 in the (vulgar) Lusitanian tongue.

Among the noteworthy titles in the two schedules I find "The Koran," Commentaries on Aristotle by Hegendorf, a long series of Bibles from the presses of Robert Estienne and others, the works of Melanchthon, the works of Gesner, various writings of Hegendorf, a long series of writings of Erasmus, specified by separate titles, followed by his complete works, "Opera Omnia," the works of Bullinger, the works of Cornelius Agrippa, the works of Jerome Cardan, the works of Calvin, Huss, Œcolampadius, and Servetus, the "Commentaries" of Julius Cæsar, edited by Tigurinus, the works of Reuchlin, the "Lexicon of Civil Law," by Spiegel, the works of Luther, Bucerus, and Börrhaus, the "De Officiis" of Cicero, edited by Betuleus, the same, edited by Melanchthon, the writings of Peter Martyr, the works of Dolet, the works of Ulrich von Hutten.

The Spanish list includes the versions in Spanish of several books of Erasmus, who appears to have been one of the most thoroughly "condemned" and at the same time one of the most widely circulated authors of Europe; also all the editions in the vernacular of the Old and New Testaments.

It was doubtless the case, as has been indicated in previous chapters, that the general circulation of these official *Indexes* had the effect of calling public attention to the books described and unquestionably kept certain writings in demand which would otherwise have been lost sight of very speedily.

The general circulation of the books of more permanent importance was also materially furthered by the information given in these official denunciations, information which was particularly serviceable at a time when there were so many difficulties in the way of making known to the public the existence of books. The ecclesiastical condemnation undoubtedly blocked the use of certain books as texts in the universities, but the surreptitious sales probably more than offset the circulation which was lost in this way. An incidental result was probably the furthering the sale of unauthorised editions at the expense of those issued by the authorised publishers. This interference was bitterly complained of, for instance by Erasmus.

It is convenient to make reference here to the earlier regulations for the censorship of the Press, as well in order to make clear the conditions under which the publishers of Antwerp had to carry on their business, as because Plantin himself held an important post among the newly-appointed censors. In 1569, Philip II. instituted the office of proto-typographer, or supervisor of printing for the Netherlands. Master-printers applying to the supervisor for authorisation for a work to be printed, must show the certificate of approval of the diocesan bishop or of his vicar, and also of the local magistrate. Printers were required to take an oath of conformity to the doctrines of the Church as set forth by the Council of Trent. In 1570, Philip II. appointed Plantin proto-typographer. No remuneration was attached to the office, but the incumbent was freed from the duty of lodging soldiers. The important service of the post for Plantin was, of course, the increased facility it secured for him in obtaining approvals and privileges for his own publications. The theologians of Louvain (through whom the ecclesiastical censorship for Antwerp was, in the main, carried on) were not likely to raise question concerning the undertakings of the literary representative of the King. In fact, after 1570, Plantin took the title of "Printer to the King," a title which proved of service during the years of war when the Southern provinces were being harried for heretics by the Spanish officials. Even the printer for the King could not, however, ensure the protection and profitable continuance of his business during times of civil war, and notwithstanding the pains he had taken to make himself safe with both parties to the great

contest, the period was, for Plantin (as for Antwerp traders generally) one of serious difficulty, and nearly brought him to ruin.

In 1576, the troubles which had for a number of years been gathering force, brought about the league or union of the seventeen provinces, described as the Pacification of Ghent, and in the same year came the sack of Antwerp (known as the “Spanish Fury”). At this time Plantin had twenty-five presses, and about one hundred and fifty employees. According to his biographer, Rooses, the work of his printing-office was not at any period of the struggle entirely stopped, but it had gradually dwindled until, in 1585, when the authority of the King over the city of Antwerp had been finally established, Plantin had but one press at work, and that was the only press at the moment in operation throughout the city. The war had brought about a separation of the Netherlands, giving to the new Dutch Republic the Protestant States of the North, and leaving under the control of Spain the territory corresponding, in the main, to modern Belgium, the population of which was (after the Protestants had been killed or driven into exile) chiefly Catholic. One result of the contest and of this concentration of Protestantism in the Republic was to transfer to Amsterdam the larger share of the trade of which Antwerp had heretofore been the centre, and with this general trade departed also, in great measure, the publishing business and the literary activities of the city of the Scheldt.

By the year 1585, the independence of the new Dutch Republic, while not formally recognised until a number of years later, was practically assured. In the Southern provinces, however, of which Antwerp was the chief city, the authority of the Spanish King was restored. The business of the city was resumed, but under sadly changed conditions. The city itself had been seriously devastated by the siege and ransacked by the Spanish troops. Many of the enterprising citizens who had been leaders in its trade and in its civic history had lost their lives, while many others, convicted or suspected of Protestant views, had been forced into exile or had voluntarily cast in their lot with their Protestant friends in the Dutch cities.

Antwerp was left impoverished as to both men and resources. Her ships had disappeared, her commerce had been brought to a standstill. The war had been harassing and exhausting also for the States of the Republic, but they had won their independence, and had never lost their control of the sea. Their losses in men were, in part at least, offset by the immigration of

Protestants from the provinces which had remained subject to the Spanish yoke, while their losses in property were to be speedily made good by the profits of a rapidly increasing trade.

Among the industries of Antwerp which suffered most seriously was, as may easily be understood, that of the production of books. The departing Protestants had taken with them much of the intellectual life and of the literary activity of the city, while Amsterdam and Leyden, free from the hampering restrictions of Catholic censorship, presented many advantages for publishing undertakings. Plantin refused, however, to be discouraged, and beginning his work again in 1585, with one printing-press, was able in the course of the next two years to reorganise an effective establishment. The office of proto-typographer had fallen into desuetude, but Plantin still called himself Printer to the King.

His first publication for the new year was an official list of the books at that time under prohibition, a list comprising, in one hundred and nineteen pages, some six hundred titles. Various similar lists had been published during the preceding half century. In 1546, Charles V. had had printed in Worms a list of heretical books the circulation and possession of which were forbidden; and in the same year, the same list, with a few additions, was printed in Louvain, by Van Sassen, also under the instructions of Charles. A fuller specification of this Louvain *Index* of 1546 has been given on an earlier page. In 1551, the Faculty of the Sorbonne published, through Jean André, of Paris, a similar list. The first *Index Expurgatorius* of the Inquisition was printed in 1554, in Venice, by Julitus, and in 1559, this was reprinted in Rome, in Aragon, at Pforzheim, and in Cologne. The four *Indexes* printed in Spain between 1550 and 1559 have been already referred to. There need, therefore, have been no lack of information on the part of printers or booksellers as to the books the production and distribution of which were forbidden under various penalties. It seems probable, however, as previously said, that, with the possible exception of Spain, the placing on the *Index* of the title of a book, constituted for it a valuable advertisement, serving to increase the circulation of works of distinctive character, and even securing a continuity of repute and of influence for not a few books of less intrinsic importance which would otherwise have fallen into oblivion. It was hardly effective, for instance, to prevent the printing of a book in Paris, when the heretically disposed readers in France could easily be reached by

the productions of the presses of Geneva; and in like manner, to the printers of Leyden and Amsterdam the censorship of the Roman ecclesiastics was of no importance excepting as ensuring a demand for their heretical publications among readers in the easily reached territory of France or of the Spanish Netherlands.

The account books of Plantin have been preserved, giving the records of his undertakings during the larger portion of his business activity. Among the entries of disbursements which have an interest for readers of to-day are those recording the payments for editorial service or for other literary work. In a number of cases, these payments, whether to authors or to editors, were made in the shape of copies of the book on which the work had been done.

Thus, Jean Isaac received, in 1554, in full for the copyright of his Hebrew Grammar, a hundred copies of the book, while, in the year following, he was paid for his abridgment of the Hebrew Dictionary of Pagnino, the sum of fifteen crowns. Dodonaeus, in 1565, accepted fifty copies of his *Frumentorum Historia* (which had been a very expensive work to produce). Hunnaeus, in 1566, was given two hundred copies of his *Dialectica*. Pierre de Savonne, for a treatise on book-keeping, was paid, in 1567, forty-five florins and one hundred copies; Guicciardini, for a Description of the Poetry of the Low Countries, received eighty-two florins and fifty copies. Stadius, for his *Commentaries* on Florus, was paid, in 1567, twenty florins; Carrion, for editorial work on *Sallust*, fourteen florins; Venutius, for a Spanish translation of the *Theatrum Orbis*, was paid one hundred florins; while Everaert, for the translation into Flemish of Porta's *Magia Naturalis*, received fifteen florins. The four theological professors of Louvain who revised the *Bible Française*, were paid each twenty-five florins.

Plantin had on his permanent staff a number of correctors and revisers. Ghisebrecht, with a knowledge of Latin and Greek, and with capacity to edit texts, received board and lodging and sixty florins yearly, and Van der Eynde, with a somewhat larger range of scholarship, was paid yearly one hundred and fifty to two hundred and ten florins. Plantin had, in the organisation of his staff, a more complicated task than had fallen upon his publishing predecessors. The books of Aldus, Badius, and Estienne had been published almost exclusively in Latin or in Greek. With the enlargement of the range in the demand for books adapted for the wider education of the generation supplied by Plantin, it became necessary to

provide reading material in the vernacular. Latin, while still the language of scholarship, was ceasing to be the exclusive language of literature. It was further the case that the publishing undertakings of the second half of the sixteenth century were no longer limited to reissues of the works of classic writers. Plantin's list included the writings of a considerable number of contemporary authors. The work of providing literature of the day for readers of the day had begun to take shape, and Plantin was the first of the mediæval publishers whose books were deliberately planned for what to-day would be called a popular circulation. With this widening of the circle of readers, came at once a problem which, for a capital like Antwerp and for dominions like those of the King of Spain, presented special complexities. Plantin's catalogue of 1566 included works in Latin, Greek, Hebrew, French, German, Spanish, Italian, Flemish, Dutch, and English. In order properly to supervise for the compositors the text of works in these various tongues, and in order to ensure a correct reading of the proofs, it was, of course, necessary to secure the services of editors, proof-readers, and compositors who possessed a scholarly, or at least a working knowledge of the languages in question. A similar requirement obtained in the publishing-office, the business of which had to be conducted in three or four languages. It was necessary, therefore, for Plantin's purposes, to employ a polyglot staff, a necessity which had obtained to a much smaller degree with the contemporary publishers in Paris, Basel, or Nuremberg, and which at that time hardly called for consideration in London.

Among the regulations of both the office and the workshop was one forbidding the discussion of religious or political questions. Bearing in mind the variety of nationality of the employees in the establishment, and bearing in mind also the bitterness with which religious and political questions were held at the time of the revolt of the Dutch provinces, a regulation of this kind was certainly sensible enough. Plantin had the reputation of being in his business methods precise and systematic, and the records of his business which have been preserved, present evidence to this effect. He was certainly popular with his employees, although strict and exacting. He accepted, in framing the regulations for the work of the establishment, the coöperation of delegates from his own workmen, and in the few instances in which serious differences of opinion arose, and in the one or two cases of strikes, the difficulties were finally adjusted with the aid of this coöperating committee of the workmen.

Of the more popular works published by him, the editions ranged from one thousand to fifteen hundred copies.

Of the *Frumentorum Historia* (issued in 1566) eight hundred copies were printed. Of the sixteenmo edition of *Virgil*, issued in 1564, he printed 2500 copies. An edition of the *Pentateuch*, printed in 1566, comprised 3900 copies, while of the complete *Scriptures*, issued in the succeeding year, the edition was 2500.

The selling prices of Plantin's publications appear low as compared with the prices of to-day, and taking into consideration the necessary limitations of circulation. I quote a few examples selected from the catalogue of 1576.

Pocket Classics, for each 6 sheets	1 sou.
Octavo Classics, for each 4 sheets	1 sou.
Virgil, octavo, 38 leaves	5 sous.
Horace, octavo	4 sous.
Horace, quarto, 86 leaves	25 sous.
Virgil, folio, 165 leaves	3 florins, 5 sous.
Euripides (in Greek) 27 leaves	7 sous.
Sophocles (in Greek) 14 leaves	6 sous.
"Biblia Hebraica" (in Hebrew), octavo, 125 leaves	45 sous.
The same in Latin, with the New Testament in Greek, 38 leaves	25 sous.
"Corpus Juris Civilis," for each 3½ leaves	1 sou.
"Thesaurus Theutonicæ Lingual," 70 leaves	30 sous.
"Humana Salutis Monumenta," of Arias Montanus, with 72 plates, quarto, 11½ sheets	3 florins.
The "Bible Royale" (a publication on which, as before stated, there was a serious deficiency), price to the public	70 florins.
To dealers	60 florins.

The florin of Plantin's catalogue was the equivalent of about forty cents. The average discount given by him to his book-selling customers was fifteen per cent. The agent in charge of the Paris branch received forty per cent.

In 1579, Plantin consigned to the Fair at Frankfort 5212 copies of sixty-seven works. During 1570, he sent to his Paris agent books to the value of 19,000 florins. Perez, of Salamanca, was his agent for Spain, where a branch office was carried on at first for the account of the Antwerp concern, and, later, as an independent House. The annual sales through Salamanca of the Plantin publications ranged from 5000 florins to 15,000 florins. In 1579, Plantin had in plan the establishment of a branch in London, but in connection with the difficulties brought on by the war, this scheme failed to take shape. To one correspondent in London his sales, in 1568, amounted to 4400 florins.

The average price of a quarter of a sou per sheet made the cost of an octavo volume of three hundred and twenty pages something less than four francs. The paper and the ink used were of decidedly better quality than those that can be purchased by the most exacting publishers of to-day. Scholarly service could be obtained from editors and authors at very moderate rates, while the labour of the employees was also low priced. The general purchasing power of money three centuries ago was far greater than to-day, and can possibly be estimated between, for instance, Antwerp of 1560 and London of 1890, as worth three times as much, valued by its equivalent in food and clothing. In 1577, Plantin sold his shop in Paris to his agent Sonnius, accepting for the business a sacrifice price. The Netherlands had been devastated by years of war; trade was practically at a standstill, and Plantin was in pressing need of funds.

In 1575, the University of Leyden was founded by William of Orange, in commemoration of the success of the Dutch the year before in raising the siege of the city. Notwithstanding the absorption of the resources of the country in the fierce struggle for independence and for national existence, the University secured almost at once an honourable position and speedily became one of the most influential centres of scholarship in Europe. The printing and publishing business of the town began with the life of its University. The publishers secured important service from the scholars of the Faculty, and were able on their part to do much to further the work of higher education. The printing-office of Louis Elzevir (the first) whose family name was, later, to become so famous in the annals of publishing, had been established, but was already in difficulties. In 1583, Plantin found it convenient to leave Antwerp for a time, to escape the pressure of his

creditors. The war had undermined his business, and he was also seriously hampered by the failure of King Philip to make payment of the amount due for the great Bible, or to pay a certain pension which had been promised him and on which he had been depending.

Plantin made his way to Leyden at the instance of the historian Lipsius, whom he had known at Louvain and who had recently accepted a Chair in the new University. He purchased the establishment in which the work of Louis Elzevir had been begun three years before, and he put Elzevir in charge of his Leyden presses. The founder of the long line of printers was able thus to secure under the supervision of the veteran Plantin a training which in later years stood him in good stead. Louis Elzevir was himself one of the Protestant exiles from Flanders, having begun his work as a binder in Louvain. Plantin apparently had in view, for a time, a permanent removal of his home and of his business interests to Leyden. He was discouraged about the future of the half ruined city of Antwerp, and was indignant with King Philip for his failure to fulfil the obligations on the strength of which Plantin had entered upon important undertakings. He also realised how important a group of the learned authors and editors upon whose coöperation he was dependent for the scholarly portion of his undertakings, had cast in their lot with the Protestants, while it was further the case that the Protestant States presented a much better market for the publisher than could be depended upon in the Catholic communities where both the production and the reading of books were supervised by a rigorous ecclesiastical censorship.

Plantin's Catholic affiliations, and his old-time official connection with the Spanish Government do not appear to have caused any difficulty in his work in Leyden or to have aroused any serious antagonism on the part of the sturdy Protestants of the University. If there was any theological opposition, it was probably offset by the belief that the settling in Leyden of the man who ranked as perhaps the greatest printer-publisher in Europe, must bring prestige and advantage to both city and University. It was doubtless on this ground that, in 1584, Plantin received the appointment of Printer to the University. He was the second to hold the position, his predecessor, Silvius, having died in office. The annual stipend was fixed at two hundred florins. Notwithstanding this honourable reception, Plantin could not make up his mind to remain in Leyden. He was now an old man,

and exile from the city with which were connected nearly all the associations of his long years of active life, was probably felt as a hardship. In November, 1585, he transferred the Leyden printing to his son-in-law, Raphelengius (who also succeeded him as Printer to the University) and returned to Antwerp. There he met with criticism from his Catholic friends, who had heard that he had become a heretic. He was able, however, to make a successful defence of his orthodoxy, and there seems, in fact, to have been no ground for the accusation that for the sake of business advantage in Leyden, he had abjured the faith of his fathers. One may gather, however, from his experience both in Leyden and in Antwerp, that Plantin held his Catholic doctrine with no very great strenuousness, and it was quite natural that his long association with critical scholars, many of them Protestants, should have prevented him from being in any way a fierce Romanist, and should have furthered the development in him of a spirit of toleration. It is possible also that his personal grievance against the King had strengthened the indignation that any good citizen of Antwerp may well have felt at the dogmatic and relentless policy which had brought such disasters upon the city. Great as had been her misfortunes, however, the spirit and energy of the Flemish capital had by no means been destroyed, and by the time of Plantin's return, a decided revival of the trade and industries of the city had taken shape. In 1586, the printing and publishing offices were reconstructed, and a year later the business was fairly re-established, no less than forty works being issued within the twelve months.

In 1589, was published the *Martyrology* of Baronius, the last work completed under Plantin's personal supervision. He died in the latter part of the same year, being then seventy-five years of age. By his will, the larger portion of the property in Antwerp, together with the responsibility for its direction, was left to his son-in-law, John Moretus, who had for some years had a part in its management. Plantin had no sons, but appears to have been exceptionally fortunate in his sons-in-law. He had had seven daughters, six of whom lived to be married. John Moretus was the husband of the eldest. The third had married Raphelengien or Raphelengius, who had taken over, before Plantin's death, the printing-office at Leyden, and who, as Printer for the University, issued an important series of scholarly and scientific works. Later, he was made Professor of Hebrew, uniting with the responsibilities of an instructor the work of a printer.

The printing and publishing business of the Plantin House in Antwerp was largely expanded by Balthasar Moretus, son of John who died in 1641. The work of the printing establishment continued in the hands of Plantin's descendants until 1867, and the concern had, therefore, a continuous existence of nearly three centuries, being at the time its work terminated, probably the oldest book-manufacturing firm in the world. In 1867, the buildings of the Plantin Press were purchased by the city of Antwerp for 1,200,000 francs, and the Plantin Museum was instituted. In this museum are exhibited all the details of book-making in the sixteenth and seventeenth centuries, together with the earlier records and correspondence of the firm, the series of which has been preserved nearly complete. As far as can be judged from this correspondence, and from memoirs of the men of letters and others with whom the great Antwerp publisher had dealings, his relations with his authors, editors, and correspondents generally were thoroughly harmonious and satisfactory both ways. The years of Plantin's business career had been troublous ones, and had brought with them many disasters, losses, and perplexities. He appears, however, to have been exceptionally successful in avoiding quarrels and disputes. The only client with whom he had an issue was King Philip, and the only lawsuit in which he was engaged was that brought against him for heresy (*in absentio*) by the censorship of Antwerp. This is an extremely creditable record for a publisher who carried on such extended and varied undertakings, and who, in many of his arrangements with authors, was obliged himself to make the business precedents. The authors must have been fairly satisfied, for in the long series of the letters of the publishing business, there are practically no complaints; and there is no record of anything in the shape of an issue or even of a serious difference of opinion between Plantin and any of his correspondents, either commercial or literary.^[132] Lipsius, writing to Montanus (while Plantin was still active), says: *Si la race de Plantin venait à faillir, je ne croirais plus à personne au monde; l'amour et confiance que l'auteur de la ligne m'a inspirée, je les transporte sur tous ses proches.* After the death of the publisher, Lipsius speaks of him as *l'ami qu'il avait aimé et qui l'avait aimé plus fidèlement que personne.*

Plantin read, wrote, and spoke French, Spanish, German, Flemish, and Latin, and had some knowledge of English and Italian. While making no claim to scholarship, he had scholarly tastes and ideals, and he knew how to select scholars as associates and workers in the undertakings planned by

him. He may also be classed with the artists. In the sixteenth century, typography was a liberal art, and Plantin was in typography an artist and a liberal artist. He was, further, also the first publisher to associate with typography on any large scale the work of the engraver, and the series of copper plates produced under his direction for his great series of illustrated works, constituted an enormous advance in artistic publishing. While Plantin cannot take rank with Aldus as a great man, he may fairly be described as a great publisher. He possessed imagination, courage, high ideals, and public spirit, and he showed himself not infrequently more ambitious to do important work for literature than to amass wealth.





CHAPTER XII.

THE ELZEVIRS OF LEYDEN AND AMSTERDAM.

1587-1688.

THE name of Elzevir has for more than two centuries been a familiar one to collectors of choice books. These Dutch printer-publishers of the seventeenth century were able to associate their imprint with certain publications of such distinctive typographical excellence as to ensure for the editions known as “Elzevirs” a prestige that has endured to the present day. Aldus alone among the early publishers has had a similar fortune, and while the “Aldine” editions are, of course, in respect to their number and to their typographical excellence, much less important than the “Elzevirs,” it must be remembered that having been issued more than a century earlier, their production called for a much larger measure of originating capacity and initiative on the part of their printer-publisher. The principal authority on the history of the Elzevirs is a comprehensive and carefully written monograph of Alphonse Willems, published in Brussels in 1880.

Louis Elzevir, who, as far as its publishing undertakings are concerned, was the founder of the family, had been brought up as a binder in the Flemish University town of Louvain. He was a Protestant, and in 1580, when existence for Protestants had been made difficult in the Catholic provinces of Flanders, Elzevir, in company with hundreds of others of his faith, made his way across the border to Holland, and settled, with his family, at Leyden. He was at this time about forty years of age. Leyden was, in 1580, next to Amsterdam, the most considerable and the most important city in Holland. The heroic resistance that its citizens had made during the long siege by the Spaniards had earned fame for the city throughout all Protestant Europe, while the University, which had been founded by William the Silent in commemoration of the glory of the struggle, had at once secured for itself a prestige among the scholars of Europe, and in making Leyden a centre for the literary activities of the Dutch provinces, had given a great incentive to its publishing and printing trade.

Louis Elzevir found at Leyden a considerable group of Flemish Protestants who had, like himself, found it wise to get away from the rule of the Spanish soldiers and of the Roman ecclesiastics who were dominating Flanders. Among these exiles were certain men whose names became known, later, in connection with literature or with the work of the University, such as Vulcanius, Drusius, d'Audenard, Lipsius, Stevin, Heinsius, Baudius, Polyander, and Silvius, the first Printer to the University.

Elzevir began work as a book binder for the students and instructors of the University, adding to this business, a little later, a book-selling shop. The undertaking proved, however, unsuccessful. During the troublous times in which the new nation was still struggling against the power of Spain for the right to exist, the number of students in the University was at best but limited, and in Leyden as in Heidelberg, Erfurt, and other of the German universities of the time, the practice of hiring or borrowing text-books, or of arranging in some manner to make one or two volumes serve for the requirements of an entire class, must have interfered not a little with the possibility of securing a living from the post of University bookseller.

Louis found himself, therefore, obliged to give up his first place of business, but he was not willing to confess himself defeated. During his brief experience as a bookseller, he had been able to impress himself favourably upon some of the authorities of the University, and in his present distress he applied to them for help. The University council, recognising the value for higher education of the service to be rendered by a skilled and conscientious bookseller, gave him permission to construct within the limits of the University court a small book-shop, and authorised Elzevir to announce himself officially as the bookseller, and, later, as the publisher, to the University.

With this fresh starting point, Louis succeeded, after some years of persistent and painstaking labour, in creating an assured business foundation. He had never mastered the art of printing, and the typographical work of the publications issued with his name was done under contract with different printers, and presented no feature of special excellence or distinctiveness. The works selected, however, for Elzevir's publishing list, together with the books selected by him through Frankfort and Paris for sale in his shop, gave evidence of a good literary and scholarly ideal and of a continually widening range of knowledge of existing literature.

His correspondence throughout France, Germany, and Italy brought the name of the new University to the knowledge of many literary circles, and established for Leyden and for the towns of Holland which depended upon Leyden for their foreign literature, connections with the book-producing centres of Europe, connections which were never thereafter to be severed. Louis was, during the greater part of his lifetime, the only publisher and bookseller of Holland having such foreign relations. At the time when the new State was securing through the force of arms and the skill of its ambassadors the political recognition from the Courts of Europe upon which its continued existence depended, its literary representative, Louis Elzevir, was, in like manner, securing for Dutch scholarship and for Dutch publishing enterprise an honourable recognition from the scholars and with the book-trade of Europe.

The first work published by Louis as a venture of his own was an edition of *Eutropius*, issued in 1592. It was, however, not until after 1594 that his publications began to appear with any regularity. In 1595, he first utilised as a trade-mark the design of an eagle grasping in its claw seven darts, an emblem which was retained by the House for nearly a third of a century.

The name of Louis Elzevir is chronicled for the first time, in 1595, in the list of publishers offering books at the Fair in Frankfort. From the year 1602 he appears to have made regular annual sojourns in Paris. In the *Journal* of Pierre de Lestoile, under date of August, 1609, is a reference to a purchase made by him from Elvisier (*sic*) of Leyden, of a treatise (by Grotius) entitled *Mare Liberum*, together with certain orations of Heinsius and of Baudius. Lestoile goes on to say that the said Elvisier had described to him the bequest recently made by Baudius to the public library of Leyden of his collection of books, Greek, Hebrew, Chaldaic, Syriac, Arabic, Ethiopian, Persian, and Armenian, a collection estimated by said Elvisier as worth not less than three thousand crowns. It would appear from this reference that the scholars and the publishers of Leyden must have had available for their use an exceptionally comprehensive reference library.

The more distinctive work of the Elzevirs began, however, only after the death of Louis, which occurred in 1617. He left six sons, two of whom were carrying on book-shops in Utrecht and The Hague, in affiliation with the present concern in Leyden. One was in the service of the Dutch East India Company, and a fourth had adopted the profession of an artist. The eldest

and the youngest, Matthew and Bonaventure, joined hands to carry on the business of their father, a business which they were able very largely to extend and develop. The form of imprint, *ex officina Elzeviriana*, dates from the year 1617, when the two young men assumed the direction of the concern.

At the time the two young Flemings were beginning work with their publishing operations, the independence of the Dutch Republic, though not yet formally acknowledged by Spain, was an assured fact, and the territory of the seven United Provinces was free alike from invaders and from civil strife. The Thirty Years' War was, however (in 1618), just beginning in Germany, and until the peace of Westphalia, in 1648, the business connections of dealers in books with the book-trade centres in Frankfort, Leipzig, Cologne, etc., were, in common with all trade operations on the Continent, very much interfered with. The energy of the Dutch traders, however, repressed in one direction, found vent in another. Dutch fleets overcame the Spanish naval forces in the Pacific and transferred to the Dutch the control of many of the Spanish possessions in the East, while the trade between the Mediterranean and the North of Europe was largely transferred from Venice and Genoa to Amsterdam and Harlem. The devastation that had been brought upon Antwerp during the struggle with Spain, and the migration to the provinces of the North of thousands of the Protestants who had constituted a very important portion of the more intelligent and enterprising of the inhabitants of Flanders and Brabant, had helped to develop in the cities of the Dutch Republic the industries and the commerce of which Antwerp and Bruges had so long been the centre.

While for a large part of Europe the Thirty Years' War meant a throttling, or at least a serious hampering, of its trade, the commerce of the Dutch flourished behind the guns of their fighting vessels. With the expansion of the ambition and of the material resources of the new nation, came a rapid development of its intellectual activities and of the productive work of its scholars and writers.

The Elzevirs had (as would naturally be the case with men who were exiles on the ground of their faith) associated themselves with the stricter and more earnest of the Calvinists of their adopted country. Bonaventure, the youngest of the sons of the first Louis, makes various references in his correspondence to the acceptance of and his cordial sympathy with the

creed of the Calvinists as formulated by the Synod of Dort. The first publication which bore his individual imprint was a work of religious controversy bearing the rather ponderous title, *Censura ne Confessionem sive Declarationem Sententiæ eorum qui in Fæderato Belgio remonstrantes vocantur, super Præcipues Articulus Christianæ Religionis*, A. SS. Theol. Professoribus Academiæ Leidensis Instituta. 1626. Cum Privilegio.

Bonaventure married the daughter of a zealous Calvinist preacher, and he himself remained until his death an important lay member of the Council of the Ancients of the Walloon Church, a council which was charged not only with the government of the Church itself, but with a large measure of responsibility in connection with both the spiritual and the civil administration of the community.

The intellectual ferment of which the bitter theological controversies that raged about the name and the doctrines of Arminius were an evidence (or a result), stimulated the production of books and furthered the habit of reading among many classes of the people to whom printed matter had previously been comparatively unfamiliar. The period immediately succeeding the Synod of Dort witnessed an enormous increase in the list of publications by Dutch writers. The views of the Remonstrants and of their opponents the Contra-Remonstrants on the famous five points of predestination, redemption, depravity, conversion, and perseverance, required for their adequate setting forth a long series both of folios and of pamphlets. On these and other grounds, the year 1618 proved to be an exceptionally favourable period for the beginning of a great publishing concern, and the two Elzevirs showed themselves fully capable of taking advantage effectively of the opportunity. The printing-office in Leyden appears to have been completely organised early in the year 1618. Its first immediate director was Isaac, the grandson of Louis. In 1625, he retired from the concern, leaving both the printing and the publishing business in the hands of his uncle Bonaventure and his brother Abraham. The year 1626 is considered by Willems to have marked the most brilliant period in the long record of the House, although in later years a longer series of important works was produced. The productions of the Elzevir Press during the next two or three years were in part devoted to the theology of the period (such as the acts of the National Synod), but were principally

represented by the great editions of the classics for which the Elzevir imprint will always remain famous.

In 1625, the Elzevirs took over the printing-office of Erpenius, who was at the time the only printer in the Netherlands, and one of the few in Europe, who possessed any Oriental fonts. In 1629, they initiated with *Horace* and *Ovid* the series of Latin classics in sixteenmo, a form which followed very fairly the proportions of the famous series of Aldus. In 1641, they began, with the issue of *The Cid*, a series of contemporary French drama, and in 1642, with the works of Regnier, a series of the chief monuments of French literature.

Bonaventure and Abraham died in the same year, 1652, but their sons, John and Daniel, were already of sufficient age and of sufficient training to assume the direction of affairs. Among the earlier of the works issued by these two, were an edition of the *Imitation of Christ* and one of the *Psalms*, which are described by the enthusiastic Willems as “jewels of typography.” In 1655, Daniel transferred himself to Amsterdam, where he was associated with his cousin Louis. John’s death came a year or two later, leaving in Leyden no member of the Elzevir family. John’s widow, Eva van Alphen, thereupon made herself the head of the printing and publishing concern, and was able also to retain control of the business of the University. The activity of the publishing lessened during the following few years, but the excellence of the work turned out by the printing-office seems not materially to have suffered, and a number of the more important publications issued with the imprint of the Elzevir firm in Amsterdam, were manufactured in the Press of the Elzevir widow in Leyden. After the death of Eva, in 1681, there was, however, a rapid deterioration not only in the activity of the publishing, but in the work turned out by the printing-office. Her son Abraham appears to have been both ignorant and incapable. His business was before long limited to the printing of the University theses, and there were at the time not a few complaints from the instructors concerning the badness of the work put into these. Abraham’s death occurred in 1712, and it seems probable that even if he had had a longer life, the work of the printing-office would speedily have come to a close from inanition or from lack of intelligent direction.

The plant and material of the once famous printing-office was sold at auction, in 1713, for the benefit of the creditors and of a daughter left by

Abraham. For nearly a century the printing of the University had been in the hands of the Elzevir family, but after the migration in 1665, of Louis to Amsterdam, the more important of the publishing undertakings of the Elzevirs bear the imprint of the Amsterdam House. The first printer to the University had been William Silvius, who had, before coming to Leyden, held in Antwerp the title of Printer to the King. Silvius was a scholar as well as a printer, and having given evidence of sympathy with the Protestant group, he found it desirable to get away from Antwerp. He held the post in Leyden for but a few months, dying in 1580. For nearly four years, the University appears to have dispensed with the services of a University printer and publisher, but in 1584, the position was given to Christophe Plantin, the famous Antwerp publisher, who was at the time, in connection with certain difficulties, an exile from his home city. It is probable from his acceptance of the post and from the labour given by him to the organisation of an effective printing establishment, that Plantin had seriously in view at the time the plan of a permanent transfer to Leyden of his business interests. In 1585, however, his difficulties having been adjusted, Plantin found it practicable to return to Antwerp, but he was able, in leaving Leyden, to secure from the University authorities the appointment as his successor of his son-in-law Raphelengius. The latter added to his duties as a printer the professorship of Hebrew in the University, and it is evident from the record that he was more assiduous in his work as an instructor than in attention to the rather complex responsibilities of the University printing-office. On the death of Raphelengius, in 1597, the post was given to his son Christopher, who survived his father, however, but for four years. The successor of the younger Raphelengius was a certain Johannes Patius (Jean Paedts). His work appears to have been unsatisfactory, and, in 1620, Isaac Elzevir, grandson of Louis, came into direction of the University printing.

The annual compensation given to Silvius and, later, to Plantin, was two hundred florins. Under the agreement with Isaac Elzevir, the money payment was fixed at fifty florins. It seems probable, however, that during the thirty-five years that had passed since the first establishment of the office, there had been a sufficient development in the incidental business connected with the University printing and publishing to render the post more valuable in 1620 with a stipend of fifty florins, than it had been in 1585 with a payment of two hundred.

The agreement with Isaac Elzevir provided that he should hold at the disposition of members of the University Faculty one press and during certain seasons of the year two presses, the work of which was apparently devoted to the *précis* or papers of instruction recognised for use in the classroom. The productions of more considerable compass of which the professors were the authors, were passed upon by the curators of the Press and by the senate of the University with reference to their publication through the University Press and at the charge of the University treasury. The printer was under obligations to secure for the Press the service of correctors competent to supervise the text of any language required. In the majority of cases there should, of course, have been no difficulty in securing such correctors from the membership of the University itself. Any illustrations to be included in the University publications were to be "supplied to the printer," but it is not clear whether this provision implies that the authors of books, the remaining expense of which was provided by the University, must themselves meet the outlay for the production of the illustrations.

One copy of every work printed by the Publisher to the University was to be deposited in the University library. The publishing undertakings were, in the matter of Press censorship or supervision, to be subject to the regulations of the States-General. What censorship was put in force appears, however, to have been exercised through certain selected members of the Theological Faculty of the University. I find no reference to any political questions arising in connection with these Leyden publications, and apparently there was, outside of the theologians, no keen interest in censorship or in Press supervision. The privilege of occupying for the printing-office a portion of the court or quadrangle of the University buildings, was doubtless estimated as a portion of the compensation and must have been of material service for the prestige of the concern, irrespective of the detail of the saving of rent.

Reference has been made to a certain Erpenius (Th. van Erpen), whose Oriental fonts were taken over, later, by the Elzevirs. Erpenius was one of the more noteworthy scholars who brought prestige to the Faculty of the University. Not content with the task of giving instruction in the languages and literatures of the Orient, or possibly influenced by the difficulty of carrying on such instruction without an adequate supply of texts, Erpenius

set up a printing-office in his own house and undertook at his own cost the production of a series of the works of representative Eastern writers. His death, at the early age of forty, interrupted the scholarly undertaking. His widow had had in view the sale to some printers in Paris of the costly collection of type moulds and punches, which constituted, in fact, almost the entire property that had been left to her. The University authorities were averse to permitting this collection to go out of the country, but there happened to be at the time no funds in the treasury adequate to give to the widow the sum she had been offered from Paris. Isaac Elzevir himself provided the amount required, and purchased the material in his own name. It was transferred to his successors, but when the University confirmed them as the official printers, it was made a condition that this Oriental material should be retained in Leyden at the disposition of the University. The annual compensation was at the same time raised to one hundred florins. There was a further specification in the agreement to the effect that any books required by the professors or *notabilités académiques*, the University publisher was to procure (from Frankfort or Paris) “at his own risk or peril,” and was to charge for the same no higher price than was to be charged by other booksellers. In 1631, the annual stipend was increased to three hundred florins, “in consideration of the exceptional outlays required by the Oriental work of the printing-office and of the cost of providing a special corrector for the Oriental works.”

Up to the time of the death of Abraham, the last member of the Leyden family, no further changes of importance occurred in the relations between the University and its Press. In a number of respects the general organisation and regulation of the Leyden University Press appear to have been quite similar to the arrangement which was put into force, in 1632, in Oxford at the institution of the Clarendon Press.^[133] It is, of course, probable enough that the history of the University of Leyden was well known in Oxford and that the regulations controlling the Leyden Press may have served, if not as a model, at least as a general suggestion for the scheme of the organisation of the Clarendon Press.

The number of theses printed by the University printer increased steadily, the increase being an indication, in part, of the growth of the University, and, in part, of the development of the literary activities of its members. The summary of the theses is as follows:

1654, printed by John and Daniel Elzevir	2
1655-1662, printed by John	61
1662-1681, printed by the widow of John	775
1681-1712, printed by Abraham	1899

The cost of the several buildings erected for the work of the printers was borne by the Elzevirs. These buildings all stood, however, upon land owned by the University, and were, in fact, immediately connected with the buildings of instruction. The printing-offices remained, therefore, the property of the University, doubtless under the usual conditions of a ground lease. In August, 1641, John Evelyn, writing from Leyden, speaks of visiting the famous Heinsius, and also of inspecting the famous book-shop and the printing-office of the Elzevirs, “renowned throughout Europe for the importance of their publications and for the beauty of their typography.”^[134] Evelyn goes on to speak of a statue carved in stone which stood opposite the gateway of the printing-office enclosure, a “representation of the fortunate monk who, as is claimed by the Hollanders, was the first inventor of printing, an opinion combated by the Germans, who insist that the glory of the invention belongs to Gutenberg.” It is not quite certain that the printing-office enclosure or the University court did include at this time a statue of Koster. There was, however, such a statue in the city, in the *Haarlemmerstraat*, and the English tourist may either have confused his memory as to the location of this, or possibly have thought himself justified, for the sake of dramatic effect, in placing the statue where, according to his judgment, it properly belonged, in front of the headquarters of the printing interests in Holland.

The work of the Elzevirs in Leyden had continued from 1621 to 1712, a period of ninety-one years. The printing and publishing House instituted by the Elzevirs in The Hague began its operations in 1590. Its first head was Louis, the second son of the founder of the dynasty. His work was, however, limited to the business of bookselling, his establishment containing one of the most comprehensive and best organised collections of scholarly publications to be found in the North of Europe. After his death, in 1621, the business was carried on for about twenty years, first by his brother Bonaventure and, later, by his nephews and their cousins. In 1661,

the book-shop at The Hague was finally closed, the stock being, in part, transferred to Amsterdam, and in part, sold at auction.

The continuity of the printing and publishing work originated in Leyden, was maintained by the branch of the Elzevir family which settled at Amsterdam, and the Amsterdam House continued active operations until about the close of the seventeenth century. The book-shop in Amsterdam was instituted in 1638, by Louis, grandson of Louis of Louvain. In 1640, Louis added to his book-shop the plant of a printing-office, and when, in 1655, he obtained the coöperation of his cousin Daniel from Leyden, the Amsterdam House was able to secure for itself a foundation and a prestige which exceeded that of the parent concern in Leyden. In fact the series of publications issued from Amsterdam during the twenty years following 1655 was more considerable and important than the list of the Leyden Elzevirs during the same period. It is proper to add, however, that even for the books of this period the experts give the palm for typographical excellence to the volumes bearing the Leyden imprint. The most noteworthy of the publications of the first ten years of the new partnership, from the point of view at least of typographical excellence, were the *Corpus Juris*, published in folio in 1663, and the French text of the Scriptures edited by Desmarets, issued in 1669.

Louis retired in 1665, and on the death of Daniel, in 1680, there being no sons old enough to carry on the concern and no cousins available, the business was wound up. The last publication bearing the imprint of Elzevir of Amsterdam was issued in 1680, by Anna, the widow of Daniel. The emblem of the Elzevirs, which appeared on the signs of the several buildings occupied by them in Amsterdam, was an elm. An important feature in the rapid development of the publishing business of the Elzevirs, a feature which may be considered partly as cause and partly as effect, was the extensive series of foreign connections, connections initiated by the first Louis, and maintained and extended by two generations of his successors. The majority of the Dutch publishers of the time were content to limit their trade connections to the towns of their own country, with an occasional correspondent in Frankfort. But Louis Elzevir, with a larger ambition and a more comprehensive view of the requirements of a high-grade publishing business, decided from the outset that the widest possible connections with the scholarly book-buyers of Europe was essential in order to ensure

adequate support for the class of undertakings he had in view. Within fifteen years of the death of the founder, the firm had a direct representation in nearly every one of the book-selling centres of Europe. A number of these agencies were placed, either temporarily or permanently, in the charge of some member of the family, and it became the usual routine for the younger Elzevirs to secure in turn in this manner an important part of their education and their business training, in different foreign cities. The fact that during nearly a century the family circle was so large, facilitated not a little the carrying out of a general scheme of a federation of book-selling agencies, whose special purpose it was to make known to the reading public of Europe, and to find an outlet for the productions of the Elzevir Presses. The first Louis was able, notwithstanding his active labours in Leyden, to pass a considerable portion of each year on the trade routes of Germany and France. His youngest son, Bonaventure, had, before his twenty-third year, sojourned in all the more important of the cities of Italy, and the nephews and grandchildren appear to have, so to speak, parcelled out Europe between them, carrying on literary campaigns from Naples in the South, to Copenhagen in the North. These "campaigns" had for their purpose not only the distribution of the Elzevir publications, but the collection from literary centres throughout Europe of "copy," "texts," and literary suggestions, to utilise for future publishing undertakings. The travelling Elzevirs were also, of course, in a position to secure to advantage the supplies required for their retail concerns in Leyden, Amsterdam, and The Hague. Willems finds records of large purchases of books made by the Elzevirs in Italy between 1606 and 1652. In 1622, there are references showing the existence in Venice of a depot for the sale of the Elzevir publications, and it appears that this depot was within a stone's throw of the site of the establishment of Aldus, closed nearly half a century earlier. It was the Aldine classics that served as a model or at least as a suggestion for the more beautiful and more accurate sixteenmo editions of Elzevir. There was also an agency in Florence which, in the seventeenth century, was more nearly than Venice the literary centre of Italy.

Even at this time, 1675-1700, there was no organised system of transportation between Holland and Italy that could be depended upon for regular shipments of books. There is a reference in the Elzevir correspondence in 1675, and again in 1679, to the forwarding of bales of books through the kindness of travellers, in the former instance through

Charles Dati,^[135] and in the latter through the Abbé Brassetti. *De exemplaren von Virgilius sign door schipper Jan Willis op Livorno versonden ende geadresseert aen Abbate Brassetti, soo dat met twyffele ofte sullen wel te recht koomen.*^[136]

With England the Elzevirs had important relations, not only in the matter of buying and selling books, but in connection with the publication of a considerable number of books by English authors. Some of these publications were undertaken either for the account of the authors or of English publishers, who desired to secure the advantage of the Elzevir typography, which could not at that time be equalled by the work of any printers in England. It was the England of Charles II., of Pepys, Evelyn, Dryden, and Baxter, of which we are speaking.

In Frankfort the Elzevirs instituted, as early as 1595, a permanent depot for their publications, utilising their agency also for the collection of stock for the retail departments both of the Leyden and of the Amsterdam House. The first general catalogue of the books offered at the Frankfort Fair was printed in 1564, by George Willer, a bookseller of Augsburg. After 1595, these semi-annual Fair catalogues always contained an important representation of the Elzevir publications. The semi-annual gatherings of the booksellers at Frankfort were maintained, at least in form, during the stormy period of the Thirty Years' War (1618-1648), although at certain of the appointed dates the attendance was very small and the business done but trifling. The records of the Fair give evidence, however, that notwithstanding the serious difficulties and dangers of travel during this period, a representative of the Elzevirs made his way from Holland and was recorded as present at every one of the Fairs during the thirty years. From the middle of the seventeenth century, the Frankfort Fair decreased in importance, the centre of the book-trade of Germany being transferred to Leipzig. For a number of years the Fair was held in both places, but before 1700 its business was transferred entirely to Leipzig, which became the headquarters of the book-trade in Germany, the best organised book-trade in Europe. The change was brought about through a variety of influences. The operations and results of the Thirty Years' War had doubtless something to do with the matter, but it is possible that a large factor was the increasing intellectual activity of the Protestant States of North Germany as compared with that of the territory, in the main Catholic, of the South. Leipzig was of

course better situated to serve as a centre for book production and for book distribution for these Northern States. It lacked, however, the very important advantage which had so long furthered the trade of Frankfurt, the convenience, namely, of direct connection by water (the river Main) with the great highway of the Continent, the Rhine. For the traders from Holland, the Rhine was the natural means of communication with Germany, and made easy an important portion of the route to Italy. For this and for other reasons, the Elzevirs opposed the removal of the Fair from Frankfurt to Leipzig, and their influence was sufficiently powerful to delay this removal for a quarter of a century.

The Elzevirs retained in their hands for many years a very large proportion of the business of supplying Germany with foreign publications, including more particularly those from Holland, England, and France. The German booksellers of this period appear to have been comparatively unenterprising in the matter of maintaining direct foreign connections. With Paris, the energetic Louis had taken pains to open relations almost at the outset of his business career. Reference is made as early as 1602 to a sojourn by Louis in Paris, and to a privilege extended to him for a term of three weeks of accepting orders for his books from the Paris dealers. Under the regulations which had been established for the French book-trade, regulations emanating in part from the University that had from an early period assumed the right to control bookselling, and in part from the Booksellers' Guild itself, foreign dealers could do business in Paris only under a very narrow system of restrictions. They were forbidden either to buy or to sell at the Fairs of St. Germain and St. Laurent; they were forbidden to come to Paris more frequently than once a year, or to sojourn there for a longer period than three weeks, counting from the date of the opening of their bales; they were, further, forbidden to accept orders from any but the booksellers of the Guild (*les libraires jurés*). Bonaventure, the son of Louis, appears to have made, after 1624, regular annual sojourns in Paris. In 1626, he brought back with him to Leyden a series of unpublished letters of the scholar Scaliger, who had died in Leyden seventeen years before. Scaliger had held in Leyden the Chair of Belles-Lettres, and had done much to add to the prestige of the University. Among his pupils was Grotius. The list of the Leyden publications gives evidence that these Paris visits were utilised for the collection of material from French authors and editors. Against this

kind of competition on the part of foreign publishers the French book-trade was evidently unable to frame any effective regulations.

One of the most distinctive of the Elzevir undertakings in foreign parts was the branch House established in 1632 in Copenhagen. The Danish community proved to be a good customer as well for the publications from Holland as for the books which the Elzevirs were able to supply to advantage from Germany, Italy, and France. One evidence of the importance attached by the Elzevirs to this branch House in Copenhagen was the printing (in 1642) of a separate catalogue of the books there offered for sale. The first of the Elzevirs to visit Denmark was probably Louis (the second) in 1632. There are references to later visits by him in 1634, and in 1637. On the occasion of his first visit, he had opened a shop and appointed a permanent representative. The record of the town library of Copenhagen contains an entry of the payment to Elzevir, in 1632, of two hundred and sixty-four *rigsdaler* for books imported, and of a further payment, in 1634, of one hundred and twenty *rigsdaler*.^[137]

In 1650, it was Daniel who represented the House in the North, sojourning in both Sweden and Denmark, and having for his travelling companion one of his famous authors, Nicholas Heinsius. While Daniel Elzevir was in Sweden, he received a proposition from Queen Christina to establish a printing and publishing concern in Stockholm. Christina of Sweden was a daughter of Gustavus Adolphus. She was at the time but twenty-eight years of age, but she had already given evidence of a strength of character and a brilliancy of intellect that made her personality a very distinctive one. She was a scholar of varied attainments and a great collector of books, and she was ambitious to make her capital city a literary centre for the North of Europe. Mr. Myrop speaks of the proposition made to Elzevir as being a very flattering one, and it is easy to understand that the ambitious Queen could hope to secure in her literary undertakings the kind of service she required from a House like the Elzevirs, who were alike the greatest publishers, the most distinguished printers, and the most extensive booksellers of their time. For some reason, however, the suggestion of a Stockholm branch did not happen to fit in with the policy of the House, and the proposition was declined.^[138] A few years later, a printing and publishing concern was established in Stockholm, under the protection of King Charles Gustavus, by Johann Janssons of Amsterdam. The visit to

Stockholm of Daniel Elzevir and his negotiations with Christina preceded by but four years the abdication of the brilliant but erratic Queen, which took place in 1654. She became a Catholic (her intention of abandoning Protestantism was one ground for her abdication) and made her home in Rome. She brought with her to Rome no less than 2145 books in manuscript, and after becoming a Roman citizen, she added to the collection several hundred valuable works. With a few exceptions, the entire collection now rests in the Vatican.

The most valuable of the books she had owned in Stockholm was the famous *Codex Argenteus*, which contains a portion of the Gospels in the Merso-Gothic version of Ulfilas. This *Codex* the Queen had, however, given away, before her abdication, to a certain Count Magnus de la Gardie, and it remained in Sweden, where it is still preserved as one of the greatest treasures of the State. Among the more important of the literary antiquities that the Queen had taken with her to Rome, were the codices of the *Septuagint*, written in the seventh century, several manuscripts dating from the Carolingian times, a very old *Psalter*, and a copy of the Theodosian Code and the Laws of the Visigoths, which was said to have been written in the middle of the seventh century. There is also a fragment of the Theodosian Code, written in the Tironian character. In addition to this great series of manuscripts, the Queen left nearly six thousand printed books, an enormous library for a collection made as early as the middle of the seventeenth century. She died in 1689. [\[139\]](#)

The many who have admired the typographical *chefs-d'œuvre* which issued from the presses of the Elzevirs, neglect to give due credit to the name of the man to whose artistic skill is to be credited the designing and engraving of the punches from which were produced the exquisite Elzevir fonts of type. It is the general opinion of typographical experts that these fonts, in the beauty of their proportion, the delicacy of their outline, and the distinctive grace of their general effect, surpassed anything that had as yet been produced in Europe. The discovery that the designer of these fonts was Christophe Van Dyck is due to the researches of Willems. Van Dyck's work appears to have been done between the years 1630 and 1640. The name is a famous one in the annals of the Netherlands, but there is, I understand, nothing to show that this artistic engraver and type-founder was connected with Sir Anthony Van Dyck, the Flemish painter. The latter was born in

1599, and died (in England) in 1641, so that the two men were, however, contemporaries.

During the larger portion of time in which the presses of the Elzevirs were active, the publishers had the advantage of carrying on their work under comparatively slight restrictions in the matter of government censorship, while to censorship on the part of the Church there are but few references. It is probable that during the seventeenth century the Press of the Dutch Republic was more untrammelled than that of any State in Europe. It is true that there is record of various edicts and regulations on the part of the States-General prohibiting the printing of libellous material, or of works directed against princes or governments which were allied with the Republic. There is also an occasional edict against the circulation of publications classed as “irreligious” or “obscene.” With the latter class of publications the Elzevirs took no part either as printers or as booksellers. It did occasionally happen, however, that they interested themselves in the production and in the circulation of publications, the purpose or influence of which might evoke criticisms or complaints from friendly governments or from individual statesmen. For such publications they found it wise to make use of some *nom de presse* or to issue the same without imprint of name or place. Such publications can be identified as coming from the Elzevirs either by means of books of account or through the evidence of their very distinctive fonts of type.

Among the books for the anonymous circulation of which the House was responsible, were the *Defensio Regia* of Saumaise, the *Defensio Populi Anglicani* of Milton, and the *Mare Clausum* of Selden. The interest of the Elzevirs in circulating the last named treatise (which was an argument to justify certain pretensions of England) is somewhat to be wondered at, because, only shortly before, they had published with their imprint the famous argument of Grotius, *Mare Liberum*, in which was upheld the Dutch contention in behalf of the freedom of the seas.

On a number of the unavowed publications of this kind, the Elzevirs placed the imprint *Lugduni* (Lyons), in place of *Lugduni Batavorum* (Leyden). This was done particularly in the case of the writings of the French Jansenists, who would not wish to emphasise the fact that these were printed in such an heretical headquarters as Leyden. One of the bogus names employed quite frequently for these unavowed publications was that

of Jouxte, and another was Jean Sambix. The imprint of Nic Schouten, Köln, was also utilised, together with a number of mythical or manufactured names connected with actual places.

The Elzevirs, following the example set a century and a half earlier by Aldus, but since that time very generally lost sight of by the later publishers, initiated a number of series of books in small and convenient forms, twelvemo and sixteenmo, which were offered to book-buyers at prices considerably lower than those they had been in the habit of paying for similar material printed in folio, quarto, or octavo. For volumes of classics printed in twelvemo, such as the *Virgil* of 1636, the *Pliny* of 1640, and the *Cicero* of 1642, volumes containing an average of five hundred pages, the catalogue price was one florin, the equivalent in currency of about forty-three cents. *Quintus Curtius*, published in 1633, is catalogued at sixteen sous, the equivalent of thirty-five cents. *Sallust*, *Terence*, and *Florus*, sold at fifteen sous; and *Livy*, in three volumes, at four florins ten sous.

These well edited, carefully printed, and low priced editions of the classics won for the Elzevirs the cordial appreciation of scholars and of students throughout Europe. Matthew Berneggerus, professor of Strasburg, in the preface to his translation of Galileo's *System of the Universe*, speaks of the Elzevirs as unquestionably the first typographers of the world, *Elzevirios Leydenses typographus, artis nobilissime facile princeps universio de studiis præclare meritos*. The professor was writing in 1635, only six years after the appearance of the earliest of the noteworthy specimens of the Elzevir typography, which gives the impression that, notwithstanding all the general obstacles and the special hindrances of war times, the diffusion of information concerning new publications, at least in the university centres, must have been fairly prompt. A few years later, Galileo (who died in 1642) himself gave testimony to the excellence of the work done by his Dutch publishers.^[140] I do not find record of the arrangements entered into by Galileo for the publication of the translation of his treatise, but it is evident that he considered the undertaking a desirable one. The approval on the part of the scholars of these smaller and more economical editions of the Elzevirs was, however, not unanimous. The scholar, De Put (Erycius Puteanus), writing to Heinsius, in 1629, to acknowledge the receipt of the new *Horace*, says: "The Elzevirs are certainly great typographers. I can but

think, however, that their reputation will suffer in connection with these trifling little volumes with such slender type. An author like Horace deserves to be produced in a dignified form, with a certain majesty of appearance, and not to have his thoughts buried in shabby little type like this.” It was not unnatural that the long-time association of great authors with big volumes should have brought about the impression, not easily to be outgrown, that the size of the book should be in direct proportion to the literary importance of its contents. This view of the requirements and limitations of book-making was, however, based on the assumption that books were for the use of the wealthier classes only, or for placing in libraries which were accessible only to privileged bodies of scholars. The tendency of the age was, on the other hand, towards a continually increasing distribution of literature among impecunious scholars and with the public at large; and the Elzevirs, while doubtless shaping their publishing plans with a view to securing the largest business returns, were also, in popularising the best literature, doing their part towards the spread of the higher education of the community.

Some authors of their time were, in fact, so fully appreciative of the service rendered to their fame by the circulation of their writings in the attractive form given to them by the Elzevirs, that in place of considering the appropriation of their productions as a grievance, they were ready to express their satisfaction at the compliment thus paid to them. In 1648, the Elzevirs printed an unauthorised edition of *Les Lettres Choies* of Balzac (Jean Louis Guez), putting on the title-page, according to their usual routine for “appropriated” books, the words *Suivant la copie imprimée à Paris*. So far was the author from feeling any annoyance at this proceeding, that he promptly wrote to express his gratification, and to suggest that the Elzevirs might also be interested in publishing in the same form an edition of his *Œuvres Diverses*. A further correspondence followed, and finally the Elzevirs received from Balzac (some time in 1651) a letter of which the following is the substance:

“TO THE ELZEVIRS,

Publishers and Printers of Leyden.

Gentlemen:

I am under larger obligations to you than you may yourselves fully realise. I consider the right of Roman citizenship to be a small privilege compared with that which you have conferred upon me in including my name in the list of your authors. This is to give me rank with the consuls and senators of Rome; I am made an associate of the Ciceros and the Sallusts. What glory comes to me when I can say 'I am a citizen of the Republic of Immortals; I have been received into the circle of the demi-gods.' In the literary palace of Leyden we have in fact all been made sojourners under the same roof. Thanks to your efforts, I find myself at one moment opposite Pliny, at the next by the side of Seneca, or a little later placed with Tacitus and Livy; and although I may myself occupy but an inconsiderable place, I have at least the satisfaction of making part of a great company, a company of which Homer himself is the patriarch.... For them, as for myself, the repute has been extended by the skill and judgment of the typographical artist. For some architects reputation has come through the construction of pyramids and colossi, while others have gained no less fame through the art put into rings and seals.... The excellence of work depends not upon its extent but upon its appropriateness and perfection. I am therefore well pleased for my part that in place of putting me into folio, you have printed my productions in these exquisite little volumes.... I subscribe myself

Your obliged servant,

BALZAC.”^[141]

The letter is worth quoting if only to indicate the different point of view of the author of the seventeenth century and of him of the nineteenth. The letters written, prior to the Convention of Berne, by the Parisian authors of the present time concerning the books which the publishers of the Low Countries had done them the honour of reprinting, are expressed in a very different manner.

In 1663, Daniel Elzevir had consented (this is the phrase used in the correspondence) to reprint a collection of the poetry of Ménage. The poet was so well pleased to have secured the imprint of the great publisher of

Europe, that he took pains to insert in the volume an introduction in Latin verse to express his gratification. The lines begin somewhat as follows:

“Ye gods and goddesses what do I behold!
My verse presented in the type of the Elzevirs.
Oh type graceful and exquisite!
Oh volume charming and artistic!

But thou, Elzevir, my sweet glory,
Thou the father of this type without rival,
Tell me, honoured friend, what I can offer thee in exchange for this
honour.
May the friends of literature ever gather about thy House;
May the crowd of buyers of books ever press forwards towards thy
book-shops;
May the name of Elzevir, transmitted by the voice of his poets from
century to century, be heard through the entire earth and rise
to the heavens themselves;
May the fame of the Elzevirs eclipse that of the Turnèbes and the
Vascosans and rise superior even to the renown of the
Estiennes and of Aldus!”

At the time when Ménage was expressing in florid eloquence his gratification at being accepted as an Elzevir author, the new typographical form had finally established itself against all criticism. A large proportion of the publishers, not only of the Netherlands, but also of Paris and of Florence, had adopted the Elzevir model, and the folios and quartos which had characterised the first two centuries of printing were put to one side as representing the literature of the middle ages. The earlier forms of printed volumes, at least in the divisions of classics and theology, were preserved to a later date in England than on the Continent.

As was necessarily the case with a firm acting as printers for the University and whose publications included so long a list of scholarly

works, the Elzevirs had associated with their publishing office a group of scholarly editors and press-revisers. Apart also from the men who were directly in their employ or with whom they had arranged for editorial service, they enjoyed the benefit of the suggestions and the counsel of a number of scholarly friends and correspondents, without whose aid it would in fact not have been practicable to initiate or to carry on to a successful completion not a few of their important undertakings. The adviser whose coöperation was most important, and whose influence in directing the publishing policy of the House was most considerable, was Daniel Heinsius. After the year 1630, Heinsius acted as the chief literary adviser of the House, and to his hand can be traced a number of the dedicatory epistles, announcements, and introductions which (written nearly always in Latin) found place in a large number of the Elzevir editions.

Heinsius was a native of Ghent. He studied at Leyden, where he was the favourite pupil, and, later, the successor of the celebrated Scaliger. He filled in succession the Chairs in the University, of Greek, of History, and of Political Science. Later, he was placed in charge of the library of the University, and served also as secretary of the Academic Senate. He was so far accepted as an authority on orthodox Calvinistic theology that he was selected to be the secretary of the Synod of Dort. He possessed the faculty, not very common with a man of scholarship, of writing and speaking gracefully not only in Latin, the literary language of the time, but also in his mother tongue. The young publisher, Louis Elzevir, while a man of ready intelligence and of rather varied attainments, had never had the leisure or the opportunity for scholarship. He may well, therefore, have considered himself fortunate in being able to secure at the outset of his ambitious publishing schemes the coöperation of a man like Heinsius, and it is not surprising that the influence of the professor became all-important in the direction of the publishing business. In many ways this relation was a fortunate one, but there were some offsetting considerations. The scholars of the time appear to have been not only a controversial but an irritable group, and Heinsius possessed the *genus irritabile* to an exceptionable degree. He succeeded in embroiling the firm with a number of its scholarly friends and correspondents whose influence and whose coöperation it was important to retain. He was charged with having a special prejudice against, or hate of the German scholars, even of those who had associated themselves with Flemish or Dutch institutions. Among the men of note in

the scholarly world who brought accusations against Heinsius for bad treatment and for malice, and who contended that the Elzevirs were seriously interfering with their relations with the scholarly world in retaining as their adviser so bad tempered, so unreasonable and so malicious a person, were Gebhardt, who held in the University of Groningen the Chair of Greek, Grotius the well-known publicist, Vossius, and, above all, Saumaise. The controversies between Saumaise and Heinsius, controversies carried on in part, so to speak, over the bodies of their publishers, continued over a series of years, and might well have formed the subject of a text in Disraeli's *Amenities of Literature*. Saumaise, or Salmasius, was by birth a Frenchman, and his earlier university work was carried on in Paris. He then became intimate with Casaubon, through whose influence he became a Protestant. Later, he studied at Heidelberg, and the years between 1632 and 1650 he was associated with the University of Leyden. He then, at the instance of Queen Christina, passed some years in Sweden. Famous in various departments of learning, he was probably the chief authority of his time on philology. At the request of Charles II., at the time an exile in Holland, Saumaise wrote, in 1649, his *Defensio Regia pro Carolo I.*, which brought forth the more famous *Defensio pro Populo Anglicano* of Milton. Hallam says that "what Saumaise did not know was considered to be beyond the bounds of knowledge."^[142] Notwithstanding some frictions caused by the antagonism of Daniel Heinsius, Saumaise remained a valued friend to two generations of the Elzevirs, by whom were issued editions of most of his works. The most important of them was *Plinianæ Exercitationes in c. j. Solini Polyhistoria*, published (by Bonaventure) in two volumes in 1629, three years before the author's arrival in Leyden.

Bonaventure, whose control of the business had covered the most noteworthy and prosperous years of the Leyden House, died, as we have noted, in 1652. Among the undertakings which were at the time in train and which were interrupted by his death, was a complete edition, based upon the Vatican manuscripts, of the Greek historian Procopius; a Latin version of the same, to be prepared by Grotius; a complete edition of *Alemanus*, edited by Holstenius; the complete works of Galileo, in folio; the Latin epistles of Grotius; the works of Montaigne, which were to follow Comines in the collection of French classics; an edition of *Tacitus*, edited by Gronovius; the Latin Dictionary of Calepino, as a companion to the Greek

Lexicon of Scapula; and, finally, a complete and definitive edition of the *Corpus Juris*. This summary of the undertakings that were in hand during the month of Bonaventure's death, gives an indication of the activity of the House at the time, and of the direction of its enterprises. The *Corpus Juris* was afterwards completed by the Amsterdam firm.

The most famous of the authors whose works were associated with the imprint of the second Louis, who was the founder of the publishing establishment of Amsterdam, were Descartes, Velthuysen, Wittichius, Coronius, Vossius, and Grotius. The first complete edition of the works of Descartes was issued in 1643, with the imprint of Louis of Amsterdam. The new philosophy became at once a cause of strife not only with the metaphysicians but with the theologians. The partisans of Aristotle made common cause with the ministers of the Reform Church against the "Cartesian heresies."

By the year 1655, the publishing undertakings of the Amsterdam House exceeded in importance those issued from Leyden. It is with this date that the presses of Amsterdam begin to produce the series of Latin authors in the twelvemo form of which Leyden heretofore held the monopoly. It is also with this date that the Amsterdam imprint finds place upon the works of Balzac, Barclay, Charron, Du Refuye, etc. The most considerable of the undertakings of Louis of Amsterdam, in respect at least to the risk incurred and the investment required, was the French Bible of Desmarets, a work that had been begun in 1664 and that was completed, in two folio volumes, in 1669. This work was the culmination of the publishing career of Louis, whose death occurred in the year following its completion.

His successor in the management of the Amsterdam House, his cousin Daniel, gave to the business a large measure of skill, experience, judgment, and activity, which appears to have been without break. Daniel's first experience as sole partner came in a time of difficulty. The disastrous war with England during the years 1665-1667 interfered very seriously with the general prosperity of the State, and caused special embarrassments to the book-trade and publishing interests. This was the war which resulted in the transfer to the English flag of the colony of New Amsterdam, thereafter to be known as New York. Daniel succeeded in weathering the storm, and by the time of the Peace of Breda, he had been able, with the aid of his editorial adviser Wetterus and of the skilled typographer Wetstein, to place

the business on what seemed to be an assured foundation. One of his correspondents of the time was the ingenious Nicholas Thoynard, author of the *Harmony of the Gospels*. Thoynard gave special study to the possibility of improving the methods of printing, and, as early as 1680, put before Elzevir a scheme for placing on the presses *formes solides*, apparently the first suggestion of the modern stereotype plates. Daniel dismissed the scheme as impracticable. "To print two forms at one time," he said, "is something absolutely impossible to carry out, and it would in any case be of no service." Nicholas Heinsius (the son of Daniel Heinsius), who had first been associated with Daniel in Leyden, had, when the latter migrated to Amsterdam, transferred his own literary interests and editorial service to the Amsterdam House. The intimacy of the two men continued through their lives, and they died within a few months of each other.

The work of Heinsius as adviser for and business associate with his publishing friend was interrupted by various periods of public service, as he served as Ambassador both in Sweden and in Russia, but on being relieved from office, he always returned to his literary studies and to his friend's publishing-office. It is somewhat surprising that the States-General should have favoured Heinsius with posts of honour, as he appears to have been wanting in public spirit, or at least in patriotic feeling. When, in 1674, the armies of Louis XIV. were carrying ruin and devastation through the territory of Holland, Heinsius, in a country retreat at Vianen (well out of the course of the campaigning) was amusing his leisure in composing verses in honour of the oppressor of his country, verses which he utilised later as a dedication to his *Virgil*. "The true country of Heinsius," says his biographer, "was imperial Rome, and in looking upon Louis XIV. as Augustus, he thought of himself as a Horace or a Virgil."

The war with France, which continued for six years (1672-1678), a war which brought with it all the horrors of occupation of the country by invading armies, caused almost a complete cessation of all business undertakings and of all literary enterprises. The presses stopped work and the book-shops were closed. The whole energy of the people (excepting only in the case of an occasional dilettante like Heinsius) was concentrated in the defence of the country. Daniel Elzevir devoted a part of this period of enforced idleness to the preparation of a classified catalogue of his general stock, a catalogue more extensive and more comprehensive than any

heretofore issued. Daniel died in 1680, in the midst of a long series of unfinished undertakings and of literary plans. Graevius, in sending the news to Heinsius, says, "This is a great loss to letters." The philosopher Locke writes, "The death of Elzevir is a public misfortune." Such indeed was the universal feeling throughout the world of letters and the community of scholars. With the death of Daniel, the history of the House of Elzevir comes to a close. Some printing of college theses was, in 1680, still being done by Abraham in Leyden, but the work of the great family, which had for nearly a century stood at the head of the book-making and of the bookselling business of Europe, occupying the first places alike among typographers, publishers, and booksellers, was completed. Daniel left no son, and the widow dying the year following, the concern was wound up by the administrators.

The limits of this sketch will not permit even a summary of the long list of books issued by the Elzevirs during this century in which they were doing business as publishers. It is only practicable to refer to the general character of these publications and to point out that they included the most considerable and comprehensive series of important literature that had been associated with any imprint since the invention of printing, while it is also in order to remember that a very large proportion of the volumes represented the highest development of the art of typography. After two centuries of competition, the country of Koster had, in the work of the printing-press, unquestionably outclassed the country of Gutenberg and the rest of the world.

The publishing career of Louis Elzevir, the founder of the House, continued from 1583 to 1617, a period of thirty-four years. During this term he published a hundred and one separate works. His first book, the work which initiated the publishing undertakings of the Elzevirs, bears the title:

"Drusii Ebraicarum quæstrinum, sive quæstrinum æ responsionum,
libri duo, videlicet secundus æ tertrus. In Academia Lugdunensi." 1582
8vo.

The following were the more noteworthy of the later publications of Louis:

“Chronique et Histoire Universelle,” etc., “Par Jean Carion, Ph. Melanchthon, et Gaspar Pencer,” 2 vols., 8vo.	1596
This was the first work printed in French by the Elzevirs.	
Sundry Treatises of Scaliger.	
A Memoir of Scaliger by Heinsius.	1607
The first work of an author whose name was to appear in the Elzevir lists more frequently than that of any other writer.	
Certain works of Aristotle, edited by Heinsius.	1609
The complete works of Horace, edited by Heinsius.	1612
The Essays of Heinsius.	1612
The Homilies of Heinsius.	1613
The Letters of Puteanus.	1614
A History of the Frisians, by Emmius.	1616
“The Catechism of the Reformed Church.”	1617

With a few exceptions in Dutch and in French, the works of Louis were printed in Latin.

The greater number bear on their title-page the words *cum privilegio*. The privilege, when secured, was issued by the States-General, and the usual term was from ten to fifteen years. I find in the catalogue of titles no specification (such as was at this time usual in France) of an official censorship.

The association of Matthew, Bonaventure, and Abraham Elzevir, who succeeded to the business of their father Louis, and with whom was associated as the printer to the concern their brother, Isaac Elzevir, continued from 1617 to 1625. During these seven years, they published one hundred and twenty-two separate works and editions. I specify certain of the more important:

The works of the Emperor Constantine Porphyrogenitus, edited by Mersius. 8vo.	1617
The Decisions of the Courts of Holland, Zealand, and West Frisia, edited by Weytsen. 4to.	1617
The Life of Thuanus, by Heinsius. Folio.	1617
The Lectures of Mersius on Greek Literature. 4to.	1617

The “Mare Liberum” of Grotius. 8vo.	1618
The Works of Puteanus. 8vo.	1618
The writings of Julius Cæsar. 8vo.	1619
The complete works of Mersius. 2 vols. 8vo.	1619
An Analysis of the Arminian Heresy, by Peter Molinæus. 4to.	1619
The works of Terence, edited by Maretus. 8vo.	1619
The Acts of the Synod of Dort. Folio.	1620
The Orations of Heinsius, a reissue. 8vo.	1620
The Works of Aristotle, edited by Heinsius. 8vo.	1621
Paraphrase of the Psalms of David, by George Buchanan. 24mo.	1621
The Poetical works of George Buchanan. 8vo.	1621
Various Treatises of Heinsius. 4to.	1621
Essays and Addresses of Mersius. 4to.	1621
The works of Virgil, edited by Mersius. 8vo.	1622
The New Testament in Greek. 8vo.	1622
History of the Saracens, by George Elmacenus. 4to.	1625
Further Orations and Treatises of Heinsius and of Mersius. 8vo.	1625
The “Epistles” of Sir Thomas More. 8vo.	1625
The Psalms of David, printed in Syriac (from the press of Erpenius). 8vo.	1625
“Republica Anglicorum,” by Thomas Smith. 8vo.	1625

The third concern, comprising Bonaventure and Abraham, continued from 1625 to 1652, a period of twenty-seven years. Their list comprises four hundred and sixty-one works. These included: A long series of Greek and Latin classics, in the new twelvemo form. The texts were officially adopted or prescribed for use by the University, and the titles bear the words *editus in usum scholarum Hollandiæ et West Frisiæ; ex decreto Illustriss. D. D. Ordinum ejusdem provinciæ*. There is also a long series of theological works, an increasing proportion of which are printed in Dutch, indicating an extending popular interest in this class of literature.

A Series of Court Decisions and of Codes.

A new edition of the works of Scaliger.

The Oriental Series of Erpenius.

“L’Académie de l’espée,” de Girard Thibault d’Anvers. Folio, with 46 elaborate double or folding plates. 1628

This was the most sumptuous publication yet issued by the Elzevirs. It was protected by privileges from both the King of France and the States-General.

A Description of the West Indies, by John de Laet, in Dutch, with maps. 4to. 1628

The Babylonian “Talmud.” Folio, with plates. 4to. 1630

The “Republica Anglicorum,” by Thos. Smith (a reissue)

The Histories of Quintus Rufus, edited by Heinsius. 12mo. 1633

The Essays of Grotius. 24mo. 1633

The Mathematical works of Simon Stevin, of Bruges. Folio. 1634

A series of Treatises on Fortification, by Fritach. Folio. 1635

The works of Galileo, translated into Latin by Berneggerus. 4to. 1635

The Natural History of Pliny. 3 vols. 12mo. 1635

The Life of Tamerlane, in Arabic. 4to. 1636

The Dissertation of Beza on the Plague. 12mo. 1636

The “Colloquies” of Erasmus. 12mo. 1636

The “Mare Clausum” of John Selden. 12mo. 1636

“Le Cid. Tragi-comédie nouvelle, par le Sieur Corneille. Jouxte, suivant la copie imprimée à Paris.” 8vo. 1638

This volume belongs to the books (the list of which is quite considerable) which were “appropriated” by the Elzevirs.

Their edition was issued in 1638, two years after the first appearance of the tragedy in Paris. It was the third work of the dramatist, and probably the first which made his name known outside of France.

“L’Annaeus Florus,” Cl. Salmasius addidit Lucium Ampelium, etc. 12mo. 1638

This publication brought out a complaint from the learned editor, who had evidently not been consulted concerning the reissue, and who did not think the small form of the volume was fitting for the dignity of either the author or the editor. He writes in May, 1683, as follows: “Je suis en colère contre les Elzevirs, de ce qu’ils ont mis mon nom au Florus à mon insceu et

contre ma volonté. Je suis meshui trop vieux pour rechercher de la réputation par de si petites rubriques, oultre que de tout temps j'ai toujours esté ennemi de la vanité. Ces gens ne sont dévoués qu' à leur proffit, et ne se soucient point aux despens de qui."^[143] Later, Salmasius forgave his Dutch publishers, and came into friendly relations with them.

A treatise by Salmasius (Saumaise) in defense of Usury. 8vo. 1638

The treatise of Comenius entitled "A golden method for the mastery of four languages" (Latin, German, French, and Italian). 8vo. 1642

This had a great popularity.

The complete works of Grotius. 8vo. 1642

Various reissues of the different works of Heinsius. 12mo. 1642

The Greek Commentaries of Salmasius. 8vo. 1643

"L' Illustre Théâtre de Corneille." This edition, printed in 1644, bears the Elzevir imprint. It is probable, however, that like the "Jouxte" issue of the "Cid," it was unauthorised. 12mo. 1644

"De la Sagesse," by Charron. 12mo. 1646

This had been issued in Paris in 1592. The author died in 1603.

"Lettres Choies du Sieur de Balzac. Suivant la copie imprimée à Paris." 12mo. 1648

A Greek version (attributed to Hierotheus, abbot of Cephalonia) of the Confession of faith of the Reformed Church. 4to. 1648

Further Treatises of Saumaise. 8vo. 1648

"Defensio Regio pro Carolo I." by Saumaise. 8vo. 1649

A third edition, revised by the author, was issued in 1652, by the Amsterdam House.

"Histoire du ministère d' Armand Jean du Plessis, Cardinal Duc de Richelieu," etc. 4 vols. 12mo. 1650

"Les Oeuvres Diverses" du Sieur de Balzac. 12mo. 1651

The firm of John and Daniel Elzevir continued for three years, from 1652 to 1655, during which time it published fifty-four works. The list includes an increasing proportion of light literature. I cite a few titles:

"Recueil de Diverses Poésies." 12mo. 1652

"Les Satyres" by Sieur Regnier. 12mo. 1652

A collection of Proverbs from Greek Authors, in Greek. 4to. 1653
 The Poems of Nicholas Heinsius (son of Daniel). 12mo. 1653
 "The Civil Polity" of Thomas Hobbes, translated by Sorbière. 1653
 12mo.

Burlesque versions, in French, of Homer's "Odyssey," and of the "Odes" of Horace. 12mo. 1653

These two volumes bear the bogus imprint of "John Sambix," as if the Elzevirs were somewhat ashamed to be associated with such frivolities.

"The Imitation of Christ," by Thomas à Kempis, in Latin. 12mo. 1653

The most beautiful edition that had yet been printed of the famous Catholic Classic. The imprint is "Lugduni," instead of "Lugduni Batavorum," because the publishers expected to secure for it a sale in Catholic countries.

The "Institutes" of Calvin, in Latin. Folio. 1654

"Polyeucte martyr," tragédie de Corneille. Chez "Jean Sambix." 12mo. 1655

"Le Romant comique," par Scarron. Chez "Jean Sambix." 12mo. 1655

John Elzevir carried on the business for six years, from 1655 to 1661, during which time he printed one hundred and twelve works.

Among these were the following:

The works of Huygens, in Latin, reissue. 1655

These had been originally printed in 1644 by Bonaventure, and it is noted that the expense was borne by the author. We may, therefore, conclude that the reissue was a venture of the publishers. Huygens, who was famous as a physicist and a mathematician, lived till 1695.

"Lettres de Monsieur de Marigny." 12mo. 1655

"A defence of the Doctrines of the Socinians," by an unknown writer who uses the name of Slichtingius, in Latin. 4to. 1656

A Refutation of the same, by Cocceius, in Latin. 8vo. 1656

The fact that an Elzevir was willing to issue with his own imprint a Socinian volume, is evidence of an increasing liberality of view either of the University or of the publishers.

"Les Comédies de Scarron." 12mo. 1659

(The author died the year following.)

“Medical Treatises of Celsius.” 12mo. 1657

“Les Lettres de Monsieur Descartes.”

Further Treatises of Salmasius, in Latin. 8vo. 1659

The Treatises of Hippocrates, in Greek and Latin. 8vo. 1659

“Les Oeuvres du Sieur de Balzac,” reissue, after the death of the author. 3 vols. 12mo. 1659

“Des Lettres Provinciales,” and “La Théologie Morale des Jésuites,” etc., of Pascal. 8vo. 1659

These two volumes, issued 8vo, 1659, bear the bogus imprint, “À Cologne, chez Nicholas Schoute.”

They had first appeared in Paris in 1656. Pascal died in 1662.

“Recueil de diverses pièces servans à l’histoire de Henry III.” 12mo. 1660
Bogus imprint, “À Cologne, chez P. du Marteau”.

Treatises of Hippocrates, in Greek and Latin. 12mo. 1661

The widow of John continued the business for twenty years, from 1661 to 1681. During this period she issued or printed forty-seven works.

These included:

“The Bible,” printed in Dutch, in a handsome folio volume. 1663

“Mémoires Maréchal de Bassompierre.” 2 vols. 12mo. 1665

“À Cologne, chez Pierre du Marteau.”

“Hippocrates,” complete works, in Latin. The first edition issued to this date. 24mo. 1666

Abraham Elzevir, with whose life was terminated the record of the Leyden House, carried on the business for thirty-one years, from 1681 to 1712, during which time he printed but twenty-three works.

The last twenty years were devoted, as stated, entirely to the printing of theses, the publishing business having gradually been allowed to rust out.

His publications and printings included:

“Bibliotheca Heinsiana,” a catalogue of the collection of Nicholas Heinsius.

Epictetus, the “Enchiridion” of, in Latin, and various Funeral Orations and Memorial addresses on William III., of England, who died in 1702.

Louis Elzevir, the second of the name, initiated, in 1638, the publishing business of the Amsterdam House, which he conducted until 1655, when he was joined by his cousin Daniel, from Leyden.

During these seventeen years he published one hundred and eighty works. His first publication belonged to a lighter class of literature than had previously been associated with the Elzevir imprint. It bore the title: *Dominici Baudii Amores, edente Petro Scriverio, inscripti. Th. Graswinkelio, equiti.* 12mo. 1638. It comprised a series of letters and views in which Baudius gives an account of his various amorous misadventures. Willems speaks of the work as originating in Holland, but I do not understand that it could very well have been the work of the Baudius who held the Chair of History in Leyden up to 1613.

“Renati Descartes, Meditationes de primo-philosophia,” etc. 2 vols. 1642
On the title-page of the second volume appear the words *cum authoris concensu*.

Hooft’s “Nederlandsche Historien,” etc. Folio. 2 vols. This work was the most important of the Dutch national histories which had thus far appeared. Although published by Elzevir, it was printed by Blaen, who was a connection of the author. The first volume was issued in 1642, and the last only in 1654. The author died in 1647.

“Rerum Scoticarum historia, auctore Georgio Buchanano.” 8vo. 1643

“Renati Descartes Principia philosophiæ, cum privilegio.” 4to. 1644

” specimina philosophiæ, cum privilegio.” 4to. 1644

At the time of the publication of these first editions of treatises which were to revolutionise the thought or at least the metaphysical theories of Europe, Descartes was living at The Hague. He died in Stockholm (whither he had been called by Queen Christina) in 1650.

The works of Descartes were reprinted by the Amsterdam House no less than six times.

“Thomæ Cartwright, S. S. Theol. in Academia Cantabrigensi quondam professoris. Harmonia Evangelica,” etc. 4to. 1647

“Elementa philosophica de cive, auctore Thom. Hobbes, Malmesburiensi.” 12mo. 1647

The author was at this time 59 years old. He lived to be 91, dying in 1679.

Fr. Baconis de Verulamio “Sylva Sylvarum.” 12mo. 1648

“Les Passions de l’Ame, par René Descartes.” 8vo. 1649

“L’Alcoran de Mahomet, traduit d’arabic en françois par le Sieur du Ryer, suivant la copie imprimée à Paris,” etc. Another issue of the same date bears the words “Jouxte la copie,” the old indication of an “appropriated” work.

A series of Latin and Greek classics in 12mo, in the general style of the series issued some years earlier in Leyden, was published between the years 1640 and 1655.

“Adagiorum Des. Erasmi Roterodami epitome.” 12mo. 1650

“Colloquia Desid. Erasmi Roterodami, nunc emendatiora,” etc. 12mo. 1650

“Hugonis Grotii, quaedam haetenus inedita aliaque ex belgice editio latine versa,” etc. 12mo. 1652

“Francisci Baconi Scripta in naturali et universali philosophia.” 12mo. 1653

“Historia Gothorum, Vandalorum et Longobardorum, ab Hugone Grotio,” etc. 8vo. 1655

With this important history, Louis completed the record of his individual publications.

Louis and David Elzevir were associated from 1655 to 1664, a period of nine years, during which time they published one hundred and forty-nine works. These included a number of new editions of works previously published by the House, either in Leyden or in Amsterdam.

I cite the following titles, omitting all reissues:

“Le secrétaire à la mode, par le Sieur de la Serre, contenant l’instruction d’écrire des lettres,” etc. 12mo. 1656

“Le Pastissier François.” 12mo. 1656

Two volumes of practical household instruction, forming an exception to the general character of the list.

“Johannis Maccovii, S. S. Theol. Doct. et Profess. Opuscula philosophica omnia,” etc. 4to. 1660

“Histoire du Roy Henri le Grand, composé par messire Hardouin de Perefixe, ci-devant précepteur du roi.” 12mo. 1661

Hugo Grotius, “de Veritate religionis christianæ.” 12mo. 1662

This work was later reprinted by the Elzevirs five times.

“Corpus juris civilis, Pandectis ad Florentinum archetypum expressio,” etc. 2 volumes. Folio. This is described as the most beautiful piece of typography produced from the Press of the Amsterdam House. 1663

Four volumes of the “Comedies” of Molière, printed (in French) “suivant la copie imprimée à Paris.”

The last of these, “L’Étourdi,” was printed the same year in which the original appeared in Paris.

Molière’s first comedy, “Les précieuses Ridicules,” was performed and was printed in 1659. He died in 1673.

“Les Oeuvres” de M. François Rabelais. 2 vols. 12mo. 1663

“Recueil de quelques pièces nouvelles et galantes tant en prose qu’en vers. ‘À Cologne, chez Pierre du Marteau.’”

One of the pieces of “lighter” literature upon which the Elzevirs did not wish to place their imprint, and they, therefore, utilise their “John Doe,” the mythical du Marteau of Cologne.

“Dictionarium gallico-germanico-latinum. Dictionnaire françois-allemand-latin, par Nathanael Duez, avec privilèges.” 4to. 1115 pp. 1664

The final publication of the firm was a reissue of the Heinsius edition of Virgil, printed in 1664.

Daniel Elzevir, with whose death terminated the publishing work of the House, carried on the business after the retirement of his cousin, from 1664 to 1680, a period of sixteen years. During this term, he published two hundred and fifty-nine works, a very large proportion of which were reissues, often corrected and improved, of the earlier publications of the House.

I cite a few titles, omitting for the most part the re-issues.

The first undertaking was a third edition of the “Oeuvres diverses du Sieur de Balzac,” which had evidently retained their popularity for Dutch readers.

“Il Decameron di Messer Giovanni Boccacci, cittadino Fiorentino,” etc. 12mo. 1665

“Les constitutions du monastère de Port Royal du S. Sacrement, avec privilège et approbation.” 12mo. 1665

Issued without imprint.

“Recueil des défenses de M. Fouquet.” 5 vols. 12mo. 1665

“Suite du Recueil des Défenses de M. Fouquet.” 7 vols. 12mo. 1667

“Conclusion des Défenses,” etc. 1 vol. 12mo. 1668

These volumes appeared without imprint, but were promptly identified in Paris as coming from Elzevir.

Fouquet, who died in 1680, had been minister of Finance for Louis XIV., and had achieved exceptional success in dissipating the resources of the realm. His trial lasted three years, and he was condemned to imprisonment for life.

“Le Nouveau Testament” from the Vulgate. “À Mons, chez Gaspard Migeot.” 2 vols. 12mo. 1667

This is the first edition of this translation, known as the “New Testament of Mons.” It was printed for Migeot by Elzevir, and was also sold by Elzevir in the Low Countries.

“La Vie du Roy Almansor, écrite par le vertueux capitaine Aly Abencufian, traduit de l’espagnol par le P. Fr. d. Obeilh.” 12mo. 1671

“Les Fourberies de Scapin” and the other comedies of Moliere were printed by Elzevir promptly after their appearance in Paris.

“Augustini Confessionum Sommalii.”

This bears the imprint *Lugduni* (Lyons), in place of *Lugduni Batavorum*, for the purpose, as before explained, of facilitating its sale in Catholic countries. This was one of the first editions of the Fathers of the Church issued by the Elzevirs.

“Les Oeuvres complètes de Molière.” 5 vols. 12mo. 1675

“P. Virgilii Maronis, Opera. Nic. Heinsius recensuit.” 12mo. 1676

A famous specimen of the best of the typography of the Elzevir Press. The long series of Latin classics previously issued by his uncle and cousins were frequently reprinted by Daniel, indicating that the increasing reputation secured for the series had kept them in continued demand throughout Europe.

“Gierusalemme Liberata, poema heroico del Sig. Torquato Tasso,” 1678
printed in the Italian, with twenty illustrations. 2 vols.

Several other of Tasso’s poems were, later, issued by Elzevir. Tasso had died in 1595.

The last work issued by Daniel Elzevir was an edition by Francis Delebbe of the “Opera medica” of Sylvius, printed in a handsome quarto volume.

The widow of Daniel Elzevir (who survived him but a year) was able to complete the printing of a few volumes which had been left unfinished, but the publishing record of the House was practically closed with the death of Daniel in 1680.

The Elzevirs had carried on business as printers, publishers, and booksellers, in their several Houses in Leyden, Amsterdam, Utrecht, and The Hague, from 1583 to 1681, a period covering nearly a century. Their several catalogues give the titles of 1608 separate works or editions issued or printed by them during this time, an average of about sixteen each year. It was naturally the case, however, that the publications issued annually during the later period very much exceeded those for which the founder of the House was responsible.

A very large proportion, and, as the years went by, an increasing proportion of the publications of each year consisted of new editions of the earlier issues of the House, but it is to be borne in mind that while, as a rule, these reissues did not call for further publishing initiative or editorial labour they did require an entire resetting of the type, and, therefore, involved a repetition (except perhaps as to the item of illustrations) of the first publishing outlay. The invention of stereotyping and electro-typing, by means of which the form of type once set can be cast, and the plates preserved for use in printing further editions, belongs to a later century. The process of stereotyping was probably first perfected in Paris in 1795, by Firmin Didot.

The categories and bibliographies from which I have cited the preceding statistics include not only the books printed and published by the Elzevirs, but the more important of the works which were printed by them for the account of other publishers, and which were, therefore, not issued with their publishing imprint. In the majority of instances, however, the Elzevirs retained, in their hands as booksellers, the agencies for the sale of these books for the Low Countries, for Scandinavia, and frequently for Germany. The lists cited also include the titles of certain books (the number being at best but inconsiderable) which, while published by the Elzevirs, had been printed for them by other printers; and, finally, they include the titles of a number of works which, while not bearing the name of Elzevir, and in fact usually having on their title-page a Lyons or a Cologne imprint, have been identified, through the character of their typography, as coming from one of the Elzevir printing-offices, while, later, it was discovered, chiefly through the investigation of Willems, that for certain classes of books the Elzevirs had made a practice of utilising one of two or three bogus imprints which they had invented for the purpose. By far the larger proportion of the Elzevir publications, probably more than nine-tenths, were printed in Latin. The texts in French were the next in importance, followed, in the order named, by those in Dutch, Greek, Italian, and Arabic.

The general character of the literature in the production of which the family had interested itself, is indicated, however roughly, by the titles cited. The books belonged, in the main, to the class that would to-day be described as "heavy literature." The classics, Greek and Latin, form the larger portion of the list, while there were also groups of important works in Calvinistic Theology, Metaphysics, Medicine, Natural Science, Political Science, History, and Biography. Fiction and legend were represented not at all, and poetry to but an inconsiderable extent. The dramatic list, while not large, was important, including as it did the great productions of Corneille and Molière.

The works of the Fathers of the Church, which had formed so important a portion of the undertakings of the printer-publishers of the preceding century, were represented on the Elzevir list only by an edition of the *Confessions* of S. Augustine. It is evident that the demand for these had been naturally lessened by the influence of the Reformation. It is rather surprising that the Elzevirs did not give a larger measure of attention to the

publication of editions of the Scriptures, as the interest in the Bible was unquestionably very great in the communities which had accepted the Calvinistic and Lutheran doctrines. According to the catalogues, however, they published during the century but one edition of the Bible in Dutch and one in French. To these should be added several issues of the New Testament, printed in Greek, and evidently planned to meet the University requirements. The most noteworthy publishing undertaking, and the one which probably brought to the name of Elzevir the largest measure of prestige throughout Europe, and also the largest business returns, was the magnificent series of Classics, printed in duodecimo.

While by far the larger proportion of the publications of the century were the work of authors of a past generation, the Elzevir catalogues included the names of a number of contemporary writers, the works of whom have achieved an abiding fame. Without repeating the catalogue, I will refer here only to Descartes, Galileo, Grotius, Salmasius, Heinsius (father and son), Molière, Hobbes, etc. The historians of the Elzevirs do not give (doubtless because they have not been able to find) the record of the arrangements entered into between these contemporary authors and their publishers. They can only point out that, according to the evidence of the correspondence, the relations between the Elzevirs and the scholars resident in the Low Countries, whose works they printed, appear to have been very satisfactory, and resulted in a number of cases in close personal friendship. As far as the foreign authors were concerned, the Elzevirs appear to have followed simply the dictates of their own convenience and advantage. They took what material they thought they could use, without troubling themselves to make either requests or acknowledgments. They were, in fact, the most extensive piratical publishers that the world had as yet seen, and may be said to have reduced piracy to a business system.

It would, however, be very absurd to pass judgment by the standard of later times, upon the literary appropriations of the publishers of the seventeenth century. It is not probable that either the Elzevirs or their publishing contemporaries had any thought that in reprinting French, English, or German books, they were causing wrong either to the writers or to the original publishers, or that their action could be considered as an interference with any existing rights. Using the term in its strict legal sense, there were, of course, at this time no "rights" in literary productions outside

of the territory covered by any particular “privilege.” The Elzevirs were accustomed to protect their own books, both the works of contemporary authors and the editions of old time writers, by privileges covering the territories of the Republic, and they occasionally secured also a privilege from the French Crown.

It does not appear that any of the foreign works reprinted by them had been placed under the protection of a Dutch privilege, and, in fact, I find no references in the correspondence that has been preserved to any questions of infringement of privilege protection, with which the Elzevirs had to do either as complainants or as defendants. It is probable that even in the territory covered by a privilege, the difficulty of enforcing the same under the law was considerable, and that publishers and editors found it wise for the most part to accept the annoyance of interference and of competition rather than to incur the labour and expense of an appeal to the authorities. It was also doubtless the case that the superior facilities for production and for distribution possessed by the Elzevirs, enabled them to protect themselves pretty effectively against any unauthorised competition, at least in the Low Countries.

I find record of no complaints from Molière, Scarron, or Hobbes, or from any other of the foreign authors whose works the Elzevirs printed, and it is probable either that these authors did not think it worth while to waste words on an evil for which there was no remedy, or that (as was the case with the Sieur de Balzac, whose letters have been quoted) they considered the issue of Elzevir editions of their writings as an honour which added to their literary fame.

While many details have been preserved of the business history of the Elzevirs, I find no reference to their books of account, and no record of manufacturing expenditures such as has been preserved of the Antwerp publisher, Plantin. I have, therefore, been unable to ascertain what payments were made to the home authors like Descartes, Grotius, Heinsius, and others, of whose works repeated editions were issued. As these later editions were in the majority of cases revised by the authors themselves, it is evident that they must have been published under some satisfactory arrangement. It would also have been interesting to ascertain what remuneration was paid for editorial service, especially in such undertakings as the great series of Classics, for translations, for the work of press

supervision, and for the service of literary counsel, of which the Elzevirs secured from scholarly associates a very full measure. But the data for such information are not available.

There is a similar lack of information concerning the success or the lack of success of the different publishing undertakings. We can only conclude from the fact that so large a proportion of the books printed reached later editions, in some cases being reprinted five or six times, that for these works, at least, a continued and a remunerative sale was secured. The references in the correspondence from different parts of Europe give evidence that the most important of the undertakings of the House, the series of Latin and Greek Classics, had won for itself a favourable reception with students and scholars in far distant educational centres, and it is evident that the total sale of these volumes must have been very considerable.

There is also what might be called the negative testimony to the general success of the publishing judgment of the Elzevirs, that there is record on their long list of no single undertaking of importance which proved a burdensome failure, as was the case, for instance, with the great Bible of Plantin. It was certainly the case that the thorough organisation of the bookselling business of the House, an organisation which included connections not only throughout the Netherlands, but with the principal book-centres of Germany, France, Scandinavia, and Italy, gave them in the work of finding a market for the output of their presses, a very material advantage over the firms whose business was limited to printing and publishing. The catalogues issued by the several retail concerns carried on by the Elzevirs were by far the most comprehensive, the best classified, and in every way the most complete that had as yet been known in the book trade, and these catalogues served as models for the trade bibliographies of the succeeding half century.

One very material advantage which was enjoyed by the Elzevirs as compared with other families whose names belong to the record of publishing, was the continued vitality of the family itself, a vitality which ensured the carrying on of the work of the House effectively through three generations. In each one of the two generations which succeeded that of Louis the founder, there were from two to five representatives who had the interest and the ability to continue the special work which had brought fame

to the family. Such a persistency of family purpose and of living representatives of the family competent to carry out such purpose has been paralleled in but few other instances. The publishing business of the Rivingtons of London is now (1896) being directed by a Rivington of the fifth generation from its foundation by Charles Rivington, in 1711, and with an existence of one hundred and eighty-five years, has doubtless a longer career to boast of than can be credited to any other family which has devoted itself to publishing. The House of Murray, of London, is now in the hands of two Murrays of the fourth generation, and can show an unbroken record of about a century.

In certain respects, however, the Harpers, of New York, present a closer parallel to the Elzevirs. The two English firms above referred to, have depended for their continuation in more than one of their generations upon a single representative. The Harpers, however, whose business is now in the hands of a third generation assisted by active members of a fourth, have, like the Elzevirs, found in each generation a sturdy group of representatives, imbued with the traditions of the House, and able and willing to devote themselves to carrying forward its work, and the activities and prestige of the House bid fair to be extended and expanded through the twentieth century.

Omitting the names of certain Elzevirs of the fourth and fifth generation who, while continuing certain interests in connection with book-selling, did not continue the business of printing or of publishing, eleven Elzevirs were, in the three generations from the founder, actively engaged as typographers and as publishers. Four names are, however, to be borne more particularly in mind, of the men who impressed their individual force and character upon the business and to whom its creation, expansion, and direction were practically due. Louis, the founder, had, in various respects, by far the most difficult task of the four. The special character of his work and the nature of the obstacles overcome by him, have already been described. His ambition and ability passed in largest measure to his youngest son, Bonaventure (leaving out of the count Adrian, who died young). Bonaventure directed the fortunes of the Leyden House during the most successful period of its existence. The grandsons of Louis, Louis the second and Daniel, can share between them the responsibility for the distinctive work done by the House in Amsterdam, a work which, by the time Daniel was left in sole control,

very much exceeded in importance all that had been accomplished in Leyden.

It seems evident that, while the connection with the University had been, as was so frequently the case with the earlier publishing undertakings of Europe, of very material and perhaps indispensable service in initiating the business of the House, the trade facilities offered by a great commercial centre like Amsterdam were of still greater value than the coöperation and material to be secured from the University.

No one of the Elzevirs appears to have been entitled to be described as a scholar, although Daniel, the last of the House, was evidently a man of a wide range of cultivation and of attainments. Each one, however, of the family who had responsibilities in the management of the publishing interests, evidently possessed adequate judgment as to what constituted scholarship, and they were always able to secure in the selection of their material, in the higher class of editorial work, and in supervising the printing of the more exacting classes of books, the service of some of the most learned men who were at the time resident in Holland. Not a few of these scholarly assistants and associates became, as said, near friends of their publishers or of their chiefs.

The Elzevirs did not have upon their hands the peculiar responsibilities that had to be met by the printer-publishers of the preceding generations. It was not necessary for them, as it had been for Aldus, to ransack distant convents for manuscripts, and to do the personal work of collating and preparing these manuscripts for the compositors. The Elzevirs were, in nearly every instance, in a position, for their classical publications, to give to the type dealers printed "copy," the text of which had had the advantage of the supervision of a long series of previous editors. It was not necessary for the Elzevirs to create methods of organisation for a printing-office, or themselves to invent mechanism for the production of books. At the time their work was begun, printing was already if not a perfected at least a well developed art, the processes of which had been very fully worked out. They were able, after utilising to best advantage the experience of previous generations, so far themselves to develop and improve methods and results as to make of printing not only an art but a fine art; and even if they had never placed a publishing imprint upon a title-page, they would, through

their service as typographers, have earned an honourable place in the annals of bookmaking.

In their work as publishers, they had a very great advantage in doing business in a country in which literature was practically free from the burdensome interference of censorship. When we recall the long series of contests carried on by the printers of Venice and of Florence against the ecclesiastical censorship of Rome, and the almost equally hampering obstacles placed upon the printer-publishers of Paris, first by the theologians of the Sorbonne, and, later, by the officials of the Crown, we can appreciate the value of the freedom enjoyed by the Press in Leyden and in Amsterdam, in the history of publishing in which places, there is hardly a single reference to the burdens of interference or censorship.

The successive generations of Elzevirs seem always to have been (as was certainly the case with Louis the founder) consistent Calvinists, and they were unwilling to place their imprint upon any publications assailing the doctrines of the Reformed Church. While they certainly rendered a very large service indeed to the development of book-making and of book-selling in Europe, and by this means, to the extension of the influence of literature, it would probably not be accurate to claim that they were men of exceptionally high ideals. They were traders, although traders on a great scale and with comprehensive and far reaching ideas as to the possibilities of their trade. Their business appears to have been carried on, however, with little reference to anything except their own business advantage. It could not be said of them, as it was of Aldus, that they were willing to risk their fortunes for the sake of bringing new ideas to Europe; or, as was the case with Robert Estienne, that they were prepared to sacrifice both fortune and life, if necessary, in order to maintain the freedom of the Press and the right of bringing the Scriptures to the people.

It was probably true that, however unconsciously, they were able to do an important work in helping to prepare the way for interstate copyright. They had themselves, as we have seen, no idea of the possibility of securing the protection of the law for literary productions beyond the territory that could be covered by a privilege or by a series of privileges. In extending, however, the sale of their own publications in countries far distant from the "country of origin" and in finding sale not only in their home city, but in the cities of Germany and Scandinavia, for the works of widely separated

authors, they helped to develop in several communities the understanding that literary productions had nothing to do with political boundaries, that the readers of one country were of necessity dependent upon the literature of all countries, and that the boundaries of the world of literature were the boundaries of civilisation.

This is the conception that forms a necessary foundation for the idea of International Copyright. It is under such a conception that the reader comes to feel that sense of obligation to the author, which makes him more than ready to pay to such author a return for the service rendered. When such a relation has once been established between authors and their readers, it becomes practicable to secure from communities the recognition by law of the rights of authors to such returns. It may fairly be said, therefore, that in creating and in developing the business of distributing literature throughout Europe, the Elzevirs took the first step that was necessary in order to bring about the European copyright, which was finally secured, two centuries later, under the Convention of Berne.



PART III.

THE BEGINNINGS OF PROPERTY IN LITERATURE.



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CHAPTER I.

PRIVILEGES AND CENSORSHIP IN ITALY.

1498-1798.

THE legislation of the Venetian Republic in regard to privileges, monopolies, and copyrights was more continuous and more important than that of any Italian State. In fact, the enactments of the other States for the supervision of printing and for the encouragement and protection of literary productions were so far similar to those of Venice (upon which many of them had probably been modelled) that the series of Venetian laws can be taken as fairly representative of the general system prevailing in Italy during the fifteenth and sixteenth centuries. The requirements of my subject will, therefore, be most conveniently met by confining my record for Italy to a summary of the copyright legislation of Venice, in place of undertaking to give the details for each Italian city in which printing was carried on. For the data of this record I am largely indebted to the scholarly treatise of Horatio F. Brown, on *The Venetian Printing Press*, to which previous reference has been made.

The action of the Government in regard to the book-trade presents itself in two main divisions: the first including the steps taken to protect and encourage the new art and those concerned in it; and the second, the measures planned to protect the State from certain dangers which it was dreaded might be brought upon it by the operations of the Press. Under the first heading are to be classed monopolies, copyrights, patents, and protection against foreign competition; while under the second come the measures of censorship—religious, moral, and political. The term “*privilegii*” was applied to all copyrights, patents, monopolies, and special concessions having to do with books and printing.

Between 1469 and 1517, these *privilegii* were, as a rule, granted by the College or Cabinet of Venice, and their record is to be found in the Minutes of the Cabinet. Occasionally, however, the Senate conferred the privilege, and sometimes a concession was issued under the direction of the chiefs of the Council. While privileges appear to have been freely granted to all *bona*

fide applicants, the Government did not make the securing of a privilege obligatory upon the publisher.

The first kind of privilege was a simple monopoly, under which the Government granted to the beneficiary for a term of years the sole right to print or to sell a whole class of books. The earliest Venetian privilege on record, which is also probably the earliest in Italy, was that of 1469, under which a monopoly was given to John of Speyer, for a period of five years, for the printing of books in Venice. Fortunately for the development in this city of the art of printing and of the business of publishing, John died shortly after securing this monopoly. It was not continued to his heirs, and Jenson, Nicolas of Frankfort, and their associates were left free to push their printing operations as they saw fit.

The second class of privilege was that securing to an author the copyright in his production. This constitutes, of course, a recognition of the existence of literary property and of the rights of literary producers. The earliest record of such a copyright in Venice (and also the earliest for Italy) bears date September 1, 1486. It secures to Mr. Antonio Sabellico, historian to the Republic, for apparently an indefinite term, the sole right to publish, or to authorise the publication of, his *Decades rerum Venetarium*. The penalty for infringement was five hundred ducats. The words of the concession are worth quoting, as, in securing for the author a literary proprietorship in his work, it established a precedent of great importance:

Quod opus prefatum per Marcum Antonium prefatum dari possit alicui diligenti impressori qui opus illud imprimat suis sumptibus et edat et nemini præter eum liceat opus illud imprimi facere. [\[144\]](#)

In the year 1493, a more formal and explicit recognition of literary proprietorship was given in the privilege granted to Daniele Barbaro, securing to him for ten years a copyright in the work of his deceased brother Hermolao Barbaro, the *Castigationes Plinii*. In January, 1492, a copyright for an unspecified term was granted to Peter of Ravenna for his work *Phænix* or *Fænix*. The form used is the same as that of the privilege given to Sabellico. No one is to print the work except under the authority of the author. Klostermann and others have referred to this privilege for Peter's *Phænix* as the earliest instance in Europe of government recognition of an

author's copyright, but, as we have seen, the protection given to Sabellico antedates this by nearly six years.

The third class of privilege is that securing to an editor or publisher a copyright for works not of his own (literary) production, and it is of this class that the instances are the most numerous. The earliest example of a copyright to an editor is that granted, in 1493, to Joannes Nigro for his edition of *Haliabas*. The formula is the same as that used in the copyrights to authors. In the same year a copyright (also without a term limitation) was given to the printer-publisher Bernadino de Benaliis for the work by Giustiniani, entitled *De Origine Urbis Venetiarum*.^[145]

In connection with this class of copyrights, abuses soon arose. Copyrights were secured by a number of printers, or printer-publishers, for works which they never issued, and which, in not a few cases, they apparently never intended to issue. The possession of these privileges was used to obtain from *bona fide* publishers purchase moneys for which no service had been rendered either to the community or to the individuals, and when these moneys could not be afforded or were not paid, there resulted a block in publishing undertakings.

The fourth kind of privilege conceded by the Venetian College was of the nature of a patent rather than a copyright. It secured a protection for improvements and developments in the art of printing, or for specific classes of literature. In 1496, for instance, a privilege was given to Aldus by the Venetian Government, for a term of twenty years, for all books that he might print in Greek text. In connection with this copyright, he secured what might be called a patent right for his particular character of Greek type and for his special method of printing. In his petition he represented that in the making of these Greek fonts, he had invested a large part of his resources.

In 1501, Aldus obtained a copyright of ten years for all works printed in the cursive or italic character, of which he claimed the invention, and which possessed the special advantage of compactness. The Greek type was said to have been modelled on the script of Musurus, as the cursive was a facsimile of the writing of Boccaccio.

In 1498, a monopoly for the term of twenty-five years was granted to Terracina for all books printed in Arabic, Moorish, Syriac, Armenian,

Indian, and Barbary. Throughout the sixteenth century, a number of patents were granted for improvements in the art of printing.

The four classes of privileges thus far cited were concerned with the protection of the individual producer against competition within the Venetian State. A fifth kind of privilege had for its purpose the protection of Venetian printing and publishing as a whole against the competition of foreign rivals. The Government of Venice upheld what would now be called a protective system, and it undertook to secure its industries against interference or competition from foreigners.

In the printing privilege granted to John of Speyer, in 1469, provision was made to prohibit the importation of books printed elsewhere, a provision that, if strictly enforced, must have weighed rather heavily upon Venetian scholars and students, and in necessitating the reprinting, for a comparatively small community, of any books required for Venetian readers, must have tended to keep the price of those books high.

In all the privileges subsequently granted appears a provision prohibiting the importation of any foreign edition of the work securing Venetian copyright. Such a prohibition, however, is of course in line with the restrictive and protective features of modern copyright law, and is a very different thing from the attempt made in the edict of 1769, previously quoted, to prevent the importation into Venetian territory of any books printed abroad. The former restriction constitutes an essential feature of any system of copyright, while the latter was a kind of *reductio ad absurdum* of the theory of "protection to home industries." In 1519, in a copyright granted to Manenti, physician to the Duke of Urbino, appears the condition that the book securing Venetian copyright must be printed in Venetian territory; and in the copyrights issued thereafter this proviso is seldom omitted. A similar provision finds place in a number of the copyright enactments of later times, the most recent instance being the American law of 1891.

The applications for privileges or copyrights submitted by the printer-publishers were quite frequently accompanied by special reasons why in each particular case such a petition should be granted. Sometimes it was on the ground of the general excellence of their printing and their guaranty that the edition now proposed shall possess special beauty and accuracy of

typography; sometimes they engage to secure the highest grade of scholarship for the text revision and for the editorial work; again they will plead poverty or distress, or large families to support, or special need of some kind.

In the year 1493, we have an example of an application for a privilege being accompanied by a certificate from certain competent authorities as to the value and the importance for the community of the work to be published.^[146] The applicant was Bernardino de Benaliis, and the publications in question were the works of Beato Lorenzo Giustiniani and of Tartagni da Imola. Benaliis submitted from a number of the doctors in law at the University of Padua certificates as to the value of the book.

Foreigners made a practice of supporting their petitions with letters of commendation, either from the ambassadors of their own states, or of some other of the foreign ambassadors. The applications or petitions were not always granted, and, occasionally, conditions were attached upon which the continued validity of the privilege was made to depend. Such conditions fell into four general divisions, concerned with, first, the quality of the work to be produced, secondly (though infrequently) the speed of its production, thirdly the price at which it was to be sold, and fourthly the rights of the producers, *i.e.*, publishers. As an example of the first kind can be noted the privilege granted to Benaliis, already cited, under which he is bound not to publish the works of Tartagni without those of Giustiniani, nor *vice versa*, and he must further guarantee to print the volumes in the finest style of typography and with the most correct text.

The privilege given in 1494 for certain books to be issued by Matteo de Codeca, is coupled with the condition that the volumes are to be sold at a “fair price” (*pretio honestissimo*), and a similar term is used in the privilege given in 1496 to Landriano. In a certain number of the privileges, principally those of earlier date, we find the condition that the works must be published within a year from the date of the application, or must be printed at a certain rate per week.

The College kept no register of the privileges issued by it other than the entries in its minutes, and it happened not infrequently, as the number of petitions increased, that exclusive privileges for the same work were granted to different applicants. Conflicts naturally arose between two

publishers claiming control of the same work, but when any cases of the kind were brought up for adjudication, they were decided in favour of the privileges bearing the earliest date, providing always that the condition of publishing within a certain term had been complied with. As a result of these complications, however, the practice came to be adopted of attaching to a privilege a saving clause to the effect that it should be invalid in case any earlier privilege should already have been issued for the same work.

Among other instances of such a proviso, Brown quotes that included in the privilege granted, in 1493, to Calcedonio, which closes thus: *declarato, quod hæc gratia intelligatur casu quo opera ipsa sint nova, et aliquis alius jam non cœperit illa imprimere, vel sibi promissum fuerit*. Another form, occurring in 1502, was *dummodo prius dicta volumina non fuerint impressa*.^[147]

The Minutes of the College were not open to the inspection of the public, and it appears that no subject indexes were kept of the business transacted, while, as before said, no attempts were made to preserve any list or register of the privileges issued. The printers and publishers had, therefore, no safe means of ascertaining whether or not they were infringing a previous copyright.

The average term of the earlier privileges was ten years. In the latter half of the sixteenth century, however, it became the practice to grant longer terms. There are examples, in 1569, of privileges of twenty years, and, in 1596, of twenty-four and twenty-five years. The terms varied, however, very greatly, and it is difficult to trace the grounds upon which a longer or a shorter time was decided upon. We find instances of one year, five years, ten years, fifteen years, etc.

The copyrights run sometimes from the date of the application and sometimes from that of the publication. After 1505, the practice obtained of granting prolongations of privileges in cases in which good cause had been shown for such prolongation. An instance of such an extension is the case of Leonardo Crasso's edition of the works of Polifilo, for which, in 1508, a second copyright term of ten years was granted on the ground that the wars had prevented the publisher from getting back his investment. The principal difficulty with these earlier privileges was the absence of any machinery to secure their enforcement or the protection of the owners of the copyrights.

Brown says that there is no instance or record of a suit being brought by one printer against another for infringement of copyright. Complaints for infringement were presented from time to time to the College or to the Council of Ten. In 1499, the Council of Ten issued an order to publishers to respect the copyrights granted to Antonio Moretto of Brescia.

In 1495, Biondo and Giambattista secured for ten years a privilege in the Letters of S. Catherine of Siena. The same work was, however, published by Aldus in 1500, five years before Biondo's privilege had expired. The *Letters of Phalaris* were published in 1498 by Braccio, and in 1499 by Aldus, and there appears to have been no determination of the question to whom the privilege or copyright belonged. The whole business of copyrights resting upon individual privileges fell into confusion, and the difficulties in the way of protecting literary property must have seriously interfered with the development of publishing undertakings.

It must be remembered also, that these privileges, even if not interfered with, covered the control of but a limited market, that, namely, comprised in the territory of the Venetian Republic. In any other States of Italy, the reprinters were, of course, free to appropriate the results of the enterprise of the Venetian publishers and of their expenditures for manuscripts, editorial service, etc.; while the Venetians had, of course, the same freedom in utilising the works initiated in Rome, Florence, Milan, or Verona. In competing for markets outside of Italy, however, the Venetian publishers had the advantage of the wide commercial connections possessed by their city.

With an entire absence of protection for his literary undertakings outside of his own State, it was, of course, of first importance that, within these limits at least, the publisher should have secured to him the results of his planning, his labours, and his investment. Such security was, however, given but very inadequately by the system of privileges. The penalties attached to infringements hardly acted as deterrents, principally because there was no effective machinery for their enforcement. These penalties comprised the confiscation of the contraband material, with fines varying (for each unauthorised copy of the book) from twenty soldi to one thousand ducats. The latter was the fine prescribed, in 1515, in the case of a piratical edition of Ariosto. The fine, when collected, was usually divided into three parts, one third going to the court, one third to the complainant, and one

third to some city charity. Occasionally, though very rarely, there was added to the penalty a sentence of confinement in prison for one or two months. There are one or two instances also of suspension of the offender from the exercise of the art of printing. Complaints concerning infringement could usually be brought before any magistrate of the Republic; but in some cases it was specified in the privilege itself that a trial for its contravention should be held before a special court, such as that of the fiscal procurators, or of the police magistrates. What uniformity of procedure came finally to be established, was due, however, less to the regulations of the law than to the precedents established by the printers and publishers.

Censorship.—After the earlier measures having for their purpose the encouragement of the new art of printing, the actions of the Government of Venice (as of the other States where the business of publishing became of importance) were more largely concerned with the supervision and regulation of the Press for the safety of the interests of State and Church, than with the protection of literary property.

As in the case of the privileges, the censorship was, for something more than half a century, that is, from 1469 to 1528, carried on without the aid of any general law, and was based simply upon a practice or series of precedents evolved from the individual action taken by the Government in each instance as it arose. The granting of privileges had, as we have seen, been the duty sometimes of the College, sometimes of the Senate. The responsibility concerning censorship rested naturally with the Council of Ten, which in its capacity as a standing committee of safety, assumed a general charge of the morals of the community.

The censorship of the Press in Venice, as elsewhere, was concerned with three aspects of literature: the religious, the moral (which included the political), and the purely literary. Morality was considered from both the public and the private or personal point of view, the former including as its chief consideration the safety of the State.

The operation of the censorship was marked by the presence of an *imprimatur* or record of authorisations. As has already been noted, applications for a privilege were occasionally accompanied by a certificate or *testamur* from certain competent authorities, who had examined the work

in question and who were willing to certify as to its soundness and importance.

The earliest example of an ecclesiastical *testamur* printed in a book published in Venice, appears at the beginning of the *Nosce Te*, issued by Jenson in 1480. The *Nosce Te* was a book of devotion, written by a Carthusian monk, Giovanni di Dio, and the *testamur* in this case might, therefore, be interpreted simply as an approval by his ecclesiastical superiors of the work done by him as an ecclesiastic. There is no record that the *Nosce Te* ever secured a privilege from the Venetian Government, and it seems certain that at the date in question no such *testamur* was required under the regulations of the secular government.

No further instance of a clerical *testamur* occurs before 1505, when Giacomo di Penzi, of Lecco, a printer, in applying to the Council for a privilege for certain books he desired to print, states that he has an *imprimatur* from the Council of Ten, and a *testamur* from the Patriarch as to the merit of one of the works, the *Tre famosissime Questioni*, by Zane, Archbishop of Spalato. In the year 1508, we have the first example of an ecclesiastical *testamur* being required by the Council of Ten, as a condition for their own *imprimatur*. The work was the *Universalis animæ traditionis liber quintus* of Gregoriis, and the ecclesiastical censor appointed to examine the work from a theological point of view, reported that he found in it nothing opposed to Catholic verity.

This is the first instance of a religious censorship exercised by the secular government. The case may be considered as fairly indicating the position the Venetian Government proposed to take in regard to the supervision of books touching upon theological matters. The State had a personal interest in protecting the Church against the attacks of books likely to be subversive of the faith, and it was glad to secure the opinion of the Church in regard to the character or tendency of a doubtful work; but it intended to retain in its own hands the final decision as to the permission to print; and it contended that the interests of Church and State could be best protected by the State taking action for both. The conclusion arrived at was, therefore, that there should be religious censorship, but that the censor should act only through powers delegated to him by the secular government.

A case occurring in 1516 shows, however, that this policy speedily became modified. Soardi, a publisher, applied for an *imprimatur* for certain theological works. The Council of Ten replies that as Soardi has already secured the *testamurs* of the Patriarch and the Inquisitor, they, *quoad se*, have no objection to offer, and *permittunt fieri quantum præfati Reverendissimus et Inquisitor concessere*.^[148] Brown accepts this phrase, *quoad se*, which occurs also in later *imprimaturs*, as evidence that the Council of Ten had practically resigned the direct control of the religious censorship, and had accepted the Patriarch and the Inquisitor as the proper persons to deal with the responsibility. It is still, however, the secular authority and not the ecclesiastical which grants the *imprimatur*, and the term *permittunt fieri* implies that the permit was necessary and could be withheld. In this same year, 1515, a claim was raised by the Papal Government which, later, gave rise to many disputes between the Church and the Republic of Venice, and also between the Church and several other of the States of Italy.

The Holy See assumed the right to grant copyrights and *imprimaturs* in States other than those of the Church, and to support these monopolies by the threat of spiritual punishments. The earliest instance of such a contention was that of Fra Felice of Prato, a converted Jew, who secured from the Pope, for certain Hebrew books and translations of the same, a copyright which covered not only the States of the Church but all the States of Europe. The punishment of excommunication was threatened against any who refused to recognise this copyright or who committed infringements against it. Fra Felice, desiring to print his book in Venice, and apparently distrusting the adequacy of the Pope's privilege, applied to the College for a copyright for ten years, which was duly granted to him; while the College of Venice apparently made no comments upon the Papal brief which had also undertaken to give him authority for Venice. Later on, the Venetian Government found occasion to make vigorous protests against similar contentions from Rome.

The second class of censorship, that relating to literary quality, also developed but gradually. The need for some kind of literary supervision is indicated by the publishers themselves, who in their petitions make reference to the misprints and scandalous errors in editions previously

produced, and promise that their own editions shall be printed with the utmost care and accuracy.

The earliest instance of the establishment of a literary censorship was in 1503, when the Senate made Marcus Musurus censor of all books printed in Greek. Thirteen years later Musurus was still holding the office.

In 1515, an order was issued by the Council of Ten which established a general censorship for the literature of the Humanities. The order was worded as follows: "In all parts of the world, and in the famous cities not only of Italy but also of barbarous countries, that the honour of the nation may be preserved, it is not allowed to publish works until they shall have been examined by the most learned person available. But in this our city, so famous and so worthy, no thought has as yet been bestowed on this matter, whence it comes to pass that the most incorrect editions which appear before the world are those issued in Venice, to the dishonour of the city. Be it, therefore, charged upon our noble Andrea Navagero to examine all works in Humanity which, for the future, may be printed; and without his signature in the volumes they shall not be printed, under pain of being confiscated and burned, and a fine of three hundred ducats for him who disobeys this order." This is the first Italian example of a general or prevention censorship, applied to a whole class of literature. [\[149\]](#)

The third kind of censorship concerned itself with the morals of literature, political morality, the attitude of the writer or of the publisher towards the State or rather towards government, and private morality, having to do with the influence of the book upon decency and *bonos mores*. The Government of Venice was peculiarly sensitive in regard to any criticism, direct or indirect, of its public documents. In 1515, the Council of Ten granted permission to Marino Sanuto, who was engaged in the preparation of a history of the operations of Charles VIII. in Italy, to examine the State Papers of more than two years back, on the condition that the work should, when completed, be submitted for the approval of the Council, before any one else should have seen it. Later in the same year, an *imprimatur* was granted to Andrea Mocenigo for his history of the League of Cambrai, the work having been examined and approved by the Grand Chancellor, who had the special custody of the State Papers.

The political censorship was apparently more effective than the censorship of morals. It was certainly the case that the *imprimatur* was given to not a few books of a scandalous character.

In 1527, Alvise Cynthio (or Fabritii) published a work on *The Origin of Vulgar Proverbs*. He had secured from the Senate a copyright for ten years, which prohibited any one from reprinting the collection unless he should add to the material as many new proverbs as were contained in the original. Cynthio took occasion to say in one of his editorial paragraphs that he intended to show the true character of those who pretended to follow the rule of S. Francis. The Franciscans naturally found objections to the book, and registered a complaint against it on the ground of heresy and indecency.

The Council of Ten issued in January, 1526-1527 a general order, reciting that, owing to the freedom which everyone enjoys in Venice, it sometimes happens that obscene and corrupt works issue from the Press. It is, therefore, decreed that for future publications, the *imprimatur* of the Council of Ten shall be required, and that before this is given, the work must have been examined by two censors, who shall make a sworn report that its character is satisfactory. This order is of importance as being the first official recognition of the necessity of a moral censorship.

The censors who examined Cynthio's volume, ordered the author to expunge the obnoxious passages. In the meantime, however, the monks took the matter into their own hands (although they claimed to act with the authority of the Council) and carried off from the printer's shop all the copies on hand. Cynthio petitioned the Council for their restoration, and the printer put in a claim on his part that the volumes should be replaced in his hands until his printing account had been paid. An order to such effect was given, but apparently only a small portion of the volumes were received, the others having disappeared while in the custody of the monks. Copies of the work have since been extremely rare. The author is reported to have died a violent death. [\[150\]](#)

Up to this time there had been no attempt to formulate a code of laws for the regulation of the Press; such action as had been taken by the Government, had been in the shape of isolated decrees, or special acts prepared to meet specific cases. There was no such thing as preventive legislation; it was always planned either to present a remedy for some

immediate difficulty or to repress some specific wrong-doing. The lines upon which the press-code of Venice was finally promulgated had, however, been gradually indicated by the customs and precedents established for particular cases.

Before the period of general legislation, the practice had, as we have seen, been arrived at by securing, first from the College, and later from the Senate, privileges, taking the shape either of monopolies or of copyrights; while for the *imprimatur* or authority to print, application was made to the Council of Ten. The first law of censorship made such *imprimatur* obligatory. The censorship of the character of the books thus fell upon the Ten, which retained in its own hands the direct control of the political censorship and delegated to ecclesiastical examiners the task of theological censorship, accepting, as a rule, the report of such examiners as final. When, later, it was found necessary to give consideration not only to the political and theological influence of books, but to their literary quality and their moral character, these divisions of the censorship were also assumed by the Council of Ten.

In 1487, was issued the first Papal Bull having to do with the productions of the printing-press. It was addressed by Pope Innocent VIII. to seven governments as follows: Romana, Curia, Italia, Germania, Francia, Hispania, Anglia, and Scotia. It is entitled: *Bulla S. D. N. Innocentii contra Impressores Librorum Rebrobatorum*, and was printed in Rome in 1487. The opening paragraph reads: *Et ea propter nos qui illius locum tenemus in terris qui ad illuminandum hominum mentes et errorum tenebras exterminandum descendit e coelis* (and, therefore, we who hold on earth the place of Him who came down from heaven to enlighten the minds of men and to disperse the darkness of error).

The Bull does not appear to have attracted any special attention in Venice, and the Government of the Republic continued to frame in its own way the regulations for the control of the printers.

The Earliest Legislation in Venice.—The legislation of the Republic relating to the productions of the printing-press concerned itself with five general purposes: first, the embodiment into law of custom and precedent; second, the protection against outside competition of the book-manufacturing trade of Venice, and the preservation of the excellence of the

Venetian Press; third, the protection of the book-buyer against bad workmanship and exorbitant charges; fourth, the protection of the author's rights; fifth, the institution of a Bureau to administer the Press laws and to regulate the industry.

The legislative bodies of the State were the Senate and the Council of Ten. The earliest legislation for the regulation of the Press (unless we may count as a law the general order of the Ten, previously referred to, establishing a literary censorship for works in Humanity) was a law of the Senate passed August 1, 1517. This law recalled every privilege heretofore granted, placing in the public domain, open for the use of any one, all of the works named in these cancelled privileges.

The purpose of this law was to sweep away a mass of obstruction, and in giving full freedom to printing undertakings, to further the development of Venetian publishing. Among its advocates were many of the printer-publishers, who were willing to lose their property rights in existing copyrights for the sake of getting rid of the evils that had arisen from the accumulation of overlapping privileges, or of privileges which had been secured not for direct use but for obstruction and for sale, and of privileges which on various grounds had not been obtained in good faith. Under the law of 1517, privileges were thereafter to require a two-thirds vote in the Senate and were to be issued only for works which were new or which had not before been printed. (*Solum pro libris et operibus novis, numquam antea impressis et non pro aliis.*)

The next law, that of 1526, has already been referred to in connection with the case of Cynthio's *Origin of Vulgar Proverbs*. It provided that no book should be printed without the *imprimatur* of the Council, and that this *imprimatur* should be granted only after the book had been approved by two censors appointed by the Council as free from scandalous or objectionable matter.

In 1533, the question of copyright was again attracting attention. The law of 1517 had not worked well, and abuses had arisen under it. No definition had been given limiting or constructing the term *opus novum*, and the contention had been made that very slight additions or alterations in a book already published would constitute it a new work within the meaning of the act. It was only necessary for a publisher to make application, under such a

contention, for a copyright for a previously unprinted classic, to prevent the work from being printed by any other publisher.

A decree was now issued ordering that a publisher must complete the publication of a work within twelve months from the date of securing his copyright, under pain of the forfeiture of the copyright. A modification was afterwards made under which, if the work was too large to be completed within a year, the copyright could be preserved by the production of not less than one folio a day. If the work were printed out of Venice, the copyright was forfeited. No publisher could apply twice for a copyright for the same work. The matter of prices was also gone into; and publishers were directed to submit to the Bureau of Arts and Industries an advance copy of each new book, which was to be appraised by experts and the price set by them was to be that at which the book should be published. No copies were to be sold at any higher price.

In 1537, a further law was enacted, directed to the protection of the interests of the consumer, and to the wholesome development of the trade of book-manufacturing. The preamble speaks of “the ruinous and disgraceful practices of the Venetian printers,” who used to be the best in the world, and complains that now, for the sake of gain, they use vile paper that will not hold the ink and that cannot be written upon with marginal notes. This blemish cannot be due to any difficulty in securing proper material, as foreign books come to Venice printed on excellent paper.

It is, therefore, ordered that under a penalty of forfeiture of copyright and a fine of one hundred ducats, all copyrighted books must be printed on paper that can be written upon without blotting. This penalty shall be incurred if of any edition five copies blot, and a copy shall be held to be defective if any five leaves in it blot. Pamphlets and books below the value of ten *soldi* are excepted from the provisions of the law. New books are again defined as works which have never been published before. The execution of the law is given to the *Avogadori di Comun*, the law officers of the State. [\[151\]](#)

The enactments of 1542-1543 give evidence that the regulations for the supervision of the publishing trade had not yet produced satisfactory results, and that there was no little irritation on the part of the Government at their failure. The Council complains that, contrary to the censorial law of 1526, its *imprimatur* was not always sought for new publications, and that, as a

result of this non-observance, books were being printed and sold which offended the honour of God, were repugnant to the Christian Faith, and were in many instances most licentious. To remedy these evils, it was decreed that the printers of unlicensed books should be fined fifty ducats, in addition to the penalties previously decreed. The booksellers dealing in them were to be fined twenty-five ducats, while those who hawked unlicensed books about the streets were to be flogged from S. Mark's to the Rialto, and to be imprisoned for six months. A publisher using a false imprint was to be imprisoned for twelve months, and then banished from Venice in perpetuity.

In spite of these severe penalties, the law does not appear to have secured more satisfactory obedience than had been given to the previous decrees. As Brown points out, the law was probably not supported by public opinion.

In 1544, the Commissioners of the University of Padua were constituted the permanent censors of Venetian books submitted for the *imprimatur* of the Council. The censorship of the Commissioners covered all points excepting those relating to religion or theology, which were still left to be passed upon by ecclesiastical censors.

In 1544-5, the Council of Ten gave attention to the question of the ownership of literary productions. In no one of the several acts that had been passed for the regulation of the Press, had it been made apparent whether literary property was brought into existence as property, by the process of securing the copyright, or whether it existed, *ipso facto*, in the author of a work. In the latter case, the copyright entry and the issue of the privilege constituted simply an official recognition of the right and not a creation of it. During the half century in which their business had been carried on, the printer-publishers in Venice (in common with those of the rest of Europe) were in the habit of ignoring literary proprietorship altogether, and were accustomed to print any work they pleased, even in direct opposition to the wishes of the author. It became evident that some measure for the protection of the author was necessary, and in the year 1544-5, a decree was issued forbidding anyone to print or to sell a work without having first presented to the *Riformatori* (the University Commissioners) documentary proof of the consent of the author or of his representatives.

All books printed without the consent of the author were to be confiscated and burned; the printer was to be fined one ducat for each copy of the book printed, and was to be imprisoned for one month. In 1547, a fresh attempt was made to restrain the sale of blasphemous or obscene books.

One manner in which the law of 1543 had been evaded was by importing books of a character for which an *imprimatur* in Venice could not have been secured. Brown says that in a number of cases, however, books of a scandalous character, sold as importations, had really been printed in Venice, the foreign imprint being forged. It was now ordered that any one importing scandalous books should pay a fine of fifty ducats, the books themselves being also forfeited.

The *Savii Sopra l'Eresia*, the three Venetian noblemen who served as assessors to the Holy Office, and who now had in their hands the examination of new publications with reference to matters of religion or doctrine, were charged with the supervision also of imported books. The Lutheran heresy was beginning to be promulgated by means of the Press, and the ecclesiastical authorities were, therefore, especially suspicious of literature coming from Germany.

In 1548, the first catalogue of prohibited books was issued in Venice. The addition to the regular executive of the three Commissioners on Heresy indicates as well a greater activity on the part of the Church in regard to the supervision of literature, as a readiness on the part of the Government to accept this ecclesiastical coöperation as long as, in form at least, the State was recognised as the controlling authority in the matter.

The year 1548-9 marks an era in the history of printing and publishing not only in Venice, but of the world. In that year, under a decree of the Council dated January 18th, the printers, publishers, and booksellers of Venice were organised into a guild. The very natural reason assigned for the formation of such a guild was that the trade in question was the only important trade in the city that was not already so organised. We find, however, as an additional reason, which doubtless acted as an important incentive, the necessity of so organising the business of the production of books that the work of the Commissioners of Heresy in discovering and in punishing the publishers of heretical books, should be facilitated.

The Guild of Printers and Booksellers, 1549-1595. —The organisation into a guild of the printers and publishers of Venice was an important event in the history of literary property in Italy. This guild was the earliest trade association of book-men in Europe, the decree for its institution bearing date 1548-9, or six years earlier than the charter of Queen Mary of England, under which was incorporated the Stationers' Company. The publishers of Germany had organised the Frankfort book-fair (in connection with the general Fair) as early as 1500, but this organisation had not yet taken the shape of a guild. The *Libraires jurés* of Paris, comprising members of the University, organised as a division of the University, and subject to the control of the University authorities, cannot, at least in its earlier stages, be classed as a trade guild.

The Guild of Venice had, as we have seen, been brought into existence not merely for the protection of trade interests, but for the purpose of facilitating the work of the State and of the Church in keeping a close supervision upon all the productions of the Press, and of promptly suppressing those likely to prove pernicious. The regulations framed by the Guild and the enactments secured by it were of service in defining literary property and in protecting copyrights, but this result was rather an incidental than an essential part of its work.

Seventeen years elapsed after the decree of 1548, before the organisation of the corporation was fully completed through the formulation of its by-laws; but from various references during that time, it seems evident that shortly after 1548, an association was in existence with a President and a Council, exercising some general supervision over the printers and publishers. When the Guild was finally organised, it appears to have been a more official and more authoritative body than the London Company of Stationers. Its officers comprised a prior, two councillors, six assessors, a secretary, and a beadle. Membership in the Guild was compulsory upon all master-printers, publishers, and booksellers, and each member was to pay annually *the sum of one lira, five soldi*. *The list of officials* included two syndics, one of whom was to be present at each election and to administer the oath of office to the new officers. No member was permitted to decline either nomination or election, under a penalty of ten ducats. No member of the Guild could hold office unless during five years previous he had been a master-printer or had kept a book-shop. The by-laws of the Guild were

called *Mariegole*, a term which is said to come from *Matricule*, or matriculation books.

The Guild thus constituted, outlived the Government that had created it and many succeeding governments. It even survived the Republic and the period of revolutions and of Napoleonic invasions; and came to a close only with the first decade of the present century, after an existence of more than two hundred and fifty years. The Stationers' Company of London still exists under that name, but its control over the printing and publishing trades of England disappeared many years before the dissolution of the Guild of Venice.

The Guild appears to have moved but slowly in the work of controlling the printing and the book-trade of the city; it was not until 1571 that it issued a decree (which apparently had the force of a decree of the Council) forbidding anyone not a member of the Guild from setting up a printing-press or opening a book-store. It was also forbidden for anyone to exercise any of the functions of a printer or a bookseller unless he had served a five years' apprenticeship in Venice. Foreigners who desired to exercise the art of printing, or to carry on the business of bookselling, must first serve five years in some shop in Venice, and after examination and approval by the authorities of the Guild, must pay ten ducats for matriculation. The penalty for infringement of the above decree was fifty ducats.

A protest was made to the *Proveditore di Comun* concerning the authority of the Guild to make or to enforce any such regulation, but the *Proveditore* promptly confirmed the action of the Guild, and in so doing confirmed its authority to control the business of printing and book-selling.

This control seems, however, during no period to have been complete. Up to the year 1600, the Guild had at no time contained more than seventy-five members. In 1596, according to the reports of the *Riformatori*, there were one hundred and twenty presses at work in Venice, and it was necessary to print one hundred and fifty copies of the *Concordat* of 1596, in order to distribute them among the booksellers of the city. It is probable, therefore, that the master-printers and book-sellers must together have exceeded seventy-five, and in that case the Guild could not have included them all. While the Guild claimed, as we have seen, full jurisdiction over the printers and booksellers, and claimed also the right to forbid any person to carry on

these trades without having obtained a certificate of competence from its own examiners, it is probable that it lacked the power to enforce its authority or to carry into effect its decrees.

The establishment of a system of censorship did not meet all the difficulties in the way of a thorough supervision and regulation of literature. The University Commissioners, to whom had been referred the censorship other than ecclesiastical, were apparently not always able to make examination of all pending publications or did not, at least, always insist upon a personal examination. The publishers began to make a practice (on the ground of lightening the labours of the Commissioners) of having their forthcoming works examined by readers selected by themselves.

On the strength of a favourable report from these friendly examiners, the Commissioners would issue their certificate that the work contained nothing objectionable, and with this *testamur* the publishers would secure, without further question, the *imprimatur* of the Ten. Under this procedure a number of objectionable works found their way into print. The Commissioners finally, in 1562, gave orders to their secretary that thereafter no authorisations should be given for any printing whatsoever until the work had been examined and favourably reported upon, first, by the Inquisitor or one of his vicars, or by some person selected by the Tribunal of the Inquisition; second, by the Reader in philosophy or some other public reader; third, by a ducal secretary. The petitioner for a certificate was to bring a *testamur* signed by each of these, declaring that there was nothing in the book contrary to religion, nothing injurious to morality, and nothing hostile to princes, and that it was worthy to see the light. The *testamurs* should state the number of leaves in the book and must quote the first and last lines.

After the book had been printed, but before it was issued to the public, a copy was to be submitted to the *Riformatori* in order that they might assure themselves that no additions or alterations had been made after the securing of the *imprimatur*. Each of the three persons who should examine the book was to be paid the sum of one *bezzo* for each leaf (sheet?). The *bezzo* was worth the one hundred and sixtieth part of a ducat. All the expenses connected with the three examinations and with the issue of the *imprimatur* must be borne by the petitioner.

Four years later, in 1566, it was ordered that all persons obtaining licences should, before printing their works, register their licences at the office of the *Esecutori contro la Bestemmia*, but for such registration there should be no charge. This is the first attempt that was made to institute a complete registry of the publications of Venice. Unfortunately, the law was persistently evaded, and the registers which have come down to us are very incomplete.

The system of censorship, as now completed, proved both cumbersome and irritating, and must have seriously interfered with the development of the publishing business of Venice. It was, however, not quite so exacting as might have been expected from the stringent nature of its provisions, for the reason that these were not and could not be effectively enforced. The Government of Venice lacked the means to enforce its literary regulations, and had no police adequate to the special requirements of these regulations.

While the censorship of the State became more or less nominal, that of the Church was enforced with comparative rigour, and exercised a very material influence on the selection of the literature to be printed. The Church had at hand a very effective machinery for the enforcement of its supervision, as every priest and every friar was ready to act as a policeman for the cause of ecclesiastical control over the Press.

Copyrights in Venice, 1500-1600. —Up to the middle of the fifteenth century the average term of a copyright had been ten years. From the year 1560, the terms began to increase, until towards the close of the century the average is nineteen years. There are, however, examples of terms as short as one year, and as long as thirty; while it is not easy to trace the grounds for the discrimination. The fines inflicted for contraband publications also varied very considerably. The amounts collected were usually divided into three parts, which were assigned one to the informer, one to the author, and the third, either to the court, the arsenal, or to one of the three asylums. There is record of but one instance during the century of a piratical printer being deprived of his licence to print. It was the case of a copyright granted to Pappa Alesio, of Corfu, the infringer of which was fined two hundred ducats, and ten ducats for each unauthorised copy printed, and was forbidden to print for ten years. [\[152\]](#)

The number of works for which copyright was secured varied very much from year to year. The largest number of entries during the century was one hundred and seventeen in 1561, and the smallest seven, in 1599. The decrease during the last quarter of the century was in part due to the Great Plague.

There were but two instances during the century in which the Senate refused to grant an application for copyright, one of these refusals being for the *Lettere Amoroſe* of Paſqualigo. While the greater number of the copyrights were iſſued in the names of the publishers, there is, after the middle of the ſixteenth century, an increasing number of entries in the names of the authors. A copyright was given, in 1515, to Ariosto for his *Orlando*, to laſt for his lifetime; and in 1535, a copyright was given to his heirs for a period of ten years for certain of the poet's works. Copyrights were alſo iſſued directly to Taſſo, Aretino, Giral-di, and other authors.

The making of maps and charts formed, as was natural in a great centre of commerce, an important feature in the publishing of Venice; while in company with theſe, there were long liſts of works of travel and adventure. Early in the ſixteenth century, the production of engravings, on wood and on copper, grew to be a conſiderable induſtry. In 1521, a copyright was iſſued to Caſtellazzo for certain illuſtrations for the *Pentateuch* which he had engraved and for certain others which he had in plan.

During the whole of the century, Venice continued to be the chief publishing centre in Europe for Greek literature, and a place of reſort for Greek ſcholars. Its preſſes alſo became noted for the printing of books in Hebrew. This latter induſtry, however, had to encounter no little oppoſition on the part of the Government, an oppoſition in the main due to jealousy of the eccleſiaſtical cenſors, who dreaded the heresies that might be hidden in the unknown tongue. The dread was, however, one that might be overcome if the inducement were ſufficient. The printer Bomberg, who had been reſuſed a renewal of his ten years' privilege for his Hebrew publications, made freſh application with ſucceſſive offers of one hundred, one hundred and fifty, and three hundred ducats, all of which were reſected. A fourth offer of five hundred ducats, however, finally ſecured the deſired privilege. Privileges were granted in 1498, and again early in the ſixteenth century, for the printing of works in Arabic and in other Oriental languages, but the total number of Arabic books iſſued appears to have been ſmall. Beginning

with the year 1565, there are from time to time examples of publications in Armenian. The list of musical works produced and copyrighted during the century was large and important.

The Inquisition. —The first instance of trials undertaken in Venice by the Holy Office for offences committed through the printing-press, was in the year 1547. The list is closed in 1730 with the trial of Giovanni Checcazzi. In the sixteenth century there were one hundred and thirty-two cases; in the seventeenth, fifty-five, and in the eighteenth but four. It is not clear whether the diminished activity of the Inquisition during the later years was due to the increasingly hostile attitude taken by the Government of Venice towards the Church of Rome after 1596, or to the fact that the vigour of the Press prosecutions during the last half of the sixteenth century had effectively stamped out the publication in Venice of heretical and immoral publications. The great activity of these prosecutions between 1549 and 1592, was doubtless due to the dread of the Lutheran heresy, and of its propagation throughout Italy by means of the printing-press.

Heretical books could be presented to the Holy Office by denunciations submitted without signature. If the court held that there was ground for prosecution, the charges were formulated and the accused was directed to appear for his defence within eight days from the publication of the summons. The writers and the printers of heretical books appear to have been considered about equally guilty, while the offence of keeping such books for sale (even though ignorance of their contents could be shown) was also a very grave one. In the great majority of cases, the accused allowed judgment to go by default.

The Index and the Book-Trade. —It is in connection with the *Index Expurgatorius* of Pope Clement and the *Concordat* that the history of publishing in Venice comes for the first time into touch with general history. The claim of the Church to the supervision of all publications soon became involved in the larger question of the relation between Venice and Rome.

Paolo Sarpi, who became the champion of the cause of the independence of the State against ecclesiastical domination, comes into the history of literature as the upholder of the rights of authors and of publishers against the crushing censorship of the Inquisition. The problem presented to the Venetian Government was: whether the Venetian Press, supported in its

liberty by the Government, should continue to maintain its character as the freest Press in Europe (and therefore one with the most active production); or whether it should be permitted, for want of the support of the Government, to fall under the repressive influence of the Inquisition and the *Index*.

The earliest instance of a censorial order on the subject of books in Venetian territory, and also in Italy, is the order issued in 1491 by Franco, Bishop of Treviso and Papal Legate. This decree prohibited anyone from printing, or from causing or permitting to be printed, any books treating of the Catholic faith or of matters ecclesiastical, without the express permission of the Bishop or Vicar-General of the diocese. The Legate proceeded at once to name two works, Rosselli's *Monarchia* and Mirandola's *Theses*, which were absolutely prohibited, and all existing copies of which were to be burned in the cathedral or in the parish churches within fifteen days from the publication of the decree.^[153] There was no charge that these works were in any way immoral or scandalous. They were condemned simply on the ground of the unsoundness of their doctrine. The contention raised in this order on behalf of the Church was far-reaching. If it were heretical to discuss, in a sense at all hostile to the Curia, the relative powers of the Pope and the Emperor, there would be an implied right in the Church to censure and to condemn any political writings in which the authority of the Pope or the responsibilities of the Emperor were referred to.

It became, in fact, the keystone of the ecclesiastical position that in the case of the Church no separation was possible between politics and ecclesiastical dogma. The work which had been condemned to the flames had been dedicated to the Doge Foscari, but the Government appears to have taken no notice of the Bishop's decree.

In 1544, the University of Paris published a catalogue of books adjudged worthy of censure, and, in 1546, the University of Louvain issued a similar catalogue of books which had been condemned by its Faculty of Theology. The first Italian catalogue or index of censurable books was that of La Casa, printed in Venice, either in 1548 or in 1549. No copy is known to exist, and the precise date is a matter of dispute. La Casa was the Papal Nuncio, and his catalogue may, therefore, be considered as the act of the Holy See, differing in this respect from the black lists issued in Louvain and in Paris.

In 1554, the Inquisition first takes action in regard to books, publishing a catalogue based upon that of La Casa and the Milan *Index* of Arcimboldi. This catalogue of the Inquisition was largely utilised for the first *Index* issued from Rome, that of Paul IV. In the year 1558, the Inquisition in Venice issued a decree forbidding importers from taking any books out of bond until they had deposited with the tribunal a full list of the books imported. Such a list rendered, of course, comparatively easy the subsequent seizure in the shops of any works considered heretical or suspicious. As, under the laws of 1562, the Inquisition had secured the right to take part in the censorship required for the *imprimaturs*, it now possessed supervision over all the literature supplied to the Venetian public.

The first Roman *Index* was that published in 1559 by Paul IV., under the title of: *Index auctorum et librorum qui ab officio sanctæ Romanæ et universalis Inquisitionis caveri ab omnibus et singulis in universa Christiana Republica Mandantur*. The *Index* was divided into three lists: first, the names of those authors each and all of whose works, whether published or to be published, were absolutely prohibited; second, names of writers certain of whose works (the titles of which were given) were prohibited; third, the titles of anonymous books prohibited. At the close of the *Index* appears a list of sixty-one printers with a prohibition of all works printed by them. In this list there is but one Venetian name, that of Francesco Riccioli. Throughout Italy, the *Index* was received either coldly or with hostility. The Viceroy of Naples and the Governor of Milan refused to allow it to be published in their dominions. In Venice it appears never to have been in force, while the Government of Florence waited to see what action would be taken in other countries. In Spain, permission to print the *Index* was refused, and in Paris it was never published.

In the year 1562, the Council of Trent turned its attention to the question of book-trade, and, after a long discussion, appointed a committee of eighteen members to examine into the subject, and to draft a decree, together with a revised *Index*.

The *Tridentine Index* is based upon the *Index* of Paul IV. Both devote almost their entire space to works of heresy, giving but trifling consideration to the question of immoral literature. The *Tridentine Index* presents ten rules for guidance in the enlargement and continuation of the *Index*. It introduces also the formula *donec corrigatur*. This formula

signified either a temporary or partial prohibition of a work not absolutely condemned, or a conditional permission for its continued sale, provided that, in all copies of existing editions, the condemned passages were either blotted out or corrected by pen, while in all subsequent editions they were to be omitted or modified. The fifth rule provided that all booksellers must have in their shops a list of the books which they kept on sale, such list being signed by the Inquisitor and the Bishop's delegate; and they were forbidden to have, to sell, or to distribute any other books than those on said list, under penalty of forfeiture of the books and of such other punishment as might be ordered by the Inquisition. Under the seventh rule, one who had imported books was forbidden to give or to loan them for the reading of another, or to part with them in any way without written permission. The eighth rule provided that heirs were to submit to the authorities a list of books inherited by them, before using or parting with any of them. The ninth rule gave to Bishop and Inquisitors-General the authority to forbid within their diocese or provinces books other than those which appeared in the *Index*. This *Tridentine Index* appears to have been recognised at once as the authoritative utterance of the Church on the subject of books, and to have been very generally circulated. It was printed in Venice by the Aldine Press, and it was printed ten times subsequently between 1564 and 1593. The whole position of the censorship of the Press, as well in Venice as in the other publishing centres of Italy, was essentially modified through the publication of the *Tridentine Index*. The coöperation or approval of the secular authority, which, in Venice at least, had kept in its own hands the nominal control of the censorship, was now disregarded; while the powers of the Inquisition and the range of its detailed supervision were widely extended.

The stringent effects of the *Index* and the *Rules* soon made their influence felt upon the publishing and book-selling trade throughout Europe. In 1581, the Dominican Castiglione writes: "The Inquisitors frequently publish orders forbidding the sale of this or that work. The booksellers are no longer willing, therefore, to take the risk of importing books, while they are frequently prevented from selling those already in stock. There must be in Rome at present unsalable books to the amount of several thousand scudi."

As early, in fact, as 1565, just after the publication of the *Index*, Josias Simler writes: "A new *Index* has appeared wherein so many books are

condemned that a number of professors in the Italian universities complain they cannot lecture if the edict remains in force. Frankfort and Zurich and other German cities have written to the Senate of Venice, urging it not to accept an edict whereby the book-trade will be ruined." As a matter of fact, the Italian book-trade with Germany was all but destroyed, while the home book-trade was isolated and gradually starved.

As it was in Venice that the importing as well as the publishing business had been the most important, so it was the Venetian book-trade which now suffered more seriously than that of any other Italian city. The relations of Venice with Germany were particularly close, and the annals of the Frankfort as well as of the Zurich publishers give frequent instances of works of importance being undertaken in coöperation with Houses in Venice, and of the division with such Houses of editions of books which had already been printed.

The Venetian Government, however, accepted in full the authority of the Council of Trent in the matter, and, in 1567, new regulations for the book-trade were drawn up, based upon the ten *Tridentine Rules*. From this date, the number of Holy Office trials for offences of the Press shows a steady increase. In the year 1571, Pope Pius V. instituted the Congregation of the *Index* for the purpose of dealing with all questions relating to the examination, prohibition, or expurgation of books; and in the year 1588, Sixtus V. ordered the Congregation to draw up a new and enlarged edition of the *Tridentine Index*. This contained large additions to the lists of prohibited books, and amplified the ten *Rules* to twenty-two.

In 1596, appeared the *Clementine Index*, of Clement VIII., and shortly thereafter, friction arose between Rome and Venice in connection with the supervision of the Press. In 1593, Maximus Margounios, a learned Greek, who was Bishop of Cythera, was resident in Venice, and was engaged in editing numerous Greek works for the Venetian publishers. He had made himself obnoxious to the authorities at Rome for certain heretical utterances, and he was summoned to appear at the Vatican. He declined to leave Venice and the Senate refused to give him up. In July, 1593, Paruta, the Ambassador of Venice at the Vatican, submitted to the Pope a vigorous protest against the publication of the *Clementine Index*, which was then in readiness, but which the Pope was still keeping under advisement. Paruta

set forth before the Pope the various grounds for objection to the proposed *Index*:

1st. The great commercial importance of the book-trade in Venice, which he represented as exceeding that of any city in Europe;

2d. The contention that the book-trade was in itself worthy of protection and consideration;

3d. That a sufficient censorship was already exercised by the *imprimaturs* of the Council of Ten, which were not conceded without the *testamurs* of the examiners, among whom was the Inquisitor;

4th. The fact that the publication of this *Index* would destroy the property and might cause the ruin of many who, believing it safe as long as they kept within the regulations of the Council of Trent, had published books which were now to be prohibited in the *Clementine Index*;

5th. That the new *Index* not only made long additions to the lists of prohibited books, but proposed a radical change in the standard of prohibition. A great number of books were now to be condemned which did not touch at all upon ecclesiastical or religious questions, simply on the ground of some trivial expressions having nothing to do with dogma;

6th. The importance for the Church of keeping the men of learning throughout the world well affected, and the certainty that they would be very much troubled by any measures which interfered with scholarly undertakings and with the distribution of important literature.

Venetian publishers had interested themselves largely in the production of non-religious books, such as editions of the classics, the writings of the poets, and romances, and Paruta was especially anxious to prevent this class of publications from being interfered with, and took pains, therefore, to emphasise that it had no importance for the purposes of the Church. The arguments of Paruta, and similar protests which came to Rome from Germany and from Paris had the effect of convincing the Pope that some modifications in his *Index* were necessary. The matter remained in abeyance for some four months longer, when the *Index* was finally printed, but much altered and diminished. Among the omissions from the first lists were the titles of the whole class of non-religious books printed in Venice, in behalf of which Paruta had spoken.

In the year 1594, Clement VIII. granted to a Venetian publisher, Domenico Bassa, a copyright of a very comprehensive character. It covered, in the first place, a specific list of books (which was attached to the order), and, secondly, all other books of which Bassa should issue the first editions, and gave him full control of the same for the term of ten years. Any persons infringing this copyright were to be subjected to fines, confiscation of their books, and excommunication. The privilege covered territory both within and without Italy. The book-trade of Venice petitioned the Government against the continuance of any such privilege, contending that it was calculated to bring immoderate gains to one man, and that if it were fully enforced, the Venetian publishers would be compelled either to emigrate to Rome or to abandon their business. The Venetian Government instructed its Ambassador, Paruta, to protest against this extraordinary monopoly granted to Bassa, as well because of its interference with interests of the home book-trade, as on the broader ground that it was an assault upon the independence of the Republic. He also contended that there was no precedent for the use in purely lay matters of ecclesiastical weapons.

The Pope replied that according to his understanding, the copyright given to Bassa applied only to books in the Vatican library, but that he would refer the matter to the Congregation of the *Index*.

Paruta reported to his Government that Bassa was bankrupt, and that the Venetian publishers need not fear his competition. It was, further, his impression that Bassa had obtained the privilege principally as a “bluff” to his creditors. The privilege was not recalled, but does not appear ever to have been utilised by Bassa. Much to the discontent of Venice, however, the precedent remained of authority claimed if not exercised by Rome over copyrights throughout Italy. The *Clementine Index* was published in 1596, and, as finally framed, modified very materially the severe regulations of the *Sistine Index* of 1590.

Between the years 1564 and 1596, the Inquisitorial censorship of books had been weighing more and more heavily on the publishers and booksellers in Venice and throughout Italy. The *Indexes* which had appeared since the issue of La Casa’s Catalogue had so increased the number of unpublishable books, many of them forming a large staple in the trade of Venetian publishers, that the interests of these publishers, and particularly their export trade, had suffered severely. The attempt had been made to take

away the right of the Venetian printers to print Bibles and missals, and to restrict the printing of such books to Rome. The business was interfered with for a time, but the attempt to stop it altogether was in the end successfully resisted.

In spite of Paruta's opinion that Venetian interests had been sufficiently consulted, the printers and booksellers at once appealed to the Senate for support against the new *Index*. The negotiations lasted for some months, but in the end the Pope gave way on the more important points complained of, and a Declaration or *Concordat* was agreed upon which lessened, as far as Venice was concerned, the stringency of some of the more objectionable features of the *Index*. When this *Concordat* had been signed, the Senate authorised the publication of the *Index*. The most important clause in the *Concordat* was the seventh, which provided that the right of the Bishops and Inquisitors to prohibit books which are not on the present *Index*, should refer only to books which attacked religion, or which were printed outside of Venice, or which were issued with a false imprint. This right was to be exercised only on just cause shown, and with the consent of the three lay assessors. This limitation of the ecclesiastical Inquisition to purely religious or theological questions constituted a most valuable precedent in the long fight between the Church and the secular authorities concerning the control of the Press. The fifth clause drew a nice distinction: Printers were forbidden to use lascivious woodcuts, but they might use cuts which were profane without being lascivious.

A few months before the arrangement of the *Concordat*, and while the settlement was still pending, the Senate had published a decree condemning the practice which had begun to come into vogue among the publishers and printers of Venice of applying to Rome for privileges and monopolies. The Senate announced that any privileges that had been thus obtained must be renounced or they would be disregarded and prohibited, under penalty of a fine of ten ducats, any future attempts to secure, either directly or indirectly, publishing privileges from any authority other than the officials appointed for the purpose by the Government of the Republic.

The *Concordat* was the last arrangement arrived at between Rome and Venice on the matter of the supervision of the Press until the year 1766. During the century and a half following the date of the *Concordat*, repeated attempts were made by the Holy See to induce the Venetian Government to

authorise the publication of an augmented *Index*, but the Republic had persistently refused. The list of new prohibitions finally accepted in 1766 was announced as *juxta formam concordatorum*.

The contest of 1596 gave evidence of a material change in the attitude of Venice towards the Church since the passing of the law of 1562. The tone of the Government had become suspicious and hostile. While it was still ready to leave to the Church the responsibility of supervising matters which were purely theological or dogmatic, it objected decidedly to the attempts made by the Church to extend its control over all classes of literature, and still more to the tendency of the Church to utilise the censorship of literature as a means of asserting its authority over the State as a whole.

The varying phases of the long contest between the Papacy and the other Catholic States of the world, had of necessity an important influence upon the stability and upon the value of literary property, and, in fact, in not a few instances, upon its existence. When the promulgation of a new *Index* could, without warning, stop the sale and therefore destroy the selling value of a book or of a series of books, the readiness of the publishers to invest capital in literary undertakings must have been not a little hampered, and the possibility of securing from such undertakings any adequate returns for the authors was much lessened.

The efforts of the Church to extend its control over all literature and to enforce a general censorship which should expurgate and, if it seemed necessary, re-shape books in every division of thought, hampered enormously the development of literature and of publishing not only in Italy but in Spain and France. In Germany and in England the Papacy was never permitted to interfere seriously with the production or the distribution of books.

It was not only in Venice and in Florence that the attempts of the Church of Rome to enlarge its control over the Press excited active opposition. King Philip II. had refused to permit the promulgation in Spain of the *Tridentine Index* and its ten *Rules*. He wrote to his ambassador at Rome that, "Spain has her own special *Index* and her own special *Rules* on the prohibition of books. It cannot be permitted to Rome to place her under general orders. Books which in one country may be innocuous, in another may be dangerous."

Between 1596 and 1623, the contest of Venice to retain in the hands of its own Government the control of its printing and publishing, continued with varying success. The contention that it endeavoured to establish was that the Holy Office was not and could not be a separate and independent power in the State; but that the Inquisition could take action in Venetian territory (in regard not only to the censorship of books but to matters of any kind) only through the consent of the Government.

The theory was that the Government could delegate some particular function to be performed by an ecclesiastic official, and that (even though such official should be selected by the Church) he would, in fulfilling such function, be an officer of the State. Under such a theory, the idea was preserved of the independence of the State. This view of the organisation of the censorship was preserved under the provisions of the *Concordat*, and the *Concordat* soon became, therefore, an object of attack by the Church. The further contention of the Venetians that the duties of the ecclesiastical Inquisitor should be limited to questions of theology and dogma could be more easily evaded by the Church, for it raised the wide question—what is heretical? and what is the limit of dogma?

In the face of many difficulties, however, the Republic succeeded for some years in maintaining its position, and fought hard to protect its book-trade from further burdens. After securing the *Concordat* from an unwilling Pope, and insisting upon the enforcing of its provisions, it succeeded in absolutely preventing any public and official enlargement of the *Index* within Venetian territory. It is evident, notwithstanding, that even with the restricted powers conceded by the *Concordat*, the *Index*, and the Inquisition were able largely to increase the rigour of their censorship, and the results of their supervision and interference were shown in the very considerable decline in printing and publishing undertakings immediately after 1596. Within a few months of the publication of the *Index*, and in spite of the protection of the *Concordat*, the presses of Venice were reduced from one hundred and twenty-five to forty. The copyright entries which, in 1596, had aggregated twenty-four, amounted in 1597 to only seven.

It was evident that the attempts of the Republic to protect publishing undertakings and to further literary production had not been successful, and that the failure was in the main due to the relation of the Venetians to the Church. The effect of the *Concordat* in lessening the burdens of the

censorship under the *Index* was in great part nullified by the labours of the clergy, who, for the purpose of carrying out the policy of the Church, made full use of the powerful instrumentality of the confessional.

The confessors announced to their penitents that books condemned in Rome were prohibited for believers; and as a rule such books, although not included in any *Index* accepted by the Republic, could find no sale in Venice. While other causes also contributed to the extinction of the prestige of the Venetian Press, and to the very great decline in its business, the chief responsibility for such decline must rest with the Church for its persistent hostility to the smallest measure of freedom of the Press, and for its insistence upon restrictive measures of censorship which were absolutely incompatible with publishing activity and with literary production.

The Interdict and Fra Paolo Sarpi. —While the contest between Rome and Venice had turned very largely upon questions connected with the censorship of the Press, many other matters were involved which assumed still larger proportions in the relations between the Church and the Republic.

Between 1605 and 1650, a number of issues were fought over, issues connected sometimes with the control by the State Government of ecclesiastics accused of crimes or misdemeanours, sometimes with the control exercised by the Church over ecclesiastical property within the borders of the Republic, and again with the relations of the Jesuits and Capuchins to the law of the State. Venice was fighting for her civil and secular independence; while the Pope had declared his position when he announced that he would not submit to be Pope everywhere save in Venice. Paul addressed a *monitorium* to the clergy of Venice, threatening excommunication to the Doge and Senate and interdict upon the Republic. The Doge forbade the publication of the *monitorium*, and the excommunication and interdict came into operation.

While all the business of the Republic necessarily suffered, its export trade in books was, for a time, brought practically to a standstill. The interdict lasted for a little more than a year, when it was finally removed under a compromise settlement brought about through the French Ambassador.

The most prominent figure in the whole of the struggle of this period between Venice and the Papacy was Fra Paolo Sarpi. Cleric though he were,

he contended vigorously that the Church was embarking upon a wrong course, and he held that the State was justified in resisting, in secular matters, ecclesiastical encroachments upon the rights of the sovereign. In the end, notwithstanding some temporary success on the part of the State Governments of Italy, the Papacy succeeded in establishing nearly all of its contentions, including a rigorous censorship of the Press and the resulting limitations in literary activities.

The fight made by Sarpi on behalf of the independence of the State, and particularly of the right of the State to supervise and control its literary productions was, notwithstanding, *of first importance for the intellectual* activities of Europe. The arguments used in Venice were repeated in Madrid, Paris, Zurich, and Oxford. Time was gained for authors and for printers until, largely by means of the presses which the Church was endeavouring to throttle, the spirit of resistance to the domination of the Papacy and the feeling of national independence against the right of Rome to lay down the law for Europe had gathered so much strength that the claims of the Church were either withdrawn or very much moderated.

In 1602, an instance occurred of censorship on the part of the Church not for the expression of heretical opinions, but for the omission from a work of authority of certain passages which the Church considered to be important. The work was a commentary by Suarez on the Tractate *De Censuris* of Thomas Aquinas. The permission to the booksellers Ciotto and Franceschi to print the volume was given by the Venetian censorship only on condition of the omission of the passages in question. The Congregation of the *Index* at Rome thereupon forbade said booksellers to continue the printing of the work (the publication of which was stigmatised as a *crimen falsi*) under penalty of excommunication.

The omitted passages contained attacks upon the temporal authority of princes. Sarpi pointed out that the formula of the *imprimatur* was unwisely worded, in that it expressed the “approbation” of the Government for the works issued, thus assuming on the part of the State a practical approval of the doctrines contained in such work. The term should, he suggested, be modified to “with the permission.”

In 1611, Thomas Preston, writing under the *nom de plume* of Roger Widdrington, published his *Apologia Cardinalis Bellarmini*, and in 1613,

his *Disputatio Theologica*. Both works were placed on the *Index* by a special decree of the Congregation, *Nisi auctor quam primum se purgaverit*.

The Nuncio in Venice begged that the decree might be published and enforced upon Venetian booksellers. The Government, acting under Sarpi's advice, refused to allow the prohibition to take effect in Venice, on the two grounds that the theological doctrines taught by Widdrington were sound and orthodox, and that his arguments against the pernicious doctrine of the temporal authority of the Pope over princes were eminently worthy of dissemination. It will be noted that the Nuncio had in his application expressly conceded one of the principal contentions of the Republic that no Roman prohibition was valid in Venice until confirmed by the Government.

In 1615, Andrea Morosini completed his History of Venice, in which he had occasion to deal with the question of Interdict. The Venetian Inquisition refused to sign the *testamur*, which was requisite before the Council of Ten could grant an *imprimatur*. Paolo Morosini, who was in charge of his brother's work, appealed to the Senate, and secured a declaration to the effect that the narrative in the History was an exact and trustworthy account, that the Inquisitor drew his authority to act from no other power than the Republic, that that authority extended only to the supervision of books having to do with questions of faith, and that no such questions came into the History. The Government thereupon ordered the immediate publication of the book without the *testamur*, and with the words *superiorum permissu*. It is to be noted that the prohibition of Rome probably prevented the sale of the book in Italy outside of Venice, and must, therefore, have materially lessened the prospects of profit for author or publisher.

There were also instances of books which were approved by the Church but the publication of which was considered detrimental to the interests of the State, and their sale in Venice was accordingly prohibited. One book of this class was the *Recantation* of the Archbishop of Spalato, printed in Rome in 1623, by the Apostolic printers. The Republic objected to the contention of the Archbishop that the Pope had power in things temporal as well as in things spiritual.

A second example is the *History of the Council of Trent*, by Cardinal Pallavicini, written in answer to Sarpi's History. Through the Venetian

Ambassador at Rome, Pallavicini made application for permission to sell his book in Venice. The application was refused on the ground that the History contained sentiments obnoxious to the Government of the Republic.

In a report written to the Government by Sarpi at this time, he takes the ground that the tendency on the part of the Church during the past few years has produced a whole series of books whose doctrines are entirely subversive of all secular government. They teach that no government but the ecclesiastical has a divine origin; that secular government is a thing profane and tyrannical which God permits to be imposed upon His people as a kind of trial or persecution; that the people are not in conscience bound to obey the secular law or to pay taxes; that the imposts and public subventions are, for the most part, iniquitous and unjust, and that the princes who impose these have in many cases been excommunicated, and that because of such excommunication of princes, death, want, and other public misfortunes have come upon their communities. In short, princes and rulers are held up to view as impious and unjust; subjects may have to obey them perforce, but, in conscience, they are free to do all that in them lies to break their yoke.

Sarpi goes on to point out that the prince who had first perceived the danger was Philip II. of Spain. The only books that he allowed to remain under the censorship of the Inquisition were missals, breviaries, and school-books. The censorship of all other literature was confided to a commission appointed by himself. Sarpi recalls that this had been the course taken also by the Republic, and emphasises the importance on the part of the Republic of retaining in its own hands a similar control of literary censorship. Sarpi closes his report by recommending the establishment of a code of general rules, behind which the ducal secretary can shelter himself from the importunate, the interested, and the over-zealous, and by means of which a consistent censorship policy can be maintained.

While Sarpi's main purpose was the maintaining the independence of the State against the encroachments of the Papacy, the principles for which he contended were of first importance for the prosperity and, in fact, for the continued existence of the Venetian publishing interest. Unless the burden of Papal censorship could be lessened, literary production in Venice must cease. In the schemes submitted to the Government for a code of general rules by which was to be directed the system of political censorship, Sarpi

specified four classes of writers whose books, in his judgment, ought to be placed upon the *State Index*:

I. Those who attack the Constitution of the Republic and its laws by name; II. Those who attack the laws and constitution adopted by the Republic without naming her; III. Those who, even within the limits of fair controversy, argue against the legislation of the State; IV. Those who attack no laws of the State, but who broadly maintain the absolute and universal superiority of the ecclesiastical over the temporal authority.

Sarpi further contended that “In the correction of books which are open to censure, it is not advisable to follow the practice of the Church in raking through the entrails of an author and altering the sense and the intention of whole passages, so that the writer is made to say the reverse of what he desired to say; first, because all the world stigmatises such action as falsification; secondly, because such conduct would bring upon Venice the infamous charge of castrating books; thirdly, because the Court of Rome assumes for itself the sole right to alter passages in books.” Sarpi concludes his report by submitting ten propositions, upon which he recommends the Government to take action:

I. The *Index* of 1595, having received the consent of the Prince, the books which appear upon it must remain there. II. For the future, no prohibition is to be permitted unless corroborated by public authority, as agreed upon in the *Concordat*. III. If ecclesiastics ask civil authorities for support in prohibition of heretical works, it must be granted to them after the works have been examined. IV. Under the title of heresy, dogmatical support of civil authority in its own proper sphere, is not to be included. V. Foreign books inimical to good government are to be absolutely prohibited. VI. In the reprints of books, nothing favourable to good government is to be removed. VII. In issuing these reprints, the old editions, before the ecclesiastical expurgations were made, are to be used. VIII. In printing the *Index* of 1595, no new names are to be allowed to creep in. IX. The prohibitions of the Inquisitor shall be confined entirely to heretical works. X. The *Concordat* shall always be printed along with the *Index*.

As well from these propositions as from the general course of the long controversy, it is evident that Venice was, ostensibly at least, as anxious as the Church could be for the purity of the Press. In fact, judging from the

Indexes, this point had not caused the Church any particular anxiety. The unsettled question was, which should exercise the censorship over the offences of libel, scandal, and obscenity—the Church or the State. It was the opinion of Sarpi that all such books should be absolutely prohibited. The risk, as emphasised by Sarpi, was that the *Concordat* might fall into desuetude, leaving the Venetian Press completely under the control of the Inquisition and deprived of the bulwark which the State had secured for its defence.

The future justified his dread. The heat of the quarrel died away, and the *Concordat* was substantially forgotten. The Inquisition secured full control of the censorship. The Press of Venice came under the influence of the *Index* and the *Rules*. Its losses were greater than those of the other Presses that the Council of Trent had undertaken to regulate, for the reason that it had so much more to lose. From the beginning of the seventeenth century, the Venetian Printing-Press, although not destroyed, ceases to hold preëminence in Europe.

In 1601, the Senate took serious alarm at the emigration of the publishers and the printers. The latter took with them even the materials of their trade, their type, presses, and ink. A drastic law was at once passed making it illegal for any printer to leave Venice without the written authority of the Government, and prescribing severe penalties for any who undertook to sell for export the materials and instruments used in printing. This measure, severe as it was, appears not to have proved effective in checking the decline of printing, and, in 1603, the Senate undertook a general reform of the art. The new regulations included the following provisions:

None but official proof-readers were to be employed by the printers. These proof-readers were to be appointed by the *Riformatori*. The manuscript copy and proofs were to be preserved as evidence that no alterations had been made after the examination for the *imprimatur*. A fine of twenty-five ducats was to be imposed upon every printer who should place the name *Venetia* on books not printed in Venice.

Terms of copyright were fixed as follows:

In the case of first editions for which the necessary *testamur* and *imprimatur* had been secured, the publisher or printer securing the first registry was to have a copyright for twenty years.

For books printed in Italy but not in Venice, the publisher who should secure a Venetian registry with the Guild was to have a copyright for ten years. A similar copyright was given for the reissue of books that had not been printed in Venice during the preceding twenty years. For new editions of books which had not been printed in Venice during the preceding ten years, a copyright of five years was to be conceded. All terms of copyright depended upon the condition that the printing was begun at once and was continued at the rate of not less than half a folio a day. There was a long list of regulations concerning the standard and quality of the paper, ink, and type. Books which were found after publication to be badly printed or full of typographical errors were to forfeit their copyright.

The measure was a comprehensive one, and ought to have proved of service in restoring the quality of Venetian editions if its provisions could have been enforced. There appears, however, to have been a lack of adequate machinery for such enforcement.

It was evidently intended that the Guild should become a sort of Stationers' Hall for the registration of copyrights. No such register is now in existence, and there is some doubt as to its ever having actually been created.

In 1614, a new office was created in addition to the number already charged with the supervision of the Press. The incumbent was called the Superintendent of the Press, and his special duty appears to have been the passing upon the printers' "copy" before this was put into the hands of the typesetters. In 1653, a fresh attempt was made to strengthen the Guild of Printers, for the purpose as well of improving the quality of Venetian printing, *as of checking the increasing importations of foreign* books. The tax on imported books was raised to eight ducats (\$18) per hundred pounds.

In 1671, there were increasing complaints concerning the bad workmanship and inaccurate typography of Venetian editions, and also as to the non-delivery of the copyright copies for the libraries of S. Mark and of Padua. The failure to secure obedience to the various provisions of the press-law is not to be wondered at when we remember how complex these provisions were, and that there was practically no police machinery to utilise for their enforcement.

At the close of the seventeenth century, the following processes had to be gone through with before a book could be published: *testamur* from the Inquisitor; *testamur* from the ducal secretary; certificate from the *Riformatori* of the University of Padua; *imprimatur* from the Chiefs of the Ten; revision by the Superintendent of the Press; revision by the public proof-reader; collation of the original text with the text as printed by the secretary to the *Riformatori*; certificate from the librarian of S. Mark that a copy had been deposited in the library; examination by experts appointed by the *Proveditori* to establish the market price of the book.

In connection with the majority of these operations a fee was required. The failure to secure any one of the several *testamurs* or *imprimaturs* delayed or indefinitely blocked the publication of the book. This stopping of the publication might be made necessary only after a considerable outlay had been incurred by the publisher in addition to the expenditure of labour and time on the part of the author. It is not to be wondered at that with such heavy burdens and annoying obstacles literary production should have lessened, and publishing enterprise and investment have been checked. It is only surprising that under such a complex machinery of supervision publishing should have continued possible at all. It is certain that the possibility of securing from the business remunerative returns had, by the close of the seventeenth century, very much diminished, and that there must have been a corresponding reduction in the earnings of literary labour. By the beginning of the seventeenth century, the centre of literary production and of publishing activity had been transferred from Italy to Germany, from Venice and Rome to Zurich, Frankfort, and Leipzig.

The Printers' Guild and Press Legislation. —The Venetian Guild of Printers and Booksellers, while nominally given a very general control over the printing and publishing operations in the Republic, was never in a position to exercise so direct an effective influence over this business as had been secured by the similar English Guild chartered in 1556, under the name of "Stationers' Hall." It would appear that the printing and publishing trade had never given the same hearty support to their organisation as had been given to the early printers of London. It is certain that the Guild was not well governed by its own officers, as from year to year we find in the records long declarations of abuses which had arisen.

Even the yearly election of officers fell into neglect, and it sometimes happened that the same officials remained in office, without the formality of re-election, for six or seven years running. It was only a very strong and thoroughly supported trade body that could have secured for itself the right to take an active part in coöperation with, or in antagonism to, the representatives of the Church on the one hand or of the State on the other, in framing the long series of regulations concerning copyright, literary property, press supervision, and typographical standards.

The Guild of Venice did not have the continued sturdiness and self-assertion requisite for maintaining such influence. Its principal attention was given to shaping new taxes and new hindrances upon the importation of books from abroad, and to attempts, often fruitless, to prevent the migration from Venice of the more enterprising members of its own body. A very much larger influence was exercised upon the Press legislation of its time by the associated printers and publishers of Frankfort and Leipzig, and by the well organised Printer-publishers of Paris. The interference of the Church in the German publishing centres was never very serious; while in Paris the supervision of the ecclesiastics was, from the outset, overshadowed by the controlling influence (often fussy and bothersome) of the Parliament of Paris.

In spite of feeble and ineffective management, however, the Guild of Venice accumulated property; and in 1638, it was rich enough to plan for the purchase of a Guild Hall, which was finally opened in 1642. The hall formed part of the cloisters attached to the Monastery of S. John and S. Paul, and was leased in perpetuity.

It was apparently in keeping with the general attitude of the Press of Italy towards the Church, that its first headquarters should have been under an ecclesiastical roof. The Guild of Venice was the only book-trade association in Europe the home of which was not entirely under secular control. Unfortunately for Venice, the lease of these convent premises had been made in perpetuity, and perpetual also was the obligation assumed with the premises to perform in them each year a specific number of masses. The expense account of the Guild increased from year to year, and this increasing outlay made requisite an increase in the membership list. The number of members who belonged during the first year of organisation appears to have been about eighty. The average membership during the

succeeding years until 1732 was from three hundred to four hundred. In this year, the Guild took into its ranks, in addition to the master-printers and booksellers, master-binders.

In 1667, the Guild printed the examination paper prepared for those seeking matriculation as booksellers. This paper probably covered in substance the same range of subjects and the same standard of proficiency as had been in vogue for a number of years previous to its publication. The following are the principal questions for which answers were required:

1st. Name the principal bibles (doubtless the principal editions of the Bible).

2d. Name the principal Saints and Fathers, both Greek and Latin.

3d. Name the principal expositors of Holy Writ.

4th. Name the principal theologians, controversialists, and polemical writers.

5th. Name the principal writers in ecclesiastical history.

6th. Name the ancient writers on philosophy and history; also the principal poets, tragic as well as comic, in Greek and Latin literature.

7th. Name the principal writers on the law of nature, the law of nations, on civil and canon law, on philosophy, metaphysics, and ethics.

8th. Name the principal geographers, Greek, Latin, Italian, and French (the geographical science of Germany, which had already produced some of the most trustworthy maps in existence, was apparently not appreciated).

9th. Name the principal historians, ancient and modern, letter-writers, antiquarians, numismatists, mathematicians, physicians, surgeons, anatomists, and jurists.

10th. Name the principal writers on the fine arts, painting, sculpture, and architecture, civil and military.

11th. Name the principal writers on natural history and botany.

Further, all candidates must be able to read and write Italian fluently, and must have a thorough knowledge of Latin and a working knowledge of French. Greek was not required, but was commended as a useful accomplishment. (In the retail shop attached to the office of Aldus, one or more salesmen had been required who could talk intelligently to Greek scholars about their editions of the Greek classics; but this was two hundred and thirty years earlier.) In addition to the above series of questions on scholarship, the examiners were instructed to make test of the candidates' practical knowledge of the methods of booksellers' business.

If these examinations were carried out with any degree of thoroughness, the booksellers of Venice must assuredly have been entitled to rank with the scholars of the world. We find no such high standards enforced in Paris, Leipzig, or in London, although in the two former publishing centres at least, the standard of scholarly attainment and of general knowledge of literature in the book-trade has always been high.

It is hardly necessary to remark that the application of any such severe test to the booksellers of to-day would empty the bookshops of nearly all of the trade centres of the world, leaving a dozen or more exceptions among the older traders in the University towns of North Germany.

The examinations for master-printers were also, if we may trust the records, both comprehensive and thorough. We have already seen, however, that notwithstanding examinations and regulations, the Guild had not succeeded in keeping Venetian printing of the seventeenth century up to the standard established by Aldus and his associates at the beginning of the sixteenth. In the year 1767, the *Riformatori* turned their attention to the over-crowding and overproduction in the book-trade, declaring it to be their intention to regulate the supply through the demand. The first clause of the law of July 29th forbids the articling of new apprentices for the ensuing fifteen years. Sons and heirs are prohibited from entering the Guild during the lifetime of their fathers or those whom they will succeed. No one may open a shop or establish a press without first satisfying the magistracy that there is room or need for such shop or press. Booksellers or printers of the mainland who wish to enter the Guild in Venice, must close their mainland shop or press before they can be admitted. The copyright in new books, which, by the law of 1603, had been fixed at twenty years' duration is now extended to thirty years, and for reissues *it is extended from ten to thirteen*

years. *Venetian* printers must reach the market through Venetian book-sellers, and are forbidden to sell to foreign booksellers or to dealers in Venice not members of the Guild.

Notwithstanding all this elaborate provision, the influence of the Guild steadily declined, and the book-trade of Venice failed to regain its old-time prosperity. In 1780, the *Riformatori* had before them for consideration the treatment to be accorded to the bankrupt members of the Guild. Insolvent members, while relieved from their Guild taxes, were excluded from all active share in its management. In 1782, the cashier of the Guild is empowered to advance money to poor members who need funds to develop their plant and to put their presses in order. In the same year, the Government fixed a standard of quality below which no paper used by the printer must fall, under penalty of confiscation of the edition in which the inferior paper was used.

The Guild survived the fall of the Republic in 1796, and in March, 1799, the Provisional Government undertook the direct control of the Press, re-affirming its ancient provisions and regulations in the matter of licensing books, of internal police, and of supervision. Brown says that it is not clear whether the Guild was suppressed or whether it died a natural death. The last document in the minute book is dated 1806, and after that date our knowledge ceases. It was in March, 1806, that Venice was formally annexed to the Kingdom of Italy, as organised by Napoleon. It is probable that any independence of action on the part of the organisation of Printers and Publishers was found incompatible with the Napoleonic system of the control of the Press.

In summing up the history of the operations of the book-trade of Venice, Brown remarks upon the constant lamentation on the part of the Government that the art of printing was decaying. He is inclined to doubt, however, whether such dread was well founded. Unquestionably it was the case that Venice no longer held a place of prominence for the finest class of printing, and there were no adequate successors to Jenson, John of Speyer, and Aldus Manutius, whose work would be accepted by the book-lovers of Europe as a model of typography. There was, however, a continued activity in printing as a trade, although there might be less interest in printing as an art, and the demand for cheap books, as well among Venetians as among the

customers of Venice, had very largely increased between the beginning of the seventeenth and the end of the eighteenth century.

We find references from time to time to the rush of competitors to republish a book the copyright of which had expired. The long series of restrictions imposed by the ecclesiastics upon the printing of certain classes of books, are in themselves evidence of the extent of the dread felt by the Church concerning the influence to be exercised by these books upon the general public, and we must infer that the public demand for cheap books was steadily increasing, and that an effective book-selling and distributing machinery had been organised. The Church assuredly did all that was practicable to hamper the development of the new art, and succeeded, at least to the extent of transferring from Italy to Switzerland and to Germany the centre of literary production and of publishing activity.

It is to be noted that throughout the entire series of Venetian laws on copyright, there is no explicit statement that the property in a work belongs to its author. Such a conclusion is fairly to be inferred from the sense of many of the regulations, but it would appear that it had been arrived at rather by implication or had been accepted as something not necessary to define but in the nature of a truism or a self-evident fact. If this view of the purport of Venetian law be sound, it follows that, in Italy at least, literary property cannot be considered to have been the creation of law. It is safe here to use the term Italy, although the reference has been only to the law of Venice, for the reason that, as far as the regulation of literary property was concerned, Venetian legislation was much more comprehensive and specific than that of any other Italian State.

An act of the Venetian Senate passed on the 11th of March, 1780, presents sufficient evidence that the Government understood the ownership of a literary production to be vested in its author. This act declares *il privilegio prima d'essere perpetuo per suo posseditore, l'era per l'autore dell' opera, qualunque egli fosse, come si è sempre praticato*. In September, 1781, the Riformatori of the University of Padua, in the case of Pezzani, pronounced that *il privilegio accordato alla stampa diventa dovuto premio all' autore*.

A phrase in the decree of the *Riformatori* of 1780 might, if taken alone, be construed as constituting or conferring a perpetual copyright. This would, however, not be the practical working of the decree, as the requirement for a

nuova licenza colle solite forme necessitated an application for renewal every five years, and unless the licence could be renewed, the ownership in the literary property as such would naturally lapse. In 1789, the question was more definitely settled by one of the laws framed under the Provisional Government (which succeeded the Republic), which re-enacted the provision of the Act of 1603, whereby all books whose privileges (or copyrights) had expired became public property.

A distinctive feature in all periods of the Press legislation of Venice, was the apparent inefficiency of the law, in spite of its constant interference and its many excellent provisions, to correct the abuses at which it aimed. The difficulty was partly due to the lack of adequate public opinion, and partly to the absence of any police machinery. It was also the case that the legislation was probably too paternal and unduly officious, so that the industry became checked by a multiplicity of laws relating to every conceivable phase of its existence. When, in addition to the legislation which was intended to further the business of printing and publishing, was added the complex series of ecclesiastical censorship restrictions, it is only surprising that any wholesome vitality for the book-trade was possible at all.

The Last Contest with Rome. —In 1765, the Senate was again concerned with the old subject of the deterioration of the Venetian Press. A report was presented by the *Riformatori* of the University from which it appears that the number of presses had fallen from seventy-seven in 1752 to fifty in 1765, and in which it was contended that the quality of the printing done had suffered as much as the quantity. In former years, said the report, the books called for by the Italian market were printed in Venice, and the booksellers in other cities devoted themselves principally to keeping depots for the sale of Venetian editions. Now, however, Leghorn, Lucca, Parma, Modena, and Bologna print their own books, and even refuse to accept Venetian editions in exchange, but demand payment in money. Venice no longer fills the place of mistress of the trade of book-production, but has become simply a retailer.

The *Riformatori* concluded that the evil was partly due to the lack of a sufficiently high standard of workmanship among the printers, but that its chief cause was the lack of desirable new literature with which to keep the presses occupied. The demand for reissues of the classics had been in great

part supplied, while the production of original works had been seriously hampered and discouraged by the continuous interference of the Church and the serious obstacles and burdens imposed through the *Indexes*, the *Rules*, and the cumbersome machinery of the ecclesiastical censorship.

The *Riformatori* recommended, among other measures, that the *Concordat* and the *Index* of 1595 should again be published, if only to prove that all works subsequently placed upon the *Index* without the consent of the Government were not prohibited in Venice but could be freely printed, bought, and sold; that the name of Venice should be printed on the title-pages of all Venetian productions; that printers and publishers should be forbidden to seek the *testamur* of the Inquisitor for the reissue in Venice of books first printed abroad, but that these works should be licensed directly by the Government after an examination of them by certain faithful and learned persons. It was evidently the object of the *Riformatori* to secure for the Venetian Press the large business of supplying the markets of Italy with editions of works by foreign authors, the literary activity of Italy being at that time evidently insufficient to keep the printers occupied.

The recommendation of the *Riformatori* that the censorship privilege heretofore exercised by the ecclesiastical Inquisitor should be brought to an end was certain, if adopted, to bring the Republic into renewed conflict with the Church.

This recommendation, however, together with all the others in the report, were passed upon with approval by the local advisers of the Senate. In August, 1765, the Senate issued a decree instructing the *Riformatori* to publish and to circulate the *Index* of Clement and the *Concordat*, and also providing that the *Riformatori* should appoint an ecclesiastic, a subject of Venice, as an equal associate with the Inquisitor, whose *testamur* as to matters of faith and doctrine should have equal weight with that of the Inquisitor. The publication of this decree caused no little excitement in Rome,—and a decree was at once issued by the Papal Court prohibiting the sale or circulation of all books licensed by the newly-appointed Venetian officers. Any such books found on the frontier of the Papal States were to be seized and consigned to that part of the convent libraries known as the “prison and hell of heretics.” In July, 1766, the Papal Nuncio made a formal protest to the Government of the Republic and demanded the withdrawal of the decree of 1765.

The issue between the Republic and the Papacy was not whether heretical publications should be repressed, for Venice declared itself as much opposed as Rome to books destructive of sound doctrine. The contest turned upon the selection of the authority that should decide what was heretical or dangerous. The Republic had from the outset claimed that all authority for censorship and for licensing must proceed from the Church, and while it was prepared to make use of ecclesiastical censors, these must be appointed by the civil government. The present decree expressed, it was contended, merely a reaffirming of the original policy. The Papacy, on the other hand, maintained that the authority of the Holy Writ, of the Fathers, and of the Councils proved that the duty of keeping the flock from poisonous food was entrusted to the Church.

The Senate referred the demand of the Papacy to Pietro Francheschi for counsel, and he prepared a report in which the case of the State was forcibly stated. The position of Venice had, it was contended, not changed at all from the time when, with the introduction of printing, some system of Press supervision had been found to be necessary. She still claims to be the faithful child of the Church, while maintaining her right also to be *Principe libero in casa sua*.

The issue had thus been fairly presented on the part of the two parties but no conclusion was reached, and it is probable that with such different points of view, and with a lack of accord even upon such primary terms as “dogma,” “heresy,” and “orthodoxy,” no agreement that was both logical and equitable could have been reached, even if more time had been available for the discussion. The decree of August, 1765, was never withdrawn, and the place of Inquisitor as censor of books upon matters of faith was taken by persons appointed by the *Riformatori* of the University. In the year 1794, the Commissioners of Heresy (*Savii sopra l’Eresia*) requested an opinion from these University censors upon the *Institutiones Theologicæ* of De Montazet, Archbishop of Lyons, which had been censured at Rome in 1792. As a result of their report, the Government refused to sanction the decree of the Congregation of the *Index*.

Such an instance can be accepted as evidence that the Press of Venice had at last secured freedom from the censorship of Rome. The revolutionary spirit which was agitating all Europe, and which in France had for the time completely overthrown both Church and monarchy, must have seriously

weakened the control of the Papacy over the Italian States, and doubtless exercised no little influence in this final contest between the ecclesiastical censorship and the printing-press.

Venice did not long enjoy this freedom. In 1797, the Republic fell, and with the establishment of French rule, the history of Venetian legislation concerning literary property comes to an end.

This record of the Venetian Printing-Press, including its relations with the Government, the Church, and the public, covers, as we have seen, a period of about three centuries, from 1490 to 1797. It is, as said, based upon, and in part abstracted from, the erudite and comprehensive history of Brown. I have thought best to confine the narrative to Venice on several grounds. Venice was the first city in Italy, and practically the first in Europe, in which the printing and publishing business became of importance. For the first century of the period above referred to, it was the chief publishing centre of the world. In Venice, came together skilled printers from Germany and learned scholars from the ruins of the Eastern Empire, and the development of the Venetian Press was encouraged and in part made possible by the support of certain cultivated members of the Italian nobility, a nobility which, during the fifteenth and sixteenth centuries, probably possessed a greater measure of intellectual refinement and scholarly taste than could be shown at the time by the noble classes of any other country of Europe.

The comparatively secluded position of Venice preserved it from many of the interruptions of foreign invasions and interstate strifes to which nearly all the other cities of Italy were subject. All classes of business were of necessity seriously interfered with, and often for the time entirely destroyed by the desolating influence of war in the form either of defensive campaigns against Germany, France, or Spain, or of the many little contests of the cities with each other; while for literary activity and for the production and distribution of books, conditions of warfare were nearly fatal. It is surprising that during the sixteenth and seventeenth centuries it should have proved possible to have carried on as much book business as was done in such cities as Lucca, Florence, and Pisa.

During these centuries, however, Venice, protected by her lagoons, never felt the foot of an invader, and while her trade through Italy had to take its

share of the interruptions caused by the many wars, her traffic by sea was rarely interfered with. It was doubtless in part also this position of independence which enabled Venice to withstand the encroachments of the Papacy, and alone among Italian cities to preserve in its own hands even a partial control of its Press. This Press was, of course, very far from being free, the censorship on the part of the State, and the ecclesiastical censorship exercised either by authority of or in spite of the authority of the State, being often severe, and always cumbersome, irritating, and expensive, and interfering enormously with the value of literary production as property. The Venetian Press possessed, however, a far greater measure of freedom than had been secured by the printer-publishers of any other Italian city, and this was probably the chief cause of its long-continued preëminence.

The general course of the legislation in Venice for the supervision of the Press and for the encouragement and protection of literary workers and of publishers, was similar in character to that of the other Italian cities in which attention was given to printing. The literary legislation of Venice was, however, more comprehensive in its character and more consistent in its purposes than that of other Italian States, while the records of it are also among the most complete, and, thanks to the scholarly diligence of Mr. Brown, are now accessible to the unscholarly reader.

This abstract of the history of the Venetian Printing-Press has, therefore, been given as presenting a sketch of the history of literary property in Italy for the three centuries covering the period from the introduction of printing to the destruction of the Venetian Republic.

The enactments in Italy relating to literary property are not again of any very distinctive importance until after the establishing, in 1859, of the Italian Kingdom.





CHAPTER II.

PRIVILEGES AND REGULATIONS IN GERMANY.

1450-1698.

FROM the time of the invention of printing, about 1450, to the end of the fifteenth century, the works of living authors played practically no part in the German book-trade, and the question of commercial results for their writers did not call for consideration. The printers and publishers of this period busied themselves almost exclusively in putting into print the manuscripts of the earlier ages. In this class of undertakings the principal task was to secure through the collation of different manuscripts an authoritative and trustworthy text, and the literary service required was not that of an author but of an editor. It is the contention of Schurmann and of other German historians that in the folio and quarto reprints of the fifteenth century German printers took the lead, and that their preëminence was hardly contested by the other printers of Europe until the time of the Reformation. This view, however, fails to do justice to the importance of the scholarly labours of Aldus of Venice, who was unquestionably the leading publisher of the fifteenth and early sixteenth century. As previously pointed out, Luther was probably the first German author to draw attention to the iniquity of literary piracy, and to prophesy the evils that must result to the development of German literature unless legislation could be secured that would make a substantial recognition of the property rights of literary producers. He took the ground that such recognition could not be adequately given by the system of privileges, the tendency of which was to narrow instead of to widen the conception of literary property. He emphasised also the right of the author to come into direct relations with his reader, and by means of his personal control of all the editions circulated of his works to preserve his text from corruption (*Text-Verfälschung*) and to have the assurance that the words that came to the reader were the words that had originally been written by the author.

Luther's interest in this question of the correctness of the text was, in fact, much keener than in regard to the remuneration of the author, and he was

even ready to give his aid to unauthorised issues of his own writings by correcting the proofs of the same. The accuracy of the text was, of course, of special importance in connection with the vital subjects which Luther was presenting to the attention of his readers, and was also the more difficult of attainment on account of the material differences at that time existing between the dialects of North and South Germany.

He writes in 1524: "*Des falschen Druckens und Bücherverderbens fleissigen sich jetzt viele.*"^[154] (There are many now busying themselves with the spoiling of books through misprinting them.)

Literary piracy in Germany may be said to have begun almost at once with the invention of printing. Before manuscript copies had been replaced by printed books, the possession of a manuscript was held to carry with it the right to make copies of the same *ad libitum*. As a very natural, though hardly warranted consequence of this practice, the possession of a printed copy of a work was for a considerable time also believed to carry with it the right to make and to dispose of further printed copies, and the first upholders of an author's copyright found themselves obliged to contend against the claim of "ancient precedent."

Early in the history of the German book-trade, there arose a practice among leading publishers of respecting each other's undertakings, irrespective of any privileges or other legal protection given to the works in question. To this practice there were, of course, numerous exceptions, but it exercised nevertheless, during the period previous to the existence of national copyright systems, an important influence in educating trade opinion and public opinion to a recognition of and a respect for literary property. The many important publications of Anthoni Koberger of Nuremberg, whose business activity dated from 1473, were issued entirely without privilege, and appear, with a few exceptions, not to have been interfered with by rival publishers. He took pains to protect himself by giving to those publishers whose competition was most likely to be serious, shares in his more important ventures. In 1495, for instance, he entered into a compact with Nicholas Kessler, of Basel, under which each agreed not to interfere or to compete in any way with works undertaken by the other.

The works of Albert Dürer, both in art and in literature, afford early examples of the attempts of local governments to secure protection for

copyrights. In 1512, complaint was made to the Magistracy of Nuremberg that a certain man was offering for sale some prints or drawings which pretended to be the work of Dürer and which bore Dürer's signature, but that both the designs and the signatures were counterfeits. Thausing^[155] is of opinion that it was only the forgery of the signatures that was complained of, but Schurmann appears to believe that there had been an attempt also to imitate Dürer's work. The decision of the magistrates was that the sale of these prints must be stopped, and that the copies remaining which bore the fraudulent signature must be confiscated. In 1532, some time after the death of Dürer, a certain Hans Guldemund re-engraved the *Triumph-wagen*, and began to sell impressions from this unauthorised plate. The magistrates, upon being appealed to by Dürer's widow, promptly forbade Guldemund to make any further sales. The latter evidently delayed giving obedience to the order, and this was accordingly re-affirmed two weeks later.

Dürer's *Instruction in Perspective*, first published in 1525, appeared in Paris in a Latin translation in 1532, and copies of this Paris edition shortly found their way into sale in Nuremberg and in other German cities. Dürer's widow, who had, in 1528, secured an imperial privilege for her husband's writings, made complaint of these unauthorised sales, and, in October, 1532, the magistrates of Nuremberg summoned all the booksellers of the town and cautioned them against keeping in stock or selling any copies of the unauthorised editions. On the same day, copies of this Nuremberg order were sent to the magistrates of Strasburg, Frankfort, Leipzig, and Antwerp, with the request that similar orders should be issued in those cities for the protection of Dürer's works. It does not appear for how long a term the widow succeeded in protecting these copyrights either in Nuremberg or elsewhere.

The last case in which the infringement of Dürer's works came into question presents an instance of a larger claim for the protection of an author's idea than would be accepted under modern copyright law. Dürer's treatise on *Proportion* was being put into print in Nuremberg by Hieronymus Andreä. It became known, however, that Andreä, in conjunction with a painter named Beham, himself had in preparation a work on the subject of *Proportion*, and in July, 1528, the magistrates of Nuremberg issued an edict forbidding these two authors from proceeding with the publication of their volume (which must, he saw fit to assume,

have been based upon the labours of Dürer) until the publication of the authentic work (*das rechte Werk*) had been completed. Beham protested that his volume was entirely original and quite distinct in its plan from that of Dürer. The magistrates, however, took the ground that the idea or plan of a treatise on this subject had originated with Dürer, and that Dürer's heirs were entitled to be protected against any attempt to diminish (by means of such advance competition) the commercial value of such plan. Beham was obliged to content himself by publishing at this time that part of his work only which had to do with the subject of *Proportion in Horses*. His chapters on *Proportion in the Human Figure* were held in manuscript until 1546, when they were printed in book form in Frankfort. The completion of his publication showed that he had been entirely correct in his contention that he had not borrowed in any way from the material left by Dürer. The magistrates themselves do not appear to have adhered to their original charge that Andreä and Beham were pirating Dürer's work, or they would, instead of simply prohibiting their publication until the Dürer book was in the market, have enjoined its publication altogether as a plagiarism or infringement. They seem simply to have convinced themselves that Dürer's wife and other heirs were entitled to the first fruits of any profits that could be secured from the subject of *Proportion*, on the ground that Dürer was the first author to give attention to this subject.

In certain special instances, such as the above, local pride in an author of fame, and personal interest on the part of the magistrates, served to bring about a special protection for literary productions. It appears, however, that German authors could not, as a rule, depend upon securing even a local protection for their works simply on the ground of prior publication, as it is from this time, namely the first third of the sixteenth century, that special privileges begin to make their appearance.

Under an order of the *Rath* of the city of Basel, issued in October, 1531, printers of books in that city were enjoined from reprinting or pirating the books of each other, for a term of three years after the first publication of such books, under a penalty of one hundred guldens. Schurmann understands that this and similar local ordinances had no reference to the protection of new works by contemporary writers, but were designed simply to prevent unprofitable competition in connection with new editions of standard or classical works. If a printer or publisher issued an edition of a

book belonging to this class, he was to be protected for a term of three years, within the territory of the municipality, against the competition of other editions (whether better or poorer, dearer or cheaper) of the same book.

As far as new and original works were concerned, it appears as if the possession of a copy, or at least of a copy in manuscript form, was held to carry with it the right to reproduce. This right there were in any case, until the middle of the eighteenth century, practical difficulties in the way of gainsaying for rival reproductions which were not put into print within the same municipality. It was only with the organisation of the book-trade in the middle of the eighteenth century and the establishment in Frankfort and Leipzig of the Book-Fairs with their systems of book-exchanges, that there began to be any systematic efforts to protect literary and publishing undertakings over the territory covered by the book-trade of the empire.

Until nearly the end of the eighteenth century, the protection of literary property in Germany depended upon the system of privileges, imperial or local; but these privileges were, for the most part, concerned simply with the property interests of the publishers and printers, only a small proportion of them having to do with modern books or with the rights of living authors. Such privileges covered, at the outset, three classes of literary undertakings: first, official publications, a term including in the earlier times the service books of the Church and school text-books as well as the authorised text of government edicts, laws, and announcements; secondly, editions of works taken from the body of the world's literature (*literarisches Gemeingut*), i.e., the first printing (*Vordruck*) of the same; and third, new works presenting a first consideration of a specific subject, more particularly of a subject of a scientific, technical, or practical nature. For this last class of undertakings, the recipient of the privilege claimed a control not only of the specific book which he had produced or of which he was the owner, but a monopoly for the time being, within the district covered by the privilege, of the subject considered in such book.

The writer who had, for instance, produced a book on the *Use of Herbs*, or the publisher who had employed a writer to prepare such a book (the subject not having been treated before, or at least not recently) would consider himself aggrieved and would contend that his rights had been infringed, if the publication within the same territory of another book on

herbs should be permitted. If the privilege covered an edition of a Latin author, the holder believed himself authorised to prevent the publication within the territory covered by his privilege of any other edition of the same author, even although such competing edition might, in respect to the revision of the text and to the editorial work in the notes and commentaries, be entirely distinct from his own.

Local privileges of this kind, which undertook to give to the possessor an exclusive control for a certain term of a specific classic text, were, of course, practically identical with the trade monopolies, also characteristic of the age, which were conceded for the sale, within certain territories, of articles of assured commercial value, such as salt or wool. Such privileges can hardly be classed with copyrights.

Local privileges came, before long, to be divided into two classes, the one entitled privileges “for works” or “for books,” and the other “for writers” or “for authors.” The Frankfort ordinance of 1660 distinguishes between *Bücher* and *Autores*. The *Tractatus de typographis, bibliopolis*, etc., of Fitsch, published in 1675, speaks of privileges for *libros et scriptores*, and again for *autores et libros*. The earliest German privilege of which there is trustworthy record was issued in 1501 by the Imperial Council, not to an individual, but to an association entitled the *Sodalitas Rhenana Celtica* (Rhenish Celtic Society) for the publication of an edition of the dramas of Hroswitha of Gandersheim, which had been prepared for the Press by Conrad Celtes. These dramas had been written about 985. This Hroswitha privilege, while later than the early Venice privileges, antedates by two years the first instance in France, and by seventeen years, the first in England. After 1501, there is a long series of imperial privileges issued directly by the Imperial Chancellor in the name of the Emperor. One of the earlier of these was given for *Lectura aurea semper Domini Abbatis antiqui super quinque libris decretalium*, in 1510, a work printed by Johann Schott. In 1512, an imperial privilege was issued to the historiographer, John Stadius, for all that he should print, the first European privilege which was made to cover more than a single work or which undertook to protect books not yet published. I find no record in Germany of any privileges similar to those cited in Venice, for a whole class of works, or for an entire language.

An imperial patent of 1685 uses the terms (as if in antithesis to each other) “A privileged book,” and “A book purchased from its author” (*vom Authore*

mit Kösten erhandelten Buch). Later, we find references to “privileged” and “non-privileged” books, under the latter being understood original works by contemporary writers. Pütter (who may be called the father of the modern theory of property in literary productions), writing in 1764, uses for the unprivileged books the term *eigenthumlich* (individual), and for the privileged the term *nicht-eigenthumlich* (non-individual).

It is to be inferred from such examples that it was customary to secure privileges only for reissues of old books (which reissues might, of course, and usually did, constitute the first publication for Germany), or for a monopoly of some special subject. For original works by living writers (except in connection with a claim to control the subject) privileges were apparently not, as a rule, thought to be necessary or to add materially to the protection of the author’s rights. The practice in different States and in different cities, however, evidently varied very considerably, and there must have been no little uncertainty and confusion from the conflicting claims of authors, publishers, and printers undertaking to control in several States the sales of books for which privileges had been secured in but one.

Pütter is of opinion^[156] that the purpose of authors in securing privileges was at this time not so much to protect themselves from piracy as to prevent or impede competition. In no other way, as he contends, can well be explained the short terms (six, three, and even two years) for which these privileges to authors were issued, as it is evident that they could not have expected to sacrifice their authors’ rights or, as we should now say, their copyrights, at the expiration of such terms.

Schurmann concludes that the system of privileges had, in fact, little connection with the recognition or the protection of the rights of authors as producers (such rights as English authors were about this time beginning to claim under the common law). The advantage secured by an author under a privilege was, on the one hand, a certain monopoly (usually, of course, for a limited territory as well as for a limited term), and on the other, a simpler and more effective method of controlling or protecting his books than that afforded by the system of proceedings under the law.

The possessor of an imperial privilege was, at least nominally, in a position to enforce penalties against an unauthorised reprinter in any portion of the empire, and without reference to the local authorities, the

principal limitation on such action being the difficulties not infrequently placed in his way by local officials who happened not to be well disposed towards the imperial authority. At the Frankfort Fair, however, which soon came to be recognised as the central and controlling organisation and exchange not only of the German but of the European book-trade, an imperial privilege was usually accepted as of valid and adequate authority.

Notwithstanding such recognition of imperial authority, the records of German publishing during the last half of the seventeenth century and the first portion of the eighteenth are full of complaints of piracies and of contentions concerning the control of literary property.

The purpose and the effect of the imperial privilege system would not be rightly estimated if we failed to remember that they were intended to secure an imperial supervision of literary production no less than an assured foundation for the business of publishing books. No works could secure an imperial privilege that had not first received the approval of the censors in charge of the district in which the book was printed. In case the work concerned itself with political affairs, the censorship was usually referred directly to certain imperial councillors in Vienna (*Reichshofrath*). Sometimes the imperial censors found it necessary to override the authority of the local examiners and to revoke their authorisations. In 1777, the Berlin publisher Nicolai secured a privilege for the publication of *The Life and Opinions of Johann Burkels*. The year following, the privilege was cancelled from Vienna, on the ground that it had been obtained surreptitiously and with the connivance of certain Prussian censors who were in sympathy with “the gross errors of the Arians and Socinians.” The circulation of the work within the Holy Roman Empire was at the same time prohibited.

The grounds upon which the imperial authority claimed the right to supervise the literary productions of the realm are not quite clear. In an official document of 1780, occurs the phrase, “The regulation of books (*das Bücher-regal*) which has for many years been within the control of the Emperor.” In a memoir addressed to the Emperor, in 1762, by the imperial *Hofrath*, the former is referred to as the tribunal in which from the beginning of the sixteenth century have been vested the control and supervision of the literature produced within the realm.

Schurmann is of opinion that the authority for the regulation of books (*Bücher-regal*) was derived from or connected with the rights reserved to the imperial authority under the Golden Bull. To these rights belonged the control of the final judicial appeal, and the issue and supervision of all claim of privileges. A century after the issue of the Golden Bull, at the time of the invention of printing, the reserved powers (*Reserva-rechte*) of the empire had become materially weakened, and were being in large part exercised by local authorities, and the attempt of the Emperor to enforce control over literary production and distribution, now becoming of such extended importance, was from the outset met by no little antagonism and protest on the part of princes and municipal magistracies.

The contention of these latter that the control of this new department of industry and production rested properly with them, was strengthened by the fact that the business of book-publishing was of necessity dependent upon the printing-presses, and the right to license and to protect the presses had never been included in the imperial powers, but had from the outset been exercised by the princes or magistrates. An evidence of this local control of the presses is afforded by the form (in use from the earliest times) of the oath which had to be taken by all printers working under such local licenses. This oath, while making due recognition of the local authority under which the licence was issued, bound the printers also to an observance of the imperial enactments. The requirement of the local licences was, however, evidently not universal, for we hear of certain “corner printing-offices” (*Winkel-drückereien*) which appear to have worked outside of any local control.

The attempts of the imperial authority to secure an imperial supervision over the literary output of the realm, were to some extent confused and interfered with by the contention of the Church that such supervision properly belonged to her. The Archbishop of Mayence, who was also the Chancellor of the Empire, was especially active in enforcing an ecclesiastical censorship over all the presses and publishing concerns within his diocese, which happened to include the most important of the earlier centres of publishing enterprise. His example was followed by other bishops throughout the empire, and the records show that such ecclesiastical censorship was exercised from the several diocesan capitals and also from such Universities as those of Cologne, Trèves (Trier), and Leipzig. ^[157]

The emperors were not likely to accept with patience this clerical interference with a domain regarded as their own, and, in 1455, Frederick III. appointed Doctor Jacob Össler to the post of imperial supervisor of literature and superintendent of printing, an appointment which was confirmed by Frederick's successor, Maximilian I. Össler was a jurist, but his censorship included the control of theological literature, as if it were the intention of the Emperor to emphasise the authority of the lay power as against the pretensions of the Church. The headquarters of the imperial superintendent of literature were placed in Strasburg, which was at the time the most important town in the empire for printing and for bookselling.

In 1512, a so-called "privilege," one of the earliest, was issued by the Emperor Maximilian I. to Johann Stab in Lintz, "historiographer and cartographer." It covered "all works" which he "might cause to be printed." It is the understanding of Kapp, however, that this authorisation is to be understood not as a privilege but as an appointment to the office of "supervisor of books." The records contain the titles of a number of books, engravings, and charts as having been issued under the authority and with the name (imprint?) of the historiographer, with permissions or licences protecting them against competition for the term of ten years. It appears, further, that he had the power to shorten this term of protection, and to declare the works open to reprinting within a shorter period than ten years. The privileges thus controlled by Stab were for "books," not for "authors," and can probably, therefore, be understood as having to do only with material which was not the production of contemporary writers. There is nothing to show what range of territory was covered by Stab's supervisorship, or whether this may be considered as having possessed equal authority with that of Össler, or as having been subordinated to this.

Dr. Jacob Spiegel, secretary to the Emperor, appears also to have exercised, between the dates of 1515-1520, the functions of a supervisor or censor of literature, and the stamp of his official approval is found on several books of the time. On the *Germania* of Æneas Sylvius (afterwards Pius II.), originally issued in Italy in 1464, and printed for the first time in Germany in 1515, by R. Beck of Strasburg, the form of approval or privilege is worded as follows: *Per Cesarem. Ad Mandatum Cesaris Majest. proprium Jacob Spiegel.*

The question has been raised as to why the decrees of the imperial Diet contain no references to the imperial control of book-publishing. Schurmann explains this omission on the ground that such control was exercised as a personal right of the Emperor. In 1495, a time when under the leadership of Berthold, Elector of Mayence, a concerted effort was made on the part of the electors and princes to limit in various respects the authority and privileges of the imperial Crown, the contention saw made (quite in the spirit of the eighteenth century) that the princes and those deputed by them for the task, were much better able than the Emperor could be, to judge for their several domains what books should be permitted and what should be forbidden.

Reference has already been made to the privilege issued in 1501, for an edition of the dramas of the nun Hroswitha. Hroswitha, or Helena von Rossow, was a nun of the Benedictine convent of Gandersheim, who had died nearly six hundred years before. Her literary work is referred to in an earlier chapter. The privilege to Celtes was, therefore, in the nature of a monopoly for material which, in the absence of such privilege, would have remained common property. This privilege is of interest as indicating that at the time it was issued the imperial authority over literary property was recognised by the States and municipalities of Germany as extending only over the imperial cities (*Reichsstädte*). Even to this control there was a noteworthy exception, as Frankfort, which in connection with its Book-Fair was becoming each year of greater importance as a centre of the book-trade, was apparently not included in the territory covered by an imperial privilege, and its magistracy had retained the right to issue privileges on its own account. We find, therefore, that Celtes, in this same year, 1501, secured a privilege for his book from the Magistracy of Frankfort.

Schurmann draws a distinction between the imperial privileges which emanated directly from Vienna, and those issued in Nuremberg and elsewhere under the authority of the *Reichsregiment*, or imperial Diet, and says that well authenticated instances of the former class begin only with the year 1510, and that for the succeeding half century the number issued was but inconsiderable.

It was only after 1569, when the imperial commission was appointed to supervise the operations of the Book-Fair at Frankfort, that the imperial privileges became numerous and important. The small part taken by the

imperial authority during this half century in the supervision of literature appears to have been due to the fact that in the particular districts where book-publishing was most active there was the greater unwillingness to recognise that its control properly belonged within the functions of the Emperor. Under the imperial decrees of Nuremberg, in 1524, of Speyer, in 1529, and of Augsburg, in 1530, the contention of the Emperor to control as a personal function of the Crown the whole business of printing and publishing, was replaced by an arrangement under which the immediate supervision of the printing-presses was left to the local or state governments, while the imperial authority provided (through magistrates appointed for the purpose) a final court of appeal.

After the battle of Mühlberg, in 1547, the claims of the Emperor to the full control of nearly all divisions of government were asserted with fresh vigour and persistency, and, in 1548, an imperial edict was issued placing the presses of the empire under strict police supervision, especially with reference to any publications which had to do with ecclesiastical matters. There continued, however, to be more or less confusion in connection with the exact bearing of the imperial enactments concerning literary property, and these enactments were very far from securing any general obedience. There was also no little counterfeiting and falsification of the imperial privileges.

On this ground, Maximilian II., in 1569, called upon the Magistracy of Frankfort to establish or to enforce better police regulations for the protection of privileged books, and for the prevention of the publication of books that had not been inspected and licensed. The magistracy endeavoured to free the city from the responsibility of such a task, and requested the Emperor to send to Frankfort some scholarly commissioners to take charge of the proposed supervision. This request was fulfilled, in 1579, by Rudolph II., who directed the clerk of the imperial Court and the Dean of the Frankfort Convent to serve as the first members of such commission.

This imperial commission, working in Frankfort, exercised an influence over all the book-trade of which Frankfort was the centre. Its operations were very largely controlled by the interests, real or imaginary, of the Catholic Church, and the oppressive supervision and arbitrary censorship which resulted had not a little to do with the discouraging of literary

undertakings in Frankfort and with the transfer of publishing enterprise and of the business of book distribution to Protestant Leipzig.

With the growth of Leipzig as a book-producing and book-selling centre, the privileges issued in the Electorate of Saxony assume an increasing importance, and from 1598 we find that these electoral privileges are being largely secured by publishers throughout Germany. A commission was appointed by the Elector to take the supervision of the Book-Fair, and the literary responsibilities of this electoral commission very soon largely exceeded those of the imperial commission sitting in Frankfort, the more particularly as, after 1627, an imperial privilege, unless confirmed by the Leipzig commission, was very frequently disregarded altogether by the Leipzig book-dealers. While the imperial and the Saxon privileges are, in connection of course with their influence upon the book-trade of Frankfort and of Leipzig, the best known and the most frequently referred to in the history of literary production in Germany, the encouragement given to the trade of printing and publishing by certain so-called "particular" privileges must not be lost sight of. An early example of this class was the "Letter of aid and protection" (*Schirm und Versprech-brief*) which the Elector Frederic I., as Landgrave of Alsace, in 1466, gave to master Heinrich Eckstein, "for the purpose of furthering his good trade of printing," ecclesiastical and lay protection by water and by land. A more comprehensive and more "particular" privilege was that previously referred to which had been issued, in 1469, by the Senate of Venice to the German printer, Johann von Speyer (Johann de Spira), under which was given, for the term of ten years, the exclusive right to do printing within the Venetian dominions.

Throughout the German realm, this form of the protection or encouragement of book-production appears to have been exercised chiefly by the imperial cities. There was evidently among the earlier German publishers a good deal of dependence upon what would now be called the courtesy of the trade, an understanding under which the publishers or printers in any one State, or at least in any one town, would refrain from interference with each other's undertakings. This understanding or arrangement was, however, assisted by the short-term privileges, a protection already referred to issued by the municipalities, or their magistrates, and forbidding interference for periods ranging from six months to five years.

In Brandenburg, the development of the system of privileges was of necessity retarded by the slow progress made within the electorate by the business of book-publishing or book-selling. Between the years 1544 and 1575, the present capital of the German Empire contained not a single printing-press (several attempts made previous to 1544 to establish a printing business having failed), and what little printing work it required it was obliged to have done in Wittenberg or Frankfort on the Oder. In 1567, Johann Eichhorn, of Frankfort on the Oder, received a privilege to carry on a printing business, which privilege provided that within the entire Mark no competing printing-office should be authorised or permitted.

The first book-dealer in Berlin was Hans Werner, who, in 1594, established his printing-office and shop on the Cologne side of the Spree. He secured from the Elector John George, "for the furtherance of public interests," a privilege authorising the publication of certain works (in the main, text-books and books for Church worship) which had passed the censorship of the Faculty of the University of Frankfort on the Oder. Any parties reprinting these books were to be fined two hundred thalers, half of the fine going to Werner. He also received an authorisation to establish a bindery, in the event of the work done for him by the existing bindery proving unsatisfactory. He was further exempted from municipal taxes on the condition that he should not overcharge the citizens of Berlin for his books. It is not stated by what authority the question of overcharging was to be determined.

For twenty years, Werner's establishment remained the only book concern in Berlin. In 1613, he fell into disfavour with the Elector, John Sigismund (who had become a convert to Calvinism), by refusing to publish the writings of the Reformed Church. His privilege was not withdrawn, but a new privilege was issued to the Brothers Hans, with whom was associated Samuel Kalle, for the publication of religious and theological works. The new firm received, either from the Elector or from the municipality, a gift of sufficient lumber with which to build its shop. By the beginning of the eighteenth century, the number of privileged book-dealers in Berlin had risen to four, but at that date but one, Michael Rudiger, was a publisher on his own account. In 1702, The Orphanage Publishing Concern of Halle (*das Hallische Waisenhaus*), a firm still in existence, was authorised to open a book-shop in Berlin. With the exception of the productions of this

Orphanage Press in Halle, the publications of Brandenburg-Prussia, during the reign of the first two kings, were in the main restricted to Bibles, Hymnals, calendars, and text-books. The privileges in the new Prussian kingdom, while in form merely authorisations for the printing of books, covered, in fact, considerably more than such authorisations. They included protection against reprinting or piracy, guarantees against local competition, freedom from taxes and imposts, and not infrequently assurances of material aid in establishing a book-business and in carrying it through its first and most difficult period. The earlier Prussian monarchs were evidently fully appreciative of the importance to the higher welfare of the state of this new business of publishing, and were ready to do whatever might be within the power of the Government to encourage its development.

With the increase of book-production in Prussia and in North Germany generally, we find a change in business methods, and a tendency to separate the work of publishing from that of printing. With this change comes a different arrangement of privileges, and a closer distinction between authorisations or protections issued for literary productions and concessions granted for the purpose of furthering certain trade undertakings. The former class came to be known as “general” and the latter as “special” privileges; they were also spoken of respectively as publishing privileges and printing privileges (*Verlags und Druck Privilegien*). Under the latter classification came calendars and periodicals. Roughly speaking, the former class of privileges had for their purpose what we should now term the protection of copyrights, and the latter the prevention or limitation of competition. The imperial “general” privileges continued to be substantially limited in their range to the imperial cities, at least in so far as they carried with them monopoly rights.

The Saxon “general” privileges were found to confuse or interfere with the working of the Leipzig Book-Fair privileges, and with the beginning of the seventeenth century they ceased to be issued. The Fair privileges did not undertake to confer any “monopoly” rights for a literary undertaking, but simply to secure for a work the right to be offered to the book-trade of Germany, in so far at least as this trade now concentrated itself in Leipzig. The fees for this Book-Fair privilege went into the treasury of the Fair.

The privileges issued by the Book-Fairs or Book-Trade Associations of Frankfort and Leipzig are peculiar in the respect that they make no distinction between publishing and printing authorisations (*Verlags und Druck Privilegien*). Through this lack of recognition of a distinction which had always heretofore obtained, and also by reason of the similar form given to the special privileges whose short terms called from time to time for renewal, not a little confusion arose in the work of regulating the relations of the book-trade. It is, in fact, only surprising that the confusion and the difficulty were not greater,— considering that general and special privileges, not only imperial and Saxon and Prussian, but emanating also from various of the principalities of the empire, together with the trade privileges of the Frankfort and Leipzig Associations, were all more or less in force for any one assortment of books that could be offered for sale at the two Fairs. It was not until the eighteenth century that the confusing and inadequate system of imperial and local privileges was replaced by interstate copyright conventions which secured a uniformity of protection for literary property throughout the States of the German Empire.

The historian Luden says:

“The printing-press is important, not so much on the ground of its reproduction or multiplication of copies of a written work, but because of the assurance that these copies will be distributed. It is hardly to be denied that in the thought of trafficking in ideas there is something repelling from which it is difficult to free one’s mind.”^[158]

When Luden was writing, the “war of liberation” had just been brought to a close, and, for the first time since the battle of Jena, the territory of North Germany was free from the presence of the invader. It was less than a decade since the publisher Palm had been shot, under the instructions of Napoleon, for printing a pamphlet in defence of the liberty of Germany. The Weimar historian and the other German writers of his time might well have been interested in the question of the right of authors to secure an untrammelled circulation for their productions. At this time, however, nearly a century after the death of Palm, a martyr to the cause of the freedom of the Press, the imperial Government of Germany is not yet prepared to concede such freedom to its political critics. The Palm of to-day would indeed not be shot, but he might be imprisoned and his Press would certainly be stopped.

It was speedily realised that while the production of books could be developed almost indefinitely, the practicability of securing a remunerative distribution of books would be very closely limited unless the inadequacy of the ordinary trading regulations could be supplemented by a special system of legislation planned to meet the special requirements of this new object of trade.

In the beginning of the book-making industry, the printer was known simply as printer, as it was understood without further specification that he must also be the publisher of the works printed by him. Soon, however, we find associated with his undertakings the names of partners who had nothing directly to do with the book-manufacturing, but who contributed their aid either for the sake of literary development or for some other motives apart from the thought of business profit, and in the lists of such associates occur the names of nobles, of ecclesiastics, and of wealthy scholars. Later, we find record of printing-houses of larger resources who did not need and did not accept coöperation from outsiders; while, as a still later development come the publishing firms who have separated themselves altogether from the technical work of book-manufacturing and who employ only the presses and the binderies of other concerns. With the beginning of the sixteenth century, begins a transformation of book-printers into simple book-dealers or publishers. This change was, of course, however, far from being universal, but limited itself in the main to the book-concerns of the two Fair-centres, Frankfort and Leipzig.

A little later is to be noted an increase in the number of the publications, the risk and outlay for which were greater than could safely be assumed by a single publisher, and in the production of which several publishers were associated, unless the individual publisher had secured the necessary aid from some princely friend, or occasionally even from a corporation (like the Town Council of Nuremberg).

Erasmus, writing in the year 1523, concerning the publishing House of Johann Froben of Basel, speaks of the three methods under which Froben's books were placed in the market. The smaller works, for which the risk was not too considerable, he would publish as ventures of his own; while for the more important undertakings, he would often secure the aid of some outside capitalist, for whom Froben would act simply as a commission agent. The third method was to give shares in the venture to fellow publishers like

Lachner, also of Basel, Koberger of Nuremberg, and Birckmann of Cologne.

Even with such arrangements, however, for the division of editions between firms having each its own special channels of distribution, the facilities for placing books in the hands of buyers, and probably also the actual demand on the part of any possible buyers, remained very inadequate in proportion to the means of production and to the pressure for production. Books which were very much wanted by a certain number of readers, were not wanted by enough people to ensure a remunerative sale, and hence resulted not a few disappointments, losses, and misfortunes to printers and to publishers. Luther, in his *Table-Talk*, makes reference to these troubles of the printers, but believes the cause of the same to be simply the commercial greed and lack of intellectual interest on the part of the public.

The period 1650-1764 witnessed the growth of the system of book-exchange, under which, publishers in disposing of their productions were obliged to accept in payment the stock of other publishers, and the net market value of books came to be measured in other books. This method, if it did not add very promptly to the receipts of the dealers, had at least the advantage of facilitating the distribution of books, and of furthering the organisation of the book-trade. In concentrating into the hands of a single individual the business of publishing, distributing, and retailing books, it necessitated the giving of exclusive attention to the work of handling books.

In the “printers’ period,” the men who interested themselves in the management of printing ventures were very apt to interest themselves also in other business undertakings. Döring, for instance, was in the first place a goldsmith, and only secondly a printer. Lotter, who did some of the first printing for Luther, kept a wine-shop and an inn, in which he not infrequently had Luther as his guest. Cranach, in addition to being a painter and an apothecary, carried on a shop for the sale of books and printing-paper, and finally, in 1524, established a printing-office, and, associating with himself Döring, entered upon the production of a complete set of the writings of Luther.^[159]

The necessity of securing for the work of a printing-office the services of scholarly assistants for the proof-reading was speedily recognised. Not many printers were competent to take the responsibility assumed by the

Venetian Aldus, of revising and even of annotating the texts as printed, and many were the complaints concerning the grievous errors contained in the earlier volumes printed in Germany, and the unfavourable comparisons made between the work of the German compositors and that which came from the earlier Italian or Paris printers. Authors contended, with Luther, that the first and chief right of an author was to have his message correctly presented to his readers, while scholarly readers were outspoken in their protests against the marring through the vagaries and blunders of the typesetters of the beauty of classical texts or the purport of theologic instruction. The better printing-houses finally associated with their work scholarly editors who took charge, not merely of the proof-reading but of the general supervision of the manuscripts or texts as these passed through the press; and the work of a “press-corrector” came to be considered as professional in its requirements and importance.^[160]

There was, nevertheless, in certain scholarly circles, a prejudice against the receipt of money for literary work, or, as Erasmus put it, against being paid by one’s printer. The objection of Luther to gaining pecuniary advantage from his writings rested, however, upon the different ground that his literary work was carried on for the cause of the Lord and that “Christ had already rewarded him a thousandfold.”

Erasmus made it a ground for criticism upon Ulrich von Hutten that the latter had permitted himself to accept money from his printer.^[161] Brunsel, the defender of Hutten, denied that he had ever been paid for his writings, but contended further that if such payment had been made, it was no reason for reproach. A workman had a right to be paid for his work. In any case, said Brunsel, such a criticism came with a bad grace from Erasmus, who had been under pay with Aldus Manutius of Venice and with Froben of Basel. From the latter he was said to have received a yearly honorarium of two hundred guldens, in payment apparently of editorial service. There is record of a payment by Aldus, in 1508, of twenty pieces of gold for some work done by Erasmus in revising and preparing for the Press the text of the poems of Plautus.^[162] Thomas Murner received, in 1514, for his *Geuchmatt* four guldens,^[163]—a sum which, as Schurmann points out, was not so inconsiderable, when we remember that the scholar Pellican had been able to support himself for a year on sixteen guldens.

The jurist, Ulrich Zasius, received, in 1526, from his publisher in Basel for his *Intellectus Juris Singulares*, fifty guldens. Conrad Gesner, writing from Lausanne in 1539, complains that he has not been able to put as thorough work into his books as they deserved, because, he says, “I am, like others of my class, under the necessity of writing for daily bread.”^[164] A remark of Gesner, in 1558, that the publishers wanted big books, and were unwilling to accept small volumes even as a gift, is of interest as indicating that, even at that early period, the book-trade of the Continent had behind it an experience by the lessons of which it could profit.

The relatively large prices paid as compensation for the literary undertakings referred to in the earlier records, are evidence that for these undertakings the initiative had been on the part of the publishers. In the cases in which the literary suggestion came from the authors, the compensation was usually materially smaller, or, in case the venture did not prove remunerative, often disappeared altogether. The question of the proper rate or extent of the compensation to authors, was of necessity further complicated by the growth of the exchange system, before referred to. When the publisher, out of an edition of a thousand copies had disposed of five or six hundred, and had received pay for the same in miscellaneous stock, a large portion of which might remain in his warehouse for years, it was certainly not easy to determine what portion of the edition ought properly to be considered as having been sold, and to be so accounted for.

The custom soon arose of putting the author’s compensation into the shape of books. Sometimes he would receive a certain number of copies of his own work only, and sometimes, in addition, a selection of the books against which his own had been exchanged. In the smaller number of cases only was the author able to arrange for a portion at least of his pay in money.^[165]

The free copies of his book which came to the author were, however, not infrequently utilised as a means of securing cash receipts. These were the copies reserved for the patron who had “graciously accepted” the dedication of the book. The dedications were too often not simple expressions of personal friendship or of scholarly appreciation, but fulsome laudations and exaggerated flatteries, which were meant to be paid for in hard cash.

Kapp, in decrying this business of selling dedications or of printing dedications, associates it directly with the demoralising practice of

accepting honorariums from publishers.^[166] He fails, however, to draw the inference, which appears to be a natural one, that after two centuries of publishing (of printed books) the labours of the writers of the books were so inadequately remunerated that they were driven to emulate Martial and his associates of the later Augustan age and to look to patrons (bribed with dedications) for a payment for their productions.

The real difficulty, as Schurmann points out, lay in the necessitous and uncertain position of the scholarly classes, who were driven to put more labour into the writing of books than the community of the time was prepared to compensate.

Erasmus treated with indifference the charge of von Hutten that he made his dedications a subject of trade, and he probably had sufficient warrant for his indifference. In the case of not a few of the works of Erasmus, as with many other books of the time, it seems evident that in exchange for the dedication, the “patron” of literature had provided in exchange for the compliment the funds requisite for the printing of the book, or sometimes even for the support of the author while it was being written. It occasionally happened (though probably never with any books of Erasmus) that the “patron” failed to receive the full consideration for his services, as there are instances of books in which the author’s dedication appears only in the author’s “free copies,” or even only in the portion of the author’s supply which was to be delivered to the patron. For other copies of his supply the author might arrange with some other patron for a dedication, while in the copies left in the hands of the publisher, still a third dedication might be used, the earnings of which last had, under the agreement, been reserved by the publisher.^[167]

According to Kirchhoff^[168] and Kapp^[169] this business of selling dedications had by the beginning of the seventeenth century reached very large proportions. The Magistracy of the city of Leipzig made announcement, in 1594, that they would authorise no more dedications, having been altogether overburdened with them. In 1606, when the philologist Goldast asked permission of the Burgomaster of Memmingen to dedicate to him a new Commentary, he was cautioned that he would have to content himself with an honorarium of a ducat, as the magistrates of that place were receiving each day similar applications.

As late as 1798, the Senate of Hamburg gave notice that future dedications of literary productions would no longer receive acknowledgment unless written authorisations for the same had been previously secured. An instance occurred in 1887, in which this regulation concerning a written authorisation was relied upon with some literalness of interpretation. A musical composition had been dedicated to the “Shade” of the composer Hummel, on the fiftieth anniversary of his death. A notice was issued by the poet Castelli, on behalf of the Hummel family, that this dedication must be withdrawn unless a written authorisation could be shown from the “Shade” of the departed composer.

According to Kapp, the practice of authors undertaking the publication of their works at their own risk and expense (*selbst-verlag*) developed during the same period as the dedication system, and together with the latter, came in great part to a close towards the end of the eighteenth century. Trade difficulties arose in connection with the handling by the authors of the editions of their own books, as it became necessary for them to follow the general trade practice of the time and to accept their payment or a portion of their payment in the stock of the dealers to whom they made sales. Feeling, however, in no way bound by the regulations of the book-trade, they were ready to sell this exchange stock at prices often considerably below those of the regular book-market, a practice which naturally produced confusion and dissatisfaction among the dealers. In this practice the authors of Germany enjoyed a much greater freedom of action than was possessed at the time by their brethren in France, where the organised book-dealers had succeeded in limiting to members of their own body the right to sell books.

How far the protests of the book-trade may have succeeded in checking this practice on the part of the authors of entering into bookselling business without being willing to submit themselves to bookselling regulations, it is not easy to determine from the records available. It is probable, however, that the most effective check was the disappointing results secured by the authors themselves from by far the larger portion of their publishing and bookselling ventures.

Towards the end of the eighteenth century the method of subscription publishing, which apparently had originated in England, began to be followed, particularly in the case of books issued directly by their authors. Under this method, subscriptions and advance payments were secured from

subscribers interested in the undertaking and willing to purchase one or more copies, and the moneys so advanced were expected to be utilised in the production of the book, and were as a rule so applied. Even publishers found this subscription method a convenience and an advantage in diminishing the risk of the speculation in an undertaking of importance. In the case, however, of books issued by publishers on the subscription plan, it was not usual to receive any money from the subscribers until the books were delivered.





CHAPTER III.

REGULATIONS FOR THE CONTROL AND THE CENSORSHIP OF THE PRINTING-PRESS IN FRANCE.

1500-1700.

Conflicting Authorities.—The invention of printing came into the world at a period when men's minds were agitated by one of the fiercest contests about ideas that history had known. This new art gave voice and wings to thought at the very time when thought stood for war and when opinions, under the name of creeds, were bringing men into fierce combat with each other. Those whose beliefs were wrong (that is to say, those who at any particular time or place happened to be the weaker party) were burned by those whose beliefs were right (that is, by the stronger), and questions of religion were powerful enough to bring nations into battle against each other. To permit the peaceable production and distribution of literature advocating doctrines sufficiently pernicious to be themselves cause for war, would have been not only illogical but practically impossible. It would have constituted, in effect, failure to keep the faith, and treason to the State.

The general constitution of society was no more compatible than were the religious passions of the time with an unrestricted and unsupervised production and distribution of literature. Monopoly was, or was believed to be, an industrial necessity. Each branch or division of industry, trade, or commerce was closely organised and strictly limited in its range. These guild organisations, with their accompanying prohibition of the exercise of individual and unorganised industry, served to maintain order and to protect artisans against all kinds of exactions, and in various other ways worked for the benefit of the artisans and trades as associated. The guilds also rendered an important service to the community in protecting the general public against frauds and misdealings, for, as well from self-interest as from public spirit, they took upon themselves the supervision of the integrity and morality of their members. The associated trades of printing, publishing, and bookselling came under conditions and restrictions similar in the main

to those regulating the business of the other commercial guilds, and like these, they undertook to establish a monopoly of the rights and privileges connected with the manufacture and sale of their productions.

The contests and quarrels of the “regular” or guild dealers, whether with authors, who wanted to retain the right to sell their own books, or with religious communities, which (in continuation of their old literary practices) claimed the privilege of using printing-presses of their own, or with the drapers and fancy goods dealers, who wanted to sell not only almanacs and primers (*abécédaires*) but also general literature, or against the pedlars and street vendors, who attempted to exercise the full privileges of booksellers, were endless; but while differing in many details, these contests were similar in principle to those carried on by other industrial guilds against outsiders trying to invade their monopolies.

The official censorship of publications began with the reign of Francis I., although there are instances in the previous reign of the issue of certain “permits” or approvals. These earlier permits were not connected with any conditions or restrictions imposed on the authors or publishers. They were for the most part secured at the instance of those interested in the publication, sometimes as a matter of prudence or from dread of future interference, but more frequently in order to give credit or standing to the undertaking.

According to Peignot,^[170] the earliest printed book which contains record of such official approval was printed in Esslingen in 1475. It was a reissue of the *Tractatus Petri Nigri contra perfidos judæos*, and bore a certificate of having been corrected and approved by the Bishop of Ratisbon. This instance antedates the publication of the *Phænix* of Peter of Ravenna (referred to by Pütter and others as the first book printed under a privilege), which was issued in Venice in 1491.^[171]

In 1515, a Bull of Leo X. (previously referred to in the chapter on Venice) ordered that no licence should be given for the printing of a book until it had been examined and approved by an authorised representative of the Church. The authority of the Church to take into its own hands the supervision of literature was, as we have seen, from the outset contested in Venice, and was never accepted in Germany. In France, on the other hand, the necessity for such ecclesiastical supervision was at once admitted, with

the condition that the censorship should always be exercised under the authority and direction of the Crown. The jurisdiction over printers and publishers, originally conferred upon the University, continued to be exercised with more or less effectiveness during two centuries after the invention of printing, and traces of it existed even as late as 1789. The University gave approval, issued privileges, and fixed penalties. An approval had to do with the contents or character of the work, and was evidence that it had been examined and had been accepted as containing nothing unsound in doctrine, detrimental to the morals of the community, or dangerous to the safety of the State.

In the earlier periods of publishing in France, the ecclesiastical censorship as to matters of doctrine was exercised through the Theological Faculty of the University. A privilege gave to its holder a right (usually exclusive) to control the sales of the work specified and sometimes of the entire subject to which the work was devoted, for a given territory and a certain term of years. In 1498, certain publishers printed a description of the funeral procession of Charles VIII., in which procession the Faculty of the University had occupied a position of honour. The printed account was inaccurate, *Super modo incedendi*. The publishers were brought before the deputies of the University, and after they had been heard in their defence, their editions of the inaccurate book were condemned to be burned *in processionibus universitatis*.

In 1518, the University issued, by means of placards posted about the city, an edict prohibiting all publishers, under pain of forfeiture of their University privileges and franchise, from printing the *Concordat* between Francis I. and Leo X. The King, indignant at such an exercise of authority on the part of the University, wrote to the Parliament of Paris demanding that the mandate of the University be declared null and void, and that the Rector, Dean, and professors who had issued the same be punished. He further directed that the *Concordat* should at once be delivered to good and trustworthy printers, with instructions to lose no time in printing supplies of the same. The Parliament decided that the University must not concern itself with matters of state or with the affairs of the King, under penalty of loss of its own privileges, and the printing and publication of the *Concordat* appear to have proceeded in due course. It must be borne in mind that the Parliament of Paris was not a legislative body, as might be inferred from the

later use of the name, but a high court of justice, exercising the functions of a Court of Appeals.

Several such “Parliaments” were established at different periods in the great cities of the kingdom, but that of Paris was the most ancient and important. Its foundation is ascribed to Louis XI., about 1150. The Paris Parliament was originally used as a kind of circuit court, accompanying the King wherever he went. It was, however, finally fixed at Paris, in 1302, by Philip the Fair. Its members were at first appointed by the Crown, but Francis initiated the practice of selling the seats. The most important function of the Parliament appears to have been the registration of the laws, edicts, and ordinances promulgated by the King. The Parliament gradually assumed a certain degree of political power, and frequently refused to register laws of which it did not approve, and from these refusals spirited contests arose with the Crown. The Parliament of Paris (together with all the Parliaments of France) was finally suppressed in 1790, by a decree of the constituent assembly. It appears from the history of this case of the *Concordat* that no question was raised concerning the right of the University to control the printers of Paris, excepting as to matters belonging to the King; while the higher authority of the Parliament was not contested.

The first formal institution in France of supervision of publications or literary censorship dates from the ordinance of 1521. *Lectum est quoddam regis mandatum prohibitorium ne librarii aut typographii venderent aut ederent aliquid, nisi auctoritate universitalis et Facultatis Theologiæ, et Visitatione facta.*^[172] (Printers and publishers are forbidden to print or to sell any work which has not first been examined by the University authorities and received the authorisation of the University and of the Faculty of Theology.) The special authority given to the latter shows that it was still the risk of heresy and schism which excited the greatest dread among those supervising the literature of the community. The edict of Charles V., also issued in 1521, prescribed similar regulations for the several countries of his dominions and made offenders against these regulations liable to the penalties for treason (*lèse-majesté*).

Parliament exercised authority not only for the condemnation of books (a jurisdiction which it had always claimed, even prior to the invention of printing) but also to extend general prohibitions, with or without conditions. As an example, an edict of February, 1525, which was ordered to be

published by heralds at the sound of the trumpet, directed (among a number of other measures planned to stamp out the heresies which were spreading through the realm) all persons having in their possession copies of the Old or the New Testament, or any portions of the same, to deliver such books to the court notaries, and forbade all printers to print and all dealers to sell any copies of said books under penalty of confiscation of their goods and banishment from the kingdom. This prohibition was renewed in 1527. In 1542, Parliament forbade the printing or selling, without special authorisation, of the royal ordinances and edicts.

Parliament, the University, and the Book-Trade. —The Parliament reserved to itself the final authority in the supervision of the book-trade, but it occasionally thought proper to secure, in connection with some literary undertaking of importance, the counsel of the University. In 1523, C. Resch, a licensed publisher, having asked for a permit for the publication of the paraphrases made by Erasmus of the Gospels of S. Mark and S. Luke, Parliament referred the application to the Rector, Dean, and Theological Faculty of the University for examination and report. The report being adverse, the application was denied. In 1523, Parliament had seized the books of a bookseller named Louis de Berquin. They were submitted to the Faculty of Theology and having been adjudged heretical, were duly burned. In 1529, on similar grounds, the same fate was awarded to Berquin himself. In 1521, two decrees were issued by Parliament forbidding, under penalty of banishment and the payment of five hundred livres (francs), the printing, either in French or in Latin, of any work on Christian doctrine, or on the interpretations of Scripture, that had not first been approved by the Theological Faculty or its deputies. A decree of 1535 forbade the printing of any work of medical science, which had not received the approval of three “good and notable” doctors of the Faculty of Medicine of the University. A decree of the same year forbade the publication of any fortune-telling books or almanacs, under penalty of imprisonment and a fine of ten marks. A decree of 1542 forbids the offering for sale of any book not bearing a certificate showing that it had been examined and approved by the clerks or deputies of the Faculty of the University having charge of the subject to which the book was devoted. In the cities where there was no university, these examinations, in all classes of subjects, were entrusted to the vicars or representatives of the Bishop or to doctors of theology.

The tendency became more marked from decade to decade to place in the control of the Church the supervision of the entire literary production of the kingdom. Conflicts of authority arose from time to time between the University and Parliament, conflicts in which the advantage usually rested with the latter body, which claimed the final jurisdiction, and which had behind it the authority requisite to enforce its decisions.

In 1526, the University had authorised the printing of certain dissertations against Fabri and Erasmus, written by Dr. Noel Beda. King Francis wrote to the Parliament directing it to cause the sale of these books to be prohibited. He added further general instructions that Parliament must enforce the previous regulations under which no books were to be printed or sold, either in Paris or elsewhere, which had not first been examined and approved by the members of the court deliberating together. The prohibition includes even such books as might have been written by members of the University. The task of a censorship of this kind, imposed not upon a select, scholarly committee, but upon a comparatively large body of consultation, must have been, as the literary production increased, one of no little difficulty.

It would appear, also, from such record as has reached us of the complaints of the publishers who had literary undertakings in train, and of the scholars, instructors, and students who were waiting for the books, that many serious and costly delays must have been caused by the physical impossibility of securing from the Court of Parliament a prompt decision upon the various literary schemes submitted.

It appears from the letter of King Francis, first, that the King had sufficient sympathy with the Reformers to be unwilling to have Erasmus attacked; and, secondly, that, even in matters of theological doctrine, the final decision was entrusted not to the Faculty of Theology, but to the Court of Parliament. Bayle, writing some time later, and having a cordial distrust for the Catholic Faculty of the University of his generation, regretted that these wise regulations could not have continued indefinitely.^[173] Chevillier, on the other hand, thinks that the King's confidence had been abused, and that his "*grand douceur de caractère*" had caused him to be too gentle to those accused of heresy. Chevillier goes on to say that the King in the end recognised the justice of the position taken by the Theological Faculty of the University in defence of the Church against its enemies. He got rid of his prepossessions in favour of Erasmus, and, in 1531, he gave a direct

royal authorisation to the publisher Badius for the printing of Albert Pio's big treatise (in twenty-four books) against Erasmus.

In February, 1534, the King sent to the Court of Parliament letters patent, under which the Court was instructed to select twenty-four persons qualified and trustworthy, from among whom the King would select twelve. To these twelve should be given, until further instructions, the exclusive privilege of printing books. Said books were to be printed in the city of Paris and nowhere else, and were to comprise only those which had been already approved as required for the public welfare. No new compositions whatever were to be licensed. The penalty for infraction of this ordinance was death by hanging. Legislation of this sort might be considered as somewhat discouraging to literary production, and as evidence of increasing dread on the part of the authorities of the intellectual activities and fermentation which characterised the period of the Reformation.

The prohibition against the publication of any new works gives the impression that the activity of literary or controversial production was on the side of the Reformers, and that it was thought to be of the first importance to restrain the publication and distribution of the writings of the Reformers, even at the inconvenience of hindering at the same time the publication of sound Catholic doctrine. What the King wanted to bring about was evidently the cessation of all religious, or rather of all theological controversy, and it was, in part at least, due to his policy in that matter that the mass of controversial literature produced during the Reformation was so much smaller in France than in Germany or in Switzerland. It is to be borne in mind that for the theological literature, and, in fact, for all the scholarly literature of the sixteenth century, the political boundaries did not imply, as they do to-day, barriers of language. The literary language of Europe was Latin, and the scholars of Europe, coming, through this common language, into direct relations with each other, were in a better position to carry on international controversies than would be the case to-day. There was nothing but the poverty of buyers or the prohibitory edicts of the rulers to prevent the general circulation among all scholarly readers of any work of importance on the all-absorbing issues of the time. The letters patent, above referred to, were, says Renouard, never registered by Parliament, and it does not appear that they were ever effectively carried into execution.

The Beginning of Legislation for the Encouragement of Literature.—The restricting edicts continued through the first half of the sixteenth century, but towards 1550, they began to include provisions referring to the development and encouragement of good literature.

The ordinance of March 7, 1537, provides:

1st. (in reiteration of previous acts) that no work shall be printed in the kingdom in Latin, Greek, Hebrew, Arabic, Chaldee, Italian, Spanish, German, French, or other tongues, which had not first secured the King's approval (given through the royal librarian). The list of languages through which it was supposed that evil might be instilled into the minds of good Frenchmen, was certainly sufficiently comprehensive. It is difficult to imagine any very serious risk of the dissemination of false doctrine or of the corrupting of the public morals through the circulation of works in Chaldee.

2d. That a copy of each book when printed be deposited in the library of the royal château of Blois, being delivered for the purpose to the King's trusty councillor and treasurer, the Abbé Réclus Mellin de Saint-Gelais, librarian of said château, or to one of the deputies to be appointed by him for the purpose in each of the universities and important cities of the kingdom, a certificate being given as evidence of the delivery of the book.

3d. That a copy of each book printed abroad, and which it was desired to offer for sale in France, should, in like manner, be submitted for inspection, and that its sale in France could be authorised only if said book should be found worthy of being placed in the Royal Library, this inspection being necessary for the purpose of avoiding the risk of introducing into the kingdom works containing wicked errors such as have heretofore been found in books imported from abroad.

If copies of these imported works were certified as fit for sale in France and as worthy of acceptance for the Royal Library, the librarian was to make payment for them at the same price as that charged to others. The ground given for the collection in the Royal Library of copies of all works issued in France or imported into the kingdom, was the importance of preserving for future generations valuable literature which might otherwise have disappeared altogether from the memory of man, or which might in later issues have been altered from the original and accurate text. This edict of 1537 may therefore be considered as the first step towards the formation

of a library for the preservation of the national literature. It was also the earliest example in France of the securing an authorisation for the publication of a book (a concession that was not yet a copyright and was not always even a privilege) in consideration of a tax imposed for the benefit of the nation, said tax comprising a single copy of the work authorised.

On March 20, 1537, appeared a second ordinance giving further details of the new measures. The preamble is worth quoting, because it sets forth clearly the main purpose which was kept in view in all these earlier regulations of literary production, namely, the restriction of the circulation of error and the assuring of the defence of the holy faith against the assaults of heretics:

François, etc. Comme, par tous les moyens que possible a été, nous avons obvié et empêché que les erreurs et infidèles interprétations déviant de notre sainte foi et religion chrétienne ne aient été reçues en notre royaume.... An ordinance of 1538 appoints Conrad Néobar printer for the King in Greek, under the following conditions:

1st. Religious works must secure the approval of the Faculty of Theology, and profane works that of the Faculty of Belles-Lettres.

2d. A copy of each work printed must be given to the Royal Library, *afin que, si quelque calamité publique vient à affliger les lettres, la postérité puisse trouver là une ressource qui permette de réparer en partie une perte des livres.*

3d. That each book issued by Néobar shall contain the announcement that he is “printer to the King” and that his Greek printing-office has been instituted under the royal protection, *afin que non seulement ce siècle, mais aussi la postérité, comprenne avec quel zèle et quelle bienveillance nous avons traité la littérature, et que la postérité, avertie par notre exemple, croie devoir faire de même, pour constituer et encourager les études.*

In order to guarantee Néobar against the risk of loss, as the demand for books in Greek was hardly likely to prove remunerative, the King agreed to pay him per year the sum of one hundred gold crowns, equal in currency to about two hundred dollars, but representing, of course, at that time, a much larger purchasing power. Néobar’s business was also to be free of taxes, and

to enjoy the other privileges previously accorded to the publishers of the University. Other printers and publishers were forbidden to print or to import editions of the works issued by Néobar, he being granted an exclusive monopoly or copyright of five years for books which were first published by him, whether these were the productions of modern scholars or were taken from old manuscripts, and of two years for books which had been reprinted by him in revised and more complete form from earlier editions.

The fury of civil war and the bitterness of religious dissension, continued to give a special character to the laws affecting printing and publishing and to the enforcement of these. There were also instances in which the severities of the courts preceded those of the legislators. In 1545, the records of the *Chambre syndicale de la librairie*, the sub-court charged with the control of publishing, show that a certain Étienne Polliot was sentenced for importing and selling heretical books. He was compelled to carry a bundle of his publications to the market-place, where he and his books were burned together. In 1546, the publisher Étienne Dolet, himself the author of a number of books, published in both Latin and French, was burned in the Place Maubert, for his obstinate persistence in the heresy of Calvin. Dolet is credited with having uttered at the stake the following line: *Non dolet ipse Dolet, sed pia turba dolet*. [It is not Dolet who grieves, but a pious crowd (of witnesses).]

The ordinances of 1557 and 1560 punished with death, as guilty of treason, the authors, printers, publishers, and sellers or distributors of books which had been condemned as pernicious or libellous. The declaration of July 17, 1561, sentenced to the penalty of the lash for the first offence and to that of death for the second, all printers, sellers, and distributors of inflammatory or libellous publications. Letters patent of 1563 fixed the penalty of hanging or strangling for the offence of printing a book without the royal authorisation. The often quoted ordinance of Moulins, of 1566, renews the same prohibitions, which were further confirmed in 1570, 1571, 1586, and later. It is not easy to understand why such reiteration of prohibitions and of penalties was required, or why the provisions of any particular ordinance, or letters patent, should not have remained in force until repealed, or at least until the close of the reign.

This ordinance of Moulins, issued by Charles IX., brings together under one heading *privileges* and *permits*. It is often referred to as forming the beginning of the copyright system of France: *Défendons aussi à toutes personnes que ce soit d'imprimer ou faire imprimer aucun livre ou traité sans notre congé et permission et lettres de privilège expédiées sous notre grand scel, auquel cas aussi enjoignons à l'imprimeur d'y mettre et insérer son nom et le lieu de sa demeure, ensemble ledit congé et privilège, et ce sur peine de perte de biens et punition corporelle.*

Monsieur Vitet^[174] is of opinion that the wars of the League had some influence in securing a certain freedom for publishing. The government of the League did not undertake to free from restrictions the printing-presses of Paris. It prohibited them, however, only from such undertakings as seemed likely to prove of service to the enemies of the League. On the other hand, there was at Tours a government which was hostile only to such writings as were not royalist, and at Geneva another government, the censures of which affected only that literature which was not Protestant. Through these three limited censures came into existence three fragments of publishing freedom. The power of the printing-press in influencing public opinion may, as far as France is concerned, be said to date from this period. Without question, during the previous twenty years, the larger portion of the publications of a religious, theological, and controversial character had come from the side of the Protestants. Their mission was to preach and convince as well as to fight, and the printing-press was as necessary to them as were their muskets. The controversial writings were, however, largely left unanswered, and their authors were reduced to the publishing of monologues and, finally, for a time at least, to the abandonment of the Press as an active agent in the contest.

On the other hand, when the Catholics, associated together in the organisation of the League, had established themselves as a military power, they undertook not only to extirpate Protestantism, but to speak to the world more energetically and more authoritatively than the Protestants had done. Nothing is more contagious than speech, especially if such speech take upon itself a controversial form. As soon, therefore, as the presses of the League became active, those of the Protestants renewed their own activities, so that the civil and religious wars had the double effect of freeing the printing-presses from a large proportion of their previous restrictions, and

of increasing enormously the amount of the literary production of these presses. It is to be noted, however, that production was for the time limited almost exclusively to works in the department of theology, while the publication of Greek, Roman, and Italian classics, no longer encouraged by University supervision or by royal bounty, was naturally checked. The grand campaign of the pamphlets was most active during the years 1588-1589, after which the ardour of the pugnacious pens appears to have slackened, until, in 1594, the victors terminated the contest with the final pamphlet of the series, a Menippean satire, which is said to have been no less useful to Henry IV. than the battles of Arques and of Ivry.

The Edict of Nantes, which bears date 1598, contained a special provision concerning the circulation of publications favouring the so-called “reformed religion”: *Ne pourront les livres concernant la dite religion, prétendue réformée, être réimprimés et rendus publiquement qu’ès villes et lieux où l’exercice public de la dite religion est permis; et, pour les autres livres qui seront imprimés en autres villes, seront vus et visités tant par nos ordonnances. Défendons très expressément l’impression, publication et vente de tous livres, libelles et écrits diffamatoires, sous les peines contenues en nos ordonnances, enjoignant à tous nos juges et officiers d’y tenir la main.* ^[175]

The essential point of this provision appears to be the restriction of the sale of Protestant books to certain cities and districts (the list of which is given elsewhere in the Edict), in which the public exercise of said religion was authorised. It is worth noting, however, also, that these Protestant books are practically classified as libels and inflammatory writings. The difficulties in the way of the authors and publishers of such books must have, at the time, been very considerable. It does not appear that any provision was made for the circulation of such publications between the cities in which they were permitted to be issued, as such circulation must, of course, have taken them across the “good Catholic” territory, within the boundaries of which these Protestant books were incendiary libels. There could in but few cases have been any possibility of securing within the limits of any single Protestant city, such, for instance, as Rochelle, a sufficient sale for a book to render its sale remunerative, or even to return the outlay required; while there were no university funds or royal bounties within the reach of Protestants with which to facilitate the publication of unprofitable works. There is little

probability, therefore, that for the Protestant works published in France during this period the authors were able to secure any compensation whatever, while for the majority of such books the authors or others interested must themselves have provided the investment required.

An enactment of 1618 codified the various separate regulations for the supervision and control (*la police et la discipline*) of the business of printing and of publishing. Among the previous regulations which were repeated in detail in this enactment were those dating May, 1571, the substance of which is as follows:

“The master printers now doing business in the city of Paris, shall choose each year two from among their number with two of the twenty-four master publishers certified (*jurés*) for the same year, the functions of whom shall be to prevent the printing of any work of a libellous or incendiary or heretical character; and to insure the correctness and satisfactory quality of the editions which may be printed in each city of the realm.” This last responsibility was understood to cover not only an approval of the quality of the paper and the presswork, but also a careful supervision of the correctness of the type-setting and of the quality of the type, which must not be worn (*trop usée*), and if these supervisors find errors calling for reprimand, they are to make report of the same before either a civil or a criminal judge according to the nature of the fault.

The said publishers are limited in the prices they are permitted to charge for their publications, the price per sheet for works in Latin (not including notes in Greek) not to exceed ten deniers, for works in Greek not to exceed six deniers. There is a further clause providing for a proportionate reduction in the schedule of prices specified, whenever in the judgment of the Rector, deans, masters, and twenty-four certified publishers of the University, a lessening of the cost of production or of handling may justify such reduction.

In 1587, an order in council confirmed the exemption of the book-business from all subsidies and from customs duties and municipal tolls and taxes. In 1617, the Syndic and directors of the Guild of publishers, printers, and binders submitted a request to the Provost of Paris to be authorised to select for a special commission to take into consideration the condition of the book-business, six certified publishers, six non-certified publishers

(practically book-dealers), and six printers. To this commission were joined the Syndic of the Guild and four of its board of directors, and under its recommendations and as a result of investigations extending into the following year, were drafted the regulations embodied in the letters patent of 1618.

The preamble says:

Et d'autant que, parmi le bruit et l'insolence des armes, ceux qui font profession des bonnes lettres ont été les plus opprésés et comme réduits à néant, nous avons, en ensuivant les anciens vestiges de nos prédécesseurs, apporté tout le soin à nous possible de les rétablir en leur première splendeur, principalement en ce qui regarde notre fille aînée, l'université de notre bonne ville de Paris, etc.

It is to be noted that the profession of letters is made practically synonymous with the University of Paris. The statutes contain thirty-eight articles. The first confirms the franchises and immunities of the Guild of publishers, printers, and binders.

Articles 2, 5, and 11 give consideration to the subjects of apprenticeship, the admission of associates and of masters, the obligation (for each master) of keeping not less than two presses in running order, the rights of widows, etc.

The twelfth article prescribes that all printers and publishers must print their books in handsome, legible type, carefully corrected, and on good paper, and that each volume must bear at its beginning or end the name and trade-mark of its publisher, and the record of the privilege and permit under which it is issued; and in case the book has been printed without permit, the entire edition is to be confiscated, in addition to further penalties.

Article 13 provides that printers or publishers who issue books of a libellous or defamatory character, shall be deprived of their privileges and immunities, and shall, thereafter, be enjoined from exercising the trade of printing or book-selling.

This article, however, was not intended to trench upon the sphere of penal legislation. In this same year, 1618, a poet named Durand, convicted of having written a libel against Louis XIII., was condemned to be broken on

the wheel and afterwards burned. Two brothers, Italians, were executed with him, for having translated the book into Italian.

Article 15 specifies that two copies of each book published were to be deposited in the Royal Library (an increase of one copy over the requirements of the enactment of 1571), one copy was to be given to the Syndic, apparently for use in the Guild library, and four copies could be retained for the printers and their associates.

Article 16 provides that for the future not more than one publisher, one printer, and one binder should be admitted each year to the Guild, the purpose being to reduce the membership of this.

Article 17 provides for the election each year of the Syndic and of two of the deputies.

Article 18 gives consideration to the examination of books by the syndics, to the restrictions to be placed upon the trade in France of foreign book-dealers, to colporteurs, book-sales, etc.

Article 19 provides for the seizure of unauthorised foreign reprints of French books.

Article 30 forbids any single individual or firm from having more than one shop or printing-office, which must (doubtless for the greater convenience of official supervision) be within the precincts of the University.

Article 31 forbids the sale of books in book-stalls and book-carts.

These last two prohibitions were considered of sufficient importance to be repeated in a separate act issued in 1630. They were directed more particularly against the practice which was increasing among certain persons of quality of keeping printing-presses in their houses.

Article 32 forbids, under penalty of confiscation of goods and 3000 francs fine, the printing outside of the kingdom of any work to be issued with a French imprint, or the disguising or concealing of either the publishing imprint or the record of the place of manufacture.

Article 38 provides that each publisher, printer, and binder must be sworn before the Provost of Paris, or his deputy, in the presence of the *procureur* of the King.

The noteworthy changes brought about by the enactment were: the reduction in the number of authorised publishers and printers, a reduction to be brought about by the limitation of the new members to one of each class per year, the transfer to the Provost of Paris of a function heretofore exercised by the University, and the restriction of the printing-presses in such a manner as to facilitate the police supervision of the authorities.

The Relations of the Crown to Literary Production and the Attempt of the Church to Secure a Portion of the Control.—The tendency of all the enactments during the previous thirty years had been, as we have seen, to concentrate in the hands of the Crown, acting directly through its own subordinates, the control of literary production.

From time to time, however, the Court of Parliament reasserted its claim to the exercise of a joint control with the King, and the declaration of 1612 appears to have been issued in order to put an end to any such claims.

Défendant très expressément a nos âmes et nos feaux conseillers, maîtres des requêtes, et gardes des sceaux de nos chancelleries, et de nos cours de parlement, donner aucune permission d'imprimer livres ou écrits, sur mêmes peines que dessus contre les imprimeurs ou librairies qui auraient obtenu telles permissions.

Authorisation to publish was from this time on dependent on the securing of permits sealed with the royal seal.

In 1624, four royal censors were instituted by letters patent. Two of them were to have each six hundred livres a year, and the others, four hundred livres. The first four censors, André Duval, Pierre Quedarne, Jacques Messier, and François de Saint Père, were all doctors of the Theological Faculty of Paris. The privilege of filling such vacancies as might occur in the board was in the first place given to the College of the Sorbonne. Notwithstanding this selection of the board from the members of its own Faculty, the University, or at least the theological division of the University, was seriously dissatisfied with losing its ancient privileges of controlling directly the examination of religious literature. In 1629, fresh regulations were issued by the Crown in connection with the censorship, under which, works submitted for publication, instead of being examined by a board appointed in advance, were passed upon by censors particularly designated for each work by the Chancellor or the Privy Seal. In 1658, the Chancellor

Séguier had designated three readers or examiners who again appear to have constituted a permanent board.

Notwithstanding the edict of 1629, the Theological Faculty of the University continued to claim the right to pass upon all publications of a religious character. This right was also recognised in ordinances of a later date, and the examinations of the Faculty were held concurrently with those of the royal censors or of the deputies designated by these. Under the ordinance of 1629, the publisher or author seeking a permit to print was obliged to submit for examination two complete copies of his manuscript, a requirement which could be modified only under the authority of the Chancellor or Privy Seal.

The general result of the ordinance of 1629 was not in the direction of freedom for the printing-press, but there were certain advantages secured by the writers and makers of books in having consolidated into one code restrictions and regulations which had heretofore existed in isolated letters, ordinances, and edicts. The creation of royal censors, an act harmonising with the centralising tendencies of the times, may be understood also as a recognition on the part of the Crown of the increasing influence of literature, and of the importance of bringing literature into direct dependence upon the authority of the monarch.

The founding, in 1635, of the French Academy, had an important influence as well upon the organisation of authors as upon the relations of these with the Crown. It was the general scheme of Richelieu, continued later by Louis XIV., in the first place to put literature exclusively under the authority of the Crown, and secondly, through privileges and favours, to secure its support for the interests of royalty. It is evident that the King, or at least the King of this date, neither created nor extended the supervision of literature, for the idea had as yet occurred to none that the printing-press could be left free. There was also, probably, no deliberate purpose to bribe or corrupt the authors of the time. It was, however, no new idea for men of letters to be dependent upon the favour of princes, and there was, it is fair to remember, a certain direct advantage for literature as well as for the Crown in adding to the social position and general welfare of writers. While the edict establishing the Academy bore the date of 1635, its incorporation was completed only by the *lettres de cachet*, of July 10, 1637. In these letters appears the following curious restriction:

“Provided, namely, that the members of said Assembly and Academy shall concern themselves only with the history, embellishment, and development of the French language,” a restriction which was evidently acted upon, later, with considerable breadth of interpretation.

In 1686, a further enactment for the supervision of publishing and printing was recorded in the Parliament of Paris. In this were repeated the several provisions in the enactment of 1629, with the following modifications: Three complete copies, instead of two, of each book printed, should be deposited, and no additional printer should be admitted into the Guild until the number of master-printers had been reduced to thirty-six. There was also a provision forbidding publishers from carrying on a printing business under their licence as publishers. The board of control of the Guild is given special authority for the examination of works imported from abroad, with the purpose of preventing the circulation in France of *Livres ou Libelles diffamatoires contre l'honneur de Dieu, le bien et repos de notre état, ou imprimés sans nom d'auteur, ou du libraire, ou des livres contrefaits sur ceux qui auront été imprimés avec privilège*, etc.

In the same year appeared an enactment, under which the bookbinders and gilders were separated from the Guild of publishers and printers. As in 1618 and in 1649, the University found ground for complaint that these regulations had been framed without its participation. It secured the appointment of a commission of State councillors to examine into its complaint, but the report of the commission was adverse to the contention of the University. Of its old responsibilities and privileges for the supervision and control of literary undertakings, there rested now with the University only certain inconsiderable forms, and the restriction upon printers and publishers to carry on their business in the University quarter.

The issue of permits and the charges to be paid for the same, were regulated by letters patent of 1701, the provisions for pamphlets being made different from those for books. The authorisation for the printing and publishing of books was, as heretofore, to be granted under the great seal. The authorisation for the printing of pamphlets was to be given by the local magistrates, and after an examination of the material by inspectors appointed by the magistrates for the purpose. A pamphlet was defined to be a work containing not more than two sheets. When the permit given under the great seal included a general privilege securing for the publisher the

exclusive control for the kingdom of the work issued, the sum paid for the same was to be determined by the general tariff of the great seal.

When the permit gives control over a limited district only, the charge is made but one third of that for a general privilege. If the authorisation includes no privilege, either general or limited, the sum paid for the same shall be five livres.

When the works are published in series, the different parts of which are issued at different times, each part must be examined and authorised for itself; and each examination must in any case include the prefaces, dedications, and supplements.

The “general privileges” associated with permits, referred to in these letters, are not to be confounded with another class of general privileges which were from time to time conceded directly by the Crown either to individuals or to associations or companies as well for works already composed as for those still to be written. This latter class of royal privilege was abolished, and those in force at the time were revoked, by orders in council of 1659 and 1686. An exception, however, was made as late as 1714, in the case of certain general privileges accorded by the Crown to the Academy of Letters, and to the Academy of Painting and Sculpture.

A contest arose, in 1702, between the Chancellor de Pontchartrain and the higher clergy on the question of certain general privileges which the bishops claimed to be still in force. The bishops, possessing already an unquestioned right to print, without special permits, their episcopal charges and letters, and also the catechisms used for the instruction of the young people of the diocese, thought they could take advantage of the ardour of the King against Jansenism and Quietism, gradually to extend their privileges so as to make these include all works of a devotional character.

The Chancellor refused to give consideration to any such claims and the resulting disputes continued over some years. The bishops contended that, being themselves the final judges of the doctrines of the Church, utterances made by them, or utterances or writings accepted by them, could not with propriety be passed upon by others who were not authorities upon points of doctrine.

The Chancellor simply maintained the binding force of the old regulations, and took the ground that, while the Government would always require the counsel of the bishops on literature involving points of doctrine, the final decision as to the advisability of the publication of any particular work must, as heretofore, rest with the Crown. He undertook further to take all necessary measures to prevent the publication of any works which might appear to be inimical to the liberties of the Church of France.

Madame de Maintenon gave the weight of her influence in favour of the bishops, the question having come up in tangible shape in connection with certain works that the Bishops of Meaux and of Chartres had written in controversy with a certain prolific writer named Simon, and which were now in readiness for the press.

The King dreaded exciting the ire of the Jesuits and dreaded also, says the chronicle, the risk of putting Madame de Maintenon into a bad temper. He avoided, therefore, making a decision, and contented himself with expressing the wish that the parties would arrange some adjustment of the difficulty. An adjustment was finally arrived at, under which the bishops withdrew their pretensions concerning the general oversight of doctrinal literature, but reaffirmed their right (which had never been disputed) to have their counsel taken before permits were issued for any works of this class. The privilege was accorded to them (this concession being practically the sole result of the issue) of printing and publishing, without official permit, works written by themselves. The control of documents concerning ritual and of catechisms was also left in their hands.

Disputes subsequently arose concerning the interpretation of the authority for the publication of works written by the bishops. They themselves and their Jesuit allies, with the powerful aid of Madame de Maintenon, contended that this authorisation covered all doctrinal literature. The Chancellor, on the other hand, maintained that it was limited to missals, rituals, books of the liturgy, and other official volumes connected with the service of the Church. A formal decision does not appear to have been arrived at, but in the subsequent practice the view of the Chancellor was in the main adhered to.

Bossuet wrote to the King, to Cardinal de Noailles, and to Madame de Maintenon several indignant protests concerning the attempt of the

Chancellor to control the utterances of the Church. It is not to be thought of, says Bossuet, that the Holy Church of Christ shall be compelled to submit, for the examination of magistrates, its decrees, catechisms, and spiritual teachings upon matters which would be confined strictly to the instructors of their flock. The Church must be left free to print, sell, and distribute its prayers and its instructions to its children and its ministers. The responsibility that has been placed in the hands of the rulers of the Church for the preservation of the faith and for the instruction of the people in this faith, comes to them from Christ himself, and any attempt to take away or diminish this responsibility is an attack upon the faith and an intention to humiliate the Church.^[176] The King, influenced by the pleading of Bossuet, finally brought himself to a decision, which, while not covering all the questions involved, gave to the bishops whose works were at the moment under consideration the satisfaction claimed. To the Bishop of Chartres was accorded, in 1703, a general privilege for the term of ten years covering all breviaries, missals, diurnals, antiphonals, graduals, processional, episcopal letters, psalters, hours, catechisms, ordinances, statutes, and pastoral instructions which were required under the general usage of the diocese.^[177]





CHAPTER IV.

THE BEGINNINGS OF LITERARY PROPERTY IN ENGLAND.

1474-1709.

IN the preceding studies of the varying relations to the Government and to the community of literary productions and of the gradual development under the extension of the system of local privileges of the policy of protecting and encouraging literary production, but little reference has been made to the publishing methods and the conditions of literary production in England. It was in fact the case that during the first two centuries after printing, the conditions in England had very little influence upon the development of any European system for controlling or protecting literary production. The work of the earlier English printers was, as we have seen, addressed much more to the tastes of the local public than to the requirements of the scholars of Europe, and while a certain proportion of books were, in England as on the Continent, printed in Latin, this proportion was much smaller than with the undertakings of the contemporary publishers of Holland, Germany, and France.

While increasingly large importations were made from year to year, more particularly from Paris, Amsterdam, Basel, and Cologne, of books needed for use in Oxford, Cambridge, and London, the export during these two centuries for Continental sale, of books printed in England, was but inconsiderable. In the matter of legislative enactments, or of the policy of the State towards literary production, we have seen Paris following to some extent the precedents set in Venice. Upon this same general system of privileges for short terms and for limited territory, privileges gradually extended to longer terms and to cover additional States. The earlier practice in Germany had on the whole also been based upon the Italian precedents. Holland was the first of the European States to issue privileges without conditions depending upon censorship, but apart from this very essential distinction, the Dutch privileges were, in form, very similar to those of Venice and Milan. In no one of these countries does any particular attention appear to have been given to the methods and practices of England, and the

English system for the regulation of literary property, a system which grew up in connection with the practical monopoly given to the Stationers' Company, appears to have taken shape (English fashion) with very little, if any, reference to Continental precedents. The Stationers' Company received its charter, by royal decree, in 1556 (two years after the marriage of Queen Mary to Philip of Spain). It constituted an organisation of the printing and publishing trade of London which assumed to represent the publishing interests of the country. The Company differed from the book-trade association of Paris in that it had no direct connection with either of the two Universities, and held its authority directly from the Crown. The *libraires jurés* of Paris were, it is to be remembered, members of the University, and the regulations governing their operations formed part of the law of the University. The members of the British Company, on the other hand, were manufacturers and traders who had received directly from the Crown a monopoly of the business of printing books, and the regulations formed for them and by them required only the approval of the royal authorities or representatives of the Crown, and when this had been given, these regulations became the law for the control of the book-trade, and for the control also of the literary property (the property in "copy") that was, from year to year, coming into existence and increasing in importance. The basis of the authority of the Stationers' Company was the theory that all printing was the prerogative of the King. While this theory was never pushed to its logical conclusion, it secured a certain foundation in the direct ownership and monopoly asserted and enforced by the Crown in the printing of certain classes of literature which formed the most considerable and remunerative of the earlier productions of the English Press, such as prayer-books and other works of service of the State Church, of which Church the King was the head, the editions of the Bible, the cost of translating which had been borne by the Crown, almanacs (on the ground that they were abstracted from the prayer-book), year-books, Acts of State, etc. The assigns of the royal copyright in almanacs were not always, however, able to support their claim to an exclusive control. Scrutton cites one case (among several) in which this claim was overruled. [\[178\]](#)

The printers did not attempt any opposition (which would in any case have been futile) to these contentions of the Crown. They purchased patents or privileges for the production of the King's books or publications owned by the Crown, and they found it to their advantage, at a time when the Crown

was all-powerful, to strengthen their position with the community at large by securing the royal sanction and a royal grant for the undertakings to the originating of which the Crown could make no claim. Such property-right as could be said to exist in these last was also derived from the royal grant. The distinctive feature in the development of literary property in England may be said to be the all-important part claimed and exercised by the Crown in its creation and protection. I do not find in any other State of Europe a parallel to the relation of the Crown to the beginnings of copyright. Even in France, where the supervision of the Press passed eventually into the direct control of the King, the royal edicts and privileges give the impression rather of defining and of limiting than of creating property in the "copy." I do not overlook the contentions that came to be argued out at a later date concerning the existence of copyright as a property at Common Law, an existence apart from and independent of a royal edict or of a legislative statute. I am merely pointing out the actual form given to these preliminary undertakings of the English printer-publishers, under which form they secured directly from royal authority the right to hold and to defend their "copy."

I will recall for the purposes of this summary, that the first privilege in England bears date 1518, and was issued to Richard Pynson, King's Printer, the successor, second in line, to Caxton. In 1504, we find the first record of the office of "Printer to the King," when William Faques placed on the title-pages of his books the term *Regius Impressor*. The office apparently continued in existence, with rather varying functions, until the revolution of 1688. The successor of Faques was Richard Pynson, and he was the first English printer to use the term *cum privilegio*, which appears on the title-page of one of his books in 1518. The full wording of this privilege is worth quoting:

Cum privilegio impressa a rege indulto, ne quis hanc orationem intra biennium in regno Angliæ imprimat aut alibi impressam et importatam in eodem regno Angliæ vendat. This privilege gives a monopoly, for the term of two years, for a certain *Orationem*. The date is fifteen years later than that of the first privilege issued in France. The shortness of the term is to be noted, the majority of French and Italian privileges of this period being for from five to ten years. Pynson prints on his title-pages simply *cum privilegio a rege indulto*, without any reference to limit of term. In 1530, a

privilege of seven years is granted to an author in consideration of the value of his work, and this appears to be the first record of an English copyright being granted to an author.^[179]

The first dispute about English copyright of which we have record, arose about 1530, when a printer named Trevers reprinted, without authorisation, a work the privilege for which had been issued to Wynkyn de Worde. The preface to Worde's second edition, issued in 1533, contains a vigorous complaint at this piratical interference with his rights, but does not inform us what steps, if any, had been taken to defend these rights. Scrutton does not mention the name of the book, but it was probably *The Mirroure of God for the Sinfull Soule*.

Royal privileges continued to be issued during the sixteenth century, while after 1556, the entries in the registers of the Stationers' Company are made evidence of the exclusive rights to the persons named for printing the book specified. Finally the privileges issued by the King came to an end, being superseded by the registers of the Company. The King's privileges had been for specific, and usually for quite brief, terms. The entries of "copies" on the Stationers' registers made no specification of terms, and such property rights as were indicated or initiated by these entries were, therefore, for an indefinite term and could be claimed to be in perpetuity. These Stationers' Hall entries were in certain respects similar to the records in the Land Office of a western Territory or in the County Clerk's office of a State, records which serve as final evidence of the title or ownership of the lands specified. The copyright registers served as do the land records, for the transfers of ownership as well as for the original certificate of ownership, and with the "copies" as with the parcels of land, the ownership was understood to be based on the Common Law, and to be in perpetuity. The King's patents or grants for the "copies," the ownership of which, as previously specified, was claimed by the Crown, continued to be given for specified terms, to certain favoured individuals selected as "Printers to the King." Apart from these books, the specification of a limited term for the control of any particular book ceases with the close of the royal privileges.

As before stated, the Stationers' Company, in giving title to property in a "copy" or literary production, acted as the representative of the authority of the Crown, an authority which had, it was claimed, been bestowed upon it by the royal charter. Under this royal authority, the Stationers' Company

possessed for a long series of years the monopoly of printing throughout the United Kingdom. Printing could be done only by the members of the Company, and the by-laws adopted by the Company for the regulation of printing, in so far as they did not conflict with the statutes of the kingdom, became part of the law of the land.^[180] The purpose of the earlier English ordinances concerning printing, and of the ordinances establishing the Stationers' Company itself, was specified in substance as follows: "The order and regulation of printing and of printing-presses in the interests of Church and State."^[181] The operations of an association of printers, an association which owed to the Crown its existence, its authority, and the property rights in its valuable monopoly, could be supervised and controlled to an extent that would not have been practicable with the undertakings of printers acting independently. With reference to the maintenance of the royal authority, it was certainly wise policy for the Crown thus to secure and to maintain an effective control over the work of the printing-press, this new instrument for influencing public opinion. The later effect of this royal absolutism was, curiously enough, to secure an earlier and more definite recognition in England than was reached in any other country, for property in literary production, and for the right of literary producers to control and to enjoy the results of their labours. The fact that there was a property, without limit or term, in the "copy" of a literary production, that is, in its copyright, was understood to have been established by the evidence of the Stationers' registers, and by the assured practice, extending over a series of years, of authors, printers, and publishers. The control of the work of the Stationers was, in 1637, placed in the hands of the Star Chamber, and the decree issued in that year by the Chamber had for its immediate purpose the regulation and restraining of the printing of "libellous, seditious, and mutinous books." As an essential detail of this regulation, it was again ordered that "every book should be licensed and entered into the Register's book of the Company of Stationers." The replacing, in 1640, of the absolutism of the Star Chamber by the absolutism of the Long Parliament (an absolutism no less arbitrary, though based upon a very different source of authority) made no change in the completeness of the authority left with the Stationers' Company. The Parliamentary Ordinances of 1641, in prohibiting printing or importing without the consent of the owner of the copies of said books, constituted a clear statutory recognition of property in "copy," a recognition evidently resting, says Scrutton, upon an

understanding of its existence under the Common Law.^[182] The Act of 1643 for “redressing disorders in printing,” and the licensing Act of 1662, while also having for their main purpose the control of literature of political influence, continued to affirm or to imply the existence of property in the “copy” of books. A reference in the latter Act indicates that the owners of “copies” were at this time not necessarily members of the Stationers’ Company. The inference is that an author, in arranging to print his book through a licensed stationer, did not always dispose of his copyright. The licensing Act gave a statutory protection for copyright, a protection the provisions of which were of necessity limited to the term of the Act itself and of its several renewals, the last of which expired in 1694. While the recovery of statutory penalties was thus limited, the expressions used in the Act, as was the case with the preceding Acts, made continued recognition, by expression or by implication, of the existence of copyright property independent of the statute, the protection of which could be maintained under the Common Law. The English authorities on the subject, Maugham, Coppinger, Scrutton, and others, and the American Drone, are at one in the opinion that, at the period in question, the close of the seventeenth century, it was the general understanding that authors possessed in their productions a perpetual right of property, and that this right could be assigned. Such an understanding, an understanding upon which were based Parliamentary Acts for regulation and for licence, and in accord with which were carried on important and continued business undertakings, marked a development in the conception of literary property which had as yet been reached in no other country. Scrutton admits that the records of the courts do not supply the evidence that might be looked for in support of this contention. There are, namely, no entries of prosecutions in the advisory courts for printing without a licence.^[183] He points out, however, that the Stationers’ Company had under its charter summary rights of search, seizure, and imprisonment, and that similar powers were confirmed or renewed by the Licensing Acts. In case of infringement, therefore, no recourse to the ordinary courts was needed, and no records of proceedings would exist.

The Act of April, 1710,^[184] known as the Act of Queen Anne, under which a statutory protection for a term of fourteen years was given to the author of a literary production, had the result of bringing to a close for Great Britain the period of Common Law copyright. This result was probably not

intended by the legislators who framed the Act, and was certainly not anticipated by the publishers at whose instance the matter had been taken up, and who were simply applying for a more specific and more effective protection (during such term as Parliament saw fit to grant) for the property in their “copies,” of the existence of which property there had as yet been no question. It was, in fact, not until 1769 that any serious contention was raised against the continued validity of copyright at Common Law. In that year the Common Law right was maintained in the decision rendered in the famous case of *Millar vs. Taylor*, a decision rendered the more noteworthy because it was concurred in by Lord Mansfield, the greatest authority on the subject of copyright whom Europe had thus far known.

In 1774, in the case of *Donaldson vs. Becket*, the issue was raised for the second time, the property involved being the same in each suit, the “copyright” of Thomson’s *Seasons*. In this case, the House of Lords reversed its previous decision. Its conclusion was in substance: first, that an author had a Common Law right to his production before publication (ten judges in the affirmative and one dissenting); second, that after the publication such Common Law right still rested in the author (eight judges in the affirmative and three in the negative); third, that under the statute of 1710, the author had lost his right of action at Common Law and retained protection for his copyright only during the term prescribed by the statute (six judges in the affirmative and five in the negative); fourth, that the right at Common Law possessed by the author and his assigns prior to 1710 had been a right in perpetuity (seven judges in the affirmative, four in the negative). In each of these votes, including that on the vital issue of the effect upon the Common Law right of the statute of 1710, Lord Mansfield was recorded in favour of the continued right of the author at Common Law, and of the perpetuity of copyright, irrespective of the effect of this statute.

The result of this decision in *Donaldson vs. Becket* was, as said, to bring to a close what may be called the Common Law period of copyright in England, and to replace this by a copyright protection limited to terms of the successive statutes. This whole matter is in its date beyond the period considered in the present narrative. For this reason, notwithstanding the continued pertinence and importance of the issues raised in these two noteworthy suits and the distinctive interest of the arguments presented by

the famous advocates on either side of the question, it has not seemed to me in order to undertake to give here any detailed analysis either of the arguments or of the two decisions arrived at. It is proper, however, to make this brief reference to the results of these two cases as well because the Act of 1710 marked, as explained, a definite epoch in the history of literary property in England, as because this Act, the discussions which gave rise to it, and the much more important discussions which resulted from it sixty years later, marked a development in England of a conception of literary property and of an education of public opinion concerning it which had not as yet been reached in any State in Europe. We find in France no such discussions and no legislation based upon a recognition of the principles underlying literary property, until the Convention of 1793. It required a revolution to bring about in France a result that in England was arrived at in regular course in the ordinary development of law.

This brief reference to the development in England of the recognition of the rights of literary producers may be fitly concluded with a quotation from the eloquent plea of John Milton in behalf of the liberty of the printing-press.

In 1644, an order for the regulation of printing was under consideration in Parliament (the Long Parliament) which provided that "No Book, Pamphlet, or Paper, shall be henceforth printed unless the same be first approved and licensed by such as shall be thereto appointed." Milton had been a persistent opponent of the policy of censorship and licensing, and in defiance of the ordinance of 1643 (an ordinance in which the decrees of the Star Chamber abolished in 1640 had been in substance renewed) he had published in that year, without licence and without printer's name, his treatise on *Divorce*. The Stationers' Company, recognising the danger to their authority of a defiance by an author like Milton, had the matter brought up in the Commons. It was referred to the committee on printing and the order above cited was the result. The famous *Areopagitica*, an oration in the form of a pamphlet, was then written by Milton to protest against the whole theory of the exercise by Government licensers of a supervision and control of literature, or of the delegation of such control to a commercial company which was the creation of Government. The author of *Paradise Lost* speaks as follows:

“For that part which preserves justly every man’s copy to himselfe, or provides for the Poor, I touch not, only wish they be not made pretenses to abuse and persecute honest and painfull men, who offend not in either of these particulars. But that other clause of Licensing Books, which we thought had dy’d with his brother Quadragesimal and Matrimonial when the Prelats expir’d, I shall now attend with such a Homily as shall lay before ye, first, the inventors of it to bee those whom ye will be loath to own; next, what is to be thought in generall of reading, whatever sort the Books be, and that this Order avails nothing to the suppressing of scandalous, seditious, and libellous Books, which were mainly intended to be suppress’d; last, that it will be primely to the discouragement of all Learning and the stop of Truth, not only by disexercising and blunting our abilities in what we know already, but by hindering and cropping the discovery that might bee yet further made both in religious and civill Wisdome.

I deny not, but that it is of greatest concernment in the Church and Commonwealth, to have a vigilant eye how Bookes demeane themselves as well as Men; and thereafter to confine, imprison, and do sharper justice on them as Malefactors. For Books are not absolutely dead things, but doe contain a potencie of Life in them to be as active as that Soule with whose progeny they are; nay, they do preserve as in a violl the purest efficacie and extraction of that living intellect that bred them. I know they are as lively, and as vigorously productive, as those fabulous Dragons’ teeth, and being sown up and down, may chance to spring up armed men. And yet, on the other hand, unlesse wariness be us’d, as good almost kill a Man as kill a good Book; who kills a Man kills a reasonable creature, God’s Image; but hee who destroys a goode Booke, kills Reason itselfe, kills the Image of God, as it were in the eye. Many a Man lives a burden to the Earth; but a goode Booke is the pretious life-blood of a master spirit, inbalm’d and treasur’d up on purpose to a Life beyond Life. ’T is true, no age can restore a Life, whereof perhaps there is no great losse; and revolutions of ages doe oft recover the losse of a rejected Truth, for the want of which whole Nations fare the worse. We should be wary therefore what persecution we raise against the living labours of publick men, how we spill that season’d Life of Man preserved and stor’d up in Books; since we see a kinde of homicide may be thus committed, sometimes a martyrdome; and if it extend to the whole impression, a kinde of massacre, whereof the execution ends

not in the slaying of an elementall Life, but strikes at that ethereall and first essence, the breath of Reason itselfe, slaies an Immortality rather than a Life.”[\[185\]](#)





CHAPTER V.

THE DEVELOPMENT OF THE CONCEPTION OF LITERARY PROPERTY.

I HAVE endeavoured in the foregoing pages to describe the varying conditions under which was carried on, during the ten centuries succeeding the fall of the Roman Empire, the production and distribution of literature. The term “books” is, of course, not strictly applicable to a large portion of the material produced by the scribes during the manuscript period. As a matter of convenience, I have used the phrase “production of literature” to cover what should, speaking more precisely, properly be described as the reproduction or multiplication of literature. The labour of the scribes during the manuscript period was given, as has been noted, almost exclusively to the production of copies of the more or less fragmentary texts that had been preserved from the classic period, or from the writings of the Church Fathers. The case was the same with the earlier printers, whose undertakings were in like manner devoted to old-time literature and with whom the production of a work by a contemporary writer was a comparatively rare exception. During these ten centuries, not a few writers did noteworthy work, and some of the great books of the world’s literature belong to this manuscript period. Even, however, with books recognised later as famous, the fame came but slowly, so that the requirement for the multiplication of those for which demand arose became the task of scribes of the generations succeeding that of the author, rather than of those of his own time. An author like Pope Gregory I. with the vast machinery of the Church at his disposal, was in a position to secure for his writings an immediate distribution and during his own lifetime, to trace the influence of their teachings. Except, however, in such special cases, writers were obliged to content themselves with such present measure of appreciation as might be given by sympathetic readers or hearers in their own monasteries, leaving such of their productions as possessed any abiding vitality to gain repute with future generations of monkish readers, as copies slowly made their way from *scriptorium* to *scriptorium*.

During this long period in which the chief difficulty lay in the distribution of books, and in which an author who had anything to say to the world was only too happy if, during his own lifetime, it might prove practicable to reach with his books any number of men outside of his own immediate circle, there could, of course, be no question of property or copyright control in the literary production. Such property as might be said to exist in literature pertained solely to the material form, the manuscript produced, which represented a certain value for parchment and for labour.

After the time of Charlemagne, when there came to be, in a few Court circles and in the homes of the more active-minded noblemen following the fashion set by the Court, an interest in the preservation of literature, we find record of compensation paid to literary producers. Such compensation came first, naturally, to the scribes, who possessed sufficient learning and technical skill to place before the communities in which they themselves lived, the learning of the past. Later, with the beginning of original writing in the form of chronicles, there are instances of rewards or honours conferred upon the monkish chroniclers by the kings or princes whose ancestors were glorified, or whose personal deeds were commemorated. The rewards for literary labour, rewards given, as said, almost exclusively to clerics, most frequently took the form of ecclesiastical preferment. A prebend or a bishopric cost little or nothing to the King, while it meant for the author a very substantial compensation. It is the clerical character of the author and the ecclesiastical nature of his compensation which constitute the principal distinction between the beginnings of compensation for literary labour in the Middle Ages and the arrangements under which were rewarded the poet-chroniclers of the later classic times. The authors of the earliest literature-producing periods sang, as it will be remembered, under the incentive not of princely gifts, but of popular appreciation.

The records of the Benedictine monasteries give evidence of the production and accumulation of certain property in the form of literature, property which increased in available value as methods were developed for exchanges between the different monasteries of the surplus copies of their texts, and which assumed still more importance when, with a gradually developing interest in literature, wealthy laymen were occasionally prepared to give in exchange for the precious manuscripts, lands, cattle, moneys, or desirable privileges. With the development in the respect for

learning and letters which in certain portions of Europe followed the establishment, under the general direction of Alcuin, of the imperial schools of Charlemagne, the influence and fame of the monasteries came to be measured very largely by their respective literary activity, the importance of the ancient codices preserved in the *scriptoria*, and the beauty and accuracy of these texts. A monastery, the collections and the *scriptorium* of which had in this manner become famous, would be visited by monastic scholars from distant *parts who sought opportunity to examine, and possibly to copy*, the precious texts, and it was this class of institutions that would be resorted to by the higher class of recluses, who, retiring from the world, enriched with their fortunes the Benedictine foundations. The schools of the literary monasteries would also be selected for the training of the young princes and noblemen, from whom in later years protection and endowments for their *almæ matres* could often be depended upon. When learning and literary activity served in these several ways to bring to a monastery fame and fortune, it was natural for the monks, whose service as scholars, instructors, and scribes had proved most effective in the *scriptorium* and in the schools, to be selected for honour and preferment, and that the learned *armarius* or *librarius* should frequently become the abbot, and should, later, find himself bishop or archbishop, or even pope. The elevation to the papacy, in 999, of Sylvester II., previously known as Gerbert, Abbot of Bobbio, and as Bishop Gerbert, is an example of such a progress from the *scriptorium* to the leadership of the Church. I do not, of course, undertake to say that either in Gerbert's time or during any century of the period in question, there was throughout the monasteries and the ecclesiastical communities as a whole, any universal respect for learning and for literary industry, and that honours and preferment always followed in proportion to the value of the scholarly service rendered. I only point out, as has been stated in the chapters on the monasteries, that even in the so-called "Dark Ages" of Europe, the ages of which the year 1000 may perhaps have been the centre, this was very much more largely the case than is always remembered by historians of a later period writing from a Protestant point of view, some of whom, like D'Aubigné, have appeared to contend that learning and literature had been buried during the thousand years of Catholic rule, and had only been rediscovered by Luther and Calvin. The groundlessness of this kind of contention has, I think, been made clear in the brilliant dissertation on the Dark Ages by the Protestant Maitland, while a mass of testimony in support

of Maitland's views has been collected by Montalembert, evidence the value of which may be weakened but cannot be nullified by the wordy eloquence with which it is presented.

I have spoken of certain monasteries becoming the resort of literary pilgrims on account of their ownership of some treasured manuscript handed down from an earlier generation. When, as was frequently the case, the production of copies of such a text was prohibited altogether, or was permitted only to members of the monastery itself, we have an example of a copyright control of the earlier kind, a control resting upon the ownership not of the text but of the parchment upon which the text had been placed. If, for instance, a well authenticated copy of Augustine's *City of God* was held in the *scriptorium* of Fulda, and another copy, perhaps equally famous, belonged to that of St. Gall, each monastery could prohibit the copying of its own parchment, and could in this manner control the "copyright" of its own particular text. It is to be borne in mind that no two manuscripts could be in exact accord and that a particular character or authority frequently attached to the text or version presented in a particular parchment. Neither monastery could, in the case imagined, assume any right to control what the later English law termed the "copy" of S. Augustine's treatise, but each exercised what was in substance a copyright at Common Law over the text inscribed on its own particular parchment. In the chapter on S. Columba, reference was made to the famous copyright contention between Columba and the Abbot Finnian, a case the date of which is given as 567, and which was probably, therefore, the earliest copyright issue decided in Europe. While the story itself is in all probability merely one of the long series of legends which grew up about the brilliant Irish saint, it may well have had some historic foundation. The more important consideration, is, however, in the fact that whether the story were true or not as applied to S. Columba, it represented an impression in the mind of the chronicler Adamnan, writing not half a century after the death of the saint, concerning the conception of property in a form of ideas or of instruction, a property which, as made clear in the story, was entirely apart from that inhering in the parchment itself. The possibility of such a conception coming into the mind of a writer of the seventh century, is certainly noteworthy.

Such a copyright control, beginning usually in the form of a prohibition, was developed, later, to some extent into a property right and a source of

income. When the *armarii* or *librarii* came to realise, first, that other copies of their precious texts were in existence, so that no one monastery was in a position to monopolise this piece of the literature or learning of a past generation; and when, further, they came to understand that gain could be secured for their monastery chest by conceding for pay the privilege of making one or more copies of their codex, the practice of selling such privilege became more and more frequent. It was, in fact, in this manner that the earlier manuscript-dealers who succeeded in establishing a system for the production and distribution of books in manuscript, secured the larger proportion of the texts with which their own collections would begin, the texts which formed what might be called the “copy” for their workshops. Occasionally we read of an Aurispa or a Vespasiano purchasing at a high price some famous and well authenticated so-called original codex; that is to say, a parchment the date of the production of which went back some centuries. More frequently, however, it is a copying privilege which is paid for by the dealer, whose copyist is permitted, under the strictest supervision, to visit the *scriptorium* and to transcribe the parchment sheets, which are taken from the carefully guarded *armarium* and are closely watched or even sometimes held by the jealous monks while the process of transcribing goes on. Vespasiano sometimes secures from the *librarius* of the monastery a signed certificate to the effect that the “copy” produced for him is a complete and accurate transcript. More frequently, however, at this later time, during the century which preceded printing, the *scriptoria* of the monasteries had been so largely neglected that in many institutions in which were to be found valuable manuscripts highly cherished by their owners, there was no one in the fraternity who was competent to give any judgment upon the accuracy of the scribe’s transcript because there was no one who was able to understand the purport of the manuscript itself.

This demoralised condition of the monastery collections and the apathy and ignorance on the part of the monks controlling those collections, was in many of the monastic centres still more marked during the half century following the invention of printing, when the earlier printers were largely dependent for their “copy” for both the classics and the works of the Fathers, upon such parchments as might still have been preserved in the monastic foundations. In a number of instances, these first printers were obliged, as had been the later manuscript-dealers, to pay for the privilege of

examining, collating, and copying. They were, however, frequently able to purchase from monks who no longer valued a parchment even as a fetish, the so-called “original.” For the printer, who had of necessity a larger responsibility for the correctness of his text than rested upon the old manuscript-dealer, the task of securing the “copy” for his compositors was not completed when he had secured control of one manuscript. With not only a risk but a certainty of errors in each parchment, it was necessary to collate a number of parchments before the scholarly printer could feel any assurance that the more pernicious errors at least had been detected and eliminated. Henry Estienne the first speaks, for instance, of using as the basis for one printed text no less than twelve manuscripts. The first copyright known to Europe of the Middle Ages may therefore be considered as that which inhered in the Common Law control of property in the manuscript. It was a copyright which had, of course, nothing whatever to do with the rights of an original producer in the literary production.

Another form of literary property which did not represent literary creation, came into existence when some enterprising *armarius*, not having in his own collection some much-wanted manuscript, would make the long journey to Rome or to Florence from Fulda, from St. Gall, from Fleury, or even from far-off Glastonbury, and would there secure the needed authority himself to prepare a transcript of some valued codex. His manuscript, brought back to his own monastery, might remain for years the only well authenticated copy of the text in question existing in a large region. Such a manuscript represented, of course, a considerable expenditure of skilled labour, of fatiguing travel, and, occasionally, also of money, an expenditure or an investment which entitled the parchment to be considered as in some sense a property creation, the result of labour. While, as a matter of scholarly fellowship or of Christian brotherhood, the privilege of reading and the far greater privilege of copying such a manuscript, might frequently be extended to fellow Benedictines, the practice of securing some consideration for its use, and particularly for the privilege of making a transcript, obtained not infrequently, and was, under the circumstances, fully warranted. The control of such a manuscript constituted a “copyright” of a somewhat different nature from that previously referred to, which was maintained in the case of some old-time codex that had been inherited or purchased in its original form, and that did not represent any labour on the part of the individual or the community claiming the ownership.

When the first printers began their work, they were of necessity confronted with practically the same conditions and difficulties in connection with the securing of “copy,” as those with which the large manuscript-dealers had had to contend. Their task was, in fact, as already indicated, a more difficult one than that of the manuscript-dealers, because the standard for completeness and correctness of text had become more exacting. The parchments required for their work were, with hardly an exception, the property of monasteries, and whether for purchase, for comparison, or for “copy,” the printers were usually obliged to make substantial compensation for right to copy. This right to copy might be described as a copyright under limitations. The monastery which had received compensation from a printer from Venice for the use of a particular parchment, felt itself under no obligation to decline a similar application from the rival printer of Lyons, or of Basel. The printers were thus estopped from securing any control over the works of the particular author which they proposed to present to the readers of their generation. They were even unable to secure any exclusive right to the use of any particular text of such author, unless, indeed, they had found means to purchase the manuscript outright. A property control of some kind was essential in order to justify the expenditure and the labour required to bring the manuscript into print, and this was finally arrived at, although inadequately enough, under the system of privileges.

While the first printing of books was done in Germany, and while the number of books produced in Germany during the half century after Gutenberg was much greater than in any other country, the beginning of copyright protection for printed books is to be credited to Italy. Gutenberg, Fust, and their immediate successors in Frankfort, Nuremberg, Basel, and Cologne, entered upon their first publishing undertakings without the aid of any government protection or recognition, municipal, state, or imperial. In the chapter on the early printers of Venice, I have described with some detail the system of privileges, a system which, originating in Venice, was adopted in the other Italian States, and which was followed in substance by the other States of Europe. The privileges of the fifteenth and sixteenth centuries were the precursor and the foundation of the later system of copyright.

The privileges granted by the Venetian Government were, as we have seen, of four kinds. The first was in the shape of a sweeping monopoly, under which the beneficiary was granted for a term of years the exclusive right to carry on the business of printing in Venice. Of this class there is but one example, dating from 1469, the details of which are given in the chapter on Italy. The second kind, a little less sweeping, gave to the beneficiary a monopoly for the production of all books of a given class, or in a particular language. The first example of this was the privilege granted, in 1495, to Aldus for the exclusive printing of books in Greek. Under the same division may be classed the privilege given a year or two later, also to Aldus, for the exclusive use of the italic type, a form which was the invention of Aldus. These two divisions of privileges have, of course, no logical connection with copyright. The last named is rather of the character of a patent, while the first two may properly be classed with commercial monopolies. There is this distinction, however, that while commercial monopolies have, as a rule, been granted for the purpose of enriching some favourite of the Crown, or have in some manner represented jobbery at the expense of the people, the legislators who granted the first printing privileges had unquestionably honestly convinced themselves that in no other way could the new art, the importance of which they were prepared to appreciate, be effectively encouraged and established. It was doubtless the case also that Aldus, in incurring expenditure in making Greek type and in printing Greek books, was assuming very serious and speculative risks, and was fairly entitled to all the encouragement which the State could give to him.

The third class of privilege was that securing for an editor or publisher a monopoly for the production of the works of some author of a past generation, usually, in fact, for an author of classic times. This is the form of privilege which, for two centuries succeeding printing, is most frequently met with, and which constituted the foundation on which the publishers of those two centuries carried on their business. The general purpose is the same as that of the general privileges previously specified, namely, to give to a printer-publisher an encouragement or inducement to enter upon an expensive and speculative undertaking which, without such special aid, might, from a commercial point of view, have appeared impracticable. When Aldus desired to undertake the production of the first printed edition of the works of *Aristotle*, the difficult and venturesome undertaking was made a little less venturesome by the action of the Senate of Venice in

prohibiting for a term of ten years the printing of any other editions of *Aristotle*. It is to be borne in mind that such a privilege, while sweeping in character, was very limited as to territory. There was nothing in law to prevent the printing in Milan of the rival edition of the *Aristotle* which was prohibited in Venice, nor even the use for such rival work of text and the editorial material appropriated from the volumes of Aldus. The protection given (still within narrow territorial limits) to such collated texts and original notes and introductions, belongs in essence under the fourth class of privilege, the class in which we find the first recognition of the principle of copyright in a literary production for the sake of the producer or of his assigns. The earliest European example of the third class of privilege, which may be described as a publisher's copyright, bears date 1492, and was issued by the Venetian Senate to Bernardino de Benaliis.

The fourth class of privilege was that securing to an author the copyright of his own production. Such a privilege differed from modern copyright only in being usually conditional upon or being the result of the action of censors by whom it had to be "approved and privileged," and on the ground of the narrow limits of term and of territory. It constituted or recognised a property right, but an extremely restricted right, and a very small property. It is certainly curious that (with the exception of the printing monopoly of 1469, which was a privilege only in name) the earliest privilege of which there is record in Italy or in Europe, was one issued to an author for his own production, and which constituted, therefore, a copyright in the modern sense of the term. This privilege was issued as early as 1486, by the Senate of Venice, to Antonio Sabellico, for his *Decades Rerum Venetiarum*. No term was specified, and the copyright might, therefore, be considered as indefinite or perpetual. The second Venetian privilege, also without term, was that issued in 1492, to Peter of Ravenna, for his *Phænix*. This has been referred to by Pütter and by other good authorities, as the first copyright privilege issued in Europe. The discovery of the earlier privilege of Sabellico, is due to Horatio Brown. The third privilege, dating from 1493, and also issued in Venice, constituted a very definite recognition of the existence of literary property, in that it gave to a certain Daniele Barbaro, who had inherited from his deceased brother, Hermolao Barbaro, the manuscript of the work, the control for a term of ten years in the *Castigationes Plinii*. After this time, the instances of privileges to authors are very few and far between. It is the rule to find them issued to printer-

publishers, and except in so far as they covered original editorial labour put into the work by the publishers, these privileges should be described rather as trade monopolies (for very restricted territories), than as copyrights.

While the more enterprising of the printers of Venice, Milan, Rome, and other cities, were, as described, occasionally able to secure privileges also in other Italian States, these privileges did not give any safe assurance of a proportionately extended market. In time of war, all such interstate arrangements lapsed, while even in the times of peace, it was very difficult and often impracticable to secure in any “foreign” territory the enforcement of the protection granted, or the collection of penalties prescribed. Such foreign privileges could, as a rule, be considered rather as a permit or licence to sell the original edition than as an undertaking on the part of a foreign government to prevent the sale of an unauthorised edition. The range of these privileges was, as noted, restricted in territory as well as limited in effectiveness. During the century succeeding printing, it was very seldom indeed that the attempt was made to secure a privilege for an Italian publication for any territory outside of Italy, or for a French publication outside of France, or for a German work outside of Germany. An exception to this limitation was, however, afforded by what were known as papal privileges which, in form at least, conceded to the printers to whom they were issued exclusive control not only within the States of the Church but for all the States of the world that acknowledged the authority of the Church. There was, however, practically no machinery for enforcing the authority of the papal privileges. They gave to the book and to its publisher a certain precedence and advantage with the faithful followers of the Church over editions of the same work which had not the sanction of the papal privilege. I can, however, find record of no instances in which a publisher, whose papal privilege had been infringed, had found it possible to enjoin the publication of a rival edition also offered for sale in Catholic States. The material advantage of a papal privilege was that it carried with it the assurance of the approval of the Church concerning the character of the book. It constituted, namely, evidence that the book had secured the approval of the Church bureau of censorship, and (with an occasional exception) it preserved it from interference on the part of local ecclesiastical censors, whose prejudices were usually more bitter and whose ignorant dread of heretical scholarship was greater, than was the case with the censors associated directly with S. Peter’s.

It was the case with the local as well as with the papal privileges that the protection and encouragement of the author was only a part, and not infrequently the smaller part, of their purpose. It was considered essential by the State no less than by the Church to retain an effective supervision and control over the productions of the Press. Before the privilege could be secured, the work must be submitted to the censors and a favourable report must have been given. The privilege was, therefore, in itself evidence that the work protected by it contained no material considered dangerous by the political or the ecclesiastical authorities of the State. To secure the benefit of even such small measure of property protection as that given under the local privilege for five or ten years, it was, as a rule, necessary that the work should be practically non-committal in character, at least as far as political or theological opinions were concerned.

The history of the Italian publishers shows what a serious burden was from the outset placed upon the production of literature in the peninsula, and how disastrous the effect was upon publishing enterprise and publishing development, by the establishment of machinery for political and ecclesiastical censorship, and by the necessity of awaiting the approval of these censors before carrying to completion publishing undertakings. In Italy, the trouble was in the main with the Church, and, as a rule, with the authorities at Rome rather than with the local ecclesiastics. In many of the cities, the local representatives of the Church to whom was confided the first censorship responsibility, were interested in and sympathised with the spirit of local independence, while they also were in a position to realise somewhat the difficulties caused to the new business of printing and publishing by too strenuous an exercise of censorship authority. This state of things was particularly true in Venice, where, as we have seen, the municipal feeling was very strong, and where educated monks like Paolo Sarpi were ready themselves to act as leaders in the contest to defend against the aggression of the Church what was, practically, the existence of the Press.

In France, where the operations of the Press were, during the first half century of printing, much less important than in Italy, the first privilege was issued in 1503. The official censorship of publications began in 1515, with the accession of Francis I. There are instances during the reign of Louis XII. of certain "permits" or "approvals" being placed upon books, but these

were not the result of examination by official censors, and do not appear to have been connected with any restrictions imposed upon the publishers. The Theological Faculty of the Sorbonne succeeded, as has been noted in the record of the Estiennes, in keeping up an active and fairly continuous supervision of, and interference with, the publication of Bibles and of other books claimed to belong to the department of theology. The University claimed the right to supervise and control printing, on the ground that the printers and publishers were the successors of the old-time University scribes, the *stationarii* and *librarii*, and were members of the University, and that the printing-press was to be considered as part of the machinery of higher education. There was certainly good foundation for this claim, but, as it proved, the University was not sufficiently strong to maintain its contention.

The importance of this new machinery for influencing public opinion was speedily recognised by the Crown, and as the power of the monarch was increased through the consolidation of the kingdom, the kings succeeded in securing the practical control over the business of printing and selling books. While it was the case, as has been noted in the history of Robert Estienne, that the influence of Francis I. was, on the whole, exercised to defend the Press against the oppression of the theologians, the authority of Henry II. and of his successors was, as a rule, exercised against the more liberal policy of the University and in favour of a very close and frequently unduly burdensome supervision of publishing undertakings. After the accession of Henry II. the regulations concerning the Press, or at least that portion of the Press regulations which were of essential importance, emanate from the Crown. It is the royal chancellor, or his representative, who decides what books shall receive the official permit, and what the term of privilege is to be. This term, beginning in the reign of Francis with five years, was gradually extended until, with the routine renewal, the average length by the reign of Henry IV. was twenty years. The main feature in the history of the Press in France is the authority and the interference of the Crown, as in Italy it had been the exacting censorship of the Church.

In Germany, the earlier printer-publishers found themselves, at least up to the time of the Reformation, comparatively free from the interference of the Church. For the sixty-eight years between the date of Gutenberg's printing-press and that of the Diet of Augsburg, the printer-publishers were left free

to print Bibles, editions of the Fathers with new notes and commentaries, and such contemporary writings as were found available (the list of these last being in any case but inconsiderable), without interference from censors of the Church and without any attempt at supervision or control on the part of municipal, state, or imperial authorities. The immediate and active use of the printing-press made by the Lutherans brought about some change in this situation; a system of censorship was at once established by the Church, and its authority was confirmed by the Emperor. A sweeping prohibition was issued not only against all Lutheran writings, but against all books, theological or other, emanating from Protestants. In some of the cities which were most faithful to the Catholic cause, these imperial-ecclesiastical edicts were confirmed by the municipalities and attempts were made to enforce their provisions upon the printing-presses and the bookshops within the municipal territories. A few years later, as in North Germany the cause of the Protestants organised and strengthened itself, the rulers of certain Protestant States undertook, at the instance of Luther and his associates, to establish censorship from a Protestant, or rather from a Lutheran standpoint. The printing and the sale of Romanist books on the one hand, and of Anabaptist and Zwinglian heresies on the other, were prohibited, and the printing of any books was permitted only after the approval of the official censors had been given.

Notwithstanding, however, this long series of prohibitions, censorships, and supervisory edicts, imperial, state, and municipal, the work of the German printer-publishers was interfered with to a comparatively small extent. The issuing of edicts, regulations, and proclamations, satisfied the official conscience and met the immediate requirements of the authorities of Rome on the one hand, and of the militant Protestants on the other.

They amounted, however, as far as the restriction of the Press was concerned, to very little more than waste paper. The machinery for their enforcement was never adequate, and the continued personal interest in carrying out regulations and in enforcing penalties which interfered with so important a German industry as that of printing, appears never to have been keen. The political supervision or censorship was no more effective or consistent than the ecclesiastical. From time to time some book would be prohibited because it contained material disrespectful or antagonistic to emperor, prince, or duke; but the book prohibited in Augsburg could easily

be printed in Nuremberg, and the work interfered with in Leipzig found prompt distribution from Wittenberg. Germany was too manifold, and the centres of intellectual activity and of publishing enterprise were too numerous, to make it practicable to carry out for the whole realm any general censorship supervision or restriction. The attempt might be compared to the experiment of blocking up in a volcanic region one or two of the more active vents, with the certainty that the exploding forces would immediately find new outlets. Individual undertakings might be interfered with, but it was impossible to block the operations of the printing-presses of Germany. In this respect the printer-publishers of Germany had a material advantage over those of Paris, whose operations were subjected to the supervision and to the authority (or rather, to the conflicting authorities) of the University (and particularly of the Theological Faculty of the Sorbonne), of the Parliament of Paris, and of the Crown.

The division of their territory and the lack of central authority placed the Germans, however, under serious disadvantages in other ways. While, in France, a royal privilege covered the territory of the entire kingdom,^[186] the German privilege was issued for a principality, an electorate, a duchy, or a city. The book protected for Electoral Saxony, was open to appropriation in Prussia or the Palatinate, or, indeed, in the adjoining Duchy of Saxony. It was also the case that the German publishers were powerless to protect themselves against the piratical competition of Basel and Geneva on the one hand, and of Antwerp and Amsterdam on the other. I do not forget that, in addition to the local privileges, imperial privileges were from time to time secured from the Chancellor at Vienna, which, in form at least, protected a book throughout the entire realm of “the Holy Roman Empire,” but authorities like Pütter and Kapp are at one in the conclusion that these privileges were entirely disregarded by the reprinters and gave practically no property protection for literary productions. An exception to this should be made for the imperial cities (*Reichsstädte*), in which an imperial privilege did carry with it some authority.^[187]

In fact, it occasionally happened that the reprinters who planned to invade with an unauthorised edition the markets of Frankfurt or Nuremberg, were able to secure an imperial privilege, and by means of this to give some legal colour to their undertaking. The difficulty was not that the imperial Chancellor desired to interfere with legitimate publishing undertakings, but

that it was considered desirable to emphasise the control of the imperial authority over the work of the printing-press, and the contention was not infrequently maintained in Vienna that no books should be placed in the market without the approval and the permit of the Emperor. It was further the case that no trustworthy registry appears to have been preserved in Vienna during the first century of printing, so that it was quite possible for duplicate privileges to be issued to competing printers for the same book and for the same term. No attempt was made to keep a record in Vienna of the privileges issued in the different German States, and as a result there was, of course, nothing to prevent conflicting claims of ownership concerning a literary production, and conflicts between the imperial and local authorities as to their respective powers in the business. The lack of any system for the interchange of copyright entries, and the incompleteness and lack of accuracy of the registers of any one State was also the cause of frequent conflicts and difficulties between the publishers of different cities, difficulties which usually came to a head when the competing editions, each duly privileged by some authority, came to be offered for sale at the semi-annual Fair.

With this utter confusion as to the law of copyright (if such a term as law can properly be applied to this medley of conflicting regulations), and with no central authority to apply to from which any adequate help could be secured, the printer-publishers of Germany were obliged to take the matter into their own hands. No agreements or regulations that they might frame could serve to protect their books against the unauthorised competition of Lyons, Basel, Antwerp, or Amsterdam. They were even not in a position to enforce enactments against the piratically inclined members of the trade within the territory of Germany. They could, however, frame such a compact as should guide the business policy and practice of the leading members of their own fraternity, while it also proved possible, through the influence of the business pressure that these leading publishers were in a position to bring to bear, to compel the majority of the printers and traders to respect and conform to the regulations decided upon by the organisation of the whole trade. The fact that the German book-trade was the first in Europe to bring about an effective organisation of its own business, an organisation which, with the modifications and developments called for by the changing conditions of trade, is in 1896 still more complete, comprehensive, and effective than it was in 1503, was doubtless largely due

to the peculiar disadvantages under which the work of the German printer-publishers had been begun. If there was to be in Germany any property in literary production, if there was to be any assured return for literary labour and for publishing risk and outlay, it was necessary that some authority should be constituted which should act for the entire German realm and which should make up for the absence in that realm of any uniform or consistent system of law. This authority was constituted, and this requirement was met by the organisation of the German book-trade. This organisation was by no means strong enough altogether to prevent unauthorised reprinting. Such reprinting went on in various parts of Germany until the close of the eighteenth century, and caused no little friction, irritation, and contention between the different book-making centres; and to the extent to which it prevailed, it lessened also, of necessity, the prospect of profitable returns from publishing ventures, and lessened also the amount of the remuneration that it was possible to secure for authors and for editors for their contribution to such undertakings. When, however, the leading publishers throughout the empire had arrived at an agreement to respect each other's publishing undertakings, the seriousness of unauthorised competition and the risk of the appropriation by reprinters of texts the cost of the reproduction of which had been borne by others, were very much lessened. It proved also practicable through the machinery of the Guild, which originated with the Frankfort Fair and which was brought to its final organisation in Leipzig, to bring pressure to bear upon such of the publishers, printers, and booksellers as had in the first place not been disposed to accept the regulations of the Guild. When it was made impracticable to sell at the book-fairs or through the central channels of distribution in Frankfort or in Leipzig, editions which had been classed as "unauthorised" or "piratical," the possibility of securing profit in the production of such editions was very much diminished, so that their number decreased from year to year.

This satisfactory result, to be sure, belongs to a later period than that considered in the present study. No such final organisation of the book-trade had been completed or perfected before the beginning of the eighteenth century, but in the institution of the Fair at Frankfort and in regulations and arrangements arrived at between the leading printer-publishers who twice a year came together at this Fair, the later organisation was foreshadowed and the preliminary steps towards it were taken.

The immediate effect of the Thirty Years' War was, of necessity, to undermine and almost put a stop to literary production and publishing undertakings in Germany. Cities like Magdeburg, Wittenberg, Leipzig, Münster, and others where the production of books by the Protestant leaders had been active, found themselves the centres of the campaigns between the Swedes and the Imperialists. Frankfort, which, in certain respects, suffered much less directly from the operations of war, was, during considerable portions of the time, so far isolated by the contesting armies, that its connection with the usual channels of book distribution could not be kept open. When the means of transportation were still available and the publishers were able to reach Frankfort with their samples, the booksellers were so far discouraged as to the prospect of making sales in their home towns that many of them did not think the journey to Frankfort worth the risk and the outlay. During the whole thirty years of the war, the Fair was continued, at least in form, but in not a few of those years it was merely a form.

As one result, therefore, of the deplorable condition of Germany, the printer-publishers of Holland secured a much larger proportion of the book-trade of Europe. Amsterdam, Leyden, and Utrecht were all outside of the campaigning operations and were also favourably situated for reaching the markets of Europe. In addition to these favourable political and physical conditions, the Dutch printers had made very noteworthy advances in the art of typography, and the Dutch and Belgian illustrators had from the beginning done much better work than was as yet known in Germany. The high standard of the scholarship of the Universities of Leyden and of Amsterdam, the fact that Holland was, during the first half of the seventeenth century, outside of the contests that were absorbing many of the European States, and the further fact that the Protestant Republic had freed itself altogether from the trammels of the censorship of Rome and had refused to replace these with the equally burdensome censorship of Geneva, had the effect of attracting to Holland scholarly thinkers and writers from various parts of Europe.

With scholarly writers and material thus provided, with the most fully developed typographical facilities that Europe had as yet known, and with the widest possible commercial connections, the printer-publishers of Holland had at their command during the larger portion of this century, all

the factors requisite for the building up of great publishing interests. They utilised these facilities to good purpose, and by the close of the Thirty Years' War they had definitely taken from Italy, France, and Germany the leadership in the enterprise, importance, and high standard of their publishing undertakings.

The chapter on the Elzevirs, who can be accepted as types of the publishers of Holland during this period of the supremacy of Dutch publishing, will have shown that the Republic did not during this period make any important contributions to, or precedents for, any system for the protection of literary property. The territory of the Republic was limited and the number of cities in which important books were produced were but few. While there does not seem to have been any formal compact, the leading publishers had, however, evidently arrived at some understanding between themselves to respect each other's undertakings. Privileges were secured from the governments of the individual States, or sometimes from the central authority of the Republic, but there was evidently no uniformity of system in regard to these and they do not appear to have been depended upon to any material extent for the protection of the books. The purpose in securing them seems to have been rather to give evidence that the undertaking had received the sanction or approval of the representatives selected by the States for the purpose, representatives who were usually scholars from the universities.

I have not been able to examine in detail the records of the Dutch publishers of the period; but I have not found in the history of the Elzevirs, whose undertakings were more considerable for a time than those of all their contemporaries together, any reference to the enforcement of a Dutch privilege against a Dutch reprinter charged with the infringement of the same. The records of the Elzevirs give, however, very considerable evidence concerning the extent to which the Dutch publishers appropriated, according to their own convenience, the undertakings of their competitors in Germany, Italy, and France. Of these appropriators, the Elzevirs were, as pointed out, the chief offenders, and they were, during the larger portion of the period in question, the only Dutch publishers who were in a position through their widespread connections to reach with their unauthorised reprints the markets of the world. To the extent to which they made sales

outside of Holland, the value of the property rights of the original publishers of Nuremberg, Basel, Venice, or Paris, was diminished.

While the Elzevirs had, therefore, to an extent previously unknown in the history of publishing, made of piracy a fine art and a pursuit of world-wide commercial importance, it seems probable, as before suggested, that, in giving tangible evidence that literary distribution could not be limited by political boundaries, and that literary producers were addressing themselves to the readers, not of their own State, smaller or greater, but of the civilised world, they were preparing the way for a European recognition of the nature of literary production and of the equity and necessity of protecting literary producers. The Elzevirs were able in this manner to render an important service in preparing Europe for the system of European copyright which was to take the place of limited local privileges and state enactments.

One circumstance in connection with literary work and book-production of the sixteenth and seventeenth centuries furthered very largely the facility for unauthorised competition and the work of piratical reprinters. This was the fact that, as far as literature and learning were concerned, there was but one language for Europe. In the Universities, in the workroom of the scholar, in the composing-room of the printing-office, we find that, for nineteen-twentieths of the books that were being put into shape, the text was Latin. The universality of the language in which literature was preserved and learning was maintained, a universality that was the essential characteristic of the manuscript period and of the work of the earlier universities during the same period, was in large part maintained during the first two centuries of printing. In the department of theology, to which belong probably the larger proportion of the books of the earlier publishers, all the works were in Latin. The division next in importance, and possibly even greater in extent, comprised the series of reproductions of the texts of the authors of classic times. For these authors, both Latin and Greek, the notes and the commentaries were, as a rule, given in Latin. The works in jurisprudence, works which were in the main expositions of the old Roman law, were, with hardly an exception, printed in Latin text, and the same was the case with works of medicine and natural science.

The fact that in all the great universities of Europe, during these same two centuries, the larger proportion of the lectures in these several departments were given in Latin, served, of course, to maintain and to extend this

universality of learning, of literature, and of science, and to build up a body of scholars who belonged not to any one State, least of all possibly to the "country of origin," but to Europe as a whole, to the world of literature and of learning. The detail of smallest importance that occurs in thinking of the career of a Casaubon, a Scaliger, or an Erasmus, is the place of his birth. Even the places selected by such a scholar for a sojourn of greater or less length, are of much smaller moment in fixing his place or his influence in the history of his generation or of the world, than the particular school of thought with which he associated himself, or the special undertakings to which he gave his coöperation. It is interesting to note, particularly in connection with the many difficulties in the way of transportation, how largely the scholars of that day lived in their correspondence. Men like Scaliger and Erasmus, sojourning at times in isolated towns and with but a small immediate circle, impressed themselves on the thought of Europe through their letters to their friends. The chapter on Erasmus emphasises the fact that, apart even from the chief divisions of university work under which the publications of the times were classified, a writer of the sixteenth century who had a work of literature, and even of light literature, to present to the world, was able through the use of Latin to reach at once all the cultivated communities. Such books as the *Praise of Folly* and the *Colloquies* of Erasmus, or the *Ship of Fools* of Brandt, became, within a wonderfully short time after their publication, the talk of society in all circles and in all cities of Europe. I do not overlook the fact that during the latter part of the period now in question, there came to be an increasing proportion of printing in the vernacular. From the beginning of printing in the Low Countries, popular romances and legends had been issued in French, and the same practice was followed by the printers of Lyons, who gave special attention to what we should call popular publishing. Various translations appeared shortly after the publication of the Latin originals of the *Praise of Folly* and of *The Ship of Fools*. Works like those of Luther, while issued originally, or at least simultaneously, in Latin, for the purpose of influencing the opinion of the scholars of Europe and of his own monastic associates, were put almost at once into German, because their special purpose was to make clear to Luther's own community, and to the less educated portion of such community, the truths that seemed to him essential, concerning the relations of man to his Creator and concerning the usurpation of the Roman Church, which had undertaken to control those

relations. These exceptions do not, however, militate against the substantial accuracy of the general statement that Latin as the language of literature was the language of the printing-office and of publishing undertakings as a whole.

It seems to me probable that if the practice had continued of retaining one literary language for Europe, the possibility of securing one system for controlling and protecting literary production throughout Europe would have been very much furthered, and the date of interstate European copyright might have been advanced by a century or more. There seemed at one time to be a possibility that with the decline of the general use of Latin, the language of France would be accepted by the writers of Europe as a convenient form for literature which was international in its character and which was addressed to the whole civilised world. Such general or international use of French proved, however, but a passing phase or episode in literary history, a phase which probably saw its culmination during the reign of Frederic the Great. The revival of the feeling of nationality which accompanied or resulted from the completion of the organisation of the great States of Europe, brought with it a revival of patriotic interest in the maintenance of the national language for the literature of the nation. As a result, we find a revival, or rather a development, of German; the writers of Italy bringing their books before the world no longer in Latin but in Italian, those of England accepting for their medium their home language, and those of France finding the use of the literary language which they had hoped to see adopted by Europe as a whole, restricted to French territory and to one or two adjoining States. It is only in countries like Belgium and Switzerland which possess no national tongue, or like Holland, the home language of which has too limited a circle of readers, or like Russia, whose language lies outside of literary civilisation, that we find any continuity in the practice of bringing books into print in French, or occasionally in Latin.

With this development of national literature, written in the tongue of the country of origin, and the direct availability of which is in the main limited to the readers of such country, there comes, for a time at least, a retrogression in the tendency which had been gaining strength, to consider Europe, as far as its literature was concerned, as one community. The domestic laws for the protection of literary property begin to take shape, and to secure for such property within the limits of the State in which it

originated a better assured and a more lasting protection. At the same time, however, that these domestic copyright laws are being enacted, we find an increase in the impression that the authors outside of the State have no rights calling for consideration and that the interests of the home publishers and of the home readers call for and justify the largest measure of appropriation that seems convenient of the productions of these foreign authors in the form of translations.

The development of public opinion to such condition of enlightenment as assured the recognition of literary production as property, irrespective of political boundaries and irrespective also of the particular form of language in which it might appear in print, came but slowly. This education and development on the part of the community on the one hand, and on that of authors and their publishers on the other, belong, of course, to a later period than that here under consideration. It was not, in fact, until the time of the discussions in England which resulted from the famous statute of 1710 (discussions which began in 1769 in connection with the suit of *Millar vs. Taylor*) that we find any intelligent consideration given to the principles involved and to the interests at stake in the definition and the protection of literary property. The first general discussion in France concerning the rights of literary producers and their relations to the community, was due to the Convention of 1793.

In Germany, as before indicated, the feebleness of the imperial authority and the lack of any real unity or harmony of imperial action, had the result of throwing the consideration of such a matter as copyright back upon the local legislatures of the State. As a consequence, the framing of any consistent legislation, giving such recognition to literary property as had been secured under the monarchy in England and the revolutionary republic in France, was delayed in Germany until 1837, when the Act was passed in Prussia which formed the model for the similar Acts passed shortly thereafter by the legislatures of a number of the other States of the empire.

If Germany was, in connection with the special difficulties attending the delay in its reorganisation as a nation, somewhat slow in the recognition given to the principles of copyright, this delay has, as far as the interest of literary producers and of copyright owners are concerned, been more than offset by the admirable service rendered through the organisation, already referred to, of the German book-trade. To Germany also belongs the credit

of inaugurating the system of interstate copyright that gave the precedents for the international copyright conventions, and that served as the suggestion and the precursor of the European system of recognition and protection of literary property instituted in 1887 by the Convention of Berne.

It was France, however, that took the initiative in calling this Convention, and it was the members of the Association of French Authors and Artists who had the larger share of the responsibility for planning the policy and shaping the work of the Convention. The result of these public-spirited labours has been to secure, for the first time in history, an assured recognition and protection for literary and artistic property.

It is evident from this brief summary that, by the close of the seventeenth century, the term fixed for the completion of the present study, the conception of literary property had not reached any very advanced stage of development.

The diverse theories which came into discussion in the latter part of the eighteenth century, in England in 1769 and 1774, in France in 1793, and in Germany somewhat later, may be briefly summarised as follows:

1st. Property in an intellectual conception or creation is fully analogous to property in a material creation, and implies as comprehensive and unlimited a control for the production of the labour of the mind as that conceded by the community to the production of the labour of the hand.

2d. Intellectual property depends upon an individual agreement or convention to which each person enjoying the use of a copy of a literary (or artistic) production makes himself a party.

3d. Property in an intellectual production depends upon the natural or personal rights of the author, who through unauthorised appropriations, would be caused an injury or tort.

4th. Property in an intellectual production is the creation of statute, and is subject to limitations depending not upon any natural rights of the producer, but upon the convenience or advantage of the community.

Of these several theories or conceptions, it is the fourth which represents in substance the survival of the discussions of two centuries, and which has formed the basis of the copyright legislation of both Europe and America.

It is probably not yet practicable to determine whether such survival represents the survival of the fittest. I am inclined to think that the actual status of an intellectual production and the relation of its producer to the community would be more accurately expressed by a combination of the first and fourth of these theories. We may assume in the first place that the right of the producer to the complete and unrestricted control of an intellectual production has been accepted as no less binding upon the community than the rights of the producers of material property.

Secondly, we may admit that an intellectual production is from its special character much more exposed to appropriation or invasion than is material property, and that an adequate protection of the property-rights of a literary producer can be secured only by means of a very considerable measure of special legislation, and that even this legislation would often prove inadequate for the purpose unless it were seconded or supported by public opinion and by the good will of the community.

Thirdly, we may assume that as a consideration for this service of exceptional legislation and for this special coöperation of the community in aiding in the protection of his very “difficult” property, the creator of an intellectual production is willing to sacrifice in favour of the community a portion of his unrestricted ownership.

An application of such an hypothesis of a practical adjustment of the rights and requirements of the author on the one hand and the interests of the community on the other, is afforded by the record of copyright legislation in France. The long series of discussions, which, beginning in 1793, were continued until 1867, resulted in the conclusion that the claim of the author to a copyright in perpetuity could in theory not be refuted. The legislation with which these discussions were terminated, did not, however, carry this conclusion to its logical result. The term of copyright was fixed not for perpetuity but for the life of the author and fifty years thereafter. The author’s property-right in his creations was, namely, protected for himself, for his children, and for his grandchildren, but after these natural family interests had been provided for, consideration was given to the interests of the community at large, and the literary production was taken into the public domain.

There has been, I contend, in this copyright arrangement arrived at in France, something in the nature of a compact between the author and the State, although I do not find such a view presented in the discussions of the time. It seems to me that such a compact is not only equitable but logical,—and that it secures a satisfactory solution for the vexed question concerning copyright in perpetuity. The author asks for a larger measure of protective service from the State than that required by the owner of property like a house (or, for that matter, of any other class of property), and he is willing in return for such special service, if the results of his labours may, by adequate legislation, be assured for his immediate descendants, to surrender to the community the property-right in perpetuity which under his inherent right and at common law was as fully vested in him as is the title of a house in the man who has produced it.

The consideration of these several theories or conceptions does not properly belong to the history of literary production prior to the beginning of the eighteenth century. I make reference to them here simply because they represent the conclusions toward which were gradually developed the more limited conceptions arrived at in the earlier centuries, the centuries whose literary activities and conditions I have attempted in these volumes to describe.





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FOOTNOTES:

[1] Humphreys, 125.

[2] Renouard, i., 25.

[3] Greswell, i., 22.

[4] "In books flows the fountain of wisdom."—*Hist. Typographorum Parisiensium*, 29.

[5] *Life of Casaubon*, 322.

[6] Greswell, i., 172.

[7] Greswell, i., 190.

[8] *Ibid.*, 191.

[9] p. 193, *et seq.*

[10] Greswell, i., 209.

[11] Le Long, *Bib. S.*, tom. i., p. 89.

[12] See also the reference to this verse in the chapter on [Froben](#).

- [13] Cited by Greswell, i., 339.
- [14] Greswell, i., 219.
- [15] Greswell, i., 225.
- [16] Cited by Greswell, i., 283.
- [17] Greswell, i., 311.
- [18] *In Elogiis*, cited by Greswell, i., 350.
- [19] Greswell, i., 376.
- [20] Greswell, i., 384.
- [21] De Guignes, *Historical Essay on the Oriental and Greek Characters of Francis I.*
- [22] Greswell, i., 404.
- [23] Maittaire, 247.
- [24] *Life of William Somner*, Oxford, 1693.
- [25] De Maumont, cited by Greswell, ii., 18.
- [26] Greswell, ii., 169.
- [27] Maittaire, 298.
- [28] Cited by Maittaire.
- [29] *Mémoire de Littérature*, Sallengre, i., 38, La Haye, 1715.
- [30] Greswell, ii., 219.
- [31] Vol. ii., 251.
- [32] *Isaac Casaubon*, by Mark Pattison, second edition, Oxford, 1892, p. 30.
- [33] *Op.*, 21, cited by Pattison, p. 31.
- [34] Pattison, p. 35.
- [35] Burney MS. 364, p. 250, cited by Pattison, p. 37.
- [36] *Ibid.*
- [37] Pattison, 153.
- [38] Pattison, 128.
- [39] Pattison, 182.
- [40] Frith, I., *Life of Bruno*, London and Boston, 1887, p. 71.
- [41] Pattison, 323.
- [42] Pattison, 324.
- [43] Blades, 24.
- [44] Blades, 32.
- [45] Cited by Blades, p. 35.
- [46] Blades, 50.

- [47] Blades, 54.
- [48] Cited by Kapp, p. 218.
- [49] Blades, 62.
- [50] Thomassy, *Les Écrits Politiques de Christine de Pisan*. Paris, 1838.
- [51] Blades, 213.
- [52] *Legend of Good Women*, line 425.
- [53] Blades, 247.
- [54] *Ibid.*, 226.
- [55] Blades, 280.
- [56] Cited by Blades, 84.
- [57] Cited by Knight, *The Old Printer*, p. 113.
- [58] Cited by Blades, p. 90.
- [59] Humphreys, 184.
- [60] Madan, *The Early Oxford Press—A Bibliography of Printing and Publishing at Oxford, 1468-1640*. Oxford, 1895, p. 247.
- [61] Madan, 254.
- [62] *Ibid.*, 263.
- [63] Humphreys, 195.
- [64] Humphreys, 196.
- [65] Humphreys, 204.
- [66] *Elizabethan Translations from the Italian*, Baltimore, 1895.
- [67] Jusserand, *The English Novel*, p. 80.
- [68] *Ibid.*, 81.
- [69] *Captain Cox, His Ballads and Books, 1575*, ed. by Furnivall, Ballad Society, 1871, p. 29.
- [70] *The English Novel*, 87.
- [71] Wilder, 59.
- [72] Knight, 203.
- [73] Kapp, 140.
- [74] Hase, 26.
- [75] Hase, 28.
- [76] Köstlin, 265.
- [77] Hase, 167.
- [78] Hase, 160.
- [79] Hase, 77.

- [80] Hase, 108.
- [81] Hase, 170.
- [82] *Ulrich Zasius*, Stintzing, Basel, 1857, p. 257.
- [83] Zasius, *Epistolæ*, p. 191.
- [84] Luther, *Briefe*, iii., 389.
- [85] Pirckheimer, *Opera*, 252.
- [86] Hase, 420.
- [87] Excepting an edition of the first writings of Luther.
- [88] Kapp, 313.
- [89] Zeltner, *Geschichte der Schriften Lutheri*, Nürnberg, 1727, p. 37.
- [90] Kapp, 388.
- [91] For the translations of these letters I am indebted to the courtesy of Dr. S. M. Jackson and Prof. G. W. Gilmore.
- [92] Kapp, 393.
- [93] Herzog, J. J., *Das Leben Johann Oekolampads*, Basel, 1843, vol. i., p. 85.
- [94] *Erasmus, His Life and Character*. By Robert B. Drummond. 2 vols., London, 1873, i., 200.
- [95] The *Complutensian Polyglot Bible* of Cardinal Ximenes, completed in 1514, was not published until 1522.
- [96] Drummond, i., 276.
- [97] *Ibid.*, i., 277.
- [98] Froude, *Erasmus*, 78.
- [99] Drummond, i., 278.
- [100] Erasmus, *Op.*, ii., 397.
- [101] Erasmus, *Op.*, ii., 707.
- [102] Drummond, i., 262.
- [103] Froude, 51.
- [104] Froude, 128.
- [105] Erasm., *Op.*, iii., 275.
- [106] Froude, 138.
- [107] Drummond, i., 261.
- [108] *Ep.*, xxi.
- [109] Froude, 127.
- [110] Drummond, i., 319.
- [111] Drummond, i., 412.
- [112] Drummond, ii., 179.

- [113] Froude, 220.
- [114] Eras., *Op.* iii., 1168.
- [115] Bariqui, i., 516; cited by Drummond, ii., 180.
- [116] Drummond, ii., 186.
- [117] *Ep.*, DCCCCXXII; Drummond, ii., 276.
- [118] p. 326.
- [119] Luther's authorship of this tract is questioned. Its preface is certainly his.
- [120] Köstlin, 279.
- [121] *Ibid.*, 491.
- [122] Kapp, 307.
- [123] Kapp, 311.
- [124] Kapp, 425.
- [125] Kapp, 374.
- [126] Plater, *Selbst-biog.*, p. 23.
- [127] Kapp, 408.
- [128] Herzog, *Das Leben Johann Oekolampads*, Basel, 1843, i., 85.
- [129] Kapp, 410.
- [130] Kapp, 417.
- [131] Kapp, 443.
- [132] Rooses, 231, *et seq.*
- [133] This is the date of the "Charter of Privileges," which gave to the University of Oxford the control of the printing.
- [134] Evelyn, *Memoirs*, ed. Bray., i., 30, 31.
- [135] Burmanni, *Syllog.*, v., 576.
- [136] Letter of D. Elzevir to Heinsius, July 1, 1679. Library of Utrecht.
- [137] C. Myrop, *Bidrag.*, p. 167.
- [138] C. F. Menander, cited by Kirchoff, *Beiträge*, ii., 149.
- [139] Charles Elton, in *Bibliotheca*, part i., 1894.
- [140] In the dedicatory epistle to the *Discorsi e Dimostrazioni Matematiche*, 1638.
- [141] Willems, cxxii.
- [142] *Introduction to the Literature of Europe.*
- [143] Unpublished letters, cited by Eng. and Em. Haag, in "La France Protestante," ix., 162, and by Willems, 186.
- [144] Cf. Castellani, *I privilegi ... in Venezia*, Venice, 1888, quoted by Brown, p. 53.

- [145] Brown, 54.
- [146] Brown, 56.
- [147] Brown, 57.
- [148] Brown, 63.
- [149] Brown, 65.
- [150] Cicogna, *Iscriz. Ven.*, v. 587.
- [151] Brown, 78.
- [152] Brown, 97.
- [153] Mansi, *Supp. ad Concil. Luccae*, 1752, ii., 681.
- [154] *Geschichte der Deutschen Bibel-übersetzung des Luthers*, 43.
- [155] Thausing, M., *Dürer. Gescht. seines Lebens*, etc., 254.
- [156] p. 97.
- [157] Kirchhoff, *Gescht. des Deutsch. Buchhandels*, i., 42-45.
- [158] Luden, *Vom freien Geistes-Verkehr*, Weimar, 1814, pp. 51-52.
- [159] Kapp, 171.
- [160] Götze, Ludwig, *Alt. Gesch. der Buchdrückerkunst in Magdeburg*, 5, 19, et seq.
- [161] Strauss, *Ulrich v. Hutten*, 4te Auflage, Bonn, 1878, 481, et seq.
- [162] Schuck, *Aldus Manutius u. seine Zeitgenossen in Italien u. Deutschland*, Berlin, 1862, 82.
- [163] Kapp, 313.
- [164] Kapp, 314.
- [165] F. H. Meyer, in *Archiv.*, v., 181.
- [166] Kapp, 315.
- [167] Kapp, 317, et seq.
- [168] *Beiträge*, 112.
- [169] p. 317.
- [170] *Manuel du Bibliophile*, i., 42.
- [171] *Beiträge zum Deutschen Staats- und Fürstenrecht*.
- [172] Renouard, i., 25.
- [173] Bayle's *Dictionary*, article *Beda*.
- [174] *De la Presse au Seizième Siècle*.
- [175] Renouard, i., 50.
- [176] *Œuvres*, Édition de 1828, xxvi., 389.
- [177] Renouard, i., 79.

[178] Stationers' Company vs. Carman, 2 W. Bl. 1002, Scrutton, 70.

[179] Hub. Ames, F. A., i., 186. Cited by Scrutton, 72.

[180] Scrutton, 76.

[181] *Ibid.*

[182] p. 83.

[183] 4 Burr, 2313.

[184] The Act was passed in 1709, but went into effect April 10, 1710.

[185] Milton, *Areopagitica*, edited by White, London, 1819, pp. 15-18.

[186] The "piracies" of the Lyons publishers were troublesome for the Paris Guild, but they do not affect the general accuracy of the statement.

[187] Kapp, 495.

Corrections

The first line indicates the original, the second the correction:

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with a few rare exception, of editions
with a few rare exceptions, of editions

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1533. "Virgillii Opera." 8vo. (Again.)
1533. "Virgilii Opera." 8vo. (Again.)

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La Farce de Pathelin

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Jacobus de Voragine,

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for the reissue, while the work of translating

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in protecting the the work
in protecting the work

p. [221](#)

One of the more important of the earlier pamphlets
One of the more important of the earlier pamphlets

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La Livre de la Victoire contre toutes tribulations.
Le Livre de la Victoire contre toutes tribulations.

p. [330](#)

for the Low Countries, for Scandivania
for the Low Countries, for Scandinavia

p. [355](#)

the Council of Ten had practially resigned
the Council of Ten had practically resigned

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and also from such Unievrstities
and also from such Universities

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the records of the *Chambre syndicat de la librairie*
the records of the *Chambre syndicale de la librairie*

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- III. confirms the monopoly of the Milan printers' guild, i, 454

[Footnote 154](#):

Geschichte der Deutschen Bibel-übersetzung des Luthers, 43.
Geschichte der Deutschen Bibel-übersetzung des Luthers, 43.

Erratum

On pp. [451-452](#), the excerpt from the Edict of Nantes should read:

Ne pourront les livres concernant ladite religion prétendue réformée être réimprimés et vendus publiquement qu'ès villes et lieux où l'exercice public de ladite religion est permis; et, pour les autres livres qui seront imprimés ès autres villes, seront vus et visités tant par nos officiers que théologiens, ainsi qu'il est porté par nos ordonnances. Défendons très expressément l'impression, publication et vente de tous livres, libelles et écrits diffamatoires, sous les peines contenues en nos ordonnances, enjoignant à tous nos juges et officiers d'y tenir la main.

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